BIOGRAPHY

The Letters of Cicero, Volume 1

Marcus Tullius Cicero

FAHAD.COM — Free Book Library

Public Domain Edition

Produced by Ted Garvin, Taavi Kalju and the Online Distributed Proofreading Team at http://www.pgdp.net

THE LETTERS OF

CICERO

THE WHOLE EXTANT CORRESPONDENCE IN CHRONOLOGICAL ORDER

TRANSLATED INTO ENGLISH

BY

EVELYN S. SHUCKBURGH, M.A.

LATE FELLOW OF EMMANUEL COLLEGE, CAMBRIDGE AUTHOR OF A TRANSLATION OF POLYBIUS, A HISTORY OF ROME, ETC

IN FOUR VOLUMES

VOL. I. B.C. 68-52

LONDON GEORGE BELL AND SONS 1899

CHISWICK PRESS:--CHARLES WHITTINGHAM AND CO. TOOKS COURT, CHANCERY LANE, LONDON.

PREFACE

The object of this book is to give the English-speaking public, in a convenient form, as faithful and readable a copy as the translator was capable of making of a document unique in the literature of antiquity. Whether we regard the correspondence of Cicero from the point of view of the biographer and observer of character, the historian, or the lover of _belles lettres_, it is equally worthy of study. It seems needless to dwell on the immense historical importance of letters written by prominent actors in one of the decisive periods of the world's history, when the great Republic, that had spread its victorious arms, and its law and discipline, over the greater part of the known world, was in the throes of its change from the old order to the new. If we would understand--as who would not?--the motives and aims of the men who acted in that great drama, there is nowhere that we can go with better hope of doing so than to these letters. To the student of character also the personality of Cicero must always have a great fascination. Statesman, orator, man of letters, father, husband, brother, and friend--in all these capacities he comes before us with singular vividness. In every one of them he will doubtless rouse different feelings in different minds. But though he will still, as he did in his lifetime, excite vehement disapproval as well as strong admiration, he will never, I think, appear to anyone dull or uninteresting. In the

greater part of his letters he is not posing or assuming a character; he lets us only too frankly into his weaknesses and his vanities, as well as his generous admirations and warm affections. Whether he is weeping, or angry, or exulting, or eager for compliments, or vain of his abilities and achievements, he is not a phantasm or a farceur, but a human being with fiercely-beating pulse and hot blood.

The difficulty of the task which I have been bold enough to undertake is well known to scholars, and may explain, though perhaps not excuse, the defects of my work. One who undertakes to express the thoughts of antiquity in modern idiom goes to his task with his eyes open, and has no right at every stumbling-block or pitfall to bemoan his unhappy fate. So also with the particular difficulties presented by the great founder of Latin style--his constant use of superlatives, his doubling and trebling of nearly synonymous terms, the endless shades of meaning in such common words as _officium_, _fides_, _studium_, _humanitas_, _dignitas_, and the like--all these the translator has to take in the day's work. Finally, there are the hard nuts to crack--often very hard--presented by corruption of the text. Such problems, though, relatively with other ancient works, not perhaps excessively numerous, are yet sufficiently numerous and sufficiently difficult. But besides these, which are the natural incidents of such work, there is the special difficulty that the letters are frequently answers to others which we do not possess, and which alone can fully explain the meaning of sentences which must remain enigmatical to us; or they refer to matters by a word or phrase of almost telegraphic abruptness, with which the recipient was well acquainted, but as to which we are reduced to guessing. When, however, all such insoluble difficulties are allowed for, which after all in absolute bulk are very small, there should (if the present version is at all worthy) be enough that is perfectly plain to everyone, and generally of the highest interest.

I had no intention of writing a commentary on the language of Cicero or his correspondents, and my translation must, as a rule, be taken for the only expression of my judgment formed after reading and weighing the arguments of commentators. I meant only to add notes on persons and things enabling the reader to use the letters for biographical, social, and historical study. I should have liked to dedicate it by the words _Boswellianus Boswellianis_. But I found that the difficulties of the text compelled me to add a word here and there as to the solution of them which I preferred, or had myself to suggest. Such notes are very rare, and rather meant as danger signals than critical discussions. I have followed in the main the chronological arrangement of the letters adopted by Messrs. Tyrrell and Purser, to whose great work my obligations are extremely numerous. If, as is the case, I have not always been able to accept their conclusions, it is none the less true that their brilliant labours have infinitely lightened my task, and perhaps made it even possible.

I ought to mention that I have adopted the English mode of dating, writing, for instance, July and August, though Cicero repudiated the former and, of course, never heard of the latter. I have also refrained generally from attempting to represent his Greek by French, partly because I fear I should have done it ill, and partly because it is not in him as in an English writer who lards his sentences with French. It is almost confined to the letters to Atticus, to whom Greek was a second mother-tongue, and

often, I think, is a quotation from him. It does not really represent Cicero's ordinary style.

One excuse for my boldness in venturing upon the work is the fact that no complete translation exists in English. Mr. Jeans has published a brilliant translation of a selection of some of the best of the letters. But still it is not the whole. The last century versions of Melmoth and Herbenden have many excellences; but they are not complete either (the letters to Brutus, for instance, having been discovered since), and need, at any rate, a somewhat searching revision. Besides, with many graces of style, they may perhaps prove less attractive now than they did a century ago. At any rate it is done, and I must bear with what equanimity nature has given me the strictures of critics, who doubtless will find, if so minded, many blemishes to set off against, and perhaps outweigh, any merit my translation may have. I must bear that as well as I may. But no critic can take from me the days and nights spent in close communion with Rome's greatest intellect, or the endless pleasure of solving the perpetually recurring problem of how best to transfer a great writer's thoughts and feelings from one language to another:

"Cæsar in hoc potuit iuris habere nihil."

LETTERS IN VOLUME I

Number in this Translation

Fam. I. 1 94 " 2 95 " 3 96 " 4 97 " 5 98 " 5b 102 " 6 103 " 7 113 " 8 118 " 9 152 " 10 161 Fam. II. 1 165 " 2 167 " 3 168 " 4 174 " 5 175 " 6 176 Fam. III. 1 180 Fam. V. 1 13 " 2 14 " 3 112 " 4 88 " 5 17 " 6 15 " 7 12 " 8 130 " 12 108 " 17 178 " 18 179 Fam. VII. 1 126 " 2 181 " 5 133 " 6 135 " 7 136 " 8 139 " 9 144 " 10 160 " 11 166 " 12 169 " 13 170 " 14 171 " 15 173 " 16 156 " 17 145 " 18 172 " 23 125 " 26 93 Fam. XIII. 6a 114 " 6b 115 " 40 128 " 41 54 " 42 53 " 49 162 " 60 163 " 73 164 " 74 127 " 75 177 Fam. XIV. 1 81 " 2 78 " 3 83 " 4 61 Fam. XVI. 10 p. 386 " 13 p. 384 " 14 p. 385 " 16 p. 387 Q. Fr. I. 1 29 " 2 52 " 3 65 " 4 71 Q. Fr. II. 1 92 " 2 99 " 3 101 " 4 104 " 5 105 " 6 116 " 7 119 " 8 122 " 9 131 " 10 132 " 11 134 " 12 138 " 13 140 " 14 141 " 15 146 Q. Fr III. 1 147 " 2 149 " 3 150 " 4 151 " 5} 154 " 6} " 7 155 " 8 158 " 9 159 Petit. Cons. p. 367 Att. I. 1 10 " 2 11 " 3 8 " 4 9 " 5 1 " 6 2 " 7 3 " 8 5 " 9 4 " 10 6 " 11 7 " 12 16 " 13 18 " 14 19 " 15 20 " 16 21 " 17 22 " 18 23 " 19 24 " 20 25 Att. II. 1 26 " 2 27 " 3 28 " 4 30 " 5 31 " 6 32 " 7 33 " 8 34 " 9 35 " 10 37 " 11 38 " 12 36 " 13 39 " 14 40 " 15 41 " 16 42 " 17 43 " 18 44 " 19 45 " 20 46 " 21 47 " 22 48 " 23 49 " 24 50 " 25 51 Att. III. 1 58 " 2 56 " 3 55 " 4 57 " 5 59 " 6 60 " 7 62 " 8 63 " 9 64 " 10 66 " 11 67 " 12 68 " 13 70 " 14 69 " 15 72 " 16 73 " 17 74 " 18 75 " 19 76 " 20 77 " 21 79 " 22 80 " 23 82 " 24 84 " 25 85 " 26 86 " 27 87 Att. IV. 1 89 " 2 90 " 3 91 " 4a 100 " 4b 106 " 5 107 " 6 109 " 7 110 " 8a 111 " 8b 117 " 9 121 " 10 120 " 11 123 " 12 124 " 13 129 " 14 137 " 15 143 " 16} 142, 148, 157 " 17} " 18 153

INTRODUCTION

[Sidenote: Ground covered by the Correspondence.]

The correspondence of Cicero, as preserved for us by his freedman Tiro, does not open till the thirty-ninth year of the orator's life, and is so strictly contemporary, dealing so exclusively with the affairs of the moment, that little light is thrown by it on his previous life. It does not become continuous till the year after his consulship (B.C. 62). There are no letters in the year of the consulship itself or the year of his canvass for the consulship (B.C. 64 and 63). It begins in B.C. 68, and between that date and B.C. 65 there are only eleven letters. We have, therefore, nothing exactly contemporaneous to help us to form a judgment on the great event which coloured so much of his after life, the suppression of the Catilinarian conspiracy and the execution of the conspirators, in the last month of his consulship. But setting aside the first eleven letters, we have from that time forward a correspondence illustrating, as no other document in antiquity does, the hopes and fears, the doubts and difficulties, of a keen politician living through the most momentous period of Roman history, the period of the fall of the Republic, beginning with Pompey's return from the East in B.C. 62, and ending with the appearance of the young Octavian on the scene and the formation of the Triumvirate in B.C. 43, of whose victims Cicero was one of the first and most illustrious. It is by his conduct and speeches during this period that Cicero's claim to be a statesman and a patriot must be judged, and by his writings in the same period that his place in literature must chiefly be assigned. Before B.C. 63 his biography, if we had it, would be that of the advocate and the official, no doubt with certain general views on political questions as they occurred, but not yet committed definitely to a party, or inclined to regard politics as the absorbing interest of his life. In his early youth his hero had been his fellow townsman Marius, in whose honour he composed a poem about the time of taking the _toga virilis_. But it was as the successful general, and before the days of the civil war. And though he served in the army of Sulla in the Marsic war (B.C. 90-88), he always regarded his cruelties with horror, however much he may have afterwards approved of certain points of his legislation. It was not till the consulship that he became definitely a party man[1] and an Optimate, and even then his feelings were much distracted by a strong belief--strangely ill-founded--that Pompey would be as successful as a statesman as he had been fortunate as a general. For him he had also a warm personal attachment, which never seems to have wholly died out, in spite of much petulance of language. This partly accounts for the surrender of B.C. 56, and his acquiescence in the policy of the triumvirs, an acquiescence never hearty indeed, as far as Cæsar and Crassus were concerned, but in which he consoled himself with the belief that nothing very unconstitutional could be done while Pompey was practically directing affairs at Rome.

[Sidenote: The various nature of the Correspondence.]

It is through this period of political change and excitement that the correspondence will take us, with some important gaps indeed, but on the whole fullest when it is most wanted to shew the feelings and motives guiding the active politicians of the day, or at any rate the effect which events had upon one eager and acute intellect and sensitive heart. One charm of the correspondence is variety. There is almost every sort of letter. Those to Atticus are unstudied, spontaneous, and reflect the varying moods of the writer. At times of special excitement they follow each other

day by day, and sometimes more than once in the same day; and the writer seems to conceal nothing, however much it might expose him to ridicule, and to the charge of fickleness, weakness, or even cowardice. Those addressed to other friends are sometimes familiar and playful, sometimes angry and indignant. Some of them are careful and elaborate state papers, others mere formal introductions and recommendations. Business, literature, and philosophy all have their share in them; and, what is so rare in ancient literature, the family relations of the writer, his dealings with wife, son, and daughter, brother and nephew, and sons-in-law, are all depicted for us, often with the utmost frankness. After reading them we seem to know Cicero the man, as well as Cicero the statesman and orator. The eleven letters which precede the consulship are happily, from this point of view, addressed to Atticus. For it was to Atticus that he wrote with the least concealment, and with the confidence that any detail, however small, which concerned himself would be interesting to his correspondent. It is well, therefore, that, though we thus come into his life when it was more than half over, we should at once hear his genuine sentiments on whatever subjects he may be speaking. Besides his own, we have about ninety letters to Cicero from some of the chief men of the day--Pompey, Cæsar, Cato, Brutus, Antony, and many others. They are of very various excellence. The best of them are by much less known men. Neither Pompey nor Cæsar were good letter-writers, or, if the latter was so, he was too busy to use his powers.

[Sidenote: Cicero's position previous to the beginning of the Correspondence in B.C. 68.]

[Sidenote: Quæstor, B.C. 75.]

The letters begin, then, in B.C. 68, when Cicero was in his thirty-seventh year. He was already a man of established reputation both as a pleader and a writer. Rhetorical treatises (B.C. 86), translations from Xenophon and Plato (B.C. 84), and from the poems of Aratus (B.C. 81), had given evidence of a varied literary interest and a promise of future eminence, while his success as an advocate had led to the first step in the official _cursus honorum_ by his becoming a quæstor in B.C. 75. The lot assigned Lilybæum as his sphere of work, and though the duties of a quæstor in Sicily were not such as to bring a man's name much before the Roman public, Cicero plumes himself, as was not unusual with him, on the integrity and energy which he displayed in his administration. He has indeed the honesty to tell against himself the story of the acquaintance who, meeting him at Puteoli on his return journey, asked him what day he had left Rome and what was the news there. When he answered rather crossly that he had just come from Sicily, another acquaintance put in with "Why, of course. Didn't you know he has just been quæstor _at Syracuse_!" At any rate he had done sufficiently well in Lilybæum to give him his next step, the ædileship to which he was elected B.C. 70, and to induce the Sicilians to apply to him, when in that year they desired the prosecution of the extortionate Verres. His energy and success in this business raised him, without question, to the first rank of advocates, and pledged him to a righteous policy in regard to the government of the provinces.

[Sidenote: Cicero's Boyhood and Education.]

Still Cicero was a _novus homo_, and the jealous exclusiveness of the great families at Rome might yet prevent his attainment of the highest office of all. When the correspondence opens he is a candidate for the prætorship, which he obtained without difficulty, at the head of the poll. But his birth might still be a bar to the consulship. His father, M. Tullius, lived at Arpinum, an ancient city of the Volscians and afterwards of the Samnites, which had long enjoyed a partial, and from B.C. 188 a complete, Roman franchise, and was included in the Cornelian tribe. Cicero's mother's name was Helvia, of whom we know nothing but the one anecdote told by Quintus (_Fam._ xvi. 26), who says that she used to seal the wine jars when they were emptied, so that none might be drained without her knowing it--a testimony to her economy and careful housewifery. His father had weak health and resided almost entirely in his villa at Arpinum, which he had considerably enlarged, much devoted to study and literature (_de Leg._ ii. 1). But though he apparently possessed considerable property, giving him equestrian rank, and though Cicero says that his family was very ancient, yet neither he nor any of his ancestors had held Roman magistracies. Marcus and his brother Quintus were the first of their family to do so, and both had to depend on character and ability to secure their elections. But though the father did nothing for his sons by holding curule office himself, he did the best for their education that was possible. Cicero calls him _optimus et prudentissimus_, and speaks with gratitude of what he had done for his sons in this respect. They were sent early to Rome to the house of C. Aculeo, a learned jurisconsult, married to a sister of Helvia; and attended--with their cousins, the sons of Aculeo--the best schools in the city.[2] The young Marcus shewed extraordinary ability from the first, and that avidity for reading and study which never forsook him. As a young man he diligently attended the chambers of renowned jurisconsults, especially those of the elder and younger Scævola, Crassus, and Antonius, and soon found that his calling in life was oratory. It was not till he was twenty-eight years old, however--when he had already written much and pleaded many cases--that he went on a visit of between two and three years to Greece, Asia, and Rhodes, to study in the various schools of rhetoric and philosophy, and to view their famous cities (B.C. 79-77). It was after his return from this tour that his age (he was now thirty-one) made the seeking of office at Rome possible. From that time his election to the several offices--quæstorship, ædileship, prætorship, consulship--followed without any repulse, each in the first year of his age at which he was legally capable of being elected.

He had doubtless made the acquaintance of Titus Pomponius, afterwards called Atticus, early in life. But it seems that it was their intimacy at Athens (B.C. 79), where Atticus, who was three years his senior, had been residing for several years, that began the very close and warm friendship which lasted with nothing but the slightest and most passing of clouds till his death. His brother Quintus was married to Pomponia, a sister of Atticus; but the marriage turned out unfortunately, and was a strain upon the friendship of Cicero and Atticus rather than an additional bond. This source of uneasiness meets us in the very first letter of the correspondence, and crops up again and again till the final rupture of the ill-assorted union by divorce in B.C. 44. Nothing, however, had apparently interrupted the correspondence of the two friends, which had been going on for a long time before the first letter which has

been preserved.

[Sidenote: Cicero the successful Advocate.]

[Sidenote: Death of Cicero's Father.]

The eleven letters, then, which date before the consulship, shew us Cicero in full career of success as an advocate and rising official, not as yet apparently much interested in party politics, but with his mind, in the intervals of forensic business, engaged on the adornment of the new villa at Tusculum, the first of the numerous country residences which his growing wealth or his heightened ideas of the dignity of his position prompted him to purchase. Atticus is commissioned to search in Athens and elsewhere for objects of art suitable for the residence of a wealthy Roman, who at the same time was a scholar and man of letters. He is beginning to feel the charm of at any rate a temporary retreat from the constant bustle and occupations of the city. Though Cicero loved Rome, and could hardly conceive of life unconnected with its business and excitements,[3] and eagerly looked for news of the city in his absence, yet there was another side to his character. His interest in literature and philosophy was quite as genuine as his interest in the forum and senate-house. When the season came for temporarily withdrawing from the latter, he returned to the former with eager passion. But Tusculum was too near Rome to secure him the quiet and solitude necessary for study and composition. Thus, though he says (vol. i., p. 4), "I am so delighted with my Tusculan villa that I never feel really happy till I get there," he often found it necessary, when engaged in any serious literary work, to seek the more complete retirement of Formiæ, Cumæ, or Pompeii, near all of which he acquired properties, besides an inheritance at Arpinum.[4] But the important achievements in literature were still in the future. The few letters of B.C. 68-67 are full of directions to Atticus for the collection of books or works of art suitable to his house, and of matters of private interest. They are also short and sometimes abrupt. The famous allusion to his father's death in the second letter of this collection, contained in a single line--_pater nobis decessit a.d. 111 Kal. Decembris_--followed by directions to Atticus as to articles of _vertu_ for his villa, has much exercised the minds of admirers, who do not like to think Cicero capable of such a cold-hearted sentence. It is certainly very unlike his usual manner.[5] He is more apt to exaggerate than understate his emotions; and in the first letter extant he speaks with real feeling of the death of a cousin. Elsewhere--as we have seen--he refers to his father with respect and gratitude. How then are we to account for such a cold announcement? Several expedients have been hit upon. First, to change _decessit_ to _discessit_, and to refer the sentence to the father's quitting Rome, and not life; in which case it is not easy to see why the information is given at all. Second, to suppose it to be a mere answer to a request for the information on the part of Atticus; in which case the date must refer to some previous year, or the letter must be placed considerably later, to allow of time for Atticus to hear of the death and to write his question. In favour of the first is the fact that Asconius (§ 82) says that Cicero lost his father when he was a candidate for the consulship (B.C. 64). Some doubt has been thrown upon the genuineness of the passage in Asconius; and, if that is not trustworthy, we have nothing else to help us. On the whole I think we must leave the announcement as it stands in all its

baldness. Cicero's father had long been an invalid, and Atticus may have been well aware that the end was expected. He would also be acquainted with the son's feelings towards his father, and Cicero may have held it unnecessary to enlarge upon them. It is possible, too, that he had already written to tell Atticus of the death and of his own feelings, but had omitted the date, which he here supplies. Whatever may be the true explanation--impossible now to recover--everything we know of Cicero forbids us to reckon insensibility among his faults, or reserve in expressing his feelings among his characteristics.

[Sidenote: The Prætorship, B.C. 66.]

In the next year (B.C. 67) we find Cicero elected to the prætorship, after at least two interruptions to the _comitia_, which, though not aimed at himself, gave him a foretaste of the political troubles to come a few years later. He is, however, at present simply annoyed at the inconvenience, not yet apprehensive of any harm to the constitution. The double postponement, indeed, had the effect of gratifying his vanity: for his own name was returned three times first of the list of eight. His prætorship (B.C. 66) passed without any startling event. The two somewhat meagre letters which remain belonging to this year tell us hardly anything. Still he began more or less to define his political position by advocating the _lex Manilia_, for putting the Mithridatic war into the hands of Pompey; and one of his most elaborate forensic speeches--that for Cluentius--was delivered in the course of the year: in which also his brother Quintus was elected to the ædileship.

[Sidenote: B.C. 65-64. Preparations for the Consulship.]

So far Cicero had risen steadily and without serious difficulty up the official ladder. But the stress was now to come. The old families seem not to have been so ready to oppose the rise of the _novus homo_ to the prætorship. It was the consulship on which they tried to keep a tight hand. Accordingly, immediately after the year of his prætorship, we find him anxiously looking out for support and inquiring who are likely to be his competitors. The interesting point in regard to this is his connexion with Catiline. In his speech in the senate delivered in the following year (_in toga candida_, B.C. 64) he denounced Catiline in the most violent language, accusing him of every conceivable crime; yet in B.C. 65 he not only contemplated being elected with him without any expression of disgust, but even considered whether he should not undertake his defence on some charge that was being brought against him--perhaps for his conduct during the Sullan proscriptions. To whitewash Catiline is a hopeless task; and it throws a lurid light upon the political and moral sentiments of the time to find Cicero even contemplating such a conjunction.

After this, for two years, there is a break in the correspondence. Atticus had probably returned to Rome, and if there were letters to others (as no doubt there were) they have been lost. A certain light is thrown on the proceedings of the year of candidature (B.C. 64) by the essay "On the duties of a candidate," ascribed to his brother Quintus, who was himself to be a candidate for the prætorship in the next year (B.C. 63). We may see from this essay that Pompey was still regarded as the greatest and most influential man at Rome; that Catiline's character was so atrocious

in the eyes of most, that his opposition was not to be feared; that Cicero's "newness" was a really formidable bar to his election, and that his chief support was to be looked for from the individuals and companies for whom he had acted as counsel, and who hoped to secure his services in the future. The support of the nobles was not a certainty. There had been a taint of _popularity_ in some of Cicero's utterances, and the writer urges him to convince the consulars that he was at one with the Optimates, while at the same time aiming at the conciliation of the equestrian order. This was, in fact, to be Cicero's political position in the future. The party of the Optimates--in spite of his disgust at the indifference and frivolity of many of them--was to be his party: his favourite constitutional object was to be to keep the equites and the senate on good terms: and his greatest embarrassment was how to reconcile this position with his personal loyalty to Pompey, and his views as to the reforms necessary in the government of the provinces.

[Sidenote: The Consulship, B.C. 63.]

For the momentous year of the consulship we have no letters. His brother Quintus was in Rome as candidate and then prætor-designate; Atticus was also in Rome; and the business, as well as the dignity of a consul, were against anything like ordinary correspondence. Of the earlier part of the consulship we have little record. The speeches against Rullus were delivered at the beginning of the year, and commit Cicero pretty definitely to a policy as to the _ager publicus_--which was, to his disgust, entirely reversed by the triumvirs in B.C. 59--but they do not shew any sense of coming trouble. Cicero, however, throughout his consulship took a very definite line against the _populares_. Not only did he defend Rabirius Postumus, when accused by Cæsar of the assassination of Saturninus, and address the people against offering violence to L. Roscius on account of the unpopular _lex theatralis_,[6] but he even resisted the restoration to their civil rights of the sons of the men proscribed by Sulla, avowedly on the ground of the necessity of maintaining the established order, though he knew and confessed the justice of the proposal.[6]

[Sidenote: The Conspiracy of Catiline.]

Any movement, therefore, on the side of the popular party had now his opposition with which to reckon. He professes to have known very early in his year of office that some more than usually dangerous movement was in contemplation. We cannot well decide from the violent denunciation of Catiline contained--to judge from extant fragments--in the speech _in toga candida_, how far Cicero was really acquainted with any definite designs of his. Roman orators indulged in a violence of language so alien from modern ideas and habits, that it is difficult to draw definite conclusions. But it appears from Sallust that Catiline had in a secret meeting before the elections of B.C. 64, professed an intention of going all lengths in a revolutionary programme and, if that was the case, Cicero would be sure to have had some secret information on the subject. But his hands were partly tied by the fact that the _comitia_ had given him a colleague--C. Antonius--deeply implicated in Catiline's policy, whatever it was. Pompey, whom he regarded as the champion of law and order, was in the East: and Catiline's candidature--and it was supposed his policy also--had had the almost open support of the richest man in Rome, M. Licinius Crassus, and of the most influential

man of the _populares_, C. Iulius Cæsar. In the house of one or the other of them, indeed, the meeting at which Catiline first unfolded his purposes was believed to have been held. Still Catiline had not been guilty of any overt act which enabled Cicero to attack him. He had, indeed, been informed, on very questionable authority, that Catiline had made a plot to assassinate him while holding the elections, and he made a considerable parade of taking precautions for his safety--letting it be seen that he wore a cuirass under his toga, and causing his house to be guarded by the younger members of his party. The elections, according to Plutarch, had at least been once postponed from the ordinary time in July, though this has been denied.[7] At any rate it was not till they had taken place and Catiline had been once more rejected, that any definite step is alleged to have been taken by him, such as Cicero could lay hold of to attack him. On the 20th of October, in the senate, Cicero made a speech warning the Fathers of the impending danger, and on the 21st called upon Catiline for an explanation in their presence. But, after all, even the famous meeting of the 5th of November, in the house of M. Porcius Læca, betrayed to Cicero by Fulvia, the mistress of Q. Curius, would not have sufficed as grounds for the denunciation of the first extant speech against Catiline (7th of November), if it had not been for something else. For some months past there had been rumours of risings in various parts of Italy; but by the beginning of November it was known that C. Manlius (or Mallius) had collected a band of desperadoes near Fæsulæ, and, having established there a camp on the 27th of October, meant to advance on Rome. Manlius had been a centurion in Sulla's army, and had received an allotment of confiscated land in Etruria; but, like others, had failed to prosper. The movement was one born of discontent with embarrassments which were mostly brought about by extravagance or incompetence. But the rapidity with which Manlius was able to gather a formidable force round him seems to shew that there were genuine grievances also affecting the agricultural classes in Etruria generally. At any rate there was now no doubt that a formidable disturbance was brewing; the senate voted that there was a _tumultus_, authorized the raising of troops, and named commanders in the several districts affected. It was complicity in this rising that Cicero now sought to establish against Catiline and his partisans in Rome. The report of the meeting in the house of Læca gave him the pretext for his first step--a fiery denunciation of Catiline in the senate on the 7th of November. Catiline left Rome, joined the camp of Manlius, and assumed the ensigns of _imperium_. That he was allowed thus to leave the city is a proof that Cicero had as yet no information enabling him to act at once. It was the right of every citizen to avoid standing a trial by going into exile. Catiline was now under notice of prosecution for _vis_, and when leaving Rome he professed to be going to Marseilles, which had the _ius exilii_. But when it was known that he had stopped short at Fæsulæ, the senate at once declared both him and Manlius _hostes_, and authorized the consuls to proceed against them. The expedition was intrusted to Antonius, in spite of his known sympathy with Catiline, while Cicero was retained with special powers to protect the city. The result is too well known to be more than glanced at here. Catiline's partisans were detected by letters confided to certain envoys of the Allobroges, which were held to convict them of the guilt of treason, as instigating Catiline to march on Rome, and the senate of the Allobroges to assist the invasion by sending cavalry to Fæsulæ.

[Sidenote: Execution of the conspirators, December, B.C. 63. Its legal grounds and consequences.]

The decree of the senate, _videant consules, etc._, had come to be considered as reviving the full _imperium_ of the consul, and investing him with the power of life and death over all citizens. Cicero acted on this (questionable) constitutional doctrine. He endeavoured, indeed, to shelter himself under the authority of a senatorial vote. But the senate never had the power to try or condemn a citizen. It could only record its advice to the consul. The whole legal responsibility for the condemnation and death of the conspirators, arrested in consequence of these letters, rested on the consul. To our moral judgment as to Cicero's conduct it is of primary importance to determine whether or not these men were guilty: to his legal and constitutional position it matters not at all. Nor was that point ever raised against him. The whole question turns on whether the doctrine was true that the _senatus consultum ultimum_ gave the consul the right of inflicting death upon citizens without trial, _i.e._, without appeal to the people, on the analogy of the dictator _seditionis sedandæ causa_, thus practically defeating that most ancient and cherished safeguard of Roman liberty, the _ius provocationis_. The precedents were few, and scarcely such as would appeal to popular approval. The murder of Tiberius Gracchus had been _ex post facto_ approved by the senate in B.C. 133-2. In the case of Gaius Gracchus, in B.C. 121, the senate had voted _uti consul Opimius rempublicam defenderet_, and in virtue of that the consul had authorized the killing of Gaius and his friends: thus for the first time exercising _imperium sine provocatione_. Opimius had been impeached after his year of office, but acquitted, which the senate might claim as a confirmation of the right, in spite of the _lex_ of Gaius Gracchus, which confirmed the right of _provocatio_ in all cases. In B.C. 100 the tribune Saturninus and the prætor Glaucia were arrested in consequence of a similar decree, which this time joined the other magistrates to the consuls as authorized to protect the Republic: their death, however, was an act of violence on the part of a mob. Its legality had been impugned by Cæsar's condemnation of Rabirius, as _duovir capitalis_, but to a certain extent confirmed by the failure to secure his conviction on the trial of his appeal to the people. In B.C. 88 and 83 this decree of the senate was again passed, in the first case in favour of Sulla against the tribune Sulpicius, who was in consequence put to death; and in the second case in favour of the consuls (partisans of Marius) against the followers of Sulla. Again in B.C. 77 the decree was passed in consequence of the insurrection of the proconsul Lepidus, who, however, escaped to Sardinia and died there.

In every case but one this decree had been passed against the popular party. The only legal sanction given to the exercise of the _imperium sine provocatione_ was the acquittal of the consul Opimius in B.C. 120. But the jury which tried that case probably consisted entirely of senators, who would not stultify their own proceedings by condemning him. To rely upon such precedents required either great boldness (never a characteristic of Cicero), or the most profound conviction of the essential righteousness of the measure, and the clearest assurance that the safety of the state--the supreme law--justified the breach of every constitutional principle. Cicero was not left long in doubt as to whether there would be any to question his

proceeding. On the last day of the year, when about to address the people, as was customary, on laying down his consulship, the tribune Q. Cæcilius Metellus Nepos forbade him to speak, on the express ground that he "had put citizens to death uncondemned"--_quod cives indemnatos necavisset_. Cicero consoled himself with taking the required oath as to having observed the laws, with an additional declaration that he had "saved the state." Nevertheless, he must have felt deeply annoyed and alarmed at the action of Metellus, for he had been a _legatus_ of Pompey, and was supposed to represent his views, and it was upon the approbation and support of Pompey, now on the eve of his return from the East, that Cicero particularly reckoned.

[Sidenote: Letters after B.C. 63.]

The letters in our collection now recommence. The first of the year (B.C. 62) is one addressed to Pompey, expressing some discontent at the qualified manner in which he had written on recent events, and affirming his own conviction that he had acted in the best interests of the state and with universal approval. But indeed the whole correspondence to the end of Cicero's exile is permeated with this subject directly or indirectly. His quarrel with Metellus Nepos brought upon him a remonstrance from the latter's brother (or cousin), Metellus Celer (Letters XIII, XIV), and when the correspondence for B.C. 61 opens, we find him already on the eve of the quarrel with Publius Clodius which was to bring upon him the exile of B.C. 58.

[Sidenote: Publius Clodius Pulcher.]

P. CLODIUS PULCHER was an extreme instance of a character not uncommon among the nobility in the last age of the Republic. Of high birth, and possessed of no small amount of ability and energy, he belonged by origin and connexion to the Optimates; but he regarded politics as a game to be played for his personal aggrandizement, and public office as a means of replenishing a purse drained by boundless extravagance and self-indulgence. His record had been bad. He had accompanied his brother-in-law Lucullus, or had joined his staff, in the war with Mithridates, and had helped to excite a mutiny in his army in revenge for some fancied slight. He had then gone to Cilicia, where another brother-in-law, Q. Marcus Rex, was proprætor, and while commanding a fleet under him had fallen into the hands of pirates, and when freed from them had gone--apparently in a private capacity--to Antioch, where he again excited a mutiny of Syrian troops engaged in a war against the Arabians (B.C. 70-65). On his return to Rome he attempted to make himself conspicuous by prosecuting Catiline, but accepted a bribe to withdraw. In B.C. 64, on the staff of the governor of Gallia Narbonensis, he is accused of having enriched himself with plunder. For a time after that he was still acting as a member of the party of the Optimates; seems to have supported Cicero during the Catiline conspiracy; and in B.C. 62 stood for the quæstorship and was elected. His violation of the mysteries was alleged to have been committed in December of that year, and before he could go to the province allotted to him as quæstor in Sicily he had to stand a trial for sacrilege. Such an offence--penetrating in disguise into the house of the Pontifex Maximus, when his wife was engaged in the secret rites of the Bona Dea--would place him under a curse, and not only prevent his entering upon his

quæstorship, but would disfranchise and politically ruin him. Clodius would seem not to have been a person of sufficient character or importance to make this trial a political event. But not only had he powerful backers, but his opponents also, by proposing an innovation in the manner of selecting the jurors for trying him, had managed to give a spurious political importance to the case. One of the most brilliant of the early letters (XV, p. 37) gives us a graphic picture of the trial. Clodius was acquitted and went to his province, but returned in B.C. 60, apparently prepared for a change of parties. Cicero and he had quarrelled over the trial. He had said sarcastic things about the sacred consulship, and Cicero had retaliated by bitter speeches in the senate, and by giving evidence at the trial of having seen Clodius in Rome three hours before he professed to have been at Interamna, on the day of the alleged sacrilege. It is perhaps possible that his alibi may have been true in substance, for he may have been well out of Rome on his way to Interamna after seeing Cicero. But, however that may be, he nourished a grudge against Cicero, which he presently had an opportunity of satisfying. The year of his return to Rome from Sicily (B.C. 60) was the same as that of Cæsar's return from Spain. Pompey--who had returned the year before--was at enmity with the senate on account of the difficulties raised to the confirmation of his _acta_ and the allotments for his veterans. Cæsar had a grievance because of the difficulties put in the way of his triumph. The two coalesced, taking in the millionaire Crassus, to form a triumvirate or coalition of three, with a view to getting measures they desired passed, and offices for themselves or their partisans. This was a great blow to Cicero, who clung feverously to Pompey as a political leader, but could not follow him in a coalition with Cæsar: for he knew that the object of it was a series of measures of which he heartily disapproved. His hope of seeing Pompey coming to act as acknowledged leader of the Optimates was dashed to the ground. He could not make up his mind wholly to abandon him, or, on the other hand, to cut himself adrift from the party of Optimates, to whose policy he had so deeply committed himself. Clodius was troubled by no such scruples. Perhaps Cæsar had given him substantial reasons for his change of policy. At any rate, from this time forward he acts as an extreme _popularis_--much too extreme, as it turned out, for Pompey's taste. As a patrician his next step in the official ladder would naturally have been the ædileship. But that peaceful office did not suit his present purpose. The tribuneship would give him the right to bring forward measures in the _comitia tributa_, such as he desired to pass, and would in particular give him the opportunity of attacking Cicero. The difficulty was that to become tribune he must cease to be a patrician. He could only do that by being adopted into a plebeian gens. He had a plebeian ready to do it in B.C. 59. But for a man who was _sui iuris_ to be adopted required a formal meeting of the old _comitia curiata_, and such a meeting required the presence of an augur, as well as some kind of sanction of the pontifices. Cæsar was Pontifex Maximus, and Pompey was a member of the college of augurs. Their influence would be sufficient to secure or prevent this being done. Their consent was, it appears, for a time withheld. But Cæsar was going to Gaul at the end of his consulship, and desired to have as few powerful enemies at Rome during his absence as possible. Still he had a personal feeling for Cicero, and when it was known that one of Clodius's objects in seeking to become a plebeian and a tribune was to attack him, Cæsar offered him two chances of honourable retreat--first as one of the

commissioners to administer his land law, and again as one of his _legati_ in Gaul. But Cicero would not accept the first, because he was vehemently opposed to the law itself: nor the second, because he had no taste for provincial business, even supposing the proconsul to be to his liking; and because he could not believe that P. Clodius would venture to attack him, or would succeed if he did. Cæsar's consulship of B.C. 59 roused his worst fears for the Republic; and, though he thought little of the statesmanship or good sense of Cæsar's hostile colleague Bibulus, he was thoroughly disgusted with the policy of the triumvirs, with the contemptuous treatment of the senate, with the high-handed disregard of the auspices--by means of which Bibulus tried to invalidate the laws and other _acta_ of Cæsar--and with the armed forces which Pompey brought into the _campus_, nominally to keep order, but really to overawe the _comitia_, and secure the passing of Cæsar's laws. Nor was it in his nature to conceal his feelings. Speaking early in the year in defence of his former colleague, C. Antonius, accused of _maiestas_ for his conduct in Macedonia, he expressed in no doubtful terms his view of the political situation. Within a few hours the words were reported to the triumvirs, and all formalities were promptly gone through for the adoption of Clodius. Cæsar himself presided at the _comitia curiata_, Pompey attended as augur, and the thing was done in a few minutes. Even then Cicero does not appear to have been alarmed, or to have been fully aware of what the object of Publius was. While on his usual spring visit to his seaside villas in April (B.C. 59), he expressed surprise at hearing from the young Curio that Clodius was a candidate for the tribuneship (vol. i., p. 99). His surprise no doubt was more or less assumed: he must have understood that Clodius's object in the adoption was the tribunate, and must have had many uneasy reflexions as to the use which he would make of the office when he got it. Indeed there was not very much doubt about it, for Publius openly avowed his intentions. We have accordingly numerous references, in the letters to Atticus, to Cicero's doubts about the course he ought to adopt. Should he accept Cæsar's offer of a legation in Gaul, or a free and votive legation? Should he stay in Rome and fight it out? The latter course was the one on which he was still resolved in July, when Clodius had been, or was on the point of being, elected tribune (p. 110). He afterwards wavered (p. 113), but was encouraged by the belief that all the "orders" were favourable to him, and were becoming alienated from the triumvirs (pp. 117, 119), especially after the affair of Vettius (pp. 122-124), and by the friendly disposition of many of the colleagues of Clodius in the tribuneship. With such feelings of confidence and courage the letters of B.C. 59 come to an end.

[Sidenote: The Exile, April, B.C. 58--August, B.C. 57.]

The correspondence only opens again in April of B.C. 58, when the worst has happened. Clodius entered upon his tribuneship on the 10th of December, B.C. 59, and lost little time in proposing a law to the _comitia_ for the trial of any magistrate guilty of putting citizens to death without trial (_qui cives indemnatos necavisset_). The wording of the law thus left it open to plead that it applied only to such act as occurred after its enactment, for the pluperfect _necavisset_ in the dependent clause answers to the future perfect in a direct one. And this was the interpretation that Cæsar, while approving the law itself, desired to put upon it.[8] He again offered Cicero a legation in Gaul, but would do nothing for him if he stayed in Rome; while

Pompey, who had been profuse in promises of protection, either avoided seeing Cicero, or treated his abject entreaties with cold disdain.[9] Every citizen, by a humane custom at Rome, had the right of avoiding a prosecution by quitting the city and residing in some town which had the _ius exilii_. It is this course that we find Cicero already entered upon when the correspondence of the year begins. In the letters of this year of exile he continually reproaches himself with not having stayed and even supported the law, in full confidence that it could not be applied to himself. He attributes his having taken the less courageous course to the advice of his friends, who were actuated by jealousy and a desire to get rid of him. Even Atticus he thinks was timid, at the best, in advising his retirement. It is the only occasion in all the correspondence in which the least cloud seems to have rested on the perfect friendship of the two men. Atticus does not appear to have shewn any annoyance at the querulous remarks of his friend. He steadily continued to write, giving information and advice, and made no difficulty in supplying his friend with money. During Cicero's absence Atticus became still more wealthy than before by inheriting the estates of his cross-grained uncle Cæcilius. But he was always careful as to the investment of his money and he would not, perhaps, have been so ready to trust Cicero, had he not felt confidence in the ultimate recovery of his civil status. Still his confidence was peculiarly welcome at a time which would have been otherwise one of great pressure. For Clodius had followed up Cicero's retirement with the usual _lex_ in regard to persons leaving Rome to avoid a trial--a prohibition "of fire and water" within a fixed distance from Italy, which involved the confiscation of all his property in Italy. His villas were dismantled, his town house pulled down, and a vote of the people obtained by Clodius for the consecration of its site as a _templum_ dedicated to Liberty, and a scheme was formed and the work actually commenced for occupying part of it by an extension of an existing porticus or colonnade (the _porticus Catuli_) to contain a statue of Liberty. That this consecration was regular is shewn by the pleas by which it was afterwards sought to reverse it.[10] When Cicero was recalled the question came before the pontifices, who decided that the consecration was not valid unless it had been done by the "order of the people." It could not be denied on the face of it that there had been such an order. Cicero was obliged to resort to the plea that Clodius's adoption had been irregular and invalid, that therefore he was not legally a tribune, and could not take an order of the people. Finally, the senate seems to have decided that its restoration to Cicero was part of the general _restitutio in integrum_ voted by the _comitia centuriata_; and a sum of money was assigned to him for the rebuilding of the house. Clodius refused to recognize the validity of this decree of the senate, and attempted by violence to interrupt the workmen engaged on the house. We have a lively picture of this in Letter XCI (vol. i., pp. 194-196).

[Sidenote: Letters of the Exile (Letters LV-LXXXVIII).]

The letters from Cicero as an exile are painful reading for those who entertain a regard for his character. It was not unnatural, indeed, that he should feel it grievously. He had so completely convinced himself of the extraordinary value of his services to the state, of the importance of his position in Roman politics, and of the view that the Optimates would take of the necessity of retaining him, that to see himself treated like a fraudulent or unsuccessful provincial governor, of no

importance to anyone but himself, was a bitter blow to his self-esteem. The actual loss was immense. His only means were now the amount of money he had been able to take with him, or was able to borrow. All was gone except such property as his wife retained in her own right. He was a dependent upon her, instead of being her support and the master of his own household. The services of freedmen--readily rendered when he was prosperous--would now be a matter of favour and personal attachment, which was not always sufficient to retain them. The "life and light" of the city, in which no man ever took a more eager interest and delight, were closed to him. He was cut off from his family, and from familiar intercourse with friends, on both of which he was much dependent for personal happiness. Lastly, wherever he lived, he lived, as it were, on sufferance, no longer an object of respect as a statesman, or the source of help to others by his eloquence. But, disagreeable as all this was to a man of Cicero's sensitive vanity, there was something still worse. Even in towns which were the legal distance from Italy he could not safely stay, if they were within the jurisdiction of one of his personal enemies, or contained other exiles, who owed him an ill turn. He was protected by no law, and more than one instance of such a man's falling a victim to an enemy's dagger is recorded. Cicero's first idea was to go to Malta: but Malta was for some purposes in the jurisdiction of the governor of Sicily, and the governor of Sicily (C. Vergilius[11]) objected to his passing through Sicily or staying at Malta. We have no reason for supposing Vergilius personally hostile to Cicero, but he may have thought that Cicero's services to the Sicilians in the case of Verres would have called out some expression of feeling on their part in his favour, which would have been awkward for a Roman governor. Cicero therefore crossed to Epirus, and travelled down the Egnatian road to Thessalonica. This was the official capital of the province of Macedonia, and the quæstor in Macedonia, Gnæus Plancius, met Cicero at Dyrrachium, invited him to fix his residence there with him, and accompanied him on his journey. Here he stayed till November in a state of anxiety and distress, faithfully reflected in his letters, waiting to hear how far the elections for B.C. 57 would result in putting his friends in office, and watching for any political changes that would favour his recall: but prepared to go still farther to Cyzicus, if the incoming governor, L. Calpurnius Piso, who, as consul in B.C. 58 with Gabinius, had shewn decided animus against him, should still retain that feeling in Macedonia. Events, however, in Rome during the summer and autumn of B.C. 58 gave him better hopes. Clodius, by his violent proceedings, as well as by his legislation, had alienated Pompey, and caused him to favour Cicero's recall. Of the new consuls Lentulus was his friend, and Q. Cæcilius Metellus Nepos (who as tribune in B.C. 63-62 had prevented his speech when laying down his consulship) consented to waive all opposition. A majority of the new tribunes were also favourable to him, especially P. Sestius and T. Annius Milo; and in spite of constant ups and downs in his feelings of confidence, he had on the whole concluded that his recall was certain to take place. Towards the end of November he therefore travelled back to Dyrrachium, a _libera civitas_ in which he had many friends, and where he thought he might be safe, and from which he could cross to Italy as soon as he heard of the law for his recall having been passed. Here, however, he was kept waiting through many months of anxiety. Clodius had managed to make his recall as difficult as possible. He had, while tribune, obtained an order from the people forbidding the consuls to bring the subject

before the senate, and Piso and Gabinius had during their year of office pleaded that law as a bar to introducing the question.

[Sidenote: The Recall, August, B.C. 57.]

The new consuls were not, or did not consider themselves, so bound, and Lentulus having brought the subject forward, the senate early passed a resolution that Cicero's recall was to take precedence of all other business. In accordance with the resolution of the senate, a law was proposed by the consul Lentulus in the _comitia centuriata_, and probably one by Milo to the _tributa_. But Clodius, though no longer armed with the tribuneship, was not yet beaten. He obtained the aid of some gladiators belonging to his brother Appius, and more than once interrupted and dispersed an assembly of the _comitia_. In the riots thus occasioned blood was shed on both sides, and Cicero's brother Quintus on one occasion nearly lost his life. This was the beginning of the series of violent contests between Clodius and Milo, only ended by the murder of the former on the Appian road in B.C. 52. But Clodius was a candidate for the ædileship in this year (B.C. 57), and could be barred from that office legally by a prosecution for _vis_, of which Milo gave notice against him. It was, perhaps, a desire to avoid this, as much as fear of Milo's counter exhibition of violence, that at length caused him to relax in his opposition, or at any rate to abstain from violently interrupting the _comitia_. Accordingly, on the 4th of August, the law proposed by both consuls, and supported by Pompey, was passed unanimously by the centuries. Cicero, we must presume, had received trustworthy information that this was to be the case (shewing that some understanding had been come to with Clodius, or there would have been no certainty of his not violently dispersing the _comitia_ again), for on that same day he set sail from Dyrrachium and landed at Brundisium on the 5th. His triumphant return to Rome is described in the eighty-ninth letter of this collection. For Pompey's share in securing it he expressed, and seems really to have felt, an exaggerated gratitude, which still influenced him in the unhappy months of B.C. 49, when he was hesitating as to joining him beyond seas in the civil war.

But though Clodius had somehow been prevented from hindering his recall, he by no means relaxed his hostility. He not only tried to excite the populace against him by arguing that the scarcity and consequent high price of corn, from which the people were at that time suffering, was in some way attributable to Cicero's policy, but he also opposed the restoration of his house; and when a decree of the senate was passed in Cicero's favour on that point, brought his armed ruffians to prevent the workmen from going on with the rebuilding, as well as to molest Cicero himself (vol. i., p. 195). This was followed by a determined opposition by Milo to the holding of the elections for B.C. 56, until his prosecution of Clodius _de vi_ should have been tried. Clodius, however, was acquitted,[12] and, being elected ædile, immediately commenced a counter accusation against Milo for _vis_. He impeached him before the _comitia_ in February (B.C. 56), on which occasion Pompey spoke in Milo's defence in the midst of a storm of interruptions got up by the friends of Clodius (vol. i., pp. 214, 217). Milo was also acquitted, and the rest of Clodius's ædileship seems to have passed without farther acts of open violence.

[Sidenote: Cicero and the Triumvirs.]

But Cicero had now other causes of anxiety. He had spoken in favour of the commission offered to Pompey in B.C. 57 for superintending the corn-supply of Rome (_cura annonæ_). Pompey was to have fifteen legates, a good supply of ships and men, and considerable powers in all corn-growing countries in the Mediterranean. Cicero supported this, partly from gratitude to Pompey, but partly also from a wish to promote his power and influence against the ever-increasing influence and fame of Cæsar. He secretly hoped that a jealousy might grow up between them; that Pompey would be drawn closer to the Optimates; and that the union of the triumvirate might be gradually weakened and finally disappear. Pompey was thoroughly offended and alarmed by the insults offered him by the Clodian mob, and by Clodius's own denunciations of him; and if he could be convinced that these were suggested or approved by Cæsar or Crassus, it would go far to withdraw him from friendship with either of them. With Crassus, indeed, he had never been on cordial terms: it was only Cæsar's influence that had caused him to form any union with him. Cæsar, on the other hand, was likely to be uneasy at the great powers which the _cura annonæ_ put into Pompey's hands; and at the possible suggestion of offering him the dictatorship, if the Clodian riots became quite intolerable. On the whole, Cicero thought that he saw the element of a very pretty quarrel, from which he hoped that the result might be "liberty"--the orderly working of the constitution, that is, without the irregular supremacy of anyone, at any rate of anyone of the popular party. He had, however, a delicate part to play. He did not wish or dare to break openly with Cæsar, or to speak too openly to Pompey; and he was conscious that the intemperance, folly, or indifference of many of the Optimates made it difficult to reckon on their support, and made that support a very questionable benefit if accorded. But though his letters of this period are full of expressions indicating doubt of Pompey and irritation with him, yet he seems still to have spoken of him with warmth on public occasions, while he avoided mentioning Cæsar, or spoke of him only in cold terms.

[Sidenote: Renewal of the Triumvirate at Luca, April, B.C. 56, and Cicero's change of policy.]

[Sidenote: Quintus Cicero in Gaul.]

The hope, however, of detaching Pompey from Cæsar was dashed by the meeting at Luca in April, B.C. 56, at which a fresh arrangement was made for the mutual advantage of the triumvirs. Cæsar got the promise of the introduction of a law giving him an additional five years of command in Gaul, with special privileges as to his candidature for the consulship of B.C. 48; while Pompey and Crassus bargained for a second consulship in B.C. 55, and the reversion of the Spains (to be held as a single province) and Syria respectively, each for five years. The care taken that none of the three should have _imperium_ overlapping that of the others was indeed a sign of mutual distrust and jealousy. But the bargain was made with sufficient approval of the members of the party crowding Luca to secure its being carried out by the _comitia_. The union seemed stronger than ever; and Cicero at length resolved on a great change of attitude. Opposition to the triumvirs had been abandoned, he saw, by the very party for whom he had been incurring the enmity of Pompey and Cæsar. Why should he hold out any longer? "Since those who have no power," he writes to

Atticus in April, "refuse me their affection, let me take care to secure the affection of those who have power. You will say, 'I could have wished that you had done so before.' I know you did wish it, and that I have made a real ass of myself."[13] This is the first indication in the letters of the change. But it was soon to be publicly avowed. The opposition to the consulship of Pompey and Crassus was so violent that no election took place during B.C. 56, and they were only elected under the presidency of _interreges_ at the beginning of February, B.C. 55. But by the _lex Sempronia_ the senate was bound to name the consular provinces--_i.e._, the provinces to be governed by the incoming consuls after their year of office--before the elections, and in his speech on the subject (_de Provinciis Consularibus_), delivered apparently in July, B.C. 56, Cicero, while urging that Piso and Gabinius should have successors appointed to them in Macedonia and Syria, took occasion to announce and defend his own reconciliation with Cæsar, and to support his continuance in the governorship of Gaul. Shortly afterwards, when defending the citizenship of L. Cornelius Balbus, he delivered a glowing panegyric on Pompey's character and services to the state. This was followed by a complete abstention from any farther opposition to the carrying out of Cæsar's law for the allotment of the Campanian land--a subject which he had himself brought before the senate only a short time before, and on which he really continued to feel strongly.[14] Cicero's most elaborate defence of his change of front is contained in a long letter to P. Lentulus Spinther, written two years afterwards.[15] The gist of it is much the same as the remark to Atticus already quoted. "Pompey and Cæsar were all-powerful, and could not be resisted without civil violence, if not downright civil war. The Optimates were feeble and shifty, had shewn ingratitude to Cicero himself, and had openly favoured his enemy Clodius. Public peace and safety must be the statesman's chief object, and almost any concession was to be preferred to endangering these." Nevertheless, we cannot think that Cicero was ever heartily reconciled to the policy, or the unconstitutional preponderance of the triumvirs. He patched up some sort of reconciliation with Crassus, and his personal affection for Pompey made it comparatively easy for him to give him a kind of support. Cæsar was away, and a correspondence filled on both sides with courteous expressions could be maintained without seriously compromising his convictions. But Cicero was never easy under the yoke. From B.C. 55 to B.C. 52 he sought several opportunities for a prolonged stay in the country, devoting himself--in default of politics--to literature. The fruits of this were the _de Oratore_ and the _de Republica_, besides poems on his own times and on his consulship. Still he was obliged from time to time to appear in the forum and senate-house, and in various ways to gratify Pompey and Cæsar. It must have been a great strain upon his loyalty to this new political friendship when, in B.C. 54, Pompey called upon him to undertake the defence of P. Vatinius, whom he had not long before attacked so fiercely while defending Sestius. Vatinius had been a tribune in B.C. 59, acting entirely in Cæsar's interests, and Cicero believed him to have been his enemy both in the matter of his exile and in the opposition to his recall. He had denounced him in terms that would have made it almost impossible, one would think, to have spoken in his defence in any cause whatever. At best he represented all that Cicero most disliked in politics; and on this very election, to the prætorship, for which he was charged with bribery (_de sodalitiis_), Cicero had already spoken in strongly hostile terms in the senate. For now undertaking his

defence he has, in fact, no explanation to give to Lentulus (vol. i., p. 319), and he was long sore at having been forced to do it. Through B.C. 54 and 53 he was busied with his _de Republica_, and was kept more in touch with Cæsar by the fact that his brother Quintus was serving as _legatus_ to the latter in Britain and Gaul, and that his friend Trebatius (introduced by himself) was seeking for promotion and profit in Cæsar's camp. But even his brother's service with Cæsar did not eventually contribute to the formation of cordial feeling on his part towards Cæsar, whom he could not help admiring, but never really liked. For Quintus, though he distinguished himself by his defence of his camp in the autumn of B.C. 54, lost credit and subjected himself to grave rebuke by the disaster incurred in B.C. 53, near Aduatuca (_Tongres_), brought about by disregarding an express order of Cæsar's. There is no allusion to this in the extant correspondence, but a fragment of letter from Cæsar to Cicero (_neque pro cauto ac diligente se castris continuit_[16]), seems to shew that Cæsar had written sharply to Cicero on his brother's _faux pas_, and after this time, though Cicero met Cæsar at Ravenna in B.C. 52, and consented to support the bill allowing him to stand for the consulship in his absence,[17] there is apparent in his references to him a return to the cold or critical tone of former times. But of course there were other reasons.

[Sidenote: Pompey's third Consulship and the trial of Milo, B.C. 52.]

Pompey's six months' sole consulship of B.C. 52 ("that divine third consulship"), the rumour of his dictatorship, and the growing determination of the Optimates to play off Pompey against Cæsar (Crassus having disappeared) and to insist on Cæsar resigning his province and army before the end of his ten years' tenure, and before standing for a second consulship, caused Cicero's hope of a final dissolution of the unconstitutional compact to revive again; and made him draw more and more closely to Pompey as the chief hope of the _boni_. In the beginning of the year he had found himself in opposition, or quasi-opposition, to Pompey in regard to the prosecution of Milo for the murder of Clodius. But though in the previous year he had declared that the election of Milo to the consulship was of the utmost importance to his own position and the safety of the state,[18] now that it was rendered impossible by Milo's condemnation, he seems to have placed all his hopes on Pompey. Unfortunately, there is here a break in the correspondence. There is no letter of the last six months of B.C. 53, and only four (perhaps only three) of B.C. 52.[19] So that the riots which prevented Milo's election, the death of Clodius and the riots following it, and the consequent sole consulship of Pompey, with the latter's new legislation and the trial of Milo--all have to be sought for elsewhere. The last letter of this volume and of this year, addressed to M. Marius in December, B.C. 52, alludes to the condemnation of Milo, and to the numerous prosecutions following it. "Here, in Rome, I am so distracted by the number of trials, the crowded courts, and the new legislation, that I daily offer prayers that there may be no intercalation."[20]

[Sidenote: Cicero appointed Proconsul of Cilicia, B.C. 51-50.]

When the correspondence opens again in the spring of B.C. 51 an event has happened, of no particular importance in itself, but of supreme interest to Cicero, and very fortunate for the readers of the correspondence. One of Pompey's new laws

ordained that no one was to take a province till the fifth year after laying down his consulship or prætorship. Pompey broke his own law by keeping his province, the Spains--his position in regard to them was altogether exceptional--but, in order to carry out the law in other cases, the senate arranged that ex-consuls and ex-prætors who had not been to provinces should in turn draw lots for vacant governorships. Cicero and Bibulus appear to have been the senior _consulares_ in that position, and with much reluctance Cicero allowed his name to be cast into the urn. He drew Cilicia and Bibulus Syria. He says that his motive was a desire to obey the wishes of the senate. Another motive may have been a desire to be away from Rome while the controversy as to Cæsar's retirement from his province was settled, and to retrieve a position of some political importance, which he had certainly not increased during the last few years. When it came to the actual start, however, he felt all the _gêne_ of the business--the formation and control of his staff, the separation from friends, and the residence far from the "light and life" of Rome, among officials who were certainly commonplace and probably corrupt, and amidst a population, perhaps acute and accomplished, but certainly servile and ill content, and in some parts predatory and barbarous. At the best, they would be emphatically provincial, in a dreary sense of the word. He felt unequal to the worry and bore of the whole business, and reproached himself with the folly of the undertaking. Of course, this regret is mingled with his usual self-congratulation on the purity with which he means to manage his province. But even that feeling is not strong enough to prevent his longing earnestly to have the period of banishment as short as possible, or to prevent the alarm with which he hears of a probable invasion by the Parthians. One effect of his almost two years' absence from Rome was, I think, to deprive him of the power of judging clearly of the course of events. He had constant intelligence and excellent correspondents--especially Cælius--still he could not really grasp what was going on under the surface: and when he returned to find the civil war on the point of breaking out, he was, after all, taken by surprise, and had no plan of action ready. This, as well as his government of the province, will be fully illustrated in the next volume of the correspondence.

* * * * *

[Sidenote: Cicero's Correspondents.]

The persons to whom the chief letters are addressed in this volume, besides Atticus, are Cicero's brother Quintus and P. Lentulus Spinther. There are two excellent letters to M. Marius, and one very interesting, though rather surprising, epistle to L. Lucceius. Others of more than average interest are to Terentia, M. Fadius Gallus, C. Scribonius Curio, and Tiro.

[Sidenote: Titus Pomponius Atticus.]

ATTICUS (B.C. 109-32) is a man of whom we should be glad to know more than we do. He was the friend of all the leading men of the day--Pompey, Cæsar, Cicero, Antony, Brutus--father-in-law of Agrippa, and survived to be a constant correspondent of Augustus, between B.C. 43 and his death in B.C. 32. He was spared and respected by both sides in the civil wars, from Sulla to the Second Triumvirate. The secret of his

success seems to have been that he was no man's rival. He resolutely declined all official employment, even on the staff of his brother-in-law Quintus Cicero. He committed himself to no side in politics, and, not being in the senate, had no occasion by vote or speech to wound the feelings of anyone. So, too, though he cared for literature, it was rather as a friendly critic of others than as an author. He did, it is true, compile some books on Roman history, on historical portraits, and certain family biographies; but they were not such as made him a rival of any of his contemporaries. They were rather the productions of a rich amateur, who had leisure to indulge a quasi-literary taste, without any thought of joining the ranks of professed writers. Thirdly, he had great wealth, partly inherited, partly acquired by prudent speculation in the purchase of town properties, or in loans to states or public bodies on fair terms: and this wealth was at the service of his friends, but not in the lavish or reckless manner, which often earns only ingratitude without being of any permanent service to the recipients. He lent money, but expected to be repaid even by his brother-in-law. And this prudence helped to retain the confidence, while his sympathetic temperament secured the liking, of most. Again, he had the valuable knack of constantly replenishing the number of his friends among men junior to himself. His character attracted the liking of Sulla, who was twenty-seven years his senior, and he remained the close friend of his contemporaries Hortensius and Cicero (the former five years his senior, the latter three years his junior) till the day of their death. But we also find him on intimate terms with Brutus, twenty-four, and Octavian, forty-six years junior to himself. Lastly, he was not too much at Rome. More than twenty years of his earlier manhood (B.C. 87-65) were spent in Greece, principally at Athens, partly in study and partly in business. And Athens at this time, long deprived of political importance, had still the charm not only of its illustrious past, but also of its surviving character as the home of culture and refinement. When he at length returned to Rome in B.C. 65, he had already purchased a property in Epirus, near Buthrotum (see p. 3), where he built a villa, in which he continued to spend a considerable part of his remaining years. This was sufficiently remote, not only from Rome, but from the summer residences of the Roman nobles, to secure his isolation from the intrigues and enmities of Roman society. He did not indeed--as who does?--always escape giving offence. At the very beginning of the correspondence we hear of his vain attempts to mollify the anger of L. Lucceius--how incurred we do not know; and Quintus Cicero, of whose sharp temper we hear so much, was on more than one occasion on the point of a rupture with him. But his family life was generally as pleasing as his connexion with his friends. With his mother, who lived to a great age, he boasted that he had never been reconciled, because he had never quarrelled. He was the only one who could get on with the crusty uncle Cæcilius. In the delicate matter of his sister Pomponia's differences with her husband Quintus Cicero, he seems to have acted with kindness as well as prudence; and though he married late in life (B.C. 56, when he was in his fifty-third year), he appears to have made an excellent husband to Pilia and a very affectionate father to his daughter. His unwearied sympathy with the varied moods of Cicero--whether of exultation, irritation, or despair--and the entire confidence which Cicero feels that he will have that sympathy in every case, are creditable to both. It is only between sincere souls that one can speak to the other as to a second self, as Cicero often alleges that he

does to Atticus.

[Sidenote: Quintus Tullius Cicero.]

Of QUINTUS CICERO, the next most important correspondent in this volume, we get a fairly clear picture. Four years younger than his famous brother (b. B.C. 102), he followed him at the due distance up the ladder of official promotion to the prætorship, to which he was elected in the year of his elder's consulship. There, however, Quintus stopped. He never seems to have stood for the consulship. He had no oratorical genius to give him reputation in the forum, nor were his literary productions of any value, either for style or originality. His abilities for administration, as shewn in his three years' government of Asia, appear to have been respectable, but were marred by faults of temper, which too often betrayed him into extreme violence of language. In military command he shewed courage and energy in defending his camp in the rising of the Gauls in the winter of B.C. 54-53; but he spoilt the reputation thus gained by the mistake committed in the autumn of B.C. 53, which cost the loss of a considerable number of troops, and all but allowed the roving Germans to storm his camp. He remained another year in Gaul, but did nothing to retrieve this mistake. In military affairs fortune rarely forgives. In politics he seems to have contented himself generally with saying ditto to his brother. And this continued to be the case up to Pharsalia. After that, finding himself on the losing side, he turned somewhat fiercely upon the brother, whom he regarded as having misled him; and for a time there was a miserable breach between them, which, however, did not last very long. When the end came it found the brothers united in heart as in misfortune. His private happiness was marred by an uncongenial marriage. Pomponia--sister of Atticus--seems to have been as high-tempered as her husband, and less placable. The constant quarrels between them exercised the patience both of Cicero and Atticus, and crops up all through the correspondence. One effect of them was the loss of all control over their son, who, being called upon to smooth over the differences between father and mother, naturally took up at an early age a line of his own, and shewed a disposition to act independently of his elders.

[Sidenote: Terentia.]

The letters to TERENTIA do not fill much space in the correspondence, and are rarely interesting. Married about B.C. 80, Cicero seems to have lived in harmony with her at least till the time of his return from exile, during which unhappy period he acknowledges the activity of her exertions in support of his recall, and the drain which his ruin was making upon her resources. Terentia had a large private fortune, and apparently used it liberally in his service. Nevertheless, immediately on his return from exile, there seems to have been some cause of coldness between the husband and wife. He darkly alludes to certain domestic troubles in the first letter to Atticus written from Rome (vol i., p. 189), and repeats the hint in the next (p. 193). When he landed at Brundisium it was Tullia, not Terentia, who came to meet him (p. 187), and for some time after she appears to be presiding in his house rather than Terentia (see pp. 224, 257). Whatever the cause of this coldness was, however, it appears to have been removed for a time. He kept up a correspondence with her while he was in Cilicia (B.C. 51-50), and though he does not seem pleased at her

having arranged the marriage of Tullia with Dolabella, he addresses her warmly when about to return, and was met by her on landing. During the five or six months that followed, before Cicero left Italy to join Pompey, there is no indication of any alienation: but the short notes from Pompey's camp, and in the first half of B.C. 47, are cold and conventional, and on his return to Brundisium after Pharsalia, and during his lengthened stay there, he appears to have declined to allow her to come and see him. Soon after his return to Rome, in September, B.C. 47, matters came to a climax. Perhaps some of the mischief was caused by the mismanagement or dishonesty of Terentia's steward, Philotimus, of whom we hear a good deal in the letters from Cilicia: but whatever was the origin of the quarrel, Cicero asserts that on his return he found his affairs in a state of utter disorder. It may well have been that, like other adherents to the losing cause, he had to suffer from loss of any property that could be easily laid hands on in Rome, and that Terentia had had no power to save it. But Cicero, rightly or wrongly, attributed the embarrassment which he found awaiting him to his wife. He says in a letter to Gnæus Plancius:[21] "I should not have taken any new step at a time of such general disaster had I not on my return found my private affairs in as sorry a position as the public. The fact is, that when I saw that, owing to the criminal conduct of those to whom my life and fortunes ought, in return for my never-to-be-forgotten services, to have been their dearest object, there was nothing safe within the walls of my house, nothing that was not the subject of some intrigue, I made up my mind that I must arm myself by the faithful support of new marriage connexions against the perfidy of the old." This is a lame excuse for a man of sixty separating from the companion of his whole manhood, and in the eyes of Roman Society it was rendered still more questionable by a prompt marriage with a young girl, rich, and his own ward: from whom, however, he soon again divorced himself, angered, it is said, by her want of feeling at the death of Tullia. Terentia long survived her husband, living, we are told, to be over a hundred years old. Divorce was, of course, not regarded in these days of the Republic as it had once been, or as it is now among ourselves; still we should have been glad, both for his fame and his happiness, if the few years remaining to him had not had this additional cloud. A man of sixty embarking on such matrimonial enterprise is not a dignified spectacle, or one pleasing to gods and men.

The other correspondents may be dismissed in few words.

[Sidenote: P. Cornelius Lentulus Spinther.]

P. CORNELIUS LENTULUS SPINTHER, to whom some of the longest letters are addressed, represents the high aristocracy, to which Cicero wished to commend himself, though seeing keenly the weakness which underlay their magnificence. The part played by Lentulus in politics had been showy, but never founded on steadfast principle. He owed his earlier promotions to Cæsar's influence, but in his consulship of B.C. 57 had taken the side of the aristocracy in promoting the recall of Cicero, though he had gone against their sentiment by supporting Pompey's appointment to the _cura annonæ_. But as he was going to Cilicia in B.C. 56, Lentulus wished to have the lucrative task of restoring Ptolemy Auletes to the throne of Egypt, from which he had been righteously driven by his subjects. Therefore it was all to the good that

Pompey should have business at home preventing him from taking this in hand. How Lentulus was baulked in this desire will appear in the letters. He no doubt had his full share of the _Lentulitas_ distinguishing his family. But all was forgiven by Cicero to a man who had promoted his recall, and he takes great pains to justify to Lentulus his own change of policy in regard to the triumvirs after B.C. 56. When the civil war began Lentulus joined Domitius at Corfinium, and with him fell into Cæsar's hands, and was dismissed unharmed. He afterwards joined Pompey in Epirus, intent on succeeding Cæsar as Pontifex Maximus, as soon as the latter had been satisfactorily disposed of. After Pharsalia he sought refuge at Rhodes, but was refused sanctuary by the islanders, and was eventually put to death, though we do not know by whom (_Att._ xi. 13; _Fam._ ix. 18).

[Sidenote: M. Fadius Gallus, M. Marius, L. Lucceius, C. Scribonius Curio, C. Trebatius Testa.]

M. FADIUS GALLUS, the Epicurean, and M. MARIUS, the valetudinarian and wit, were among friends valued for their personal and agreeable qualities rather than for any public or political importance attaching to them. The same may be said of L. LUCCEIUS, of whose Roman history Cicero thought so well, that he wrote a remarkable letter begging for an honourable place in it for his consulship, as Pliny did to Tacitus.[22] C. SCRIBONIUS CURIO, son of a great friend of Cicero, after a _jeunesse orageuse_, returned to Rome from his quæstorship in Asia, in B.C. 53, to take up the inheritance of his father, which he quickly dissipated. Cicero seems to have had a high idea of his abilities, and to have believed him capable of taking the lead of the Optimates. But in his tribuneship of B.C. 51-50 he disappointed all such hopes by openly joining Cæsar's party, and resisting all attempts to recall him. He joined Cæsar at Ravenna as soon as his tribuneship was out, and urged him to march on Rome. In B.C. 49 he was sent to secure Sicily and Africa. The first he did, but in the second he perished in battle against the senatorial governor and king Iuba. Cicero's relation to C. TREBATIUS TESTA, a learned jurisconsult, was apparently that of a patron or tutor, who, thinking that he has found a young man of ability, endeavours to push him. He sent him with a letter of introduction to Cæsar, who was good-natured, though rather sarcastic as to the scope for legal abilities to be found in Gaul. He gave him, however, a military tribuneship, without exacting military duties, and apparently kept on good terms with him, for he employed him in B.C. 49 to communicate his wish to Cicero as to his remaining at Rome. Cicero's letters to him, though numerous, are not among the most interesting. They are full of banter of a rather forced and dull kind; and Cicero was evidently annoyed to find that his scheme for advancing Trebatius in Cæsar's province had not been very successful. The friendship, however, survived the civil war, and we find Cicero in B.C. 44 dedicating his _Topica_ to Trebatius.

[Footnote 1: That Cicero up to the time of his consulship had been connected rather with the _populares_ is illustrated by Quintus (_de Petit._ i.) urging him to make it clear that he had never been a demagogue, but that if he had ever spoken "in the spirit of the popular party, he had done so with the view of attracting Pompey."]

[Footnote 2: _De Orat._ ii. §§ 1, 2.]

[Footnote 3: "The city, the city, my dear Rufus--stick to that, and live in its full light. Residence elsewhere--as I made up my mind early in life--is mere eclipse and obscurity to those whose energy is capable of shining at Rome."--_Fam._ ii. 12 (vol. ii., p. 166).]

[Footnote 4: Even at these he found troublesome people to interrupt him. See vol. i., pp. 102, 104.]

[Footnote 5: Yet the announcement of the birth of his son (p. 16) and of the dangerous confinement of Tullia (vol. ii., p. 403) are almost equally brief.]

[Footnote 6: See _Att._ ii. 1, vol. 1., p. 62; Plut. _Cic._ 13; Cic. _in Pis._ § 4.]

[Footnote 7: _Die Entstchungsgeschichte der catilinarischen Verschwörung_, by Dr. Constantin John, 1876. I am still of opinion that Plutarch's statement can be strongly supported.]

[Footnote 8: Cæsar said, οὐ μὴν καὶ προσήκειν ἐπὶ τοῖς παρεληλυθόσι τοιοῦτόν τινα νόμον συγγράφεσθαι (Dio, xxxviii. 17).]

[Footnote 9: "The man who did not so much as raise me up, when I threw myself at his feet."--_Att._ x. 4 (vol. ii., p. 362). Similar allusions to Pompey's conduct to him on the occasion often occur.]

[Footnote 10: See vol. i., p. 190.]

[Footnote 11: See vol. i., pp. 129, 138; cp. _pro Planc._ §§ 95-96.]

[Footnote 12: _Fam._ i. 9, 15 (vol. i., p. 316).]

[Footnote 13: Letter CVII, vol. i., pp. 219, 220.]

[Footnote 14: Ever since its capture in the second Punic War, Capua had ceased to have any corporate existence, and its territory had been _ager publicus_, let out to tenants (_aratores_). Cæsar had restored its corporate existence by making it a _colonia_, and much of the land had been allotted to veterans of his own and Pompey's armies. The state thus lost the rent of the land, one of the few sources of revenue from Italy now drawn by the exchequer of Rome.]

[Footnote 15: Letter CLII, vol. i., pp. 310-324.]

[Footnote 16: Quoted by Flavius Charisius, _Ars Gramm._ i., p. 126 (ed. Kiel).]

[Footnote 17: Vol. ii., p. 204.]

[Footnote 18: Vol. i., p. 357.]

[Footnote 19: CLXXVIII-CLXXXI. The date of the letter to P. Sittius (CLXXVIII) is not certain.]

[Footnote 20: Vol. i., p. 366.]

[Footnote 21: Letter DXXXIII (_Fam._ iv. 14), about October, B.C. 46.]

[Footnote 22: Vol. i., p. 226; Pliny, _Ep._, vii. 33.]

"TULLIUS, of all the sons of royal Rome That are, or have been, or are yet to come, Most skilled to plead, most learned in debate,-- Catullus hails thee, small as thou art great. Take thou from him his thanks, his fond regards, The first of patrons from the least of bards."

CATULLUS, xlix. (J. E. S.)

CICERO'S LETTERS

ERRATA IN VOL. I.

Page 107, note 3, last line, _dele_ note of interrogation after "expenses." " 193, note 4, last line, _for_ B.C. 45 _lege_ B.C. 46. " 253, Letter CXXII, _for_ A IV, 1, _lege_ A IV, 2.

CICERO'S LETTERS

I (A I, 5)

[Sidenote: B.C. 68. Coss., L. Cæcilius Metellus, Q. Marcius Rex.]

This opening of the correspondence finds Cicero, now in his thirty-ninth year, in the midst of his official career. He had already been quæstor (B.C. 75) and ædile (B.C. 69), and was looking forward to his election to the prætorship in the next year (B.C. 67). He had already risen almost to the highest place in his profession as advocate, and had partly delivered, partly published his great indictment of Verres only a year ago. He is married to Terentia (B.C. 80), and has one daughter, Tullia or Tulliola, born on August 5, probably the next year (B.C. 79). His intimacy with T. Pomponius Atticus (three years his senior), perhaps begun at school, had lasted at least eleven years, from the time when he met him at Athens (B.C. 79), and with him had been initiated in the Eleusinian mysteries (_de Leg._ 2, § 36). There too they had both seen much of the writer's cousin Lucius, whose death he deplores in this letter (_de Fin._ 5, § 1). Atticus had lived abroad in Athens and Epirus, with occasional visits home from B.C. 88 to B.C. 65, in which latter year he seems to have returned for a more lengthened stay (Nep. _Att._ 4). The two friends have already corresponded frequently, but this is the first letter preserved.

TO ATTICUS (AT ATHENS)

ROME

[Sidenote: B.C. 68, ÆT. 38]

We are such intimate friends that more than almost anyone else you can appreciate the grief as well as the actual public and private loss that the death of my cousin Lucius is to me. There is absolutely no gratification which any human being can receive from the kindly character of another that I have not been accustomed to

receive from him. I am sure, therefore, that you will share my grief. For, in the first place, whatever affects me affects you; and in the second place, you have yourself lost in him a friend and connexion of the highest character and most obliging disposition, who was attached to you from personal inclination, as well as from my conversation.

As to what you say in your letter about your sister,[23] she will herself bear me witness what pains I have taken that my brother Quintus should show her proper affection. Thinking him somewhat inclined to be angry with her, I wrote to him in such a way as I thought would not hurt his feelings as a brother, while giving him some good advice as my junior, and remonstrating with him as being in the wrong. The result is that, from frequent letters since received from him, I feel confident that everything is as it ought and as we should wish it to be.

As to the frequency of my letters you have no ground for your complaint. The fact is our good sister Pomponia never informed me of there being a courier ready to take a letter. Farthermore, I never chanced to know of anyone going to Epirus,[24] and I was not till recently informed of your being at Athens.

Again, as to the business of Acutilius which you had left in my hands. I had settled it on my first visit to Rome after your departure. But it turned out that, in the first place, there was no urgency in the matter, and, in the second place, as I felt confidence in your judgment, I preferred that Peducæus[25] rather than myself should advise you by letter on the subject. For having submitted my ears to Acutilius for several days (and I think you know his style), I should scarcely have regarded it as a hardship to write you a letter describing his grumblings after patiently enduring the bore (and it _was_ rather a bore, I can tell you) of hearing them. Moreover, though you find fault with me, allow me to observe that I have had only one letter from you, though you had greater leisure for writing, and more opportunity of sending letters.

As to what you say in your letter, "Even if anyone is inclined to be offended with you, I ought to bring him to a better mind"--I understand to what you allude, and I have not neglected the matter. But the truth is that the extent of his displeasure is something surprising. However, I have not omitted to say anything there was to say in your behalf: but on what points I am to hold out your wishes, I consider, ought to be my guide. If you will write me word distinctly what they are, you will find that I have had no desire to be more exacting, and in the future shall be no more yielding, than you wish.[26]

As to the business of Tadius. He tells me that you have written him word that there was no need of farther trouble, since the property is secured by prescription. I am surprised that you do not know that in the case of a statutory wardship of an unmarried girl prescription cannot be pleaded.[27]

I am glad you like your purchase in Epirus. What I commissioned you to get for me, and anything you see suitable to my Tusculan villa, I should be glad if you will, as you say in your letter, procure for me, only don't put yourself to any inconvenience. The truth is, there is no other place that gives me complete rest after all my worries and hard work.

I am expecting my brother Quintus every day. Terentia has a severe attack of rheumatism. She is devoted to you, to your sister, and your mother, and adds her kindest regards in a postscript. So does my pet Tulliola. Love me, and be assured that I love you as a brother.

[Footnote 23: Pomponia, married to Cicero's younger brother Quintus. We shall frequently hear of this unfortunate marriage. Quintus was four years younger than his brother, who had apparently arranged the match, and felt therefore perhaps somewhat responsible for the result (Nep. _Att._ 5).]

[Footnote 24: Atticus had estates and a villa near Buthrotum in Epirus,--_Butrinto_ in Albania, opposite Corfu.]

[Footnote 25: This is probably Sext. Peducæus the younger, an intimate friend of Atticus (Nep. _Att._ 21); his father had been prætor in Sicily when Cicero was quæstor (B.C. 76-75), the son was afterwards a partisan of Cæsar in the Civil War, governor of Sardinia, B.C. 48, and proprætor in Spain, B.C. 39.]

[Footnote 26: The person alluded to is L. Lucceius, of whom we shall hear again. See Letters V, VII, VIII, CVIII. What his quarrel with Atticus was about, we do not know.]

[Footnote 27: Prescriptive right to property was acquired by possession (_usus_) of two years. But no such right could be acquired to the property of a girl under guardianship (_pro Flacco_, § 84).]

II (A I, 6)

TO ATTICUS (AT ATHENS)

ROME, DECEMBER

[Sidenote: B.C. 68, ÆT. 38]

I won't give you any excuse hereafter for accusing me of neglecting to write. It is you that must take care that with all your leisure you keep up with me.

Rabirius's house at Naples,[28]for the improvement of which you have designs drawn out and completed in imagination, has been bought by M. Fonteius[29] for 130,000 sesterces (about £1,040). I wished you to know this in case you were still hankering after it.

We may be quite satisfied, I think, with my brother's feelings towards Pomponia. He is with her at present in his villa at Arpinum, and has Decimus Turanius with him, who is great in _belles lettres_.

The date of my father's death was the 28th of November.

That is about all my news. If you light on any articles of _vertu_ suitable for a gymnasium, which would look well in the place you wot of,[30] please don't let them

slip. I am so delighted with my Tusculan villa that I never feel really happy till I get there. Let me know exactly what you are doing and intending to do about everything.

[Footnote 28: C. Rabirius, whom Cicero defended in B.C. 63, when prosecuted by Cæsar for his share in the murder of Saturninus (B.C. 100). He lived, we know, in Campania, for his neighbours came to give evidence in his favour at the trial.]

[Footnote 29: M. Fonteius made a fortune in the province of Gaul beyond the Alps, of which he was proprætor, B.C. 77-74. In B.C. 69 he had been accused of malversation, and defended by Cicero. After his acquittal he seems to be buying a seaside residence in Campania, as so many of the men of fashion did.]

[Footnote 30: Cicero's "gymnasium" was some arrangement of buildings and plantations more or less on the model of the Greek gymnasia, at his Tusculan villa.]

III (A I, 7)

TO ATTICUS (AT ATHENS)

ROME, DECEMBER

[Sidenote: B.C. 68, ÆT. 38]

All's well at your mother's,[31] and I keep an eye on her. I have undertaken to pay L. Cincius 20,400 sesterces[32] to your credit on the Ides of February. Pray see that I receive at the earliest possible opportunity what you say in your letters that you have bought and secured for me. I should also be very much obliged if you would, as you promised, think over the means of securing the library for me. My hope of getting the one enjoyment which I care for, when I come to retire, depends entirely on your kindness.

[Footnote 31: The mother of Atticus lived to be ninety, dying in B.C. 33, not long before Atticus himself, who at her funeral declared that "he had never been reconciled to her, for he had never had a word of dispute with her" (Nep. _Att._ 17).]

[Footnote 32: This sum (about £163) is for the works of art purchased for the writer by Atticus.]

IV (A I, 9)

[Sidenote: B.C. 67. Coss., C. Calpurnius Piso, M. Acilius Glabrio.]

The year of Cicero's election to the prætorship. It is the year also of Pompey's great commission by the _lex Gabinia_ against the Pirates. But Cicero does not seem as yet much concerned with "foreign politics."

TO ATTICUS (AT ATHENS)

ROME

[Sidenote: B.C. 67, ÆT. 39]

I get letters from you far too seldom considering that you can much more easily find people starting for Rome than I to Athens: considering, too, that you are more certain of my being at Rome than I of your being at Athens. For instance, it is owing to this uncertainty on my part that this very letter is somewhat short, because not being sure as to where you are, I don't choose my confidential talk to fall into strange hands. The Megaric statues and the Hermæ, which you mentioned in your letters, I am waiting for impatiently. Anything you have of the same kind which may strike you as worthy of my "Academia," do not hesitate to send, and have complete confidence in my money-chest. My present delight is to pick up anything particularly suitable to a "gymnasium." Lentulus promises the use of his ships. I beg you to be zealous in these matters. Thyillus begs you (and I also at his request) to get him some writings of the Eumolpidæ.[33]

V (A I, 8)

TO ATTICUS (AT ATHENS)

ROME

[Sidenote: B.C. 67, ÆT. 39]

All well at your house. Your mother and sister are regarded with affection by me and my brother Quintus. I have spoken to Acutilius. He says that he has not heard from his agent, and professes surprise that you should make any difficulty of his having refused to guarantee you against farther demands. As to the business of Tadius, the announcement in your letter that you have settled the matter out of court I saw gratified and pleased him very much. That friend of mine[34]--a most excellent man, upon my honour, and most warmly attached to me--is very angry with you. If I could but know how much you care about it, I should be able to decide how much trouble I am to take in the matter. I have paid L. Cincius the 20,400 sesterces for the Megaric statues in accordance with your letter to me. As to your Hermæ of Pentelic marble with bronze heads, about which you wrote to me--I have fallen in love with them on the spot. So pray send both them and the statues, and anything else that may appear to you to suit the place you wot of, my passion, and your taste--as large a supply and as early as possible. Above all, anything you think appropriate to a gymnasium and terrace. I have such a passion for things of this sort that while I expect assistance from you, I must expect something like rebuke from others. If Lentulus has no vessel there, put them on board anyone you please. My pet Tulliola claims your present and duns me as your security. I am resolved, however, to disown the obligation rather than pay up for you.

[Footnote 33: Thyillus (sometimes written Chilius), a Greek poet living at Rome. See Letters XVI and XXI. The Eumolpidæ were a family of priests at Athens who had

charge of the temple of Demeter at Eleusis. The πάτρια Εὐμολπιδῶν (the phrase used by Cicero here) may be either books of ritual or records such as priests usually kept: πάτρια is an appropriate word for such rituals or records handed down by priests of one race or family.]

[Footnote 34: Lucceius, as in the first letter and the next.]

VI (A I, 10)

TO ATTICUS (AT ATHENS)

TUSCULUM

[Sidenote: B.C. 67, ÆT. 39]

"Being in my Tusculan villa" (that's for your "being in the Ceramicus")--however, I being there, a courier sent by your sister arrived from Rome and delivered me a letter from you, announcing at the same time that the courier who was going to you started that very afternoon. The result is that, though I do send _an_ answer, I am forced by the shortness of the time to write only these few words. First, as to softening my friend's feeling towards you, or even reconciling him outright, I pledge you my word to do so. Though I have been attempting it already on my own account, I will now urge the point more earnestly and press him closer, as I think I gather from your letter that you are so set upon it. This much I should like you to realize, that he is very deeply offended; but since I cannot see any serious ground for it, I feel confident that he will do as I wish and yield to my influence. As for my statues and Hermeracles, pray put them on board, as you say in your letter, at your very earliest convenience, and anything else you light upon that may seem to you appropriate to the place you wot of, especially anything you think suitable to a palæstra and gymnasium. I say this because I am sitting there as I write, so that the very place itself reminds me. Besides these, I commission you to get me some medallions to let into the walls of my little entrance-court, and two engraved stone-curbs. Mind you don't engage your library to anyone, however keen a lover you may find; for I am hoarding up my little savings expressly to secure that resource for my old age. As to my brother, I trust that all is as I have ever wished and tried to make it. There are many signs of that result--not least that your sister is _enceinte_. As for my election, I don't forget that I left the question entirely to you, and I have all along been telling our common friends that I have not only not asked you to come, but have positively forbidden you to do so, because I understood that it was much more important to you to carry through the business you have now in hand, than it is to me to have you at my election. I wish you therefore to feel as though you had been sent to where you are in my interests. Nay, you will find me feeling towards you, and hear of it from others, exactly as though my success were obtained not only in your presence, but by your direct agency.

Tulliola gives notice of action against you. She is dunning me as your surety.

VII (A I, 11)

TO ATTICUS (AT ATHENS)

ROME

[Sidenote: B.C. 67, ÆT. 39]

I was doing so before spontaneously, and have been since greatly stirred by your two letters, with their earnest expressions to the same effect. Besides, Sallustius has been always at my side to prompt me to spare no pains to induce Lucceius to be reconciled to you. But after doing everything that could be done, not only did I fail to renew his old feelings towards you, but I could not even succeed in eliciting the reason of his alienation. On his part, however, he keeps harping on that arbitration case of his, and the other matters which I knew very well before you left Rome were causing him offence. Still, he has certainly got something else fixed deeper in his mind; and this no letters _from_ you, and no commissioning of me will obliterate as easily as you will do in a personal interview, I don't mean merely by your words, but by the old familiar expression of your face--if only you think it worth while, as you will if you will listen to me, and be willing to act with your habitual kindness. Finally, you need not wonder why it is that, whereas I intimated in my letters that I felt hopeful of his yielding to my influence, I now appear to have no such confidence; for you can scarcely believe how much more stubborn his sentiment appears to me than I expected, and how much more obstinate he is in this anger. However, all this will either be cured when you come, or will only be painful to the party in fault.

As to the sentence in your letter, "you suppose by this time I am prætor-elect," let me tell you that there is no class of people at Rome so harassed by every kind of unreasonable difficulty as candidates for office; and that no one knows when the elections will be.[35] However, you will hear all this from Philadelphus. Pray despatch at the earliest opportunity what you have bought for my "Academia." I am surprisingly delighted with the mere thought of that place, to say nothing of its actual occupation. Mind also not to let anyone else have your books. Reserve them, as you say in your letter, for me. I am possessed with the utmost longing for them, as I am with a loathing for affairs of every other kind, which you will find in an incredibly worse position than when you left them.[36]

[Footnote 35: The _comitia_ were twice postponed this year. Apparently the voting for Cicero had in each case been completed, so that he is able to say that he was "thrice returned at the head of the poll by an unanimous vote" (_de Imp. Pomp._ § 2). The postponement of the elections was probably connected with the struggles of the senate to hinder the legislation (as to bribery) of the Tribune, Gaius Cornelius (Dio, 36, 38-39).]

[Footnote 36: The first allusion in these letters to the disturbed position of public affairs. See the passage of Dio quoted in the previous note. There were so many riots in the interval between the proclamation and the holding of the elections, not without

bloodshed, that the senate voted the consuls a guard.]

VIII (A I, 3)

[Sidenote: B.C. 66. Coss., M. Æmilius Lepidus, L. Volcatius Tullus.]

In this year Cicero was prætor, and delivered his first extant public speech (_apud populum_) in support of the _lex Manilia_, which gave Pompey the command in the Mithridatic War with the provinces of Asia and Bithynia. The strict Optimates opposed it. Cicero supported it on the grounds of the importance of the war and the proofs Pompey had already given of military ability, courage, personal prestige, and good fortune. He takes occasion to point out the mischief done to the Roman name by oppressive or fraudulent governors and imperators. In this same year he delivered one of his ablest speeches in court in defending A. Cluentius Habitus on a charge of poisoning. At the consular elections this year the two first elected were disabled for bribery.

TO ATTICUS (AT ATHENS)

ROME, JANUARY

[Sidenote: B.C. 66, ÆT. 40]

I have to inform you of the death of your grandmother from pining at your long absence, and at the same time because she was afraid that the Latin towns would revolt and fail to bring the victims up the Alban Mount. I presume that L. Saufeius will send you a letter of condolence on the subject.[37] I am expecting you here in the course of January--is it a mere rumour or does it come from letters of yours to others? For to me you have not mentioned the subject. The statues which you got for me have been landed at Caieta. I haven't seen them, for I have been unable to leave Rome. I have sent a man to clear the freightage. I am exceedingly obliged to you for having taken so much trouble to get them, and so reasonably. As to your frequent remarks in your letters about pacifying my friend, I have done everything I could and tried every expedient; but he is inveterate against you to a surprising degree, on what suspicions, though I think you have been told, you shall yet learn from me when you come. I failed to restore Sallustius[38] to his old place in his affections, and yet he was on the spot. I tell you this because the latter used to find fault with me in regard to you. Well, he has found by personal experience that _he_ is not so easy to pacify, and that on my part no zeal has been lacking either on his or your behalf. I have betrothed Tulliola to C. Piso Frugi, son of Lucius.[39]

[Footnote 37: The point of this frigid joke is not clear. Was the grandmother really dead? What was she to do with the Latin _feriæ_? Mr. Strachan Davidson's explanation is perhaps the best, that Cicero means that the old lady was thinking of the Social War in B.C. 89, when the loyalty of the Latin towns must have been a subject of anxiety. She is in her dotage and only remembers old scares. This is understanding _civitates_ with _Latinæ_. Others understand _feriæ_ or _mulieres_.

Saufeius, a Roman eques, was an Epicurean, who would hold death to be no evil. He was a close friend of Atticus, who afterwards saved his property from confiscation by the Triumvirs (Nep. _Att._ 12).]

[Footnote 38: Cneius Sallustius, a learned friend of Cicero's, of whom we shall often hear again.]

[Footnote 39: C. Calpurnius Piso, quæstor B.C. 58, died in B.C. 57. The marriage took place in B.C. 63.]

IX (A I, 4)

TO ATTICUS (AT ATHENS)

ROME

[Sidenote: B.C. 65, ÆT. 41]

You keep on making me expect you again and again. Only the other day, when I thought you on the point of arriving, I was suddenly put off by you till Quintilis (July). Now, however, I _do_ think that you should come at the time you mention if you possibly can. You will thereby be in time for my brother Quintus's election, will pay me a long-deferred visit, and will settle the dispute with Acutilius. This latter Peducæus also suggested my mentioning to you, for I think it is full time that you settled that affair. My good offices are at your service and always have been so. Here at Rome I have conducted the case of Gaius Macer with a popular approval surpassing belief and unparalleled. Though I had been inclined to take a lenient view of his case, yet I gained much more substantial advantage from the popular approval on his condemnation than I should have got from his gratitude if he had been acquitted.[40] I am very glad to hear what you say about the Hermathena. It is an ornament appropriate to my "Academia" for two reasons: Hermes is a sign common to all gymnasia, Minerva specially of this particular one. So I would have you, as you say, adorn the place with the other objects also, and the more the better. The statues which you sent me before I have not yet seen. They are in my villa at Formiæ, whither I am at this moment thinking of going. I shall get them all transferred to my Tusculan villa. If I find myself with more than I want there I shall begin adorning Caieta. Please reserve your books, and don't despair of my being able to make them mine. If I succeed in that, I am superior to Crassus in wealth and look down on everybody's manors and pastures.[41]

[Footnote 40: The annalist C. Licinius Macer was impeached _de repetundis_ (he was prætor about B.C. 70 or 69, and afterwards had a province), and finding that he was going to be condemned, committed suicide. He was never therefore condemned regularly (Val. Max. ix. 127; Plut. _Cic._ 9). Cicero presided at the court as prætor.]

[Footnote 41: The books must have been a very valuable collection, or Cicero would hardly have made so much of being able to buy them, considering his lavish orders for statues or antiques.]

X (A I, 1)

[Sidenote: B.C. 65. Coss., L. Aurelius Cotta, L. Manlius Torquatus.]

The election to the consulship is not till the next year (B.C. 64), but Cicero is already making preparation for it, and looking out for support. In July his only son was born. He does not refer to the so-called "first Catilinarian conspiracy," but mentions Catiline as a possible competitor, and even contemplates defending him on some charge brought against him to prevent his standing for the consulship.

TO ATTICUS (AT ATHENS)

ROME, JULY

[Sidenote: B.C. 65, ÆT. 41]

The state of things in regard to my candidature, in which I know that you are supremely interested, is this, as far as can be as yet conjectured. The only person actually canvassing is P. Sulpicius Galba.[42] He meets with a good old-fashioned refusal without reserve or disguise. In the general opinion this premature canvass of his is not unfavourable to my interests; for the voters generally give as a reason for their refusal that they are under obligations to me. So I hope my prospects are to a certain degree improved by the report getting about that my friends are found to be numerous. My intention was to begin my own canvass just at the very time that Cincius[43] tells me that your servant starts with this letter, namely, in the _campus_ at the time of the tribunician elections on the 17th of July. My fellow candidates, to mention only those who seem certain, are Galba and Antonius and Q. Cornificius.[44] At this I imagine you smiling or sighing. Well, to make you positively smite your forehead, there _are_ people who actually think that Cæsonius[45] will stand. I don't think Aquilius will, for he openly disclaims it and has alleged as an excuse his health and his leading position at the bar. Catiline will certainly be a candidate, if you can imagine a jury finding that the sun does not shine at noon. As for Aufidius and Palicanus,[46] I don't think you will expect to hear from me about them. Of the candidates for this year's election Cæsar is considered certain. Thermus is looked upon as the rival of Silanus.[47] These latter are so weak both in friends and reputation that it seems _pas impossible_ to bring in Curius over their heads. But no one else thinks so. What seems most to my interests is that Thermus should get in with Cæsar. For there is none of those at present canvassing who, if left over to my year, seems likely to be a stronger candidate, from the fact that he is commissioner of the _via Flaminia_, and when that has been finished, I shall be greatly relieved to have seen him elected consul this election.[48] Such in outline is the position of affairs in regard to candidates up to date. For myself I shall take the greatest pains to carry out all the duties of a candidate, and perhaps, as Gaul seems to have a considerable voting power, as soon as business at Rome has come to a standstill I shall obtain a _libera legatio_ and make an excursion in the course of September to visit Piso,[49] but so as not to be back later than January. When I have ascertained the feelings of the nobility I will write you word. Everything else I hope will go

smoothly, at any rate while my competitors are such as are now in town. You must undertake to secure for me the _entourage_ of our friend Pompey, since you are nearer than I. Tell him I shall not be annoyed if he doesn't come to my election.[50] So much for that business. But there is a matter for which I am very anxious that you should forgive me. Your uncle Cæcilius having been defrauded of a large sum of money by P. Varius, began an action against his cousin A. Caninius Satyrus for the property which (as he alleged) the latter had received from Varius by a collusive sale. He was joined in this action by the other creditors, among whom were Lucullus and P. Scipio, and the man whom they thought would be official receiver if the property was put up for sale, Lucius Pontius; though it is ridiculous to be talking about a receiver at this stage in the proceedings. Cæcilius asked me to appear for him against Satyrus. Now, scarcely a day passes that Satyrus does not call at my house. The chief object of his attentions is L. Domitius,[51] but I am next in his regard. He has been of great service both to myself and to my brother Quintus in our elections. I was very much embarrassed by my intimacy with Satyrus as well as that with Domitius, on whom the success of my election depends more than on anyone else. I pointed out these facts to Cæcilius; at the same time I assured him that if the case had been one exclusively between himself and Satyrus, I would have done what he wished. As the matter actually stood, all the creditors being concerned--and that too men of the highest rank, who, without the aid of anyone specially retained by Cæcilius, would have no difficulty in maintaining their common cause--it was only fair that he should have consideration both for my private friendship and my present situation. He seemed to take this somewhat less courteously than I could have wished, or than is usual among gentlemen; and from that time forth he has entirely withdrawn from the intimacy with me, which was only of a few day's standing.[52] Pray forgive me, and believe that I was prevented by nothing but natural kindness from assailing the reputation of a friend in so vital a point at a time of such very great distress, considering that he had shewn me every sort of kindness and attention. But if you incline to the harsher view of my conduct, take it that the interests of my canvass prevented me. Yet, even granting that to be so, I think you should pardon me, "since not for sacred beast or oxhide shield."[53] You see in fact the position I am in, and how necessary I regard it, not only to retain but even to acquire all possible sources of popularity. I hope I have justified myself in your eyes, I am at any rate anxious to have done so. The Hermathena you sent I am delighted with: it has been placed with such charming effect that the whole gymnasium seems arranged specially for it.[54] I am exceedingly obliged to you.

[Footnote 42: One of the judices rejected by Verres on his trial, a pontifex and augur.]

[Footnote 43: Agent of Atticus.]

[Footnote 44: C. Antonius (uncle of M. Antonius) was elected with Cicero. Q. Cornificius had been tr. pl. in B.C. 69. See Letter XVIII.]

[Footnote 45: M. Cæsonius, Cicero's colleague in the ædileship. He had lost credit as one of the _Iunianum concilium_ in the trial of Oppianicus.]

[Footnote 46: Aufidius Lurco, tr. pl. B.C. 61. M. Lollius Palicanus, tr. pl. some years previously.]

[Footnote 47: L. Iulius Cæsar, actually consul in B.C. 64, brother-in-law of Lentulus the Catilinarian conspirator, was afterwards _legatus_ to his distant kinsman, Iulius Cæsar, in Gaul. A. Minucius Thermus, defended by Cicero in B.C. 59, but the identification is not certain. D. Iunius Silanus got the consulship in the year after Cicero (B.C. 62), and as consul-designate spoke in favour of executing the Catilinarian conspirators.]

[Footnote 48: The text is corrupt in all MSS. I have assumed a reading, something of this sort, _quæ cum erit absoluta, sane facile ac libenter eum nunc fieri consulem viderim_. This at any rate gives nearly the required sense, which is that Cicero regards the influence which Thermus will gain by managing the repair of the _Flaminia_ as likely to make him a formidable candidate, and therefore he would be glad to see him elected in the present year 65 (_nunc_) rather than wait for the next, his own year.]

[Footnote 49: C. Calpurnis Piso, consul in B.C. 67, then proconsul of Gallia Transalpina (Narbonensis). He was charged with embezzlement in his province and defended by Cicero in B.C. 63. There were no votes in Transalpine Gaul, but Cicero means in going and coming to canvass the Cispadane cities.]

[Footnote 50: Pompey was this year on his way to take over the Mithridatic War. But Cicero may have thought it likely that he or some of his staff would pass through Athens and meet Atticus.]

[Footnote 51: L. Domitius Ahenobarbus, prætor in B.C. 58, and consul B.C. 54, fell at Pharsalia, fighting against Cæsar.]

[Footnote 52: Q. Cæcilius, a rich uncle of Atticus, so cross-grained that no one but Atticus could get on with him, to whom he accordingly left his large fortune (Nep. _Att._ 5).]

[Footnote 53: Hom. _Il._ xxii. 159, Achilles pursuing Hector:

"Since not for sacred beast or oxhide shield They strove,--man's guerdon for the fleet of foot: Their stake was Hector's soul, the swift steed's lord."]

[Footnote 54: Reading _eius_ ἀνάθημα, and taking the latter word in the common sense of "ornament": the Hermathena is so placed that the whole gymnasium is as it were an ornament to it, designed to set it off, instead of its being a mere ornament to the gymnasium. Professor Tyrrell, however, will not admit that the words can have this or any meaning, and reads, ἡλίου ἄναμμα, "sun light"--"the whole gymnasium seems as bright as the sun"--a curious effect, after all, for one statue to have.]

XI (A I, 2)

TO ATTICUS (AT ATHENS)

ROME, JULY

[Sidenote: B.C. 65, ÆT. 41]

I have to inform you that on the day of the election of L. Iulius Cæsar and C. Marcius Figulus to the consulship, I had an addition to my family in the shape of a baby boy. Terentia doing well.

Why such a time without a letter from you? I have already written to you fully about my circumstances. At this present time I am considering whether to undertake the defence of my fellow candidate, Catiline.[55] We have a jury to our minds with full consent of the prosecutor. I hope that if he is acquitted he will be more closely united with me in the conduct of our canvass; but if the result be otherwise I shall bear it with resignation. Your early return is of great importance to me, for there is a very strong idea prevailing that some intimate friends of yours, persons of high rank, will be opposed to my election. To win me their favour I see that I shall want you very much. Wherefore be sure to be in Rome in January, as you have agreed to be.

* * * * *

[Sidenote: B.C. 62. Coss., D. Iunius Silanus, L. Licinius Murena.]

We have no letters to or from Cicero in the years B.C. 64 and 63,[56] partly, no doubt, because Atticus was in Rome a great deal during these years. We take up the correspondence, therefore, after an interval of two years, which in many respects were the most important in Cicero's life. In B.C. 64 he attained his chief ambition by being elected to the consulship, but we have little trace of his public actions that year, only the fragments of one speech remaining, in defence of Q. Gallius on a charge of _ambitus_. The animus of the popular party, however, is shewn by the prosecution of some surviving partisans of Sulla on charges of homicide, among them Catiline, who by some means escaped conviction (Dio, xxxvii. 10). In the year of the consulship (B.C. 63) some of Cicero's most important speeches were delivered. The three on the agrarian proposals of Rullus present him to us for the first time as discussing an important question of home politics, the disposal of the _ager publicus_, a question which had become again prominent owing to the great additions made to it by the confiscations of Sulla. He also defended C. Rabirius, prosecuted by Iulius Cæsar for the murder of Saturninus as long ago as B.C. 100, and later in the year defended Murena on a charge of _ambitus_. Finally, the three Catilinarian speeches illustrate the event which coloured the whole of Cicero's life. In B.C. 62 his brother Quintus was prætor and Cicero defended in his court P. Sulla, accused of complicity with Catiline. On the 29th of December (B.C. 63) the tribune Q. Cæcilius Metellus Nepos prevented Cicero from making a speech when laying down his consulship, and went on to propose summoning Pompey to Rome, "to protect the lives of the citizens." This led to scenes of violence, and Metellus fled to Pompey, who reached Italy late in the year B.C. 62 from the East.

[Footnote 55: Asconius assigns this to the accusation of embezzlement in Africa. But that seems to have been tried in the previous year, or earlier in this year. The new impeachment threatened seems to have been connected with his crimes in the

proscriptions of Sulla (Dio, xxxvii, 10). Cicero may have thought of defending him on a charge relating to so distant a period, just as he did Rabirius on the charge of murdering Saturninus (B.C. 100), though he had regarded his guilt in the case of extortion in Africa as glaring.]

[Footnote 56: The essay on the duties of a candidate attributed to Quintus is hardly a letter, and there is some doubt as to its authenticity. I have therefore relegated it to an appendix.]

XII (F V, 7)

TO CN. POMPEIUS MAGNUS

ROME

M. Tullius Cicero, son of Marcus, greets Cn. Pompeius, son of Cneius, Imperator.

[Sidenote: B.C. 62. ÆT. 44]

If you and the army are well I shall be glad. From your official despatch I have, in common with everyone else, received the liveliest satisfaction; for you have given us that strong hope of peace, of which, in sole reliance on you, I was assuring everyone. But I must inform you that your old enemies--now posing as your friends--have received a stunning blow by this despatch, and, being disappointed in the high hopes they were entertaining, are thoroughly depressed. Though your private letter to me contained a somewhat slight expression of your affection, yet I can assure you it gave me pleasure: for there is nothing in which I habitually find greater satisfaction than in the consciousness of serving my friends; and if on any occasion I do not meet with an adequate return, I am not at all sorry to have the balance of kindness in my favour. Of this I feel no doubt--even if my extraordinary zeal in your behalf has failed to unite you to me--that the interests of the state will certainly effect a mutual attachment and coalition between us. To let you know, however, what I missed in your letter I will write with the candour which my own disposition and our common friendship demand. I did expect _some_ congratulation in your letter on my achievements, for the sake at once of the ties between us and of the Republic. This I presume to have been omitted by you from a fear of hurting anyone's feelings. But let me tell you that what I did for the salvation of the country is approved by the judgment and testimony of the whole world. You are a much greater man than Africanus, but I am not much inferior to Lælius either; and when you come home you will recognize that I have acted with such prudence and spirit, that you will not be ashamed of being coupled with me in politics as well as in private friendship.

XIII (F V, I)

Q. METELLUS CELER TO CICERO

CISALPINE GAUL

Q. Metellus Celer, son of Quintus, proconsul, greets M. Tullius Cicero.[57]

[Sidenote: B.C. 62. ÆT. 44]

If you are well I am glad. I had thought, considering our mutual regard and the reconciliation effected between us, that I was not likely to be held up to ridicule in my absence, nor my brother attacked by you in his civil existence and property for the sake of a mere word. If his own high character was not a sufficient protection to him, yet either the position of our family, or my own loyal conduct to you and the Republic, ought to have been sufficient to support him. As it is, I see that he has been ruined and I abandoned by the last people in the world who ought to have done so. I am accordingly in sorrow and wearing mourning dress, while actually in command of a province and army and conducting a war. And seeing that your conduct in this affair has neither been reasonable nor in accordance with the milder methods of old times, you must not be surprised if you live to repent it. I did not expect to find you so fickle towards me and mine. For myself, meanwhile, neither family sorrow nor ill-treatment by any individual shall withdraw me from the service of the state.

[Footnote 57: Q. Metellus Celer had been prætor in B.C. 63 and was now (B.C. 62), as proconsul in Gallia Cisalpina, engaged against the remains of the Catilinarian conspiracy. Meanwhile his brother (or cousin) Q. Cæcilius Metellus Nepos, a tribune, after trying in vain to bring Cicero to trial for the execution of the conspirators, at last proposed to summon Pompey to Rome to prevent danger to the lives of citizens. This attempt led to riots and contests with Cato, and Nepos finally fled from Rome to Pompey. By leaving Rome he broke the law as to the tribunes, and the senate declared his office vacant, and this letter would even seem to shew that the senate declared him a public enemy. This letter of remonstrance is peremptory, if not insolent, in tone, and the reader will observe that the formal sentences, dropped in more familiar letters, are carefully used.]

XIV (F V, 2)

TO Q. METELLUS (IN CISALPINE GAUL)

ROME

M. Tullius, son of Marcus, to Q. Metellus Celer, son of Quintus, proconsul, wishes health.

[Sidenote: B.C. 62, ÆT. 44]

If you and the army are well I shall be glad. You say in your letter that you "thought, considering our mutual regard and the reconciliation effected between us, that you were not likely to be held up to ridicule by me." To what you refer I do not clearly understand, but I suspect that you have been informed that, while arguing in the senate that there were many who were annoyed at my having saved the state, I

said that your relations, whose wishes you had been unable to withstand, had induced you to pass over in silence what you had made up your mind you ought to say in the senate in my praise. But while saying so I also added this--that the duty of supporting the Republic had been so divided between us that I was defending the city from internal treachery and the crime of its own citizens, you Italy from armed enemies and covert conspiracy;[58] yet that this association in a task so noble and so glorious had been imperilled by your relations, who, while you had been complimented by me in the fullest and most laudatory terms, had been afraid of any display of mutual regard on your part being put to my credit. As this sentence betrayed how much I had looked forward to your speech, and how mistaken I had been in that expectation, my speech caused some amusement, and was received with a moderate amount of laughter; but the laugh was not against you, it was rather at my mistake, and at the open and _naïve_ confession of my eagerness to be commended by you. Surely it cannot but be a compliment to you that in the hour of my greatest triumph and glory I yet wished for some testimony of approval from your lips. As to your expression, "considering our mutual regard"--I don't know your idea of what is "mutual" in friendship; mine is an equal interchange of good feeling. Now if I were to mention that I passed over a province for your sake, you might think me somewhat insincere; for, in point of fact, it suited my convenience, and I feel more and more every day of my life the advantage and pleasure which I have received from that decision. But this I do say--the moment I had announced in public meeting my refusal of a province, I began at once thinking how I might hand it on to you. I say nothing as to the circumstances of your allotment: I only wish you to suspect that nothing was done in that matter by my colleague without my cognizance. Recall the other circumstances: how promptly I summoned the senate on that day after the lots had been drawn, at what a length I spoke about you. You yourself said at the time that my speech was not merely complimentary to you, but absolutely a reflexion on your colleagues. Farther, the decree of the senate passed on that day has such a preamble that, so long as it is extant, there can never be any doubt of my services to you. Subsequently, when you had gone out of town, I would have you recall my motions in the senate, my speeches in public meetings, my letters to yourself. And having reviewed all these together, I would like you to judge yourself whether you think that your approach to Rome the last time you came quite shewed an adequate return for all these services.[59] Again, as to your expression, "the reconciliation effected between us"--I do not understand why you speak of "reconciliation" in the case of a friendship that had never been broken. As to what you say, that your brother Metellus ought not "to have been attacked by me for a mere word," in the first place I would like to assure you that your feeling and fraternal partiality--so full of human kindness and natural affection--meet with my warmest approbation; in the next place I must claim your indulgence if I have in any matter opposed your brother in the interests of the Republic, for my devotion to the Republic is paramount. If, however, it is my personal safety that I have defended against a most ruthless assault of his, I think you should be content that I make no complaint even to you of your brother's injurious conduct. Now, when I had become aware that he was deliberately making every preparation to use his tribunician office to my ruin, I appealed to your wife Claudia[60] and your sister Mucia[61] (of whose kindness to me for the sake of my friendship with Pompey

I had satisfied myself by many instances) to deter him from that injurious conduct. And yet, as I am sure you have heard, on the last day of December he inflicted upon me--a consul and the preserver of my country--an indignity such as was never inflicted upon the most disloyal citizen in the humblest office: that is to say, he deprived me when laying down my office of the privilege of addressing the people--an indignity, however, which after all redounded to my honour. For, upon his forbidding me to do anything but take the oath, I pronounced an oath at once the most absolutely true and the most glorious in a loud voice--an oath which the people swore also in a loud voice to be absolutely true. Though I had actually suffered this signal indignity, I yet on that same day sent common friends to Metellus to persuade him to alter his resolution; to whom he answered that he was no longer free to do so. And, in fact, a short time previously he _had_ said in a public meeting that a man who had punished others without trial ought not himself to be allowed the privilege of speech. What a model of consistency! What an admirable citizen! So he deemed the man who had saved the senate from massacre, the city from the incendiary, Italy from war, deserving of the same penalty as that inflicted by the senate, with the unanimous approval of all loyal citizens, upon those who had intended to set fire to the city, butcher magistrates and senate, and stir up a formidable war! Accordingly, I did withstand your brother Metellus to his face: for on the 1st of January, in the senate, I maintained a debate with him on the state of the Republic, such as taught him that he had to contend with a man of courage and firmness. On the 3rd of January,[62] on again opening the debate, he kept harping on me and threatening me at every third word of his speech; nor could any intention be more deliberate than his was to overthrow me by any means in his power, not by calm and judicial argument, but by violence and mere browbeating. If I had not shewn some boldness and spirit in opposing his intemperate attack, would not everyone have concluded that the courage I had displayed in my consulship was the result of accident rather than design? If you did not know that Metellus was contemplating these measures in regard to me, you must consider that you have been kept in the dark by your brother on matters of the utmost importance: if, on the other hand, he did intrust any part of his designs to you, then surely I ought to be regarded by you as a man of placable and reasonable temper for not addressing a word of reproach to you even on such occurrences as these. Understanding then that it was by no "mere word" (as you express it) of Metellus that I was roused, but by his deliberate policy and extraordinary animosity towards me, next observe my forbearance--if "forbearance" is the name to be given to irresolution and laxity under a most galling indignity. I never once delivered a vote in a speech against your brother: every time a motion was before the house I assented without rising to those whose proposal appeared to me to be the mildest. I will also add that, though in the circumstances there was no obligation upon me to do so, yet so far from raising objections I actually did my best to secure that my enemy, because he was your brother, should be relieved from penalties by a decree of the senate.[63] Wherefore I have not "attacked" your brother, but only defended myself from your brother's attack; nor have I been "fickle" (to quote your word), but, on the contrary, so constant, that I remained faithful to my friendship to you, though left without any sign of kindness from you. For instance, at this moment, though your letter amounts almost to a threat, I am writing back an

answer such as you see. I not only pardon your vexation, I even applaud it in the highest degree; for my own heart tells me how strong is the influence of fraternal affection. I ask you in your turn to put a liberal construction upon my vexation, and to conclude that when attacked by your relatives with bitterness, with brutality, and without cause, I not only ought not to retract anything, but, in a case of that kind, should even be able to rely upon the aid of yourself and your army. I have always wished to have you as a friend: I have taken pains to make you understand that I am a warm friend to you. I abide by that sentiment, and shall abide by it as long as _you_ will let me; and I shall more readily cease to be angry with your brother for love of you, than I shall from anger with him abate in the smallest degree my kindness for you.

[Footnote 58: Metellus had been employed with Antonius against the camp at Fæsulæ, but was now engaged against some Alpine tribes.]

[Footnote 59: When Metellus was commanding against Catiline, it is suggested that he marched towards Rome to support his brother, but this is conjecture.]

[Footnote 60: Sister of P. Clodius. Of this famous woman we shall hear often again. She is believed to be the Lesbia of Catullus, and she is the "Palatine Medea" of the speech _pro Cælio_. Yet, in spite of Cicero's denunciations of her, he seems at one time to have been so fond of her society as to rouse Terentia's jealousy.]

[Footnote 61: Wife of Pompey--divorced by him on his return from the East.]

[Footnote 62: On the next meeting of the senate. The second was a _dies comitialis_ on which the senate usually did not meet (Cæs. _B. Civ._ i. I).]

[Footnote 63: For the riots caused by his contests with Cato (on which the senate seems to have passed the _senatus consultum ultimum_), and for his having left Rome while tribune.]

XV (F V, 6)

TO P. SESTIUS[64] (IN MACEDONIA)

ROME, DECEMBER

[Sidenote: B.C. 62, ÆT. 44]

Decius the copyist has been to see me, and begged me to try and secure that no successor should be appointed to you this turn. Though I regarded him as a man of good character and attached to you, yet, remembering the tenor of your previous letter to me, I could not feel certain that the wishes of a cautious man of the world like yourself had undergone so complete a change. But after your wife Cornelia had called on Terentia, and I had had a conversation with Q. Cornelius, I took care to be present at every meeting of the senate, and found that the greatest trouble was to make Fufius the tribune, and the others to whom you had written, believe me rather than your own letters. The whole business has, after all, been postponed till January,

but there is no difficulty about it. Roused by your congratulations--for in a letter sometime ago you wished me good luck on the completion of my purchase of a house from Crassus--I have bought that very house for 3,500 sestertia (about £28,000), a good while subsequent to your congratulation. Accordingly, you may now look upon me as being so deeply in debt as to be eager to join a conspiracy if anyone would admit me! But, partly from personal dislike they shut their doors in my face and openly denounce me as the punisher of conspiracy, partly are incredulous and afraid that I am setting a trap for them! Nor do they suppose that a man can be short of money who has relieved the money-lenders from a state of siege. In point of fact, money is plentiful at six per cent., and the success of my measures has caused me to be regarded as a good security. Your own house, and all the details of its construction, I have examined and strongly approve. As for Antonius,[65] though everyone notices his want of attention to my interests, I have nevertheless defended him in the senate with the utmost earnestness and persistence, and have made a strong impression on the senate by my language as well as by my personal prestige. Pray write to me more frequently.

[Footnote 64: P. Sestius was serving as proquæstor in Macedonia under Gaius Antonius. As tribune in B.C. 57 he worked for Cicero's recall, but was afterwards prosecuted _de vi_, and defended by Cicero.]

[Footnote 65: Gaius Antonius, Cicero's colleague in the consulship. He had the province of Macedonia after the consulship, Cicero having voluntarily withdrawn in his favour to secure his support against Catiline. Scandal said that he had bargained to pay Cicero large sums from the profits of the province. He governed so corruptly and unsuccessfully that he was on his return condemned of _maiestas_.]

XVI (A I, 12)

[Sidenote: B.C. 61. Coss., M. Papius Piso, M. Valerius Messalla.]

The letters of this year are much concerned with the sacrilege of P. Clodius, who, it was alleged, had been detected in disguise in the house of the Pontifex Maximus Iulius Cæsar, when his wife was celebrating the mysteries of the Bona Dea, from which males were excluded. His trial was made the occasion of bitter party struggles, and by giving evidence in contradiction of Clodius's alibi Cicero incurred his enmity, and eventually, therefore, his own exile. Quintus is proprætor in Asia, Cæsar in Spain. Pompey reached Rome early this year. The _ordo equester_ is much irritated with the senate on the question of the contracts for the collection of the Asiatic taxes.

TO ATTICUS (IN EPIRUS)

ROME, 1 JANUARY

[Sidenote: B.C. 61, ÆT. 45]

The Teucris[66] business hangs fire, and Cornelius has not called on Terentia since. I suppose I must have recourse to Considius, Axius, and Selicius:[67] for his nearest relations can't get a penny out of Cæcilius[68] under twelve per cent. But to return to my first remark: I never saw anything more shameless, artful, and dilatory. "I am on the point of sending my freedman," "I have commissioned Titus"--excuses and delays at every turn! But perhaps it is a case of _l'homme propose_,[69] for Pompey's advance couriers tell me that he means to move in the senate that a successor to Antonius ought to be named, and the prætor intends to bring the proposal before the people at the same time. The facts are such that I cannot defend him in view of the opinion either of the aristocrats or the people, and, what is more than anything else, that I have no wish to do so. For a thing has happened into the truth of which I charge you to look thoroughly. I have a freedman, who is a worthless fellow enough; I mean Hilarus, an accountant and a client of your own. The interpreter Valerius gives me this information about him, and Thyillus writes me word that he has been told the same story: that the fellow is with Antonius, and that Antonius, in exacting money payments, frequently remarks that a part is being collected for me, and that I have sent a freedman to look after our common interests. I felt exceedingly disturbed, and yet could not believe it; but at any rate there has been some gossip of the sort. Pray look into the whole matter, learn the truth, find out the author, and get the empty-headed idiot out of the country, if you possibly can. Valerius mentions Cn. Plancius as the origin of this gossip. I trust you thoroughly to investigate and find out what is at the bottom of it. I have good reason to believe that Pompey is most kindly disposed to me. His divorce of Mucia is strongly approved.[70] I suppose you have heard that P. Clodius, son of Appius, was caught in woman's clothes at Gaius Cæsar's house, while the state function was going on, and that he was saved and got out by means of a maid-servant; and that the affair is causing immense scandal. I feel sure you will be sorry for it.[71] I have nothing else to tell you. And, indeed, at the moment of writing, I am in considerable distress: for a delightful youth, my reader Sosthenes, has just died, and his death has affected me more than that of a slave should, I think, do. Pray write often. If you have no news, write just what comes uppermost.

1 January, in the consulship of M. Messalla and M. Piso.

[Footnote 66: From expressions in the following letters it seems certain that this refers to money expected from Gaius Antonius; but we have no means of deciding whether or no Teucris is a pseudonym for some agent. Cicero had undertaken to be the advocate and supporter of Antonius, and though as an actual _patronus_ in court he could not take money, he may have felt justified in receiving supplies from him. Still, he knew the character of Antonius, and how such wealth was likely to be got, and it is not a pleasant affair.]

[Footnote 67: Money-lenders.]

[Footnote 68: The rich and cross-grained uncle of Atticus. See Letter X.]

[Footnote 69: Cicero quotes half a Greek verse of Menander's, ταὐτόματον ἡμῶν, leaving Atticus to fill up the other two words, καλλίω βουλεύεται, "Chance designs

better than we ourselves."]

[Footnote 70: Mucia was suspected of intriguing with Iulius Cæsar.]

[Footnote 71: The chief festival of the Bona Dea (Tellus) was in May. The celebration referred to here took place on the night between the 3rd and 4th of December. It was a state function (_pro populo_), and was celebrated in the presence of the Vestals and the wife of the consul or prætor urbanus, _in ea domo quæ est in imperio_. As Cæsar was Pontifex Maximus, as well as prætor urbanus, it took place in the _Regia_, the Pontiff's official house (Plutarch, _Cic._ 19; Dio, xxxvii. 35).]

XVII (F V, 5)

TO C. ANTONIUS (IN MACEDONIA)

ROME, JANUARY

M. Cicero wishes health to Gaius Antonius, son of Marcus, Imperator.

[Sidenote: B.C. 61, ÆT. 45]

Though I had resolved to write you nothing but formal letters of introduction (not because I felt that they had much weight with you, but to avoid giving those who asked me for them an idea that there had been any diminution in our friendship), yet since Titus Pomponius is starting for your province, who knows better than anyone else all that I feel and have done for you, who desires your friendship and is most devotedly attached to me, I thought I must write something, especially as I had no other way of satisfying Pomponius himself. Were I to ask from you services of the greatest moment, it ought not to seem surprising to anyone: for you have not wanted from me any that concerned your interests, honour, or position. That no return has been made by you for these you are the best witness: that something even of a contrary nature has proceeded from you I have been told by many. I say "told," for I do not venture to say "discovered,"[72] lest I should chance to use the word which people tell me is often falsely attributed to me by you. But the story which has reached my ears I would prefer your learning from Pomponius (who was equally hurt by it) rather than from my letter. How singularly loyal my feelings have been to you the senate and Roman people are both witnesses. How far you have been grateful to me you may yourself estimate: how much you owe me the rest of the world estimates. I was induced to do what I did for you at first by affection, and afterwards by consistency. Your future, believe me, stands in need of much greater zeal on my part, greater firmness and greater labour.[73] These labours, unless it shall appear that I am throwing away and wasting my pains, I shall support with all the strength I have; but if I see that they are not appreciated, I shall not allow you--the very person benefited[74]--to think me a fool for my pains. What the meaning of all this is you will be able to learn from Pomponius. In commending Pomponius to you, although I am sure you will do anything in your power for his own sake, yet I do beg that if you have any affection for me left, you will display it all in Pomponius's business. You can do

me no greater favour than that.

[Footnote 72: The word (_comperisse_) used by Cicero in regard to the Catilinarian conspiracy; it had apparently become a subject of rather malignant chaff.]

[Footnote 73: Cicero is hinting at the danger of prosecution hanging over the head of Antonius.]

[Footnote 74: Reading _tibi ipsi_ (not _ipse_), with Tyrrell.]

XVIII (A 1, 13)

TO ATTICUS (IN EPIRUS)

ROME, 27 JANUARY

[Sidenote: B.C. 61, ÆT. 45]

I have now received three letters from you--one by the hands of M. Cornelius, which you gave him, I think, at Three Taverns; a second which your host at Canusium delivered to me; a third dated, according to you, from on board your pinnace, when the cable was already slipped.[75] They were all three, to use a phrase from the schools of rhetoric flavoured with the salt of learning, and illumined with the marks of affection. In these letters, indeed, I am urgently pressed by you to send answers, but what renders me rather dilatory in this respect is the difficulty of finding a trustworthy carrier. How few of these gentry are able to convey a letter rather weightier than usual without lightening it by skimming its contents! Besides, I do not always care to send[76] whenever anyone is starting for Epirus: for I suppose that, having offered victims before your Amaltheia,[77] you at once started for the siege of Sicyon. And yet I am not even certain when you start to visit Antonius or how much time you are devoting to Epirus. Accordingly, I don't venture to trust either Achæans or Epirotes with a letter somewhat more outspoken than usual. Now some events _have_ occurred since you left me worth my writing to you, but they must not be trusted to the risk of a letter being lost, opened, or intercepted.

Well, then, to begin with: I was not called upon to speak first, and the pacifier of the Allobroges[78] was preferred to me, and though this met with some murmurs of disapprobation from the senate, I was not sorry it was done. For I am thereby freed from any obligation to shew respect to an ill-conditioned man, and am at liberty to support my position in the Republic in spite of him. Besides, the second place has a dignity almost equal to that of _princeps senatus_, and does not put one under too much of an obligation to the consul. The third called on was Catulus; the fourth, if you want to go still farther, Hortensius. The consul himself[79] is a man of a small and ill-regulated mind, a mere buffoon of that splenetic kind which raises a laugh even in the absence of wit: it is his face rather than his facetiousness[80] that causes merriment: he takes practically no part in public business, and is quite alienated from the Optimates. You need expect no service to the state from him, for he has not the will to do any, nor fear any damage, for he hasn't the courage to inflict it. His

colleague, however, treats me with great distinction, and is also a zealous supporter of the loyalist party. For the present their disagreement has not come to much; but I fear that this taint may spread farther. For I suppose you have heard that when the state function was being performed in Cæsar's house a man in woman's dress got in,[81] and that the Vestals having performed the rite again, mention was made of the matter in the senate by Q. Cornificius--he was the first, so don't think that it was one of us consulars--and that on the matter being referred by a decree of the senate to the [Virgins and] pontifices, they decided that a sacrilege had been committed: that then, on a farther decree of the senate, the consuls published a bill: and that Cæsar divorced his wife. On this question Piso, from friendship for P. Clodius, is doing his best to get the bill promulgated by himself (though in accordance with a decree of the senate and on a point of religion) rejected. Messalla as yet is strongly for severe measures. The loyalists hold aloof owing to the entreaties of Clodius: bands of ruffians are being got together: I myself, at first a stern Lycurgus, am becoming daily less and less keen about it: Cato is hot and eager. In short, I fear that between the indifference of the loyalists and the support of the disloyal it may be the cause of great evils to the Republic. However, your great friend[82]--do you know whom I mean?--of whom you said in your letter that, "not venturing to blame me, he was beginning to be complimentary," is now to all appearance exceedingly fond of me, embraces me, loves and praises me in public, while in secret (though unable to disguise it) he is jealous of me. No good-breeding, no straightforwardness, no political morality, no distinction, no courage, no liberality! But on these points I will write to you more minutely at another time; for in the first place I am not yet quite sure about them, and in the next place I dare not intrust a letter on such weighty matters to such a casual nobody's son as this messenger.

The prætors have not yet drawn their lots for the provinces. The matter remains just where you left it. The description of the scenery of Misenum and Puteoli which you ask for I will include in my speech.[83] I had already noticed the mistake in the date, 3rd of December. The points in my speeches which you praise, believe me, I liked very much myself, but did not venture to say so before. Now, however, as they have received your approval, I think them much more "Attic" than ever. To the speech in answer to Metellus[84] I have made some additions. The book shall be sent you, since affection for me gives you a taste for rhetoric. What news have I for you? Let me see. Oh, yes! The consul Messalla has bought Antonius's house for 3,400 sestertia (about £27,200). What is that to me? you will say. Why, thus much. The price has convinced people that I made no bad bargain, and they begin to understand that in making a purchase a man may properly use his friends' means to get what suits his position. The Teucris affair drags on, yet I have hopes. Pray settle the business you have in hand. You shall have a more outspoken letter soon.

27 January, in the consulship of M. Messalla and M. Piso.

[Footnote 75: _Ora soluta._ Or, if _ancora sublata_ be read, "when the anchor was already weighed." In either case it means "just as you were starting." Atticus wrote on board, and gave the letter to a carrier to take on shore.]

[Footnote 76: A word lost in the text.]

[Footnote 77: See end of Letter XXI. Cicero playfully supposes that Atticus only stayed in his villa in Epirus to offer sacrifices to the nymph in his gymnasium, and then hurried off to Sicyon, where people owed him money which he wanted to get. He goes to Antonius first to get his authority for putting pressure on Sicyon, and perhaps even some military force.]

[Footnote 78: C. Calpurnius Piso (consul B.C. 67), brother of the consul of the year, had been governor of Gallia Narbonensis (B.C. 66-65), and had suppressed a rising of the Allobroges, the most troublesome tribe in the province, who were, in fact, again in rebellion.]

[Footnote 79: M. Pupius Piso.]

[Footnote 80: "By the expression of his face rather than the force of his expressions" (Tyrrell).]

[Footnote 81: See p. 27, note 2.]

[Footnote 82: Pompey.]

[Footnote 83: Or, "inclose with my speech"; in both cases the dative _orationi meæ_ is peculiar. No speech exists containing such a description, but we have only two of the previous year extant (_pro Flacco_ and _pro Archia Poeta_). Cicero was probably sending it, whichever it was, to Atticus to be copied by his _librarii_, and published. Atticus had apparently some other works of Cicero's in hand, for which he had sent him some "queries."]

[Footnote 84: Apparently the speech in the senate referred to in Letter XIV, p. 23, spoken on 1st January, B.C. 62. Metellus had prevented his _contio_ the day before.]

XIX (A I, 14)

TO ATTICUS (IN EPIRUS)

ROME, 13 FEBRUARY

[Sidenote: B.C. 61, ÆT. 45]

I fear it may seem affectation to tell you how occupied I have been; but I am so distracted with business that I have only just found time for this short letter, and that has been stolen from the most urgent engagements. I have already described to you Pompey's first public speech--it did not please the poor, nor satisfy the disloyal, nor find favour with the wealthy, nor appear sound to the loyalists; accordingly, he is down in the world.[85] Presently, on the instigation of the consul Piso, that most insignificant of tribunes, Fufius, brought Pompey on to the platform. The meeting was in the _circus Flaminius_, and there was in the same place that day a crowd of market people--a kind of _tiers état_.[86] He asked him to say whether he approved of the jurymen being selected by the prætor, to form a panel for the prætor himself to employ. That was the regulation made by the senate in the matter of Clodius's

sacrilege. Thereupon Pompey made a highly "aristocratic" speech, and replied (and at great length) that in all matters the authority of the senate was of the greatest weight in his eyes and had always been so. Later on the consul Messalla in the senate asked Pompey his opinion as to the sacrilege and the bill that had been published. His speech in the senate amounted to a general commendation of all decrees of the house, and when he sat down he said to me, "I think my answer covers your case also."[87] When Crassus observed that Pompey had got a cheer from the idea in men's minds that he approved my consulship, he rose also to his feet and delivered a speech in the most complimentary terms on my consulship, going so far as to say that he owed it to me that he was still a senator, a citizen, nay, a free man; and that he never beheld wife, home, or country without beholding the fruits of my conduct. In short: that whole topic, which I am wont to paint in various colours in my speeches (of which you are the Aristarchus), the fire, the sword--you know my paint-pots--he elaborated to the highest pitch. I was sitting next to Pompey. I noticed that he was agitated, either at Crassus earning the gratitude which he had himself neglected, or to think that my achievements were, after all, of such magnitude that the senate was so glad to hear them praised, especially by a man who was the less under an obligation to praise me, because in everything I ever wrote[88] my praise of Pompey was practically a reflexion on him. This day has brought me very close to Crassus, and yet in spite of all I accepted with pleasure any compliment--open or covert--from Pompey. But as for my own speech, good heavens! how I did "put it on" for the benefit of my new auditor Pompey! If I ever did bring every art into play, I did then--period, transition, enthymeme, deduction--everything. In short, I was cheered to the echo. For the subject of my speech was the dignity of the senate, its harmony with the equites, the unanimity of Italy, the dying embers of the conspiracy, the fall in prices, the establishment of peace. You know my thunder when these are my themes. It was so loud, in fact, that I may cut short my description, as I think you must have heard it even in Epirus. The state of things at Rome is this: the senate is a perfect Areopagus. You cannot conceive anything firmer, more grave, or more high-spirited. For when the day came for proposing the bill in accordance with the vote of the senate, a crowd of our dandies with their chin-tufts assembled, all the Catiline set, with Curio's girlish son at their head, and implored the people to reject it. Moreover, Piso the consul, who formally introduced the bill, spoke against it. Clodius's hired ruffians had filled up the entrances to the voting boxes. The voting tickets were so manipulated that no "ayes" were distributed. Hereupon imagine Cato hurrying to the rostra, delivering an admirable invective against the consul, if we can call that an "invective" which was really a speech of the utmost weight and authority, and in fact containing the most salutary advice. He is followed to the same effect by your friend Hortensius, and many loyalists besides, among whom, however, the contribution of Favonius was conspicuous. By this rally of the Optimates the _comitia_ is dissolved, the senate summoned. On the question being put in a full house--in spite of the opposition of Piso, and in spite of Clodius throwing himself at the feet of the senators one after the other--that the consuls should exhort the people to pass the bill, about fifteen voted with Curio, who was against any decree being passed; on the other side there were fully four hundred. So the vote passed. The tribune Fufius then gave in.[89] Clodius delivered some wretched speeches to the people, in which he bestowed some

injurious epithets on Lucullus, Hortensius, C. Piso, and the consul Messalla; me he only charged with having "discovered" everything.[90] In regard to the assignation of provinces to the prætors, the hearing legations, and other business, the senate voted that nothing should be brought before it till the bill had been brought before the people. There's the state of things at Rome for you. Yet pray listen to this one thing more which has surpassed my hopes. Messalla is a superlatively good consul, courageous, firm, painstaking; he praises, shows attachment to, and imitates me. That other one (Piso) is the less mischievous because of one vice--he is lazy, sleepy, unbusiness-like, an utter _fainéant_, but in intention he is so disaffected that he has begun to loathe Pompey since he made the speech in which some praise was bestowed on the senate. Accordingly, he has alienated all the loyalists to a remarkable degree. And his action is not dictated by love for Clodius more than by a taste for a profligate policy and a profligate party. But he has nobody among the magistrates like himself, with the single exception of the tribune Fufius. The tribunes are excellent, and in Cornutus we have a quasi-Cato. Can I say more?

Now to return to private matters. "Teucris" has fulfilled her promise.[91] Pray execute the commission you undertook. My brother Quintus, who purchased the remaining three-fourths of the house in the Argiletum for 725 sestertia (about £5,800), is now trying to sell his Tusculan property, in order to purchase, if he can, the town house of Pacilius. Make it up with Lucceius! I see that he is all agog to stand for the consulship. I will do my best. Be careful to let me know exactly how you are, where you are, and how your business goes on.

13 February.

[Footnote 85: The letter giving this description is lost. I think _frigebat_ is epistolary imperfect--"_he_ is in the cold shade," not, "_it_ fell flat."]

[Footnote 86: πανήγυρις. Cicero uses the word (an honourable one in Greek) contemptuously of the rabble brought together at a market.]

[Footnote 87: Pompey's general commendation of the decrees of the senate would include those regarding the Catiline conspirators, and he therefore claimed to have satisfied Cicero.]

[Footnote 88: _Meis omnibus litteris_, the MS. reading. Prof. Tyrrell's emendation, _orationibus meis, omnibus litteris_, "in my speeches, every letter of them," seems to me even harsher than the MS., a gross exaggeration, and doubtful Latin. _Meis litteris_ is well supported by _literæ forenses et senatoriæ_ of _de Off._ 2, § 3, and though it is an unusual mode of referring to speeches, we must remember that they were now published and were "literature." The particular reference is to the speech _pro Imperio Pompeii_, in which, among other things, the whole credit of the reduction of Spartacus's gladiators is given to Pompey, whereas the brunt of the war had been borne by Crassus.]

[Footnote 89: Fufius, though Cicero does not say so, must have vetoed the decree, but in the face of such a majority withdrew his veto. The practice seems to have been, in case of tribunician veto, to take the vote, which remained as an _auctoritas senatus_, but was not a _senatus consultum_ unless the tribune was induced to

withdraw.]

[Footnote 90: _Comperisse_. See Letter XVII, note 1, p. 28.]

[Footnote 91: See Letters XVI and XVIII, pp. 26, 32.]

XX (A I, 15)

TO ATTICUS (IN EPIRUS)

ROME, 15 MARCH

[Sidenote: B.C. 61, ÆT. 45]

You have heard that my dearest brother Quintus has got Asia; for I do not doubt that rumour has conveyed the news to you quicker than a letter from any of us. Now then, considering how desirous of a good reputation he and I have ever been, and how unusually Philhellenic we are and have the reputation of being, and considering how many there are whose enmity we have incurred for the sake of the Republic, "call to mind all your valour,"[92] to secure us the praise and affection of all concerned. I will write at greater length to you on these points in the letter which I shall give to Quintus himself.[93] Please let me know what you have done about the business I confided to you, and also in your own affair; for I have had no letter from you since you left Brundisium. I am very anxious to hear how you are.

15 March.

[Footnote 92: παντοίης ἀρέτης μιμνήσκεο (Hom. _Il._ xxii. 8)]

[Footnote 93: The allotment of provinces had been put off (see last letter) till the affair of Clodius's trial was settled; consequently Quintus would not have much time for preparation, and would soon set out. He would cross to Dyrrachium, and proceed along the _via Egnatia_ to Thessalonica. He might meet Atticus at Dyrrachium, or go out of his way to call on him at Buthrotum.]

XXI (A I, 16)

TO ATTICUS

ROME (MAY)

[Sidenote: B.C. 61, ÆT. 45]

You ask me what has happened about the trial, the result of which was so contrary to the general expectation, and at the same time you want to know how I came to make a worse fight of it than usual. I will answer the last first, after the manner of Homer.[94] The fact is that, so long as I had to defend the authority of the senate,[95] I battled with such gallantry and vigour that there were shouts of applause and

crowds round me in the house ringing with my praise. Nay, if you ever thought that I shewed courage in political business, you certainly would have admired my conduct in that cause. For when the culprit had betaken himself to public meetings, and had made an invidious use of my name, immortal gods! What battles! What havoc! What sallies I made upon Piso, Curio, on the whole of that set! How I fell upon the old men for their instability, on the young for their profligacy! Again and again, so help me heaven! I regretted your absence not only as the supporter of my policy, but as the spectator also of my admirable fighting. However, when Hortensius hit on the idea of a law as to the sacrilege being proposed by the tribune Fufius, in which there was no difference from the bill of the consul except as to the kind of jurymen--on that point, however, the whole question turned--and got it carried by sheer fighting, because he had persuaded himself and others that _he_ could not get an acquittal no matter who were the jurymen, I drew in my sails, seeing the neediness of the jurors, and gave no evidence beyond what was so notorious and well attested that I could not omit it.[96] Therefore, if you ask the reason of the acquittal--to return at length to the former of the two questions--it was entirely the poverty and low character of the jury. But that this was possible was entirely the result of Hortensius's policy. In his alarm lest Fufius should veto the law which was to be proposed in virtue of a senatorial decree, he failed to see that it was better that the culprit should be left under a cloud of disgrace and dishonour than that he should be trusted to the discretion of a weak jury. But in his passionate resentment he hastened to bring the case into court, saying that a leaden sword was good enough to cut _his_ throat. But if you want to know the history of the trial, with its incredible verdict, it was such that Hortensius's policy is now blamed by other people after the event, though I disapproved of it from the first. When the rejection of jurors had taken place, amidst loud cheers and counter-cheers--the accuser like a strict censor rejecting the most worthless, the defendant like a kind-hearted trainer of gladiators all the best--as soon as the jury had taken their seats, the loyalists at once began to feel distrust. There never was a seedier lot round a table in a gambling hell. Senators under a cloud, equites out at elbows, tribunes who were not so much made of money as "collectors" of it, according to their official title.[97] However, there were a few honest men in the panel, whom he had been unable to drive off it by rejection, and they took their seats among their uncongenial comrades with gloomy looks and signs of emotion, and were keenly disgusted at having to rub elbows with such rascals. Hereupon, as question after question was referred to the panel in the preliminary proceedings, the severity of the decisions passes belief: there was no disagreement in voting, the defendant carried none of his points, while the accuser got even more than he asked. He was triumphant. Need I say more? Hortensius would have it that he was the only one of us who had seen the truth. There was not a man who did not think it impossible for him to stand his trial without being condemned a thousand times over. Farther, when I was produced as a witness, I suppose you have been told how the shouts of Clodius's supporters were answered by the jury rising to their feet to gather round me, and openly to offer their throats to P. Clodius in my defence. This seemed to me a greater compliment than the well-known occasion when your fellow citizens[98] stopped Xenocrates from taking an oath in the witness-box, or when, upon the accounts of Metellus Numidicus[99] being as usual handed round, a Roman jury refused to look

at them. The compliment paid me, I repeat, was much greater. Accordingly, as the jurymen were protecting me as the mainstay of the country, it was by their voices that the defendant was overwhelmed, and with him all his advocates suffered a crushing blow. Next day my house was visited by as great a throng as that which escorted me home when I laid down the consulship. Our eminent Areopagites then exclaimed that they would not come into court unless a guard was assigned them. The question was put to the whole panel: there was only one vote against the need of a guard. The question is brought before the senate: the decree is passed in the most solemn and laudatory terms: the jurymen are complimented: the magistrates are commissioned to carry it out: no one thought that the fellow would venture on a defence. "Tell me, ye Muses, now how first the fire befell!"[100] You know Bald-head, the Nanneian millionaire,[101] that panegyrist of mine, whose complimentary oration I have already mentioned to you in a letter. In two days' time, by the agency of a single slave, and one, too, from a school of gladiators, he settled the whole business--he summoned them to an interview, made a promise, offered security, paid money down. Still farther, good heavens, what a scandal! even favours from certain ladies, and introductions to young men of rank, were thrown in as a kind of _pourboire_ to some of the jurors. Accordingly, with the loyalists holding completely aloof, with the forum full of slaves, twenty-five jurors were yet found so courageous that, though at the risk of their lives, they preferred even death to producing universal ruin. There were thirty-one who were more influenced by famine than fame. On seeing one of these latter Catulus said to him, "Why did you ask us for a guard? Did you fear being robbed of the money?" There you have, as briefly as I could put it, the nature of the trial and the cause of the acquittal.

Next you want to know the present state of public affairs and of my own. That settlement of the Republic--firmly established by my wisdom, as you thought, as I thought by God's--which seemed fixed on a sure foundation by the unanimity of all loyalists and the influence of my consulship--that I assure you, unless some God take compassion on us, has by this one verdict escaped from our grasp: if "verdict" it is to be called, when thirty of the most worthless and dissolute fellows in Rome for a paltry sum of money obliterate every principle of law and justice, and when that which every man--I had almost said every animal--knows to have taken place, a Thalna, a Plautus, and a Spongia, and other scum of that sort decide not to have taken place. However, to console you as to the state of the Republic, rascaldom is not as cheerful and exultant in its victory as the disloyal hoped after the infliction of such a wound upon the Republic. For they fully expected that when religion, morality, the honour of juries, and the prestige of the senate had sustained such a crushing fall, victorious profligacy and lawless lust would openly exact vengeance from all the best men for the mortification which the strictness of my consulship had branded in upon all the worst. And it is once more I--for I do not feel as if I were boasting vaingloriously when speaking of myself to you, especially in a letter not intended to be read by others--it was I once more, I say, who revived the fainting spirits of the loyalists, cheering and encouraging each personally. Moreover, by my denunciations and invectives against those corrupt jurors I left none of the favourers and supporters of that victory a word to say for themselves. I gave the consul Piso no rest anywhere, I got him deprived of

Syria, which had been already plighted to him, I revived the fainting spirit of the senate and recalled it to its former severity. I overwhelmed Clodius in the senate to his face, both in a set speech, very weighty and serious, and also in an interchange of repartees, of which I append a specimen for your delectation. The rest lose all point and grace without the excitement of the contest, or, as you Greeks call it, the ἀγών. Well, at the meeting of the senate on the 15th of May, being called on for my opinion, I spoke at considerable length on the high interests of the Republic, and brought in the following passage by a happy inspiration: "Do not, Fathers, regard yourselves as fallen utterly, do not faint, because you have received one blow. The wound is one which I cannot disguise, but which I yet feel sure should not be regarded with extreme fear: to fear would shew us to be the greatest of cowards, to ignore it the greatest of fools. Lentulus was twice acquitted, so was Catiline, a third such criminal has now been let loose by jurors upon the Republic. You are mistaken, Clodius: it is not for the city but for the prison that the jurors have reserved you, and their intention was not to retain you in the state, but to deprive you of the privilege of exile. Wherefore, Fathers, rouse up all your courage, hold fast to your high calling. There still remains in the Republic the old unanimity of the loyalists: their feelings have been outraged, their resolution has not been weakened: no fresh mischief has been done, only what was actually existing has been discovered. In the trial of one profligate many like him have been detected."--But what am I about? I have copied almost a speech into a letter. I return to the duel of words. Up gets our dandified young gentleman, and throws in my teeth my having been at Baiæ. It wasn't true, but what did that matter to him? "It is as though you were to say," replied I, "that I had been in disguise!" "What business," quoth he, "has an Arpinate with hot baths?" "Say that to your patron," said I, "who coveted the watering-place of an Arpinate."[102] For you know about the marine villa. "How long," said he, "are we to put up with this king?" "Do you mention a king," quoth I, "when Rex[103] made no mention of you?" He, you know, had swallowed the inheritance of Rex in anticipation. "You have bought a house," says he. "You would think that he said," quoth I, "you have bought a jury." "They didn't trust you on your oath," said he. "Yes," said I, "twenty-five jurors did trust me, thirty-one didn't trust you, for they took care to get their money beforehand." Here he was overpowered by a burst of applause and broke down without a word to say.

My own position is this: with the loyalists I hold the same place as when you left town, with the tagrag and bobtail of the city I hold a much better one than at your departure. For it does me no harm that my evidence appears not to have availed. Envy has been let blood without causing pain, and even more so from the fact that all the supporters of that flagitious proceeding confess that a perfectly notorious fact has been hushed up by bribing the jury. Besides, the wretched starveling mob, the blood-sucker of the treasury, imagines me to be high in the favour of Magnus--and indeed we have been mutually united by frequent pleasant intercourse to such an extent, that our friends the boon companions of the conspiracy, the young chin-tufts, speak of him in ordinary conversation as Gnæus Cicero. Accordingly, both in the circus and at the gladiatorial games, I received a remarkable ovation without a single cat-call. There is at present a lively anticipation of the elections, in which, contrary to

everybody's wishes, our friend Magnus is pushing the claims of Aulus's son;[104] and in that matter his weapons are neither his prestige nor his popularity, but those by which Philip said that any fortress could be taken--if only an ass laden with gold could make its way up into it. Farthermore, that precious consul, playing as it were second fiddle to Pompey,[105] is said to have undertaken the business and to have bribery agents at his house, which I don't believe. But two decrees have already passed the house of an unpopular character, because they are thought to be directed against the consul on the demand of Cato and Domitius[106]--one that search should be allowed in magistrates' houses, and a second, that all who had bribery agents in their houses were guilty of treason. The tribune Lurco also, having entered on his office irregularly in view of the Ælian law, has been relieved from the provisions both of the Ælian and Fufian laws, in order to enable him to propose his law on bribery, which he promulgated with correct auspices though a cripple.[107] Accordingly, the _comitia_ have been postponed to the 27th of July. There is this novelty in his bill, that a man who has promised money among the tribes, but not paid it, is not liable, but, if he has paid, he is liable for life to pay 3,000 sesterces to each tribe. I remarked that P. Clodius had obeyed this law by anticipation, for he was accustomed to promise, and not pay. But observe! Don't you see that the consulship of which we thought so much, which Curio used of old to call an apotheosis, if this Afranius is elected, will become a mere farce and mockery? Therefore I think one should play the philosopher, as you in fact do, and not care a straw for your consulships!

You say in your letter that you have decided not to go to Asia. For my part I should have preferred your going, and I fear that there may be some offence[108] given in that matter. Nevertheless, I am not the man to blame you, especially considering that I have not gone to a province myself. I shall be quite content with the inscriptions you have placed in your Amaltheium,[109] especially as Thyillus has deserted me and Archias written nothing about me. The latter, I am afraid, having composed a Greek poem on the Luculli, is now turning his attention to the Cæcilian drama.[110] I have thanked Antonius on your account, and I have intrusted the letter to Mallius. I have heretofore written to you more rarely because I had no one to whom I could trust a letter, and was not sure of your address. I have puffed you well. If Cincius should refer any business of yours to me, I will undertake it. But at present he is more intent on his own business, in which I am rendering him some assistance. If you mean to stay any length of time in one place you may expect frequent letters from me: but pray send even more yourself. I wish you would describe your Amaltheium to me, its decoration and its plan; and send me any poems or stories you may have about Amaltheia.[111] I should like to make a copy of it at Arpinum. I will forward you something of what I have written. At present there is nothing finished.

[Footnote 94: ὕστερον πρότερον Ὁμηρικῶς.]

[Footnote 95: That is, the resolution of the senate, that the consuls should endeavour to get the bill passed.]

[Footnote 96: Cicero deposed to having seen Clodius in Rome three hours after he swore that he was at Interamna (ninety miles off), thus spoiling his alibi.]

[Footnote 97: The difficulty of this sentence is well known. The juries were now made up of three _decuriæ_--senators, equites, and _tribuni ærarii_. But the exact meaning of _tribuni ærarii_ is not known, beyond the fact that they formed an _ordo_, coming immediately below the equites. Possibly they were old tribal officers who had the duty of distributing pay or collecting taxes (to which the translation supposes a punning reference), and as such were required to be of a _census_ immediately below that of the equites. I do not profess to be satisfied, but I cannot think that Professor Tyrrell's proposal makes matters much easier--_tribuni non tam ærarii, ut appellantur, quam ærati_; for his translation of _ærati_ as "bribed" is not better supported, and is a less natural deduction than "moneyed."]

[Footnote 98: _I.e._, the Athenians. Xenocrates of Calchedon (B.C. 396-314), residing at Athens, is said to have been so trusted that his word was taken as a witness without an oath (Diog. Laert. IV. ii. 4).]

[Footnote 99: Q. Cæcilius Numidicus, consul B.C. 109, commanded against Iugurtha. The event referred to in the text is said to have occurred on his trial _de repetundis_, after his return from a province which he had held as proprætor (Val. Max. II. x. 1).]

[Footnote 100: Hom. _Il._ xvi. 112:

ἔσπετε νῦν μοι, Μοῦσαι, Ὀλύμπια δώματ' ἔχουσαι ὅππως δὴ πρῶτον πῦρ ἔμπεσε νηυσὶν Ἀχαίων.]

[Footnote 101: The reference is to Crassus. But the rest is very dark. The old commentators say that he is here called _ex Nanneianis_ because he made a large sum of money by the property of one Nanneius, who was among those proscribed by Sulla. His calling Crassus his "panegyrist" is explained by Letter XIX, pp. 33-34.]

[Footnote 102: C. Curio, the elder, defended Clodius. He had bought the villa of Marius (a native of Arpinum) at Baiæ.]

[Footnote 103: Q. Marcius Rex married a sister of Clodius, and dying, left him no legacy.]

[Footnote 104: L. Afranius.]

[Footnote 105: Reading _deterioris histrionis similis_, "like an inferior actor."]

[Footnote 106: Lucius Domitius Ahenobarbus, married to Cato's sister. Consul B.C. 54. A strong aristocrat and vehement opponent of Cæsar.]

[Footnote 107: Aufidius Lurco had apparently proposed his law on bribery between the time of the notice of the elections (_indictio_) and the elections themselves, which was against a provision of the _leges Ælia et Fufia_. What his breach of the law was in entering on his office originally we do not know: perhaps some neglect of auspices, or his personal deformity.]

[Footnote 108: _I.e._ to Quintus Cicero, now proprætor in Asia, who apparently wished his brother-in-law to come to Asia in some official capacity.]

[Footnote 109: Some epigrams or inscriptions under a portrait bust of Cicero in the gymnasium of Atticus's villa at Buthrotum. Atticus had a taste for such compositions. See Nepos, _Att._ 18; Pliny, _N. H._ 35, § 11.]

[Footnote 110: Cicero had defended Archias, and Thyillus seems also to have been intimate with him: but he says Archias, after complimenting the Luculli by a poem, is now doing the same to the Cæcilii Metelli. The "Cæcilian drama" is a reference to the old dramatist, Cæcilius Statius (_ob._ B.C. 168).]

[Footnote 111: Of Amaltheia, nurse of Zeus in Crete, there were plenty of legends. Atticus is making in his house something like what Cicero had made in his, and called his academia or gymnasium. That of Atticus was probably also a summer house or study, with garden, fountains, etc., and a shrine or statue of Amaltheia.]

XXII (A I, 17)

TO ATTICUS (IN EPIRUS)

ROME, 5 DECEMBER

[Sidenote: B.C. 61, ÆT. 45]

Your letter, in which you inclose copies of his letters, has made me realize that my brother Quintus's feelings have undergone many alternations, and that his opinions and judgments have varied widely from time to time.[112] This has not only caused me all the pain which my extreme affection for both of you was bound to bring, but it has also made me wonder what can have happened to cause my brother Quintus such deep offence, or such an extraordinary change of feeling. And yet I was already aware, as I saw that you also, when you took leave of me, were beginning to suspect, that there was some lurking dissatisfaction, that his feelings were wounded, and that certain unfriendly suspicions had sunk deep into his heart. On trying on several previous occasions, but more eagerly than ever after the allotment of his province, to assuage these feelings, I failed to discover on the one hand that the extent of his offence was so great as your letter indicates; but on the other I did not make as much progress in allaying it as I wished. However, I consoled myself with thinking that there would be no doubt of his seeing you at Dyrrachium, or somewhere in your part of the country: and, if that happened, I felt sure and fully persuaded that everything would be made smooth between you, not only by conversation and mutual explanation, but by the very sight of each other in such an interview. For I need not say in writing to you, who know it quite well, how kind and sweet-tempered my brother is, as ready to forgive as he is sensitive in taking offence. But it most unfortunately happened that you did not see him anywhere. For the impression he had received from the artifices of others had more weight with him than duty or relationship, or the old affection so long existing between you, which ought to have been the strongest influence of all. And yet, as to where the blame for this misunderstanding resides, I can more easily conceive than write: since I am afraid that, while defending my own relations, I should not spare yours. For I perceive that,

though no actual wound was inflicted by members of the family, they yet could at least have cured it. But the root of the mischief in this case, which perhaps extends farther than appears, I shall more conveniently explain to you when we meet. As to the letter he sent to you from Thessalonica,[113] and about the language which you suppose him to have used both at Rome among your friends and on his journey, I don't know how far the matter went, but my whole hope of removing this unpleasantness rests on your kindness. For if you will only make up your mind to believe that the best men are often those whose feelings are most easily irritated and appeased, and that this quickness, so to speak, and sensitiveness of disposition are generally signs of a good heart; and lastly--and this is the main thing--that we must mutually put up with each other's gaucheries (shall I call them?), or faults, or injurious acts, then these misunderstandings will, I hope, be easily smoothed away. I beg you to take this view, for it is the dearest wish of my heart (which is yours as no one else's can be) that there should not be one of my family or friends who does not love you and is not loved by you.

That part of your letter was entirely superfluous, in which you mention what opportunities of doing good business in the provinces or the city you let pass at other times as well as in the year of my consulship: for I am thoroughly persuaded of your unselfishness and magnanimity, nor did I ever think that there was any difference between you and me except in our choice of a career. Ambition led me to seek official advancement, while another and perfectly laudable resolution led you to seek an honourable privacy. In the true glory, which is founded on honesty, industry, and piety, I place neither myself nor anyone else above you. In affection towards myself, next to my brother and immediate family, I put you first. For indeed, indeed I have seen and thoroughly appreciated how your anxiety and joy have corresponded with the variations of my fortunes. Often has your congratulation added a charm to praise, and your consolation a welcome antidote to alarm. Nay, at this moment of your absence, it is not only your advice--in which you excel--but the interchange of speech--in which no one gives me so much delight as you do--that I miss most, shall I say in politics, in which circumspection is always incumbent on me, or in my forensic labour, which I formerly sustained with a view to official promotion, and nowadays to maintain my position by securing popularity, or in the mere business of my family? In all these I missed you and our conversations before my brother left Rome, and still more do I miss them since. Finally, neither my work nor rest, neither my business nor leisure, neither my affairs in the forum or at home, public or private, can any longer do without your most consolatory and affectionate counsel and conversation. The modest reserve which characterizes both of us has often prevented my mentioning these facts; but on this occasion it was rendered necessary by that part of your letter in which you expressed a wish to have yourself and your character "put straight" and "cleared" in my eyes. Yet, in the midst of all this unfortunate alienation and anger, there is one fortunate circumstance--that your determination of not going to a province was known to me and your other friends, and had been at various times before distinctly expressed by yourself; so that your not being his guest may be attributed to your personal tastes and judgments, not to the quarrel and rupture between you. And so those ties which have been broken will be restored, and ours

which have been so religiously preserved will retain all their old inviolability.

At Rome I find politics in a shaky condition; everything is unsatisfactory and foreboding change. For I have no doubt you have been told that our friends, the equites, are all but alienated from the senate. Their first grievance was the promulgation of a bill on the authority of the senate for the trial of such as had taken bribes for giving a verdict. I happened not to be in the house when that decree was passed, but when I found that the equestrian order was indignant at it, and yet refrained from openly saying so, I remonstrated with the senate, as I thought, in very impressive language, and was very weighty and eloquent considering the unsatisfactory nature of my cause. But here is another piece of almost intolerable coolness on the part of the equites, which I have not only submitted to, but have even put in as good a light as possible! The companies which had contracted with the censors for Asia complained that in the heat of the competition they had taken the contract at an excessive price; they demanded that the contract should be annulled. I led in their support, or rather, I was second, for it was Crassus who induced them to venture on this demand. The case is scandalous, the demand a disgraceful one, and a confession of rash speculation. Yet there was a very great risk that, if they got no concession, they would be completely alienated from the senate. Here again I came to the rescue more than anyone else, and secured them a full and very friendly house, in which I, on the 1st and 2nd of December, delivered long speeches on the dignity and harmony of the two orders. The business is not yet settled, but the favourable feeling of the senate has been made manifest: for no one had spoken against it except the consul-designate, Metellus; while our hero Cato had still to speak, the shortness of the day having prevented his turn being reached. Thus I, in the maintenance of my steady policy, preserve to the best of my ability that harmony of the orders which was originally my joiner's work; but since it all now seems in such a crazy condition, I am constructing what I may call a road towards the maintenance of our power, a safe one I hope, which I cannot fully describe to you in a letter, but of which I will nevertheless give you a hint. _I cultivate close intimacy with Pompey_. I foresee what you will say. I will use all necessary precautions, and I will write another time at greater length about my schemes for managing the Republic. You must know that Lucceius has it in his mind to stand for the consulship at once; for there are said to be only two candidates in prospect. Cæsar is thinking of coming to terms with him by the agency of Arrius, and Bibulus also thinks he may effect a coalition with him by means of C. Piso.[114] You smile? This is no laughing matter, believe me. What else shall I write to you? What? I have plenty to say, but must put it off to another time. If you mean to wait till you hear, let me know. For the moment I am satisfied with a modest request, though it is what I desire above everything--that you should come to Rome as soon as possible.

5 December.

[Footnote 112: Cicero is evidently very anxious as to the misunderstanding between Quintus and his brother-in-law Atticus, caused, as he hints, or at any rate not allayed, by Pomponia. The letter is very carefully written, without the familiar tone and mixture of jest and earnest common to most of the letters to Atticus.]

[Footnote 113: At the end of the _via Egnatia_, which started from Dyrrachium.]

[Footnote 114: The election in question is that to be held in B.C. 60 for the consulship of B.C. 59. Cæsar and Bibulus were elected, and apparently were the only two candidates declared as yet. They were, of course, extremists, and Lucceius seems to reckon on getting in by forming a coalition with either one or the other, and so getting the support of one of the extreme parties, with the moderates, for himself. The bargain eventually made was between Lucceius and Cæsar, the former finding the money. But the Optimates found more, and carried Bibulus. Arrius is Q. Arrius the orator (see Index). C. Piso is the consul of B.C. 67.]

XXIII (A I, 18)

[Sidenote: B.C. 60. Coss., Q. Cæcilius Metellus Celer, L. Afranius.]

This was the year in which Cæsar, returning from his proprætorship in Spain, found Pompey in difficulties with the senate (1) as to the confirmation _en bloc_ of his _acta_ in the East, (2) as to the assignation of lands to his veterans; and being met with opposition himself as to the triumph that he claimed, and his candidatureship for the consulship, he formed with Pompey and Crassus the agreement known as the first triumvirate. Cicero saw his favourite political object, the _concordia ordinum_, threatened by any opposition to the triumvirate, which he yet distrusted as dangerous to the constitution. We shall find him, therefore, vacillating between giving his support to its policy or standing by the extreme Optimates. P. Clodius is taking measures to be adopted into a plebeian gens, in order to stand for the tribuneship. Quintus is still in Asia. Pompey's triumph had taken place in the previous September.

TO ATTICUS (IN EPIRUS)

ROME, 20 JANUARY

[Sidenote: B.C. 60, ÆT. 46]

Believe me there is nothing at this moment of which I stand so much in need as a man with whom to share all that causes me anxiety: a man to love me; a man of sense to whom I can speak without affectation, reserve, or concealment. For my brother is away--that most open-hearted and affectionate of men. Metellus is not a human being, but

"Mere sound and air, a howling wilderness."

While you, who have so often lightened my anxiety and my anguish of soul by your conversation and advice, who are ever my ally in public affairs, my confidant in all private business, the sharer in all my conversations and projects--where are you? So entirely am I abandoned by all, that the only moments of repose left me are those which are spent with my wife, pet daughter, and sweet little Cicero. For as to those friendships with the great, and their artificial attractions, they have indeed a certain glitter in the outside world, but they bring no private satisfaction. And so, after a

crowded morning _levée_, as I go down to the forum surrounded by troops of friends, I can find no one out of all that crowd with whom to jest freely, or into whose ear I can breathe a familiar sigh. Therefore I wait for you, I long for you, I even urge on you to come; for I have many anxieties, many pressing cares, of which I think, if I once had your ears to listen to me, I could unburden myself in the conversation of a single walk. And of my private anxieties, indeed, I shall conceal all the stings and vexations, and not trust them to this letter and an unknown letter-carrier. These, however--for I don't want you to be made too anxious--are not very painful: yet they are persistent and worrying, and are not put to rest by the advice or conversation of any friend. But in regard to the Republic I have still the same courage and purpose, though it has again and again of its own act eluded treatment.[115] For should I put briefly what has occurred since you left, you would certainly exclaim that the Roman empire cannot be maintained much longer. Well, after your departure our first scene, I think, was the appearance of the Clodian scandal, in which having, as I thought, got an opportunity of pruning licentiousness and keeping our young men within bounds, I exerted myself to the utmost, and lavished all the resources of my intellect and genius, not from dislike to an individual, but from the hope of not merely correcting, but of completely curing the state. The Republic received a crushing blow when this jury was won over by money and the opportunity of debauchery. See what has followed! We have had a consul inflicted upon us, whom none except us philosophers can look at without a sigh. What a blow that is! Though a decree of the senate has been passed about bribery and the corruption of juries, no law has been carried; the senate has been harassed to death, the Roman knights alienated. So that one year has undermined two buttresses of the Republic, which owed their existence to me, and me alone; for it has at once destroyed the prestige of the senate and broken up the harmony of the orders. And now enter this precious year! It was inaugurated by the suspension of the annual rites of Iuventas;[116] for Memmius initiated M. Lucullus's wife in some rites of his own! Our Menelaus, being annoyed at that, divorced his wife. Yet the old Idæan shepherd had only injured Menelaus; our Roman Paris thought Agamemnon as proper an object of injury as Menelaus.[117] Next there is a certain tribune named C. Herennius, whom you, perhaps, do not even know--and yet you may know him, for he is of your tribe, and his father Sextus used to distribute money to your tribesmen--this person is trying to transfer P. Clodius to the plebs, and is actually proposing a law to authorize the whole people to vote in Clodius's affair in the _campus_.[118] I have given him a characteristic reception in the senate, but he is the thickest-skinned fellow in the world. Metellus is an excellent consul, and much attached to me, but he has lowered his influence by promulgating (though only for form's sake) an identical bill about Clodius. But the son of Aulus,[119] God in heaven! What a cowardly and spiritless fellow for a soldier! How well he deserves to be exposed, as he is, day after day to the abuse of Palicanus![120] Farther, an agrarian law has been promulgated by Flavius, a poor production enough, almost identical with that of Plotius. But meanwhile a genuine statesman is not to be found, even "in a dream." The man who could be one, my friend Pompey--for such he is, as I would have you know--defends his twopenny embroidered toga[121] by saying nothing. Crassus never risks his popularity by a word. The others you know without my telling you. They are such fools that they seem to expect that, though the Republic is lost, their

fish-ponds will be safe. There is one man who does take some trouble, but rather, as it seems to me, with consistency and honesty, than with either prudence or ability--Cato. He has been for the last three months worrying those unhappy _publicani_, who were formerly devoted to him, and refuses to allow of an answer being given them by the senate. And so we are forced to suspend all decrees on other subjects until the _publicani_ have got their answer. For the same reason I suppose even the business of the foreign embassies will be postponed. You now understand in what stormy water we are: and as from what I have written to you in such strong terms you have a view also of what I have not written, come back to me, for it is time you did. And though the state of affairs to which I invite you is one to be avoided, yet let your value for me so far prevail, as to induce you to come there even in these vexatious circumstances. For the rest I will take care that due warning is given, and a notice put up in all places, to prevent you being entered on the census as absent; and to get put on the census just before the lustration is the mark of your true man of business.[122] So let me see you at the earliest possible moment. Farewell.

20 January in the Consulship of Q. Metellus and L. Afranius.

[Footnote 115: Reading (mainly with Schutz) _animus præsens et voluntas, tamen etiam atque etiam ipsa medicinam refugit_. The verb _refugit_ is very doubtful, but it gives nearly the sense required. Cicero is ready to be as brave and active as before, but the state will not do its part. It has, for instance, blundered in the matter of the law against judicial corruption. The senate offended the equites by proposing it, and yet did not carry the law. I think _animus_ and _voluntas_ must refer to Cicero, not the state, to which in his present humour he would not attribute them.]

[Footnote 116: The temple of Iuventas was vowed by M. Livius after the battle of the Metaurus (B.C. 207), and dedicated in B.C. 191 by C. Licinius Lucullus, games being established on the anniversary of its dedication (Livy, xxi. 62; xxxvi. 36). It is suggested, therefore, that some of the Luculli usually presided at these games, but on this occasion refused, because of the injury done by C. Memmius, who was curule ædile.]

[Footnote 117: By Agamemnon and Menelaus Cicero means Lucius and Marcus Lucullus; the former Memmius had, as tribune in B.C. 66-65, opposed in his demand for a triumph, the latter he has now injured in the person of his wife.]

[Footnote 118: A man who was _sui iuris_ was properly adopted before the _commitia curiata_, now represented by thirty lictors. What Herennius proposed was that it should take place by a regular _lex_, passed by the _comitia tributa_. The object apparently was to avoid the necessity of the presence of a pontifex and augur, which was required at the _comitia curiata_. The concurrent law by the consul would come before the _comitia centuriata_. The adopter was P. Fonteius, a very young man.]

[Footnote 119: L. Afranius, the other consul.]

[Footnote 120: M. Lollius Palicanus, "a mere mob orator" (_Brutus_, §223).]

[Footnote 121: The _toga picta_ of a triumphator, which Pompey, by special law, was authorized to wear at the games. Cicero uses the contemptuous diminutive, _togula_.]

[Footnote 122: To be absent from the census without excuse rendered a man liable to penalties. Cicero will therefore put up notices in Atticus's various places of business or residence of his intention to appear in due course. To appear just at the end of the period was, it seems, in the case of a man of business, advisable, that he might be rated at the actual amount of his property, no more or less.]

XXIV (A I, 19)

TO ATTICUS (IN EPIRUS)

ROME, 15 MARCH

[Sidenote: B.C. 60, ÆT. 46]

It is not only if I had as much leisure as you, but also if I chose to send letters as short as yours usually are, should I easily beat you and be much the more regular in writing. But, in fact, it is only one more item in an immense and inconceivable amount of business, that I allow no letter to reach you from me without its containing some definite sketch of events and the reflexions arising from it. And in writing to you, as a lover of your country, my first subject will naturally be the state of the Republic; next, as I am the nearest object of your affection, I will also write about myself, and tell you what I think you will not be indisposed to know. Well then, in public affairs for the moment the chief subject of interest is the disturbance in Gaul. For the Ædui--"our brethren"[123]--have recently fought a losing battle, and the Helvetii are undoubtedly in arms and making raids upon our province.[124] The senate has decreed that the two consuls should draw lots for the Gauls, that a levy should be held, all exemptions from service be suspended, and legates with full powers be sent to visit the states in Gaul, and see that they do not join the Helvetii. The legates are Quintus Metellus Creticus,[125] L. Flaccus,[126] and lastly--a case of "rich unguent on lentils"--Lentulus, son of Clodianus.[127] And while on this subject I cannot omit mentioning that when among the consulars my name was the first to come up in the ballot, a full meeting of the senate declared with one voice that I must be kept in the city. The same occurred to Pompey after me; so that we two appeared to be kept at home as pledges of the safety of the Republic. Why should I look for the "bravos" of others when I get these compliments at home? Well, the state of affairs in the city is as follows. The agrarian law is being vehemently pushed by the tribune Flavius, with the support of Pompey, but it has nothing popular about it except its supporter. From this law I, with the full assent of a public meeting, proposed to omit all clauses which adversely affected private rights. I proposed to except from its operation such public land as had been so in the consulship of P. Mucius and L. Calpurnius.[128] I proposed to confirm the titles of holders of those to whom Sulla had actually assigned lands. I proposed to retain the men of Volaterræ and Arretium--whose lands Sulla had

declared forfeited but had not allotted--in their holdings. There was only one section in the bill that I did not propose to omit, namely, that land should be purchased with this money from abroad, the proceeds of the new revenues for the next five years.[129] But to this whole agrarian scheme the senate was opposed, suspecting that some novel power for Pompey was aimed at. Pompey, indeed, had set his heart on getting the law passed. I, however, with the full approval of the applicants for land, maintained the holdings of all private owners--for, as you know, the landed gentry form the bulk of our party's forces--while I nevertheless satisfied the people and Pompey (for I wanted to do that also) by the purchase clause; for, if that was put on a sound footing, I thought that two advantages would accrue--the dregs might be drawn from the city, and the deserted portions of Italy be repeopled. But this whole business was interrupted by the war, and has cooled off. Metellus is an exceedingly good consul, and much attached to me. That other one is such a ninny that he clearly doesn't know what to do with his purchase.[130] This is all my public news, unless you regard as touching on public affairs the fact that a certain Herennius, a tribune, and a fellow tribesman of yours--a fellow as unprincipled as he is needy--has now begun making frequent proposals for transferring P. Clodius to the plebs; he is vetoed by many of his colleagues. That is really, I think, all the public news.

For my part, ever since I won what I may call the splendid and immortal glory of the famous fifth of December[131] (though it was accompanied by the jealousy and hostility of many), I have never ceased to play my part in the Republic in the same lofty spirit, and to maintain the position I then inaugurated and took upon myself. But when, first, by the acquittal of Clodius I clearly perceived the insecurity and rotten state of the law courts; and, secondly, when I saw that it took so little to alienate my friends the _publicani_ from the senate--though with me personally they had no quarrel; and, thirdly, that the rich (I mean your friends the fish-breeders) did not disguise their jealousy of me, I thought I must look out for some greater security and stronger support. So, to begin with, I have brought the man who had been too long silent on my achievements, Pompey himself, to such a frame of mind as not once only in the senate, but many times and in many words, to ascribe to me the preservation of this empire and of the world. And this was not so important to me--for those transactions are neither so obscure as to need testimony, nor so dubious as to need commendation--as to the Republic; for there were certain persons base enough to think that some misunderstanding would arise between me and Pompey from a difference of opinion on these measures. With him I have united myself in such close intimacy that both of us can by this union be better fortified in his own views, and more secure in his political position. However, the dislike of the licentious dandies, which had been roused against me, has been so far softened by a conciliatory manner on my part, that they all combine to show me marked attention. In fine, while avoiding churlishness to anyone, I do not curry favour with the populace or relax any principle; but my whole course of conduct is so carefully regulated, that, while exhibiting an example of firmness to the Republic, in my own private concerns--in view of the instability of the loyalists, the hostility of the disaffected, and the hatred of the disloyal towards me--I employ a certain caution and circumspection, and do not allow myself, after all, to be involved in these new friendships so far but that the

famous refrain of the cunning Sicilian frequently sounds in my ears:[132]

"Keep sober and distrust: these wisdom's sinews!"

Of my course and way of life, therefore, you see, I think, what may be called a sketch or outline. Of your own business, however, you frequently write to me, but I cannot at the moment supply the remedy you require. For that decree of the senate was passed with the greatest unanimity on the part of the rank and file,[133] though without the support of any of us consulars. For as to your seeing my name at the foot of the decree, you can ascertain from the decree itself that the subject put to the vote at the time was a different one, and that this clause about "free peoples" was added without good reason. It was done by P. Servilius the younger,[134] who delivered his vote among the last, but it cannot be altered after such an interval of time. Accordingly, the meetings, which at first were crowded, have long ceased to be held. If you have been able, notwithstanding, by your insinuating address to get a trifle of money out of the Sicyonians, I wish you would let me know.[135] I have sent you an account of my consulship written in Greek. If there is anything in it which to a genuine Attic like yourself seems to be un-Greek or unscholarly, I shall not say as Lucullus said to you (at Panhormus, was it not?) about his own history, that he had interspersed certain barbarisms and solecisms for the express purpose of proving that it was the work of a Roman. No, if there is anything of that sort in my book, it will be without my knowledge and against my will. When I have finished the Latin version I will send it to you; and thirdly, you may expect a poem on the subject, for I would not have any method of celebrating my praise omitted by myself. In this regard pray do not quote "Who will praise his sire?"[136] For if there is anything in the world to be preferred to this, let it receive its due meed of praise, and I mine of blame for not selecting another theme for my praise. However, what I write is not panegyric but history. My brother Quintus clears himself to me in a letter, and asserts that he has never said a disparaging word of you to anyone. But this we must discuss face to face with the greatest care and earnestness: only _do_ come to see me again at last! This Cossinius, to whom I intrust my letter, seems to me a very good fellow, steady, devoted to you, and exactly the sort of man which your letter to me had described.

15 March.

[Footnote 123: A special title given to the Ædui on their application for alliance. Cæsar, _B. G._ i. 33.]

[Footnote 124: The migration of the Helvetii did not actually begin till B.C. 58. Cæsar tells us in the first book of his _Commentaries_ how he stopped it.]

[Footnote 125: Consul B.C. 69, superseded in Crete by Pompey B.C. 65. Triumphed B.C. 62.]

[Footnote 126: Prætor B.C. 63, defended by Cicero in an extant oration.]

[Footnote 127: Cn. Cornelius Lentulus Clodianus, consul in B.C. 72. Cicero puns on the name Lentulus from _lens_ (pulse, φακή), and quotes a Greek proverb for things incongruous. See Athenæus, 160 (from the _Necuia_ of Sopater):

Ἴθακος Ὀδυσσεὺς, τὸ ἐκὶ τῇ φακῇ μύρον πάρεστι· θάρσει, θυμέ.]

[Footnote 128: B.C. 133, the year before the agrarian law of Tiberius Gracchus. The law of Gracchus had not touched the public land in Campania (the old territory of Capua). The object of this clause (which appears repeatedly in those of B.C. 120 and 111, see Bruns, _Fontes Iuris_, p. 72) is to confine the allotment of _ager publicus_ to such land as had become so subsequently, _i.e._, to land made "public" principally by the confiscations of Sulla.]

[Footnote 129: That is, he proposed to hypothecate the _vectigalia_ from the new provinces formed by Pompey in the East for five years.]

[Footnote 130: The consulship. The bribery at Afranius's election is asserted in Letter XXI.]

[Footnote 131: The day of the execution of the Catilinarian conspirators.]

[Footnote 132: Epicharmus, twice quoted by Polybius, xviii. 40; xxxi. 21. νᾶφε καὶ μέμνας' ἀπιστεῖν, ἄρθρα ταῦτα τῶν φρενῶν.]

[Footnote 133: _Pedarii_ were probably those senators who had not held curule office. They were not different from the other senators in point of legal rights, but as ex-magistrates were asked for their _sententia_ first, they seldom had time to do anything but signify by word their assent to one or other motion, or to cross over to the person whom they intended to support.]

[Footnote 134: P. Servilius Vatia Isauricus, son of the conqueror of the Isaurians. As he had not yet been a prætor, he would be called on after the _consulares_ and _prætorii_. He then moved a new clause to the decree, and carried it.]

[Footnote 135: The decree apparently prevented the recovery of debts from a _libera civitas_ in the Roman courts. Atticus would therefore have to trust to the regard of the Sicyonians for their credit.]

[Footnote 136: A son must be hard up for something to say for himself if he is always harping on his father's reputation; and so must I, if I have nothing but my consulship. That seems the only point in the quotation. I do not feel that there is any reference to praise of his father in Cicero's own poem. There are two versions of the proverb:

τίς πατέρ' αἰνήσει εἰ μὴ κακοδαίμονες υἱοί

and

τίς πατέρ' αἰνήσει εἰ μὴ εὐδαίμονες υἱοί.]

XXV (A I, 20)

TO ATTICUS (IN EPIRUS)

ROME, 13 MAY

[Sidenote: B.C. 60, ÆT. 46]

On my return to Rome from my villa at Pompeii on the 12th of May, our friend Cincius handed me your letter dated 13th February. It is this letter of yours which I will now proceed to answer. And first let me say how glad I am that you have fully understood my appreciation of you;[137] and next how excessively rejoiced I am that you have been so extremely reasonable in regard to those particulars in which you thought[138] that I and mine had behaved unkindly, or with insufficient consideration for your feelings: and this I regard as a proof of no common affection, and of the most excellent judgment and wisdom. Wherefore, since you have written to me in a tone so delightful, considerate, friendly and kind, that I not only have no call to press you any farther, but can never even hope to meet from you or any other man with so much gentleness and good nature, I think the very best course I can pursue is not to say another word on the subject in my letters. When we meet, if the occasion should arise, we will discuss it together.

As to what you say about politics, your suggestions indeed are both affectionate and wise, and the course you suggest does not differ substantially from my own policy--for I must neither budge an inch from the position imposed upon me by my rank, nor must I without forces of my own enter the lines of another, while that other, whom you mention in your letter, has nothing large-minded about him, nothing lofty, nothing which is not abject and time-serving. However, the course I took was, after all, perhaps not ill-calculated for securing the tranquillity of my own life; but, by heaven, I did greater service to the Republic than, by suppressing the attacks of the disloyal, I did to myself, when I brought conviction home to the wavering mind of a man of the most splendid fortune, influence and popularity, and induced him to disappoint the disloyal and praise my acts. Now if I had been forced to sacrifice consistency in this transaction, I should not have thought anything worth that price; but the fact is that I have so worked the whole business, that I did not seem to be less consistent from my complacency to him, but that he appeared to gain in character by his approbation of me. In everything else I am so acting, and shall continue so to act, as to prevent my seeming to have done what I did do by mere chance. My friends the loyalists, the men at whom you hint, and that "Sparta" which you say has fallen to my lot,[139] I will not only never desert, but even if I am deserted by her, I shall still stand by my ancient creed. However, please consider this, that since the death of Catulus I am holding this road for the loyalists without any garrison or company. For as Rhinton, I think, says:

"Some are stark naught, and some care not at all."[140]

However, how our friends the fish-breeders[141] envy me I will write you word another time, or will reserve it till we meet. But from the senate-house nothing shall ever tear me: either because that course is the right one, or because it is most to my interests, or because I am far from being dissatisfied with the estimation in which I am held by the senate.

As to the Sicyonians, as I wrote to you before,[142] there is not much to be hoped for in the senate. For there is no one now to lay a complaint before it. Therefore, if you are waiting for that, you will find it a tedious business. Fight some other way if you can. At the time the decree was passed no one noticed who would be affected by

it, and besides the rank and file of the senators voted in a great hurry for that clause. For cancelling the senatorial decree the time is not yet ripe, because there are none to complain of it, and because also many are glad to have it so, some from spite, some from a notion of its equity. Your friend Metellus is an admirable consul: I have only one fault to find with him--he doesn't receive the news from Gaul of the restoration of peace with much pleasure. He wants a triumph, I suppose. I could have wished a little less of that sort of thing: in other respects he is splendid. But the son of Aulus behaves in such a way, that his consulship is not a consulship but a stigma on our friend Magnus. Of my writings I send you my consulship in Greek completed. I have handed that book to L. Cossinius. My Latin works I think you like, but as a Greek you envy this Greek book. If others write treatises on the subject I will send them to you, but I assure you that, as soon as they have read mine, some how or other they become slack. To return to my own affairs, L. Papirius Pætus, an excellent man and an admirer of mine, has presented me with the books left him by Servius Claudius. As your friend Cincius told me that I could take them without breaking the _lex Cincia_[143], I told him that I should have great pleasure in accepting them, if he brought them to Italy. Wherefore, as you love me, as you know that I love you, do try by means of friends, clients, guests, or even your freedmen or slaves, to prevent the loss of a single leaf. For I am in urgent need of the Greek books which I suspect, and of the Latin books which I know, that he left: and more and more every day I find repose in such studies every moment left to me from my labours in the forum. You will, I say, do me a very great favour, if you will be as zealous in this matter as you ever are in matters in which you suppose me to feel strongly; and Pætus's own affairs I recommend to your kindness for which he thanks you extremely. A prompt visit from yourself is a thing which I do not merely ask for, I advise it.

[Footnote 137: Contained in Letter XXII, pp. 46-47.]

[Footnote 138: Reading _tibi_ for _mihi_, as Prof. Tyrrell suggests.]

[Footnote 139: Σπάρτην ἔλαχες κείνην κοσμεῖ. "Sparta is your lot, do it credit," a line of Euripides which had become proverbial.]

[Footnote 140: οἱ μὲν παρ' οὐδέν εἰσι, τοῖς δ' οὐδεν μέλει. Rhinton, a dramatist, _circa_ B.C. 320-280 (of Tarentum or Syracuse).]

[Footnote 141: See pp. 52, 56, 65.]

[Footnote 142: See p. 57.]

[Footnote 143: The _lex Cincia_ (B.C. 204) forbade the taking of presents for acting as advocate in law courts.]

XXVI (A II, 1)

TO ATTICUS (IN GREECE)

ROME, JUNE

[Sidenote: B.C. 60, ÆT. 46]

On the 1st of June, as I was on my way to Antium, and eagerly getting out of the way of M. Metellus's gladiators, your boy met me, and delivered to me a letter from you and a history of my consulship written in Greek.[144] This made me glad that I had some time before delivered to L. Cossinius a book, also written in Greek, on the same subject, to take to you. For if I had read yours first you might have said that I had pilfered from you. Although your essay (which I have read with pleasure) seemed to me just a trifle rough and bald, yet its very neglect of ornament is an ornament in itself, as women were once thought to have the best perfume who used none. My book, on the other hand, has exhausted the whole of Isocrates's unguent case, and all the paint-boxes of his pupils, and even Aristotle's colours. This, as you tell me in another letter, you glanced over at Corcyra, and afterwards I suppose received it from Cossinius.[145] I should not have ventured to send it to you until I had slowly and fastidiously revised it. However, Posidonius, in his letter of acknowledgment from Rhodes, says that as he read my memoir, which I had sent him with a view to his writing on the same subject with more elaboration, he was not only not incited to write, but absolutely made afraid to do so. In a word, I have routed the Greeks. Accordingly, as a general rule, those who were pressing me for material to work up, have now ceased to bother me. Pray, if you like the book, see to there being copies at Athens and other Greek towns;[146] for it may possibly throw some lustre on my actions. As for my poor speeches, I will send you both those you ask for and some more also, since what I write to satisfy the studious youth finds favour, it seems, with you also. [For it suited my purpose[147]--both because it was in his Philippics that your fellow citizen Demosthenes gained his reputation, and because it was by withdrawing from the mere controversial and forensic style of oratory that he acquired the character of a serious politician--to see that I too should have speeches that may properly be called _consular_. Of these are, first, one delivered on the 1st of January in the senate, a second to the people on the agrarian law, a third on Otho, a fourth for Rabirius, a fifth on the Sons of the Proscribed, a sixth when I declined a province in public meeting, a seventh when I allowed Catiline to escape, which I delivered the day after Catiline fled, a ninth in public meeting on the day that the Allobroges made their revelation, a tenth in the senate on the 5th of December. There are also two short ones, which may be called fragments, on the agrarian law. This whole cycle I will see that you have. And since you like my writings as well as my actions, from these same rolls you will learn both what I have done and what I have said--or you should not have asked for them, for I did not make you an offer of them.]

You ask me why I urge you to come home, and at the same time you intimate that you are hampered by business affairs, and yet say that you will nevertheless hasten back, not only if it is needful, but even if I desire it. Well, there is certainly no absolute necessity, yet I do think you might plan the periods of your tour somewhat more conveniently. Your absence is too prolonged, especially as you are in a neighbouring country, while yet I cannot enjoy your society, nor you mine. For the present there is peace, but if my young friend Pulcher's[148] madness found means to advance a little farther, I should certainly summon you from your present sojourn. But Metellus is offering him a splendid opposition and will continue to do so. Need I

say more? He is a truly patriotic consul and, as I have ever thought, naturally an honest man. That person, however, makes no disguise, but avowedly desires to be elected tribune. But when the matter was mooted in the senate, I cut the fellow to pieces, and taunted him with his changeableness in seeking the tribuneship at Rome after having given out at Hera, in Sicily,[149] that he was a candidate for the ædileship; and went on to say that we needn't much trouble ourselves, for that he would not be permitted to ruin the Republic any more as a plebeian, than patricians like him had been allowed to do so in my consulship. Presently, on his saying that he had completed the journey from the straits in seven days, and that it was impossible for anyone to have gone out to meet him, and that he had entered the city by night,[150] and making a great parade of this in a public meeting, I remarked that that was nothing new for him: seven days from Sicily to Rome, three hours from Rome to Interamna![151] Entered by night, did he? so he did before! No one went to meet him? neither did anyone on the other occasion, exactly when it should have been done! In short, I bring our young upstart to his bearings, not only by a set and serious speech, but also by repartees of this sort. Accordingly, I have come now to rally him and jest with him in quite a familiar manner. For instance, when we were escorting a candidate, he asked me "whether I had been accustomed to secure Sicilians places at the gladiatorial shows?" "No," said I. "Well, I intend to start the practice," said he, "as their new patron; but my sister,[152] who has the control of such a large part of the consul's space, wont give me more than a single foot." "Don't grumble," said I, "about one of your sister's feet; you may lift the other also." A jest, you will say, unbecoming to a consular. I confess it, but I detest that woman--so unworthy of a consul. For

"A shrew she is and with her husband jars,"

and not only with Metellus, but also with Fabius,[153] because she is annoyed at their interference in this business.[154] You ask about the agrarian law: it has completely lost all interest, I think. You rather chide me, though gently, about my intimacy with Pompey. I would not have you think that I have made friends with him for my own protection; but things had come to such a pass that, if by any chance we had quarrelled, there would inevitably have been violent dissensions in the state. And in taking precautions and making provision against that, I by no means swerved from my well-known loyalist policy, but my object was to make him more of a loyalist and induce him to drop somewhat of his time-serving vacillation: and he, let me assure you, now speaks in much higher terms of my achievements (against which many had tried to incite him) than of his own. He testifies that while he served the state well, I preserved it. What if I even make a better citizen of Cæsar,[155] who has now the wind full in his sails--am I doing so poor a service to the Republic? Farthermore, if there was no one to envy me, if all, as they ought to be, were my supporters, nevertheless a preference should still be given to a treatment that would cure the diseased parts of the state, rather than to the use of the knife. As it is, however, since the knighthood, which I once stationed on the slope of the Capitoline,[156] with you as their standard-bearer and leader, has deserted the senate, and since our leading men think themselves in a seventh heaven, if there are bearded mullets in their fish-ponds that will come to hand for food, and neglect everything else, do not you

think that I am doing no mean service if I secure that those who have the power, should not have the will, to do any harm? As for our friend Cato, you do not love him more than I do: but after all, with the very best intentions and the most absolute honesty, he sometimes does harm to the Republic. He speaks and votes as though he were in the Republic of Plato, not in the scum of Romulus. What could be fairer than that a man should be brought to trial who has taken a bribe for his verdict? Cato voted for this: the senate agreed with him. The equites declared war on the senate, not on me, for I voted against it. What could be a greater piece of impudence than the equites renouncing the obligations of their contract? Yet for the sake of keeping the friendship of the order it was necessary to submit to the loss. Cato resisted and carried his point. Accordingly, though we have now had the spectacle of a consul thrown into prison,[157] of riots again and again stirred up, not one of those moved a finger to help, with whose support I and the consuls that immediately followed me were accustomed to defend the Republic. "Well, but," say you, "are we to pay them for their support?" What are we to do if we can't get it on any other terms? Are we to be slaves to freedmen or even slaves? But, as you say, _assez de sérieux!_ Favonius[158] carried my tribe with better credit than his own; he lost that of Lucceius. His accusation of Nasica[159] was not creditable, but was conducted with moderation: he spoke so badly that he appeared when in Rhodes to have ground at the mills more than at the lessons of Molon.[160] He was somewhat angry with me because I appeared for the defence: however, he is now making up to me again on public grounds. I will write you word how Lucceius is getting on when I have seen Cæsar, who will be here in a couple of days. The injury done you by the Sicyonians you attribute to Cato and his imitator Servilius.[161] Why? did not that blow reach many excellent citizens? But since the senate has so determined, let us commend it, and not be in a minority of one.[162] My "Amaltheia"[163] is waiting and longing for you. My Tusculan and Pompeian properties please me immensely, except that they have overwhelmed me--me, the scourge of debt!--not exactly in Corinthian bronze, but in the bronze which is current in the market.[164] In Gaul I hope peace is restored. My "Prognostics,"[165] along with my poor speeches, expect shortly. Yet write and tell me what your ideas are as to returning. For Pomponia sent a message to me that you would be at Rome some time in July. That does not agree with your letter which you wrote to me about your name being put on the census roll. Pætus, as I have already told you, has presented me with all books left by his brother. This gift of his depends upon your seeing to it with care. Pray, if you love me, take measures for their preservation and transmission to me. You could do me no greater favour, and I want the Latin books preserved with as much care as the Greek. I shall look upon them as virtually a present from yourself. I have written to Octavius:[166] I had not said anything to him about you by word of mouth; for I did not suppose that you carried on your business in that province, or look upon you in the light of general money-lender: but I have written, as in duty bound, with all seriousness.

[Footnote 144: Nep. _Att._ c. 18.]

[Footnote 145: Atticus seems to have seen a copy belonging to some one else at Corfu. Cicero explains that he had kept back Atticus's copy for revision.]

[Footnote 146: Cicero evidently intends Atticus to act as a publisher. His _librarii_ will make copies. See p. 32, note 1.]

[Footnote 147: The passage in brackets is believed by some, not on very good grounds, to be spurious. Otho is L. Roscius Otho, the author of the law as to the seats in the theatre of the equites. The "proscribed" are those proscribed by Sulla, their sons being forbidden to hold office, a disability which Cicero maintained for fear of civil disturbances. See _in Pis._ §§ 4-5.]

[Footnote 148: Pulchellus, _i.e._, P. Clodius Pulcher, the diminutive of contempt.]

[Footnote 149: Where he had been as quæstor. Hera is said to be another name for Hybla. Some read _heri_, "only yesterday."]

[Footnote 150: Clodius is shewing off his modesty. It was usual for persons returning from a province to send messengers in front, and to travel deliberately, that their friends might pay them the compliment of going out to meet them. Entering the city after nightfall was another method of avoiding a public reception. See Suet. _Aug._ 53.]

[Footnote 151: See p. 37, note 3.]

[Footnote 152: Clodia, wife of the consul Metellus. See p. 22, note.]

[Footnote 153: We don't know who this is; probably a _cavaliere servente_ of Clodia's.]

[Footnote 154: _I.e._, in the business of her brother Clodius's attempt to get the tribuneship.]

[Footnote 155: Though Cæsar has been mentioned before in regard to his candidature for the consulship, and in connexion with the Clodius case, this is the first reference to him as a statesman. He is on the eve of his return from Spain, and already is giving indication of his coalition with Pompey. His military success in Spain first clearly demonstrated his importance.]

[Footnote 156: During the meeting of the senate at the time of the Catilinarian conspiracy (2 _Phil._ § 16).]

[Footnote 157: The consul Cæcilius Metellus was imprisoned by the tribune Flavius for resisting his land law (Dio, xxxvii. 50).]

[Footnote 158: M. Favonius, an extreme Optimate. _Ille Catonis æmulus_ (Suet. _Aug._ 13). He had a bitter tongue, but a faithful heart (Plut. _Pomp._ 60, 73; Vell. ii 73). He did not get the prætorship (which he was now seeking) till B.C. 49. He was executed after Philippi (Dio. 47, 49).]

[Footnote 159: P. Scipio Nasica Metellus Pius, the future father-in-law of Pompey, who got the prætorship, was indicted for _ambitus_ by Favonius.]

[Footnote 160: Ἀπολλόνιος Μόλων of Alabanda taught rhetoric at Rhodes. Cicero had himself attended his lectures. He puns on the name Molon and _molæ_, "mill at which slaves worked."]

[Footnote 161: See pp. 57, 60.]

[Footnote 162: Reading _discessionibus_, "divisions in the senate," with Manutius and Tyrrell, not _dissentionibus_; and _deinde ne_, but not _st_ for _si_.]

[Footnote 163: His study, which he playfully calls by this name, in imitation of that of Atticus. See p. 30.]

[Footnote 164: See Letter XV, p. 25.]

[Footnote 165: His translation of the _Prognostics_ of Aratus.]

[Footnote 166: Gaius Octavius, father of Augustus, governor of Macedonia.]

XXVII (A II, 2)

TO ATTICUS (ON HIS WAY TO ROME)

TUSCULUM (DECEMBER)

[Sidenote: B.C. 60, ÆT. 46]

Take care of my dear nephew Cicero, I beg of you. I seem to share his illness. I am engaged on the "Constitution of Pellene," and, by heaven, have piled up a huge heap of Dicæarchus at my feet.[167] What a great man! You may learn much more from him than from Procilius. His "Constitution of Corinth" and "Constitution of Athens" I have, I think, at Rome. Upon my word, you will say, if you read these, "What a remarkable man!" Herodes, if he had any sense, would have read him rather than write a single letter himself.[168] He has attacked me by letter; with you I see he has come to close quarters. I would have joined a conspiracy rather than resisted one, if I had thought that I should have to listen to him as my reward. As to Lollius, you must be mad. As to the wine, I think you are right.[169] But look here! Don't you see that the Kalends are approaching, and no Antonius?[170] That the jury is being empanelled? For so they send me word. That Nigidius[171] threatens in public meeting that he will personally cite any juror who does not appear? However, I should be glad if you would write me word whether you have heard anything about the return of Antonius; and since you don't mean to come here, dine with me in any case on the 29th. Mind you do this, and take care of your health.

[Footnote 167: The roll being unwound as he read and piled on the ground. Dicæarchus of Messene, a contemporary of Aristotle, wrote on "Constitutions" among other things. Procilius seems also to have written on polities.]

[Footnote 168: Herodes, a teacher at Athens, afterwards tutor to young Cicero. He seems to have written on Cicero's consulship.]

[Footnote 169: These remarks refer to something in Atticus's letter.]

[Footnote 170: Gaius Antonius, about to be prosecuted for _maiestas_ on his return from Macedonia.]

[Footnote 171: P. Nigidius Figulus, a tribune (which dates the letter after the 10th of December). The tribunes had no right of summons (_vocatio_), they must personally enforce their commands.]

XXVIII (A II, 3)

TO ATTICUS (ON HIS WAY TO ROME)

ROME (DECEMBER)

[Sidenote: B.C. 60, ÆT. 46]

First, I have good news for you, as I think. Valerius has been acquitted. Hortensius was his counsel. The verdict is thought to have been a favour to Aulus's son; and "Epicrates,"[172] I suspect, has been up to some mischief. I didn't like his boots and his white leggings.[173] What it is I shall know when you arrive. When you find fault with the narrow windows, let me tell you that you are criticising the Cyropædeia.[174] For when I made the same remark, Cyrus used to answer that the views of the gardens through broad lights were not so pleasant. For let α be the eye, βγ the object seen, δ and ε the rays ... you see the rest.[175] For if sight resulted from the impact of images,[176] the images would be in great difficulties with a narrow entrance: but, as it is, that "effusion" of rays gets on quite nicely. If you have any other fault to find you won't get off without an answer, unless it is something that can be put right without expense.

I now come to January and my "political attitude," in which, after the manner of the Socratics, I shall put the two sides; at the end, however, as they were wont to do, the one which I approve. It is, indeed, a matter for profound reflexion. For I must either firmly oppose the agrarian law--which will involve a certain struggle, but a struggle full of glory--or I must remain altogether passive, which is about equivalent to retiring to Solonium[177] or Antium; or, lastly, I must actually assist the bill, which I am told Cæsar fully expects from me without any doubt. For Cornelius has been with me (I mean Cornelius Balbus,[178] Cæsar's intimate), and solemnly assured me that he meant to avail himself of my advice and Pompey's in everything, and intended to endeavour to reconcile Crassus with Pompey.[179] In this last course there are the following advantages: a very close union with Pompey, and, if I choose, with Cæsar also; a reconciliation with my political enemies, peace with the common herd, ease for my old age. But the conclusion of the third book of my own poem has a strong hold on me:

"Meanwhile the tenor of thy youth's first spring, Which still as consul thou with all thy soul And all thy manhood heldest, see thou keep, And swell the chorus of all good men's praise."[180]

These verses Calliope herself dictated to me in that book, which contains much written in an "aristocratic" spirit, and I cannot, therefore, doubt that I shall always hold that

"The best of omens is our country's cause."[181]

But let us reserve all this for our walks during the Compitalia[182]. Remember the day before the Compitalia. I will order the bath to be heated, and Terentia is going to invite Pomponia. We will add your mother to the party. Please bring me Theophrastus _de Ambitione_ from my brother's library.

[Footnote 172: "The Conqueror," _i.e._, Pompey. Aulus's son is L. Afranius.]

[Footnote 173: _I.e._, his military get-up.]

[Footnote 174: Cyrus was Cicero's architect; his argument or theory he calls Cyropædeia, after Xenophon's book.]

[Footnote 175: He supposes himself to be making a mathematical figure in optics:

[Illustration]]

[Footnote 176: The theory of sight held by Democritus, denounced as unphilosophical by Plutarch (_Timoleon_, Introd.).]

[Footnote 177: Apparently a villa in the _Solonius ager_, near Lanuvium.]

[Footnote 178: The Cornelius Balbus of Gades, whose citizenship Cicero defended B.C. 56 (consul B.C. 40). He was Cæsar's close friend and agent.]

[Footnote 179: Cicero was apparently not behind the scenes. The coalition with Pompey certainly, and with Crassus probably, had been already made and the terms agreed upon soon after the elections. If Cicero afterwards discovered this it must have shewn him how little he could trust Pompey's show of friendship and Cæsar's candour. Cæsar desired Cicero's private friendship and public acquiescence, but was prepared to do without them.]

[Footnote 180: From Cicero's Latin poem on his consulship.]

[Footnote 181: εἷς οἰωνός ἄριστος ἀμύνεσθαι περὶ πάτρης (Hom. _Il._ xii. 243).]

XXIX (Q FR I, 1)

Quintus Cicero was prætor in B.C. 62. In B.C. 61 (March) he went out to "Asia" as proprætor; his first year of office would be up in March, B.C. 60, but his governorship was, as was very common, extended till March, B.C. 59. Towards the end of B.C. 60 the senate seems to have arranged not to appoint his successor, that is, he would be left in office till about March, B.C. 58. It is in view of this third year of office that Cicero writes this essay-letter to him on the duties of a provincial governor. Apparently Quintus had faults of temper which had caused some scandals to reach Rome. We have seen how he was one of the few who managed to quarrel with Atticus; and in B.C. 48 we shall find how fiercely he resented the exercise of his brother's influence which had led him to take the losing side, which from his attachment to Cæsar he may have been half inclined to think the wrong side. His constant squabbles with his wife (though the fault was evidently in great part hers) also go towards forming our conclusion about him that, with some ability and honesty, he

was _un peu difficile_.

TO HIS BROTHER QUINTUS (IN ASIA)

ROME (DECEMBER)

[Sidenote: B.C. 60, ÆT. 46]

I. Though I have no doubt that many messengers, and even common rumour, with its usual speed, will anticipate this letter, and that you will already have heard from others that a third year has been added to my loss and your labour, yet I thought you ought to receive from me also the news of this tiresome circumstance. For not in one, but in several of my previous letters, in spite of others having given up the idea in despair, I gave you hope of being able at an early date to quit your province, not only that I might as long as possible cheer you with a pleasurable belief, but also because I and the prætors took such pains in the matter, that I felt no misgiving as to the possibility of its being arranged. As it is, since matters have so turned out that neither the prætors by the weight of their influence, nor I by my earnest efforts, have been able to prevail, it is certainly difficult not to be annoyed, yet our minds, practised as they are in conducting and supporting business of the utmost gravity, ought not to be crushed or weakened by vexation. And since men ought to feel most vexed at what has been brought upon them by their own fault, it is I who ought in this matter to be more vexed than you. For it is the result of a fault on my part, against which you had protested both in conversation at the moment of your departure, and in letters since, that your successor was not named last year. In this, while consulting for the interests of our allies, and resisting the shameless conduct of some merchants, and while seeking the increase of our reputation by your virtues, I acted unwisely, especially as I made it possible for that second year to entail a third. And as I confess the mistake to have been mine, it lies with your wisdom and kindness to remedy it, and to see that my imprudence is turned to advantage by your careful performance of your duties. And truly, if you exert yourself in every direction to earn men's good word, not with a view to rival others, but henceforth to surpass yourself, if you rouse your whole mind and your every thought and care to the ambition of gaining a superior reputation in all respects, believe me, one year added to your labour will bring us, nay, our posterity also, a joy of many years' duration. Wherefore I begin by entreating you not to let your soul shrink and be cast down, nor to allow yourself to be overpowered by the magnitude of the business as though by a wave; but, on the contrary, to stand upright and keep your footing, or even advance to meet the flood of affairs. For you are not administering a department of the state, in which fortune reigns supreme, but one in which a well-considered policy and an attention to business are the most important things. But if I had seen you receiving the prolongation of a command in a great and dangerous war, I should have trembled in spirit, because I should have known that the dominion of fortune over us had been at the same time prolonged. As it is, however, a department of the state has been intrusted to you in which fortune occupies no part, or, at any rate, an insignificant one, and which appears to me to depend entirely on your virtue and self-control. We

have no reason to fear, as far as I know, any designs of our enemies, any actual fighting in the field, any revolts of allies, any default in the tribute or in the supply of corn, any mutiny in the army: things which have very often befallen the wisest of men in such a way, that they have been no more able to get the better of the assault of fortune, than the best of pilots a violent tempest. You have been granted profound peace, a dead calm: yet if the pilot falls asleep, it may even so overwhelm him, though if he keeps awake it may give him positive pleasure. For your province consists, in the first place, of allies of a race which, of all the world, is the most civilized; and, in the second place, of citizens, who, either as being _publicani_, are very closely connected with me, or, as being traders who have made money, think that they owe the security of their property to my consulship.

II. But it may be said that among even such men as these there occur serious disputes, many wrongful acts are committed, and hotly contested litigation is the result. As though I ever thought that you had no trouble to contend with! I know that the trouble is exceedingly great, and such as demands the very greatest prudence; but remember that it is prudence much more than fortune on which, in my opinion, the result of your trouble depends. For what trouble is it to govern those over whom you are set, if you do but govern yourself? That may be a great and difficult task to others, and indeed it is most difficult: to you it has always been the easiest thing in the world, and indeed ought to be so, for your natural disposition is such that, even without discipline, it appears capable of self-control; whereas a discipline has, in fact, been applied that might educate the most faulty of characters. But while you resist, as you do, money, pleasure, and every kind of desire yourself, there will, I am to be told, be a risk of your not being able to suppress some fraudulent banker or some rather over-extortionate tax-collector! For as to the Greeks, they will think, as they behold the innocence of your life, that one of the heroes of their history, or a demigod from heaven, has come down into the province. And this I say, not to induce you to act thus, but to make you glad that you are acting or have acted so. It is a splendid thing to have been three years in supreme power in Asia without allowing statue, picture, plate, napery, slave, anyone's good looks, or any offer of money--all of which are plentiful in your province--to cause you to swerve from the most absolute honesty and purity of life. What can be imagined so striking or so desirable as that a virtue, a command over the passions, a self-control such as yours, are not remaining in darkness and obscurity, but have been set in the broad daylight of Asia, before the eyes of a famous province, and in the hearing of all nations and peoples? That the inhabitants are not being ruined by your progresses, drained by your charges, agitated by your approach? That there is the liveliest joy, public and private, wheresoever you come, the city regarding you as a protector and not a tyrant, the private house as a guest and not a plunderer?

III. But in these matters I am sure that mere experience has by this time taught you that it is by no means sufficient to have these virtues yourself, but that you must keep your eyes open and vigilant, in order that in the guardianship of your province you may be considered to vouch to the allies, the citizens, and the state, not for yourself alone, but for all the subordinates of your government. However, you have in the persons of your _legati_ men likely to have a regard for their own reputation. Of

these in rank, position, and age Tubero is first; who, I think, particularly as he is a writer of history, could select from his own Annals many whom he would like and would be able to imitate. Allienus, again, is ours, as well in heart and affection, as in his conformity to our principles. I need not speak of Gratidius: I am sure that, while taking pains to preserve his own reputation, his fraternal affection for us makes him take pains for ours also.[183] Your quæstor is not of your own selection, but the one assigned you by lot. He is bound both to act with propriety of his own accord, and to conform to the policy and principles which you lay down. But should any one of these adopt a lower standard of conduct, you should tolerate such behaviour, if it goes no farther than a breach, in his private capacity, of the rules by which he was bound, but not if it goes to the extent of employing for gain the authority which you granted him as a promotion. For I am far from thinking, especially since the moral sentiments of the day are so much inclined to excessive laxity and self-seeking, that you should investigate every case of petty misconduct, and thoroughly examine every one of these persons; but that you should regulate your confidence by the trustworthiness of its recipient. And among such persons you will have to vouch for those whom the Republic has itself given you as companions and assistants in public affairs, at least within the limits which I have before laid down.

IV. In the case, however, of those of your personal staff or official attendants whom you have yourself selected to be about you--who are usually spoken of as a kind of prætor's cohort--we must vouch, not only for their acts, but even for their words. But those you have with you are the sort of men of whom you may easily be fond when they are acting rightly, and whom you may very easily check when they shew insufficient regard for your reputation. By these, when you were raw to the work, your frank disposition might possibly have been deceived--for the better a man is the less easily does he suspect others of being bad--now, however, let this third year witness an integrity as perfect as the two former, but still more wary and vigilant. Listen to that only which you are supposed to listen to; don't let your ears be open to whispered falsehoods and interested suggestions. Don't let your signet ring be a mere implement, but, as it were, your second self: not the minister of another's will, but a witness of your own. Let your marshal hold the rank which our ancestors wished him to hold, who, looking upon this place as not one of profit, but of labour and duty, scarcely ever conferred it upon any but their freedmen, whom they indeed controlled almost as absolutely as their slaves. Let the lictor be the dispenser of your clemency, not his own; and let the fasces and axes which they carry before you constitute ensigns rather of rank than of power. Let it, in fact, be known to the whole province that the life, children, fame, and fortunes of all over whom you preside are exceedingly dear to you. Finally, let it be believed that you will, if you detect it, be hostile not only to those who have accepted a bribe, but to those also who have given it. And, indeed, no one will give anything, if it is made quite clear that nothing is usually obtained from you through those who pretend to be very influential with you. Not, however, that the object of this discourse is to make you over-harsh or suspicious towards your staff. For if any of them in the course of the last two years has never fallen under suspicion of rapacity, as I am told about Cæsius and Chærippus and Labeo--and think it true, because I know them--there is no authority, I

think, which may not be intrusted to them, and no confidence which may not be placed in them with the utmost propriety, and in anyone else like them. But if there is anyone of whom you have already had reason to doubt, or concerning whom you have made some discovery, in such a man place no confidence, intrust him with no particle of your reputation.

V. If, however, you have found in the province itself anyone, hitherto unknown to us, who has made his way into intimacy with you, take care how much confidence you repose in him; not that there may not be many good provincials, but, though we may hope so, it is risky to be positive. For everyone's real character is covered by many wrappings of pretence and is concealed by a kind of veil: face, eyes, expression very often lie, speech most often of all. Wherefore, how can you expect to find in that class[184] any who, while foregoing for the sake of money all from which we can scarcely tear ourselves away,[185] will yet love you sincerely and not merely pretend to do so from interested motives? I think, indeed, it is a hard task to find such men, especially if we notice that the same persons care nothing for almost any man out of office, yet always with one consent shew affection for the prætors. But of this class, if by chance you have discovered any one to be fonder of you--for it may so happen--than of your office, such a man indeed gladly admit upon your list of friends: but if you fail to perceive that, there is no class of people you must be more on your guard against admitting to intimacy, just because they are acquainted with all the ways of making money, do everything for the sake of it, and have no consideration for the reputation of a man with whom they are not destined to pass their lives. And even among the Greeks themselves you must be on your guard against admitting close intimacies, except in the case of the very few, if such are to be found, who are worthy of ancient Greece. As things now stand, indeed, too many of them are untrustworthy, false, and schooled by long servitude in the arts of extravagant adulation. My advice is that these men should all be entertained with courtesy, but that close ties of hospitality or friendship should only be formed with the best of them: excessive intimacies with them are not very trustworthy--for they do not venture to oppose our wishes--and they are not only jealous of our countrymen, but of their own as well.

VI. And now, considering the caution and care that I would shew in matters of this kind--in which I fear I may be somewhat over-severe--what do you suppose my sentiments are in regard to slaves? Upon these we ought to keep a hold in all places, but especially in the provinces. On this head many rules may be laid down, but this is at once the shortest and most easily maintained--that they should behave during your progresses in Asia as though you were travelling on the Appian way, and not suppose that it makes any difference whether they have arrived at Tralles or Formiæ. But if, again, any one of your slaves is conspicuously trustworthy, employ him in your domestic and private affairs; but in affairs pertaining to your office as governor, or in any department of the state, do not let him lay a finger. For many things which may, with perfect propriety, be intrusted to slaves, must yet not be so intrusted, for the sake of avoiding talk and hostile remark. But my discourse, I know not how, has slipped into the didactic vein, though that is not what I proposed to myself originally. For what right have I to be laying down rules for one who, I am fully aware, in this subject especially, is not my inferior in wisdom, while in experience he is even my

superior? Yet, after all, if your actions had the additional weight of my approval, I thought that they would seem more satisfactory to yourself. Wherefore, let these be the foundations on which your public character rests: first and foremost your own honesty and self-control, then the scrupulous conduct of all your staff, the exceedingly cautious and careful selection in regard to intimacies with provincials and Greeks, the strict and unbending government of your slaves. These are creditable even in the conduct of our private and everyday business: in such an important government, where morals are so debased and the province has such a corrupting influence, they must needs seem divine. Such principles and conduct on your part are sufficient to justify the strictness which you have displayed in some acts of administration, owing to which I have encountered certain personal disputes with great satisfaction, unless, indeed, you suppose me to be annoyed by the complaints of a fellow like Paconius--who is not even a Greek, but in reality a Mysian or Phrygian--or by the words of Tuscenius, a madman and a knave, from whose abominable jaws you snatched the fruits of a most infamous piece of extortion with the most complete justice.

VII. These and similar instances of your strict administration in your province we shall find difficulty in justifying, unless they are accompanied by the most perfect integrity: wherefore let there be the greatest strictness in your administration of justice, provided only that it is never varied from favour, but is kept up with impartiality. But it is of little avail that justice is administered by yourself with impartiality and care, unless the same is done by those to whom you have intrusted any portion of this duty. And, indeed, in my view there is no very great variety of business in the government of Asia: the entire province mainly depends on the administration of justice. In it we have the whole theory of government, especially of provincial government, clearly displayed: all that a governor has to do is to shew consistency and firmness enough, not only to resist favouritism, but even the suspicion of it. To this also must be added courtesy in listening to pleaders, consideration in pronouncing a decision, and painstaking efforts to convince suitors of its justice, and to answer their arguments. It is by such habits that C. Octavius has recently made himself very popular;[186] in whose court, for the first time,[187] the lictor did not interfere, and the marshal kept silence, while every suitor spoke as often and as long as he chose. In which conduct he would perhaps have been thought over-lax, had it not been that this laxity enabled him to maintain the following instance of severity. The partisans of Sulla were forced to restore what they had taken by violence and terrorism. Those who had made inequitable decrees, while in office, were now as private citizens forced to submit to the principles they had established. This strictness on his part would have been thought harsh, had it not been rendered palatable by many sweetening influences of courtesy. But if this gentleness was sufficient to make him popular at Rome, where there is such haughtiness of spirit, such unrestrained liberty, such unlimited licence of individuals, and, in fine, so many magistrates, so many means of obtaining protection, such vast power in the hands of the popular assembly, and such influence exercised by the senate, how welcome must a prætor's courtesy be in Asia, in which there is such a numerous body of citizens and allies, so many cities, so many communities, all

hanging on one man's nod, and in which there are no means of protection, no one to whom to make a complaint, no senate, no popular assembly! Wherefore it requires an exalted character, a man who is not only equitable from natural impulse, but who has also been trained by study and the refinements of a liberal education, so to conduct himself while in the possession of such immense power, that those over whom he rules should not feel the want of any other power.

VIII. Take the case of the famous Cyrus, portrayed by Xenophon, not as an historical character, but as a model of righteous government, the serious dignity of whose character is represented by that philosopher as combined with a peculiar courtesy. And, indeed, it is not without reason that our hero Africanus used perpetually to have those books in his hands, for there is no duty pertaining to a careful and equitable governor which is not to be found in them. Well, if _he_ cultivated those qualities, though never destined to be in a private station, how carefully ought those to maintain them to whom power is given with the understanding that it must be surrendered, and given by laws under whose authority they must once more come? In my opinion all who govern others are bound to regard as the object of all their actions the greatest happiness of the governed. That this is your highest object, and has been so since you first landed in Asia, has been published abroad by consistent rumour and the conversation of all. It is, let me add, not only the duty of one who governs allies and citizens, but even of one who governs slaves and dumb animals, to serve the interests and advantage of those under him. In this point I notice that everyone agrees that you take the greatest pains: no new debt is being contracted by the states, while many have been relieved by you from a heavy and long-standing one. Several cities that had become dilapidated and almost deserted--of which one was the most famous state in Ionia, the other in Caria, Samus and Halicarnassus--have been given a new life by you: there is no party fighting, no civil strife in the towns: you take care that the government of the states is administered by the best class of citizens: brigandage is abolished in Mysia; murder suppressed in many districts; peace is established throughout the province; and not only the robberies usual on highways and in country places, but those more numerous and more serious ones in towns and temples, have been completely stopped: the fame, fortunes, and repose of the rich have been relieved of that most oppressive instrument of prætorial rapacity--vexatious prosecution; the expenses and tribute of the states are made to fall with equal weight on all who live in the territories of those states: access to you is as easy as possible: your ears are open to the complaints of all: no man's want of means or want of friends excludes him, I don't say from access to you in public and on the tribunal, but even from your house and chamber: in a word, throughout your government there is no harshness or cruelty--everywhere clemency, mildness, and kindness reign supreme.

IX. What an immense benefit, again, have you done in having liberated Asia from the tribute exacted by the ædiles a measure which cost me some violent controversies! For if one of our nobles complains openly that by your edict, "No moneys shall be voted for the games," you have robbed him of 200 sestertia, what a vast sum of money would have been paid, had a grant been made to the credit of every magistrate who held games, as had become the regular custom! However, I

stopped these complaints by taking up this position--what they think of it in Asia I don't know, in Rome it meets with no little approval and praise--I refused to accept a sum of money which the states had decreed for a temple and monument in our honour, though they had done so with the greatest enthusiasm in view both of my services and of your most valuable benefactions; and though the law contained a special and distinct exception in these words, "that it was lawful to receive for temple or monument"; and though again the money was not going to be thrown away, but would be employed on decorating a temple, and would thus appear to have been given to the Roman people and the immortal Gods rather than to myself--yet, in spite of its having desert, law, and the wishes of those who offered the gift in its favour, I determined that I must not accept it, for this reason among others, namely, to prevent those, to whom such an honour was neither due nor legal, from being jealous. Wherefore adhere with all your heart and soul to the policy which you have hitherto adopted--that of being devoted to those whom the senate and people of Rome have committed and intrusted to your honour and authority, of doing your best to protect them, and of desiring their greatest happiness. Even if the lot had made you governor of Africans, or Spaniards, or Gauls--uncivilized and barbarous nations--it would still have been your duty as a man of feeling to consult for their interests and advantage, and to have contributed to their safety. But when we rule over a race of men in which civilization not only exists, but from which it is believed to have spread to others, we are bound to repay them, above all things, what we received from them. For I shall not be ashamed to go so far--especially as my life and achievements have been such as to exclude any suspicion of sloth or frivolity--as to confess that, whatever I have accomplished, I have accomplished by means of those studies and principles which have been transmitted to us in Greek literature and schools of thought. Wherefore, over and above the general good faith which is due to all men, I think we are in a special sense under an obligation to that nation, to put in practice what it has taught us among the very men by whose maxims we have been brought out of barbarism.

X. And indeed Plato, the fountain-head of genius and learning, thought that states would only be happy when scholars and philosophers began being their rulers, or when those who were their rulers had devoted all their attention to learning and philosophy. It was plainly this union of power and philosophy that in his opinion might prove the salvation of states. And this perhaps has at length fallen to the fortune of the whole empire: certainly it has in the present instance to your province, to have a man in supreme power in it, who has from boyhood spent the chief part of his zeal and time in imbibing the principles of philosophy, virtue, and humanity. Wherefore be careful that this third year, which has been added to your labour, may be thought a prolongation of prosperity to Asia. And since Asia was more fortunate in retaining you than I was in my endeavour to bring you back, see that my regret is softened by the exultation of the province. For if you have displayed the very greatest activity in earning honours such as, I think, have never been paid to anyone else, much greater ought your activity to be in preserving these honours. What I for my part think of honours of that kind I have told you in previous letters. I have always regarded them, if given indiscriminately, as of little value, if paid from interested motives, as worthless: if, however, as in this case, they are tributes to solid services on your part,

I hold you bound to take much pains in preserving them. Since, then, you are exercising supreme power and official authority in cities, in which you have before your eyes the consecration and apotheosis of your virtues, in all decisions, decrees, and official acts consider what you owe to those warm opinions entertained of you, to those verdicts on your character, to those honours which have been rendered you. And what you owe will be to consult for the interests of all, to remedy men's misfortunes, to provide for their safety, to resolve that you will be both called and believed to be the "father of Asia."

XI. However, to such a resolution and deliberate policy on your part the great obstacle are the _publicani_: for, if we oppose them, we shall alienate from ourselves and from the Republic an order which has done us most excellent service, and which has been brought into sympathy with the Republic by our means; if, on the other hand, we comply with them in every case, we shall allow the complete ruin of those whose interests, to say nothing of their preservation, we are bound to consult. This is the one difficulty, if we look the thing fairly in the face, in your whole government. For disinterested conduct on one's own part, the suppression of all inordinate desires, the keeping a check upon one's staff, courtesy in hearing causes, in listening to and admitting suitors--all this is rather a question of credit than of difficulty: for it does not depend on any special exertion, but rather on a mental resolve and inclination. But how much bitterness of feeling is caused to allies by that question of the _publicani_ we have had reason to know in the case of citizens who, when recently urging the removal of the port-dues in Italy, did not complain so much of the dues themselves, as of certain extortionate conduct on the part of the collectors. Wherefore, after hearing the grievances of citizens in Italy, I can comprehend what happens to allies in distant lands. To conduct oneself in this matter in such a way as to satisfy the _publicani_, especially when contracts have been undertaken at a loss, and yet to preserve the allies from ruin, seems to demand a virtue with something divine in it, I mean a virtue like yours. To begin with, that they are subject to tax at all, which is their greatest grievance, ought not to be thought so by the Greeks, because they were so subject by their own laws without the Roman government. Again, they cannot despise the word _publicanus_, for they have been unable to pay the assessment according to Sulla's poll-tax without the aid of the publican. But that Greek _publicani_ are not more considerate in exacting the payment of taxes than our own may be gathered from the fact that the Caunii, and all the islands assigned to the Rhodians by Sulla, recently appealed to the protection of the senate, and petitioned to be allowed to pay their tax to us rather than to the Rhodians. Wherefore neither ought those to revolt at the name of a _publicanus_ who have always been subject to tax, nor those to despise it who have been unable to make up the tribute by themselves, nor those to refuse his services who have asked for them. At the same time let Asia reflect on this, that if she were not under our government, there is no calamity of foreign war or internal strife from which she would be free. And since that government cannot possibly be maintained without taxes, she should be content to purchase perpetual peace and tranquillity at the price of a certain proportion of her products.

XII. But if they will fairly reconcile themselves to the existence and name of publican, all the rest may be made to appear to them in a less offensive light by your skill and prudence. They may, in making their bargains with the _publicani_, not have regard so much to the exact conditions laid down by the censors as to the convenience of settling the business and freeing themselves from farther trouble. You also may do, what you have done splendidly and are still doing, namely, dwell on the high position of the _publicani_, and on your obligations to that order, in such a way as--putting out of the question all considerations of your _imperium_ and the power of your official authority and dignity--to reconcile the Greeks with the _publicani_, and to beg of those, whom you have served eminently well, and who owe you everything, to suffer you by their compliance to maintain and preserve the bonds which unite us with the _publicani_. But why do I address these exhortations to you, who are not only capable of carrying them out of your own accord without anyone's instruction, but have already to a great extent thoroughly done so? For the most respectable and important companies do not cease offering me thanks daily, and this is all the more gratifying to me because the Greeks do the same. Now it is an achievement of great difficulty to unite in feeling things which are opposite in interests, aims, and, I had almost said, in their very nature. But I have not written all this to instruct you--for your wisdom requires no man's instruction--but it has been a pleasure to me while writing to set down your virtues, though I have run to greater length in this letter than I could have wished, or than I thought I should.

XIII. There is one thing on which I shall not cease from giving you advice, nor will I, as far as in me lies, allow your praise to be spoken of with a reservation. For all who come from your province do make one reservation in the extremely high praise which they bestow on your virtue, integrity, and kindness--it is that of sharpness of temper. That is a fault which, even in our private and everyday life, seems to indicate want of solidity and strength of mind; but nothing, surely, can be more improper than to combine harshness of temper with the exercise of supreme power. Wherefore I will not undertake to lay before you now what the greatest philosophers say about anger, for I should not wish to be tedious, and you can easily ascertain it yourself from the writings of many of them: but I don't think I ought to pass over what is the essence of a letter, namely, that the recipient should be informed of what he does not know. Well, what nearly everybody reports to me is this: they usually say that, as long as you are not out of temper, nothing can be pleasanter than you are, but that when some instance of dishonesty or wrong-headedness has stirred you, your temper rises to such a height that no one can discover any trace of your usual kindness. Wherefore, since no mere desire for glory, but circumstances and fortune have brought us upon a path of life which makes it inevitable that men will always talk about us, let us be on our guard, to the utmost of our means and ability, that no glaring fault may be alleged to have existed in us. And I am not now urging, what is perhaps difficult in human nature generally, and at our time of life especially, that you should change your disposition and suddenly pluck out a deeply-rooted habit, but I give you this hint: if you cannot completely avoid this failing, because your mind is surprised by anger before cool calculation has been able to prevent it, deliberately prepare yourself beforehand, and daily reflect on the duty of resisting anger, and

that, when it moves your heart most violently, it is just the time for being most careful to restrain your tongue. And that sometimes seems to me to be a greater virtue than not being angry at all. For the latter is not always a mark of superiority to weakness, it is sometimes the result of dullness; but to govern temper and speech, however angry you may be, or even to hold your tongue and keep your indignant feelings and resentment under control, although it may not be a proof of perfect wisdom, yet requires no ordinary force of character. And, indeed, in this respect they tell me that you are now much more gentle and less irritable. No violent outbursts of indignation on your part, no abusive words, no insulting language are reported to me: which, while quite alien to culture and refinement, are specially unsuited to high power and place. For if your anger is implacable, it amounts to extreme harshness; if easily appeased, to extreme weakness. The latter, however, as a choice of evils, is, after all, preferable to harshness.

XIV. But since your first year gave rise to most talk in regard to this particular complaint--I believe because the wrong-doing, the covetousness, and the arrogance of men came upon you as a surprise, and seemed to you unbearable --while your second year was much milder, because habit and reflexion, and, as I think, my letters also, rendered you more tolerant and gentle, the third ought to be so completely reformed, as not to give even the smallest ground for anyone to find fault. And here I go on to urge upon you, not by way of exhortation or admonition, but by brotherly entreaties, that you would set your whole heart, care, and thought on the gaining of praise from everybody and from every quarter. If, indeed, our achievements were only the subject of a moderate amount of talk and commendation, nothing eminent, nothing beyond the practice of others, would have been demanded of you. As it is, however, owing to the brilliancy and magnitude of the affairs in which we have been engaged, if we do not obtain the very highest reputation from your province, it seems scarcely possible for us to avoid the most violent abuse. Our position is such that all loyalists support us, but demand also and expect from us every kind of activity and virtue, while all the disloyal, seeing that we have entered upon a lasting war with them, appear contented with the very smallest excuse for attacking us. Wherefore, since fortune has allotted to you such a theatre as Asia, completely packed with an audience, of immense size, of the most refined judgment, and, moreover, naturally so capable of conveying sound, that its expressions of opinion and its remarks reach Rome, put out all your power, I beseech you, exert all your energies to appear not only to have been worthy of the part we played here, but to have surpassed everything done there by your high qualities.

XV. And since chance has assigned to me among the magistracies the conduct of public business in the city, to you that in a province, if my share is inferior to no one's, take care that yours surpasses others. At the same time think of this: we are not now working for a future and prospective glory, but are fighting in defence of what has been already gained; which indeed it was not so much an object to gain as it is now our duty to defend. And if anything in me could be apart from you, I should desire nothing more than the position which I have already gained. The actual fact, however, is that unless all your acts and deeds in your province correspond to my achievements, I shall think that I have gained nothing by those great labours and

dangers, in all of which you have shared. But if it was you who, above all others, assisted me to gain a most splendid reputation, you will certainly also labour more than others to enable me to retain it. You must not be guided by the opinions and judgments of the present generation only, but of those to come also: and yet the latter will be a more candid judgment, for it will not be influenced by detraction and malice. Finally, you should think of this--that you are not seeking glory for yourself alone (and even if that were the case, you still ought not to be careless of it, especially as you had determined to consecrate the memory of your name by the most splendid monuments), but you have to share it with me, and to hand it down to our children. In regard to which you must be on your guard lest by any excess of carelessness you should seem not only to have neglected your own interests, but to have begrudged those of your family also.

XVI. And these observations are not made with the idea of any speech of mine appearing to have roused you from your sleep, but to have rather "added speed to the runner." For you will continue to compel all in the future, as you have compelled them in the past, to praise your equity, self-control, strictness, and honesty. But from my extreme affection I am possessed with a certain insatiable greed for glory for you. However, I am convinced that, as Asia should now be as well-known to you as each man's own house is to himself, and since to your supreme good sense such great experience has now been added, there is nothing that affects reputation which you do not know as well as possible yourself, and which does not daily occur to your mind without anybody's exhortation. But I, who when I read your writing seem to hear your voice, and when I write to you seem to be talking to you, am therefore always best pleased with your longest letter, and in writing am often somewhat prolix myself. My last prayer and advice to you is that, as good poets and painstaking actors always do, so you should be most attentive in the last scenes and conclusion of your function and business, so that this third year of your government, like a third act in a play, may appear to have been the most elaborated and most highly finished. You will do that with more ease if you will think that I, whom you always wished to please more than all the world besides, am always at your side, and am taking part in everything you say and do. It remains only to beg you to take the greatest care of your health, if you wish me and all your friends to be well also.

Farewell.

[Footnote 182: A country festival and general holiday. It was a _feriæ conceptivæ_, and therefore the exact day varied. But it was about the end of the year or beginning of the new year (_in Pis._ § 4; Aul. Gell. x. 24; Macrob. _Sat._ i. 4; _ad Att._ vii. 5; vii. 7, § 2).]

[Footnote 183: Of the persons mentioned, L. Ælius Tubero is elsewhere praised as a man of learning (_pro Lig._ § 10); A. Allienus (prætor B.C. 49) was a friend and correspondent; M. Gratidius is mentioned in _pro Flacco_, § 49, as acting in a judicial capacity, and was perhaps a cousin of Cicero's.]

[Footnote 184: The class of Romans who have practically become provincials.]

[Footnote 185: Rome and its society and interests.]

[Footnote 186: Father of Augustus, governor of Macedonia, B.C. 60-59. But he seems to refer to his prætorship (B.C. 61) at Rome; at any rate, as well as to his conduct in Macedonia.]

[Footnote 187: Reading _primum_; others _primus_, "his head lictor."]

XXX (A II, 4)

[Sidenote: B.C. 59. Coss., C. Iulius Cæsar, M. Calpurnius Bibulus.]

This year was a crucial one in the history of the Republic, and also of Cicero particularly. It witnessed the working of the agreement entered into in the previous year between Pompey, Cæsar, and Crassus, to secure their several objects, commonly called the First Triumvirate. The determined enmity of the consuls to each other, the high-handed conduct of Cæsar in regard to the senate, his ultimate appointment to the unusual period of five years' government of the Gauls and Illyricum, were so many blows at the old constitution; and scarcely less offensive to the Catonian Optimates were the agrarian laws passed in favour of Pompey's veterans, the forcing of his _acta_ through the senate, and the arrangement whereby he too was eventually to have the consulship again, and an extended period of provincial government. Cicero was distracted by hesitation. He had pinned his faith on Pompey's ultimate opposition to Cæsar, and yet did not wholly trust him, and was fully aware of the unpracticable nature of Cato and the weakness of the Optimates. The triumvirs had an instrument for rendering him helpless in Clodius, but Cicero could not believe that they would use it, or that his services to the state could be so far forgotten as to make danger possible. We shall find him, then, wholly absorbed in the question as to how far he is to give into or oppose the triumvirs. It is not till the end of the year that he begins to see the real danger ahead. We have one extant oration of this year--_pro Flacco_--which was not much to his credit, for Flaccus had evidently been guilty of extortion in Asia. He also defended the equally guilty C. Antonius in a speech which brought upon him the vengeance of the triumvirs, but it is happily lost.

TO ATTICUS (AT ROME)

TUSCULUM (APRIL)

[Sidenote: B.C. 59, ÆT. 47]

I am exceedingly obliged to you for sending me Serapio's book, of which indeed, between you and me, I scarcely understood a thousandth part. I have ordered the money for it to be paid you at once, that you may not put it down to the cost of presentation copies. But as I have mentioned the subject of money, I will beg you to try to come to a settlement with Titinius in any way you can. If he doesn't stand by his own proposal, what I should like best is that what he bought at too dear a rate should be returned, if that can be done with Pomponia's consent: if that too is impossible, let the money be paid rather than have any difficulty. I should be very glad if you would settle this before you leave Rome, with your usual kindness and exactness.

So Clodius, you say, is for Tigranes? I only wish he would go--on the same terms as the Skepsian![188] But I don't grudge him the job; for a more convenient time for my taking a "free legation" is when my brother Quintus shall have settled down again, as I hope, into private life, and I shall have made certain how that "priest of the Bona Dea"[189] intends to behave. Meanwhile I shall find my pleasure in the Muses with a mind undisturbed, or rather glad and cheerful; for it will never occur to me to envy Crassus or to regret that I have not been false to myself. As to geography, I will try to satisfy you, but I promise nothing for certain.[190] It is a difficult business, but nevertheless, as you bid me, I will take care that this country excursion produces something for you. Mind you let me know any news you have ferreted out, and especially who you think will be the next consuls. However, I am not very curious; for I have determined not to think about politics. I have examined Terentia's woodlands. What need I say? If there was only a Dodonean oak in them, I should imagine myself to be in possession of Epirus. About the 1st of the month I shall be either at Formiæ or Pompeii.[191] If I am not at Formiæ, pray, an you love me, come to Pompeii. It will be a great pleasure to me and not much out of the way for you. About the wall, I have given Philotimus orders not to put any difficulty in the way of your doing whatever you please. I think, however, you had better call in Vettius.[192] In these bad times, when the life of all the best men hangs on a thread, I value one summer's enjoyment of my Palatine _palæstra_ rather highly; but, of course, the last thing I should wish would be that Pomponia and her boy should live in fear of a falling wall.

[Footnote 188: That is, if it ends in his death, for Meliodorus of Skepsis was sent by Mithridates to Tigranes to urge him to go to war with Rome, but privately advised him not to do so, and, in consequence, was put to death by Mithridates (Plut. _Luc._ 22). The word _Scepsii_ (Σκηψίου) was introduced by Gronovius for the unintelligible word _Syrpie_ found in the MSS., which so often blunder in Greek names.]

[Footnote 189: Clodius, alluding to his intrusion into the mysteries.]

[Footnote 190: Atticus has asked Cicero for a Latin treatise on geography--probably as a publisher, Cicero being the prince of book-makers--and to that end has sent him the Greek geography of Serapio.]

[Footnote 191: In his Formianum or Pompeianum, his villas at Formiæ and Pompeii.]

[Footnote 192: An architect, a freedman of Cyrus, of whom we have heard before.]

XXXI (A II, 5)

TO ATTICUS (AT ROME)

ANTIUM (APRIL)

[Sidenote: B.C. 59, ÆT. 47]

I wish very much, and have long wished, to visit Alexandria, and at the same time to get away from here, where people are tired of me, and return when they have begun to feel my loss--but at such a time and at the bidding of such statesmen![193]

"I fear to face the men of Troy And Trojan matrons with their trailing robes."[194]

For what would my friends the Optimates say--if there are such persons left? That I had accepted a bribe to change my views?

"Polydamas the first would lay the charge."

I mean my friend Cato, who is as good as a hundred thousand in my eyes. What, too, will history say of me six hundred years hence? I am much more afraid of that than of the petty gossip of the men of to-day. But, I think, I had better lie low and wait. For if it is really offered to me, I shall be to a certain extent in a position of advantage, and then will be the time to weigh the matter. There is, upon my word, a certain credit even in refusing. Wherefore, if Theophanes[195] by chance has consulted you on the matter, do not absolutely decline. What I am expecting to hear from you is, what Arrius says, and how he endures being left in the lurch,[196] and who are intended to be consuls--is it Pompey and Crassus, or, as I am told in a letter, Servius Sulpicius with Gabinius?--and whether there are any new laws or anything new at all; and, since Nepos[197] is leaving Rome, who is to have the augurship--the one bait by which those personages could catch me! You see what a high price I put on myself! Why do I talk about such things, which I am eager to throw aside, and to devote myself heart and soul to philosophy. That, I tell you, is my intention. I could wish I had done so from the first. Now, however, that I have found by experience the hollowness of what I thought so splendid, I am thinking of doing business exclusively with the Muses. In spite of that, please give me in your next some more definite information about Curtius and who is intended to fill his place, and what is doing about P. Clodius, and, in fact, take your time and tell me everything as you promise; and pray write me word what day you think of leaving Rome, in order that I may tell you where I am likely to be: and send me a letter at once on the subjects of which I have written to you. I look forward much to hearing from you.

[Footnote 193: The triumvirs. The mission to Egypt was in the affairs of Ptolemy Auletes (father of Cleopatra), who was this year declared a "friend and ally." He soon got expelled by his subjects.]

[Footnote 194: _Il._ vi. 442; xxii. 100. Cicero's frequent expression for popular opinion, or the opinion of those he respects--his Mrs. Grundy.]

[Footnote 195: Theophanes, a philosopher of Mitylene, a close friend of Pompey's, in whose house he frequently resided. He took charge of Pompey's wife and children in B.C. 48-47.]

[Footnote 196: Q. Arrius, an orator and friend of Cæsar's, by whose help he had hoped for the consulship. See p. 49.]

[Footnote 197: Q. Cæcilius Metellus Nepos (consul B.C. 57). His brother, the consul of B.C. 60, had just died and made a vacancy in the college of augurs.]

XXXII (A II, 6)

TO ATTICUS (AT ROME)

ANTIUM (APRIL)

[Sidenote: B.C. 59, ÆT. 47]

As to my promise to you in a former letter that there should be some product of this country excursion, I cannot confirm it to any great extent: for I have become so attached to idleness that I cannot be torn from its arms. Accordingly, I either enjoy myself with books, of which I have a delightful stock at Antium, or I just count the waves--for the rough weather prevents my shrimping! From writing my mind positively recoils. For the geographical treatise, upon which I had settled, is a serious undertaking: so severely is Eratosthenes, whom I had proposed as my model, criticised by Serapio and Hipparchus: what think you will be the case if Tyrannio[198] is added to the critics? And, by Hercules, the subject is difficult of explanation and monotonous, and does not seem to admit of as much embellishment as I thought, and, in short--which is the chief point--any excuse for being idle seems to me a good one: for I am even hesitating as to settling at Antium and spending the rest of my life there, where, indeed, I would rather have been a duovir[199] than at Rome. You, indeed, have done more wisely in having made yourself a home at Buthrotum. But, believe me, next to that free town of yours comes the borough of the Antiates. Could you have believed that there could be a town so near Rome, where there are many who have never seen Vatinius? Where there is no one besides myself who cares whether one of the twenty commissioners[200] is alive and well? Where no one intrudes upon me, and yet all are fond of me? This, this is the place to play the statesman in! For yonder, not only am I not allowed to do so, but I am sick of it besides. Accordingly, I will compose a book of secret memoirs for your ear alone in the style of Theopompus, or a more acrid one still.[201] Nor have I now any politics except to hate the disloyal, and even that without any bitterness, but rather with a certain enjoyment in writing. But to return to business: I have written to the city quæstors about my brother's affair. See what they say to it, whether there is any hope of the cash in _denarii_, or whether we are to be palmed off with Pompeian _cistophori_.[202] Farthermore, settle what is to be done about the wall. Is there anything else? Yes! Let me know when you are thinking of starting.

[Footnote 198: A captive brought by Lucullus, who became a friend of Cicero and tutor to his son and nephew.]

[Footnote 199: One of the two yearly officers of a colony--they answer to the consuls at Rome. Therefore Cicero means, "I wish I had been a consul in a small colony rather than a consul at Rome."]

[Footnote 200: For distribution of land under Cæsar's law. P. Vatinius was a tribune this year, and worked in Cæsar's interests.]

[Footnote 201: Theopompus of Chios, the historian (_Att._ vi. 1, § 12). Born about B.C. 378. His bitterness censured by Polybius, viii. 11-13.]

[Footnote 202: The money due from the treasury to Q. Cicero in Asia. He wants it to be paid in Roman currency (_denarii_), not in Asiatic coins (_cistophori_), a vast amount of which Pompey had brought home and deposited in the treasury. So an Indian official might like sovereigns instead of rupees if he could get them.]

XXXIII (A II, 7)

TO ATTICUS (AT ROME)

ANTIUM (APRIL)

[Sidenote: B.C. 59, ÆT. 47]

About the geography I will think again and again. But you ask for two of my speeches, one of which I did not care to write out because I had ended it abruptly, the other because I did not want to praise the man I did not like. But that, too, I will see about. At all events, something shall be forthcoming to prevent your thinking that I have been absolutely idle. I am quite delighted to hear what you tell me about Publius; pray ferret out the whole story, and bring it to me when you come, and meanwhile write anything you may make out or suspect, and especially as to what he is going to do about the legation. For my part, before reading your letter, I was anxious that the fellow should go, not, by heaven, in order to avoid his impeachment--for I am wonderfully keen to try issues with him--but it seemed to me that, if he had secured any popularity by becoming a plebeian, he would thereby lose it. "Well, why did you transfer yourself to the Plebs? Was it to make a call on Tigranes? Tell me: do the kings of Armenia refuse to receive patricians?" In a word, I had polished up my weapons to tear this embassy of his to pieces. But if he rejects it, and thus moves the anger of those proposers and augurs of the _lex curiata_,[203] it will be a fine sight! By Hercules, to speak the truth, our friend Publius is being treated a little contemptuously! In the first place, though he was once the only man at Cæsar's house, he is not now allowed to be one in twenty:[204] in the next place, one legation had been promised him and another has been given. The former fine fat one[205] for the levying of money is reserved, I presume, for Drusus of Pisaurum or for the gourmand Vatinius: this latter miserable business, which might be very well done by a courier, is given to him, and his tribuneship deferred till it suits them. Irritate the fellow, I beg you, as much as you can. The one hope of safety is their mutual disagreement, the beginning of which I have got scent of from Curio. Moreover, Arrius is fuming at being cheated out of the consulship. Megabocchus and our blood-thirsty young men are most violently hostile. May there be added to this, I pray, may there be added, this quarrel about the augurate! I hope I shall often have some fine letters to send you on these subjects. But I want to know the meaning of your dark hint that some even of the _quinqueviri_[206] are speaking out. What can it be? If there is anything in it, there is more hope than I had thought. And I would not

have you believe that I ask you these questions "with any view to action,"[207] because my heart is yearning to take part in practical politics. I was long ago getting tired of being at the helm, even when it was in my power. And now that I am forced to quit the ship, and have not cast aside the tiller, but have had it wrenched out of my hands, my only wish is to watch their shipwreck from the shore: I desire, in the words of your favourite Sophocles,

"And safe beneath the roof To hear with drowsy ear the plash of rain."

As to the wall, see to what is necessary. I will correct the mistake of Castricius, and yet Quintus had made it in his letter to me 15,000, while now to your sister he makes it 30,000.[208] Terentia sends you her regards: my boy Cicero commissions you to give Aristodemus the same answer for him as you gave for his cousin, your sister's son.[209] I will not neglect your reminder about your Amaltheia.[210] Take care of your health.

[Footnote 203: As he was a man _sui iuris_, Clodius's adoption into a new gens (_adrogatio_) would have to take place before the _comitia curiata_ (now represented by thirty lictors), which still retained this formal business. The ceremony required the presence of an augur and a pontifex to hold it. Cicero supposes Pompey and Cæsar as intending to act in that capacity. Pompey, it seems, did eventually attend.]

[Footnote 204: One of the twenty commissioners under Cæsar's agrarian law. Cicero was offered and declined a place among them. The "only man," of course, refers to the intrusion on the mysteries.]

[Footnote 205: To Egypt.]

[Footnote 206: This seems also to refer to the twenty agrarian commissioners, who, according to Mommsen, were divided into committees of five, and were, therefore, spoken of indifferently as _quinqueviri_ and _vigintiviri_. But it is somewhat uncertain.]

[Footnote 207: κατὰ τὸ πρακτικόν.]

[Footnote 208: Castricius seems to have been a _negotiator_ or banker in Asia. We don't know what mistake is referred to; probably as to some money transmitted to Pomponia.]

[Footnote 209: It is suggested that Aristodemus is some teacher of the two young Ciceros, to whom the young Marcus wishes to apologize for his absence or to promise some study.]

[Footnote 210: Perhaps some inscription or other ornament for Atticus's gymnasium in his villa at Buthrotum.]

XXXIV (A II, 8)

TO ATTICUS (AT ROME)

ANTIUM, APRIL

[Sidenote: B.C. 59, ÆT. 47]

When I had been eagerly expecting a letter from you as usual till evening, lo and behold a message that slaves have come from Rome. I summon them: I ask if they have any letters. "No," say they. "What do you say," said I, "nothing from Pomponius?" Frightened to death by my voice and look, they confessed that they had received one, and that it had been lost on the journey. Need I say more? I was intensely annoyed. For no letter has come from you for the last few days without something in it important and entertaining. In these circumstances, if there was anything in the letter, dated 15th April, worth telling, pray write at once, that I may not be left in ignorance; but if there was nothing but banter, repeat even that for my benefit. And let me inform you that young Curio has been to call on me. What he said about Publius agreed exactly with your letter. He himself, moreover, wonderfully "holds our proud kings in hate."[211] He told me that the young men generally were equally incensed, and could not put up with the present state of things. If there is hope in them, we are in a good way. My opinion is that we should leave things to take their course. I am devoting myself to my memoir. However, though you may think me a Saufeius,[212] I am really the laziest fellow in the world. But get into your head my several journeys, that you may settle where you intend to come and see me. I intend to arrive at my Formian house on the Parilia (21st April). Next, since you think that at this time I ought to leave out luxurious Crater,[213] on the 1st of May I leave Formiæ, intending to reach Antium on the 3rd of May. For there are games at Antium from the 4th to the 6th of May, and Tullia wants to see them. Thence I think of going to Tusculum, thence to Arpinum, and be at Rome on the 1st of June. Be sure that we see you at Formiæ or Antium, or at Tusculum. Rewrite your previous letter for me, and add something new.

[Footnote 211: A verse from Lucilius. "Young Curio" is the future tribune of B.C. 50, who was bribed by Cæsar, joined him at Ravenna at the end of that year, was sent by him in B.C. 49 to Sicily and Africa, and fell in battle with the Pompeians and King Iuba.]

[Footnote 212: L. Saufeius, the Epicurean friend of Atticus (see Letter II). He seems to mean, "as indefatigable as Saufeius." But Prof. Tyrrell points out that it might mean, "at the risk of your thinking me as Epicurean and self-indulgent as Saufeius, I say," etc.]

[Footnote 213: The bay of Misenum, near which was Cicero's Pompeianum.]

XXXV (A II, 9)

TO ATTICUS (AT ROME)

ANTIUM, MAY

[Sidenote: B.C. 59, ÆT. 47]

Cæcilius[214] the quæstor having suddenly informed me that he was sending a slave to Rome, I write these hurried lines in order to get out of you the wonderful conversations with Publius, both those of which you write, and that one which you keep dark, and assert that it would be too long to write your answer to him; and, still farther, the one that has not yet been held, which that Iuno of a woman[215] is to report to you when she gets back from Solonium. I wish you to believe that there can be nothing I should like more. If, however, the compact made about me is not kept, I am in a seventh heaven to think that our friend the Jerusalemitish plebeian-maker[216] will learn what a fine return he has made to my brilliant speeches, of which you may expect a splendid recantation. For, as well as I can guess, if that profligate is in favour with our tyrants, he will be able to crow not only over the "cynic consular,"[217] but over your Tritons of the fish-ponds also.[218] For I shall not possibly be an object of anybody's jealousy when robbed of power and of my influence in the senate. If, on the other hand, he should quarrel with them, it will not suit his purpose to attack me. However, let him attack. Charmingly, believe me, and with less noise than I had thought, has the wheel of the Republic revolved: more rapidly, anyhow, than it should have done owing to Cato's error, but still more owing to the unconstitutional conduct of those who have neglected the auspices, the Ælian law, the Iunian, the Licinian, the Cæcilian and Didian,[219] who have squandered all the safeguards of the constitution, who have handed over kingdoms as though they were private estates to tetrachs,[220] and immense sums of money to a small coterie. I see plainly now the direction popular jealousy is taking, and where it will finally settle. Believe that I have learnt nothing from experience, nothing from Theophrastus,[221] if you don't shortly see the time of our government an object of regret. For if the power of the senate was disliked, what do you think will be the case when it has passed, not to the people, but to three unscrupulous men? So let them then make whom they choose consuls, tribunes, and even finally clothe Vatinius's wen with the double-dyed purple[222] of the priesthood, you will see before long that the great men will be not only those who have made no false step,[223] but even he who did make a mistake, Cato. For, as to myself, if your comrade Publius will let me, I think of playing the sophist: if he forces me, I shall at least defend myself, and, as is the trick of my trade, I publicly promise to

"Strike back at him who first is wroth with me."[224]

May the country only be on my side: it has had from me, if not more than its due, at least more than it ever demanded. I would rather have a bad passage with another pilot than be a successful pilot to such ungrateful passengers. But this will do better when we meet. For the present take an answer to your questions. I think of returning to Antium from Formiæ on the 3rd of May. From Antium I intend to start for Tusculum on the 7th of May. But as soon as I have returned from Formiæ (I intend to be there till the 29th of April) I will at once inform you. Terentia sends compliments, and "Cicero the little greets Titus the Athenian."[225]

[Footnote 214: Q. Cæcilius Bassus, probably quæstor at Ostia. Antium would be in his district.]

[Footnote 215: βοῶπις, _sc._ Clodia. She is to talk to her brother about Cicero. She is "Iuno" perhaps as an enemy--as Bacon called the Duchess of Burgundy Henry VII.'s Iuno--or perhaps for a less decent reason, as _coniux sororque_ of Publius.]

[Footnote 216: Pompey, who was proud of having taken Jerusalem. _Traductor ad plebem_, said of the magistrate presiding at the _comitia_ for adoption.]

[Footnote 217: Cicero himself. Clodius may have called him this from his biting repartees. Prof. Tyrrell, "Tear 'em."]

[Footnote 218: The nobility, whom Cicero has before attacked as idle and caring for nothing but their fish-ponds (_piscinarii_, cp. p. 59).]

[Footnote 219: The _lex Ælia_ (about B.C. 150) was a law regulating the powers of magistrates to dissolve _comitia_ on religious grounds, such as bad omens, _servata de cœlo, etc._ Cicero (who could have had very little belief in the augural science) regards them as safeguards of the state, because as the Optimates generally secured the places in the augural college, it gave them a hold on elections and legislation. Bibulus tried in vain to use these powers to thwart Cæsar this year. The _lex Cæcilia Didia_ (.B.C. 98) enforced the _trinundinatio_, or three weeks' notice of elections and laws, and forbade the proposal of a _lex satura_, _i.e._, a law containing a number of miscellaneous enactments. Perhaps its violation refers to the _acta_ of Pompey in the East, which he wanted to have confirmed _en bloc_. The senate had made difficulties: but one of the fruits of the triumvirate was a measure for doing it. The _lex Iunia et Licinia_ (B.C. 62) confirmed the _Cæcilia Didia_, and secured that the people knew what the proposed laws were.]

[Footnote 220: As Pompey did in Asia, _e.g._, to Deiotarus of Galatia, and about ten others. It is curious that Cicero speaks of the _pauci_ just as his opponent Cæsar and Augustus after him. Each side looks on the other as a coterie (Cæsar, _B. C._ i. 22; Monum. Ancyr. i. § 1)]

[Footnote 221: Theophrastus, successor of Aristotle at the Lyceum, Athens (p. 70).]

[Footnote 222: The purple-bordered toga of the augur. Vatinius did not get the augurship. He had some disfiguring swelling or wen.]

[Footnote 223: Himself.]

[Footnote 224: ἄνδρ' ἀπαμύνεσθαι, ὅτε τις πρότερος χαλεπήνῃ (Hom. _Il._ xxiv. 369).]

[Footnote 225: Written in Greek, perhaps by the boy himself.]

XXXVI (A II, 12)

TO ATTICUS (AT ROME)

TRES TABERNÆ, 12 APRIL

[Sidenote: B.C. 59, ÆT. 47]

Are they going to deny that Publius has been made a plebeian? This is indeed playing the king, and is utterly intolerable. Let Publius send some men to witness and seal my affidavit: I will take an oath that my friend Gnæus, the colleague of Balbus, told me at Antium that he had been present as augur to take the auspices. Two delightful letters from you delivered at the same time! For which I do not know what I am to pay you by way of reward for good news. That I owe you for them I candidly confess. But observe the coincidence. I had just made my way from Antium on to the _via Appia_ at Three Taverns,[226] on the very day of the Cerealia (18th April), when my friend Curio meets me on his way from Rome. At the same place and the same moment comes a slave from you with letters. The former asked me whether I hadn't heard the news? I said, "No." "Publius," says he, "is a candidate for the tribuneship." "You don't mean it?" "Yes, I do," says he, "and at daggers drawn with Cæsar. His object is to rescind his acts." "What says Cæsar?" said I. "He denies having proposed any _lex_ for his adoption." Then he poured forth about his own hatred, and that of Memmius and Metellus Nepos. I embraced the youth and said good-bye to him, hastening to your letters. A fig for those who talk about a "living voice"! What a much clearer view I got of what was going on from your letters than from his talk! About the current rumours of the day, about the designs of Publius, about "Iuno's" trumpet calls, about Athenio who leads his roughs, about his letter to Gnæus, about the conversation of Theophanes and Memmius. Besides, how eager you have made me to hear about the "fast" dinner party which you mention! I am greedy in curiosity, yet I do not feel at all hurt at your not writing me a description of the symposium: I would rather hear it by word of mouth. As to your urging me to write something, my material indeed is growing, as you say, but the whole is still in a state of fermentation--"new wine in the autumn." When the liquor has settled down and become clarified, I shall know better what to write. And even if you cannot get it from me at once, you shall be the first to have it: only for some time you must keep it to yourself. You are quite right to like Dicæarchus; he is an excellent writer, and a much better citizen than these rulers of ours who reverse his name.[227] I write this letter at four o'clock in the afternoon of the Cerealia (12th April), immediately after reading yours, but I shall despatch it, I think, to-morrow, by anyone I may chance to meet on the road. Terentia is delighted with your letter, _et Cicéron le philosophe salue Titus l'homme d'état_.

[Footnote 226: Where the road from Antium joins the Appia. Cicero seems to be on his way to Formiæ, where he had intended to arrive on the 21st. He must be going very leisurely.]

[Footnote 227: Δικαίαρχος and ἀδικαίαρχοι, a pun on a name not reproducible in English: "just-rulers" and "unjust-rulers."]

XXXVII (A II, 10)

TO ATTICUS (AT ROME)

APPII FORUM,[228] APRIL

[Sidenote: B.C. 59, ÆT. 47]

Please admire my consistency. I am determined not to be at the games at Antium: for it is somewhat of a solecism to wish to avoid all suspicion of frivolity, and yet suddenly to be shewn up as travelling for mere amusement, and that of a foolish kind. Wherefore I shall wait for you till the 7th of May at Formiæ. So now let me know what day we shall see you. From Appii Forum, ten o'clock. I sent another a short time ago from Three Taverns.

[Footnote 228: On the _via Appia_. Cicero halts at Appii Forum and at once despatches a short note, probably by some one he finds there going to Rome, to announce a change of plan. He had meant to get back to Antium on 6th May, because Tullia wanted to see the games. See Letter XXXIV, p. 96.]

XXXVIII (A II, 11)

TO ATTICUS (AT ROME)

FORMIÆ, APRIL

[Sidenote: B.C. 59, ÆT. 47]

I tell you what it is: I feel myself a downright exile since arriving at Formiæ. For at Antium there was never a day that I didn't know what was going on at Rome better than those who were there. For your letters used to shew me not only what was doing at Rome, but the actual political situation also--and not only that, but also what was likely to happen. Now, unless I snatch a bit of news from some passing traveller, I can learn nothing at all. Wherefore, though I am expecting you in person, yet pray give this boy, whom I have ordered to hurry back to me at once, a bulky letter, crammed not only with all occurrences, but with what you think about them; and be careful to let me know the day you are going to leave Rome. I intend staying at Formiæ till the 6th of May. If you don't come there by that day, I shall perhaps see you at Rome. For why should I invite you to Arpinum?

"A rugged soil, yet nurse of hardy sons: No dearer land can e'er my eyes behold."[229]

So much for this. Take care of your health.

[Footnote 229: Homer, _Odyss._ ix. 27.]

XXXIX (A II, 13)

TO ATTICUS (AT ROME)

FORMIÆ, APRIL

[Sidenote: B.C. 59, ÆT. 47]

What an abominable thing! No one gave you my letter written on the spot at Three Taverns in answer to your delightful letters! But the fact is that the packet into which I had put it arrived at my town house on the same day as I wrote it, and has been brought back to me to Formiæ. Accordingly, I have directed the letter meant for you to be taken back again, to shew you how pleased I was with yours. So you say that the talk has died out at Rome! I thought so: but, by Hercules, it hasn't died out in the country, and it has come to this, that the very country can't stand the despotism you have got at Rome. When you come to "Læstrygonia of the distant gates"[230]--I mean Formiæ--what loud murmurs! what angry souls! what unpopularity for our friend Magnus! His surname is getting as much out of fashion as the "Dives" of Crassus. Believe me, I have met no one here to take the present state of things as quietly as I do. Wherefore, credit me, let us stick to philosophy. I am ready to take my oath that there is nothing to beat it. If you have a despatch to send to the Sicyonians,[231] make haste to Formiæ, whence I think of going on the 6th of May.

[Footnote 230: τηλέπυλον Λαιστρυγονίην, whose king Lamus (_Odyss._ x. 81) was supposed to have founded Formiæ (Horace, _Od._ iii. 17).]

[Footnote 231: A despatch from senate or consuls. See Letter XXIV, p. 60.]

XL (A II, 14)

TO ATTICUS (AT ROME)

FORMIÆ, APRIL

[Sidenote: B.C. 59, ÆT. 47.]

How you rouse my curiosity as to what Bibulus says, as to your conversation with "Iuno," and even as to your "fast" dinner party! Therefore make haste to come, for my ears are thirsty for news. However, there is nothing which I think is now more to be dreaded by me than that our dear Sampsiceramus, finding himself belaboured by the tongues of all, and seeing these proceedings easy to upset, should begin striking out. For myself, I have so completely lost all nerve, that I prefer a despotism, with the existing peace, to a state of war with the best hopes in the world. As to literary composition, to which you frequently urge me, it is impossible! My house is a basilica rather than a villa, owing to the crowds of visitors from Formiæ. But (you'll say) do I really compare the Æmilian tribe to the crowd in a basilica?[232] Well, I say nothing about the common ruck--the rest of them don't bother me after ten o'clock: but C. Arrius is my next door neighbour, or rather, he almost lives in my house, and even declares that the reason for his not going to Rome is that he may spend whole days with me here philosophizing! And then, lo and behold, on my other side is Sebosus, that friend of Catulus! Which way am I to turn? By heaven, I would start at once for

Arpinum, only that I see that the most convenient place to await your visit is Formiæ: but only up to the 6th of May! For you see with what bores my ears are pestered. What a splendid opportunity, with such fellows in the house, if anyone wanted to buy my Formian property![233] And in spite of all this am I to make good my words, "Let us attempt something great, and requiring much thought and leisure"? However, I _will_ do something for you, and not spare my labour.

[Footnote 232: _At comparem_ for _at quam partem_. _At_ has its usual force of introducing a supposed objection. I can't, say you, compare the Æmilian tribe, the Formiani, to a crowd in a court-house! They are not so bad as that, not so wasteful of time! I take _basilica_ to mean the saunterers in a basilica, as we might say "the park" for the company in it, "the exchange" for the brokers in it. I feel certain that Prof. Tyrrell is wrong in ascribing the words _sed--sunt_ to a quotation from Atticus's letter. What is wanted is to remove the full stop after _sunt_. The contrast Cicero is drawing is between the interruption to literary work of a crowd of visitors and of one or two individuals always turning up. The second is the worse--and here I think all workers will agree with him: the crowd of visitors (_vulgus_) go at the regular hour, but individuals come in at all hours.]

[Footnote 233: Because he would be inclined to sell it cheap in his disgust.]

XLI (A II, 15)

TO ATTICUS (AT ROME)

FORMIÆ, APRIL

[Sidenote: B.C. 59, ÆT. 47]

As you say, things are as shifting (I see) in public affairs as in your letter; still, that very variety of talk and opinion has a charm for me. For I seem to be at Rome when I am reading your letter, and, as is the regular thing in questions of such importance, to hear something first on one side and then on the other. But what I can't make out is this--what he can possibly hit upon to settle the land question without encountering opposition. Again, as to Bibulus's firmness in putting off the _comitia_, it only conveys the expression of his own views, without really offering any remedy for the state of the Republic. Upon my word, my only hope is in Publius! Let him become, let him become a tribune by all means, if for no other reason, yet that you may be brought back from Epirus! For I don't see how you can possibly afford to miss him, especially if he shall elect to have a wrangle with me! But, seriously, if anything of the sort occurs, you would, I am certain, hurry back. But even supposing this not to be the case, yet whether he runs amuck or helps to raise the state, I promise myself a fine spectacle, if only I may enjoy it with you sitting by my side.[234] Just as I was writing these words, enter Sebosus! I had scarcely got out a sigh when "Good day," says Arrius. This is what you call going out of town! I shall really be off to

"My native mountains and my childhood's haunts."[235]

In fine, if I can't be alone I would rather be with downright countryfolk than with such ultra-cockneys. However, I shall, since you don't say anything for certain, wait for you up to the 5th of May. Terentia is much pleased with the attention and care you have bestowed on her controversy with Mulvius. She is not aware that you are supporting the common cause of all holders of public land. Yet, after all, _you_ do pay something to the _publicani_; she declines to pay even that,[236] and, accordingly, she and Cicero--most conservative of boys--send their kind regards.

[Footnote 234: The spectacle Cicero hopes for is Clodius's contests with the triumvirs.]

[Footnote 235: To Arpinum (see last letter). The verse is not known, and may be a quotation from his own poem on Marius. He often quotes himself.]

[Footnote 236: This is not mentioned elsewhere. The explanation seems to be that for the _ager publicus_ allotted under the Sempronian laws a small rent had been exacted, which was abolished by a law of B.C. 111 (the name of the law being uncertain). But some _ager publicus_ still paid rent, and the _publicanus_ Mulvius seems to have claimed it from some land held by Terentia, perhaps on the ground that it was land (such as the _ager Campanus_) not affected by the law of Gracchus, and therefore not by the subsequent law abolishing rent.]

XLII (A II, 16)

TO ATTICUS (AT ROME)

FORMIÆ, 29 APRIL

[Sidenote: B.C. 59, ÆT. 47]

On the day before the Kalends of May, when I had dined and was just going to sleep, the letter was delivered to me containing your news about the Campanian land. You needn't ask: at first it gave me such a shock that there was no more sleep for me, though that was the result of thought rather than pain. On reflexion, however, the following ideas occurred to me. In the first place, from what you had said in your previous letter--"that you had heard from a friend of his[237] that a proposal was going to be made which would satisfy everybody"--I had feared some very sweeping measure, but I don't think this is anything of the sort. In the next place, by way of consolation, I persuaded myself that the hope of a distribution of land is now all centred on the Campanian territory.[238] That land cannot support more than 5,000, so as to give ten _iugera_ apiece:[239] the rest of the crowd of expectants must necessarily be alienated from them. Besides, if there is anything that more than another could inflame the feeling of the aristocrats, who are, I notice, already irritated, it is this; and all the more that with port-dues in Italy abolished,[240] and the Campanian land divided, what home revenue is there except the five per cent. on manumissions? And even that, I think, it will only take a single trumpery harangue, cheered by our lackeys, to throw away also. What our friend Gnæus can be thinking

of I can't imagine--

"For still he blows, and with no slender pipe, But furious blasts by no mouth-band restrained"--

to be induced to countenance such a measure as that. For hitherto he has fenced with these questions: "he approved Cæsar's laws, but Cæsar must be responsible for his proceedings in carrying them"; "he himself was satisfied with the agrarian law"; "whether it could be vetoed by a tribune or no was nothing to do with him"; "he thought the time had come for the business of the Alexandrine king to be settled"; "it was no business of his to inquire whether Bibulus had been watching the sky on that occasion or no"; "as to the _publicani_, he had been willing to oblige that order"; "what was going to happen if Bibulus came down to the forum at that time he could not have guessed."[241] But now, my Sampsiceramus, what will you say to this? That you have secured us a revenue from the Antilibanus and removed that from the Campanian land? Well, how do you mean to vindicate that? "I shall coerce you," says he, "by means of Cæsar's army." You won't coerce me, by Hercules, by your army so much as by the ingratitude of the so-called _boni_, who have never made me any return, even in words, to say nothing of substantial rewards. But if I had put out my strength against that coterie, I should certainly have found some way of holding my own against them. As things are, in view of the controversy between your friend Dicæarchus and my friend Theophrastus--the former recommending the life of action, the latter the life of contemplation--I think I have already obeyed both. For as to Dicæarchus, I think I have satisfied his requirements; at present my eyes are fixed on the school which not only allows of my abstaining from business, but blames me for not having always done so. Wherefore let me throw myself, my dear Titus, into those noble studies, and let me at length return to what I ought never to have left.

As to what you say about Quintus's letter, when he wrote to me he was also "in front a lion and behind a ----."[242] I don't know what to say about it; for in the first lines of his letter he makes such a lamentation over his continuance in his province, that no one could help being affected: presently he calms down sufficiently to ask me to correct and edit his Annals. However, I would wish you to have an eye to what you mention, I mean the duty on goods transferred from port to port. He says that by the advice of his council he has referred the question to the senate. He evidently had not read my letter, in which after having considered and investigated the matter, I had sent him a written opinion that they were not payable.[243] If any Greeks have already arrived at Rome from Asia on that business, please look into it and, if you think it right, explain to them my opinion on the subject. If, to save the good cause in the senate, I can retract, I will gratify the _publicani_: but if not, to be plain with you, I prefer in this matter the interests of all Asia and the merchants; for it affects the latter also very seriously. I think it is a matter of great importance to us. But you will settle it. Are the quæstors, pray, still hesitating on the _cistophorus_ question?[244] If nothing better is to be had, after trying everything in our power, I should be for not refusing even the lowest offer. I shall see you at Arpinum and offer you country entertainment, since you have despised this at the seaside.

[Footnote 237: Cæsar.]

[Footnote 238: The old territory of Capua and the Stellatian Plain had been specially reserved from distribution under the laws of the Gracchi, and this reservation had not been repealed in subsequent laws: _ad subsidia reipublicæ vectigalem relictum_ (Suet. _Cæs._ 20; cp. Cic. 2 _Phil._ § 101).]

[Footnote 239: According to Suetonius 20,000 citizens had allotments on the _ager publicus_ in Campania. But Dio says (xxxviii. 1) that the Campanian land was exempted by the _lex Iulia_ also. Its settlement was probably later, by colonies of Cæsar's veterans. A _iugerum_ is five-eighths of an acre.]

[Footnote 240: See Letter XXIX, p. 82. They were abolished B.C. 60.]

[Footnote 241: This and the mention of Cæsar's "army" (a bodyguard) is explained by Suet. _Cæs._ 20: "Having promulgated his agrarian law, Cæsar expelled his colleague, Bibulus, by force of arms from the Forum when trying to stop proceedings by announcing bad omens ... and finally reduced him to such despair that for the rest of his year of office he confined himself to his house and only announced his bad omens by means of edicts." Bibulus appears to have been hustled by the mob also.]

[Footnote 242: πρόσθε λέων ὄπιθεν δὲ ----. Cicero leaves Atticus, as he often does, to fill up the rest of the line, δράκων, μέσση δὲ χίμαιρα (Hom. _Il._ vi. 181). He means, of course, that Quintus is inconsistent.]

[Footnote 243: The question seems to be as to goods brought to a port and paying duty, and then, not finding a sale, being transferred to another port in the same province. The _publicani_ at the second port demanded the payment of a duty again, which Cicero decides against them.]

[Footnote 244: Schutz takes this to mean, "Are the quæstors now doubting as to paying _even cistophori_?" _i.e._, are they, so far from paying in Roman _denarii_, even hesitating to pay in Asiatic? But if so, what is the _extremum_ which Cicero advises Quintus to accept? Prof. Tyrrell, besides, points out that the quæstors could hardly refuse to pay anything for provincial expenses. It is a question between _cistophori_ and _denarii_. See p. 92.]

XLIII (A II, 17)

TO ATTICUS (AT ROME)

FORMIÆ, MAY

[Sidenote: B.C. 59, ÆT. 47]

I quite agree with your letter. Sampsiceramus is getting up a disturbance. We have everything to fear. He is preparing a despotism and no mistake about it. For what else is the meaning of that sudden marriage union,[245] the Campanian land affair, the lavish expenditure of money? If these measures were final, even then the mischief had been very great; but the nature of the case makes finality impossible. For how could these measures possibly give them any pleasure in themselves? They would

never have gone so far as this unless they had been paving the way for other fatal steps. Immortal Gods!--But, as you say, at Arpinum about the 10th of May we will not weep over these questions, lest the hard work and midnight oil I have spent over my studies shall turn out to have been wasted, but discuss them together calmly. For I am not so much consoled by a sanguine disposition as by philosophic "indifference,"[246] which I call to my aid in nothing so much as in our civil and political business. Nay, more, whatever vanity or sneaking love of reputation there is lurking in me--for it is well to know one's faults--is tickled by a certain pleasurable feeling. For it used to sting me to the heart to think that centuries hence the services of Sampsiceramus to the state would loom larger than my own. That anxiety, at least, is now put to rest. For he is so utterly fallen that, in comparison with him, Curius might seem to be standing erect after his fall.[247] But all this when we meet. Yet, as far as I can see, you will be at Rome when I come. I shall not be at all sorry for that, if you can conveniently manage it. But if you come to see me, as you say in your letter, I wish you would fish out of Theophanes how "Arabarches"[248] is disposed to me. You will, of course, inquire with your usual zeal, and bring me the result to serve as a kind of suggestion for the line of conduct I am to adopt. From his conversation we shall be able to get an inkling of the whole situation.

[Footnote 245: The marriage of Pompey with Cæsar's daughter Iulia.]

[Footnote 246: ἀδιαφορία, a word taken from the Stoies, _huic_ [_Zenoni_] _summum bonum est in his rebus neutram in partem moveri, quæ ἀδιαφορία ab ipso dicitur_ (_Acad._ ii. § 130).]

[Footnote 247: C. Curius, one of the Catiline set, who had been ignominiously expelled from the senate.]

[Footnote 248: Another nickname of Pompey, from the title of the head of the Thebais in Egypt. Like Sampsiceramus and the others, it is meant as a scornful allusion to Pompey's achievements in the East, and perhaps his known wish to have the direction of affairs in Egypt.]

XLIV (A II, 18)

TO ATTICUS (ON HIS WAY TO EPIRUS)

ROME

[Sidenote: B.C. 59, ÆT. 47]

I have received several letters from you, which shewed me with what eagerness and anxiety you desired to know the news. We are bound hard and fast on every side, and are no longer making any difficulty as to being slaves, but fearing death and exile as though greater evils, though they are in fact much smaller ones. Well, this is the position--one unanimously groaned over, but not relieved by a word from anyone. The object, I surmise, of the men in power is to leave nothing for anyone to lavish. The only man who opens his mouth and openly disapproves is the young Curio. He is

loudly cheered, and greeted in the forum in the most complimentary manner, and many other tokens of goodwill are bestowed on him by the loyalists; while Fufius[249] is pursued with shouts, jeers, and hisses. From such circumstances it is not hope but indignation that is increased, for you see the citizens allowed to express their sentiments, but debarred from carrying them out with any vigour. And to omit details, the upshot is that there is now no hope, I don't say of private persons, but even of the magistrates being ever free again. Nevertheless, in spite of this policy of repression, conversation, at least in society and at dinner tables, is freer than it was. Indignation is beginning to get the better of fear, though that does not prevent a universal feeling of despair. For this Campanian law[250] contains a clause imposing an oath to be taken by candidates in public meeting, that they will not suggest any tenure of public land other than that provided in the Julian laws. All the others take the oath without hesitation: Laterensis[251] is considered to have shewn extraordinary virtue in retiring from his canvass for the tribuneship to avoid the oath. But I don't care to write any more about politics. I am dissatisfied with myself, and cannot write without the greatest pain. I hold my own position with some dignity, considering the general repression, but considering my achievements in the past, with less courage than I should like. I am invited by Cæsar in a very gentlemanly manner to accept a legation, to act as _legatus_ to himself, and even an "open votive legation" is offered me. But the latter does not give sufficient security, since it depends too much on the scrupulousness of Pulchellus[252] and removes me just when my brother is returning;[253] the former offers better security and does not prevent my returning when I please. I am retaining the latter, but do not think I shall use it. However, nobody knows about it. I don't like running away; I am itching to fight. There is great warmth of feeling for me. But I don't say anything positive: you will please not to mention it. I am, in fact, very anxious about the manumission of Statius[254] and some other things, but I have become hardened by this time. I could wish, or rather ardently desire, that you were here: then I should not want advice or consolation. But anyhow, be ready to fly hither directly I call for you.

[Footnote 249: See Letter XIX, p. 35.]

[Footnote 250: _I.e._, Cæsar's _agrarian law_, by which some of the Campanian _ager publicus_ was to be divided.]

[Footnote 251: M. Iuventius Laterensis. See Letter L, p. 123.]

[Footnote 252: Pulchellus, _i.e._, P. Clodius Pulcher. The diminutive is used to express contempt. Cicero, since his return to Rome, is beginning to realize his danger.]

[Footnote 253: A _libera legatio_ was really a colourable method of a senator travelling with the right of exacting certain payments for his expenses from the Italian or provincial towns. Sometimes it was simply a _legatio libera_, a sinecure without any pretence of purpose, sometimes it was _voti causa_, enabling a man to fulfil some vow he was supposed to have made. It was naturally open to much abuse, and Cicero as consul had passed a law for limiting it in time. Clodius would become tribune on 10 December, and this _libera legatio_ would protect Cicero as long as it

lasted, but it would not, he thinks, last long enough to outstay the tribuneship: if he went as _legatus_ to Cæsar in Gaul, he would be safe, and might choose his own time for resigning and returning to Rome.]

[Footnote 254: Statius, a slave of Quintus, was unpopular in the province. See p. 125.]

XLV (A II, 19)

TO ATTICUS (IN EPIRUS)

ROME (JULY)

[Sidenote: B.C. 59, ÆT. 47]

I have many causes for anxiety, both from the disturbed state of politics and from the personal dangers with which I am threatened. They are very numerous; but nothing gives me more annoyance than the manumission of Statius: "To think that he should have no reverence for my authority! But of authority I say nothing--that he should have no fear of a quarrel with me, to put it mildly!"[255] But what I am to do I don't know, nor indeed is there so much in the affair as you would think from the talk about it. For myself, I am positively incapable of being angry with those I love deeply. I only feel vexed, and that to a surprising degree. Other vexations are on really important matters. The threats of Clodius and the conflicts before me touch me only slightly. For I think I can either confront them with perfect dignity or decline them without any embarrassment. You will say, perhaps, "Enough of dignity, like the proverb, 'Enough of the oak':[256] an you love me, take thought for safety!" Ah, dear me, dear me, why are you not here? Nothing, certainly, could have escaped you. I, perhaps, am somewhat blinded, and too much affected by my high ideal. I assure you there never was anything so scandalous, so shameful, so offensive to all sorts, conditions and ages of men alike, as the present state of affairs. It is more so, by Hercules, than I could have wished, but not more than I had expected. Your _populares_ have now taught even usually quiet men to hiss. Bibulus is praised to the skies: I don't know why, but he has the same sort of applause as his

"Who by delays restored alone our State."[257]

Pompey--the man I loved--has, to my infinite sorrow, ruined his own reputation. They hold no one by affection, and I fear they will be forced to use terror. I, however, refrain from hostility to their cause owing to my friendship for him, and yet I cannot approve, lest I should stultify my own past. The feeling of the people was shewn as clearly as possible in the theatre and at the shows. For at the gladiators both master and supporters were overwhelmed with hisses. At the games of Apollo the actor Diphilus made a pert allusion to Pompey, in the words:

"By our misfortunes thou art--Great."

He was encored countless times. When he delivered the line,

"The time will come when thou wilt deeply mourn That self-same valour,"

the whole theatre broke out into applause, and so on with the rest. For the verses do seem exactly as though they were written by some enemy of Pompey's to hit the time. "If neither laws nor customs can control," etc., caused great sensation and loud shouts. Cæsar having entered as the applause died away, he was followed by the younger Curio. The latter received an ovation such as used to be given to Pompey when the constitution was still intact. Cæsar was much annoyed. A despatch is said to have been sent flying off to Pompey at Capua.[258] _They_ are offended with the equites, who rose to their feet and cheered Curio, and are at war with everybody. They are threatening the Roscian law,[259] and even the corn law.[260] There has been a great hubbub altogether. For my part, I should have preferred their doings being silently ignored; but that, I fear, won't be allowed. Men are indignant at what nevertheless must, it seems, be put up with. The whole people have indeed now one voice, but its strength depends rather on exasperation than anything to back it up. Farthermore, our Publius is threatening me: he is hostile, and a storm is hanging over my head which should bring you post haste to town. I believe that I am still firmly supported by the same phalanx of all loyal or even tolerably loyal men which supported me when consul. Pompey displays no common affection for me. He also asserts that Clodius is not going to say a word about me. In which he is not deceiving me, but is himself deceived. Cosconius having died, I am invited to fill his place.[261] That would indeed be a case of "invited to a dead man's place." I should have been beneath contempt in the eyes of the world, and nothing could be conceived less likely to secure that very "personal safety" of which you speak. For those commissioners are disliked by the loyalists, and so I should have retained my own unpopularity with the disloyal, with the addition of that attaching to others. Cæsar wishes me to accept a legateship under him. This is a more honourable method of avoiding the danger. But I don't wish to avoid it. What do I want, then? Why, I prefer fighting. However, I have not made up my mind. Again I say, Oh that you were here! However, if it is absolutely necessary I will summon you. What else is there to say? What else? This, I think: I am certain that all is lost. For why mince matters any longer? But I write this in haste, and, by Hercules, in rather a nervous state. On some future occasion I will either write to you at full length, if I find a very trustworthy person to whom to give a letter, or if I write darkly you will understand all the same. In these letters I will be Lælius, you Furius; the rest shall be in riddles. Here I cultivate Cæcilius,[262] and pay him assiduous attention. I hear Bibulus's edicts have been sent to you. Our friend Pompey is hot with indignation and wrath at them.[263]

[Footnote 255: Terence, _Phorm._ 232.]

[Footnote 256: ἅλις δρυός, _i.e._, feeding on acorns is a thing of the past, it is out of date, like the golden age when they fed on wild fruit _et quæ deciderant patula Iovis arbore glandes_ (Ovid, _Met._ i. 106); and so is dignity, it is a question of _safety_ now.]

[Footnote 257: Ennius on Q. Fabius Maximus Cunctator.]

[Footnote 258: Pompey was in Campania acting as one of the twenty land commissioners.]

[Footnote 259: The _lex Roscia theatralis_ (B.C. 67), which gave fourteen rows of seats to the equites.]

[Footnote 260: That is, the law for distribution of corn among poorer citizens. There were many such. Perhaps the most recent was the _lex Cassia Terentia_ (B.C. 73). Cæsar, who, when in later years he became supreme, restricted this privilege, may have threatened to do so now.]

[Footnote 261: _I.e._, as one of the twenty land commissioners. The next clause seems to refer to some proverbial expression, "to be invited to a place at Pluto's table," or some such sentence. Cicero means that his acceptance would be equivalent to political extinction, either from the obscurity of Cosconius or the inconsistency of the proceeding.]

[Footnote 262: The uncle of Atticus. See p. 15.]

[Footnote 263: After the scene of violence in which Bibulus, on attempting to prevent the agrarian law being passed, was driven from the rostra, with his lictors' fasces broken, he shut himself up in his house and published edicts declaring Cæsar's acts invalid, and denouncing the conduct of Pompey (Suet. _Cæs._ 20; Dio, xxxviii. 6).]

XLVI (A II, 20)

TO ATTICUS (IN EPIRUS)

ROME (JULY)

[Sidenote: B.C. 59, ÆT. 47]

I have done everything I could for Anicatus, as I understood was your wish. Numestius, in accordance with your earnestly expressed letter, I have adopted as a friend. Cæcilius I look after diligently in all ways possible. Varro[264] does all I could expect for me. Pompey loves me and regards me as a dear friend. "Do you believe that?" you will say. I do: he quite convinces me. But seeing that men of the world in all histories, precepts, and even verses, are for ever bidding one be on one's guard and forbidding belief, I carry out the former--"to be on my guard"--the latter--"to disbelieve"[265]--I cannot carry out. Clodius is still threatening me with danger. Pompey asserts that there is no danger. He swears it. He even adds that he will himself be murdered by him sooner than I injured. The negotiation is going on. As soon as anything is settled I will write you word. If I have to fight, I will summon you to share in the work. If I am let alone, I won't rout you out of your "Amaltheia." About politics I will write briefly: for I am now afraid lest the very paper should betray me. Accordingly, in future, if I have anything more to write to you, I shall clothe it in covert language. For the present the state is dying of a novel disorder; for although

everybody disapproves of what has been done, complains, and is indignant about it, and though there is absolutely no difference of opinion on the subject, and people now speak openly and groan aloud, yet no remedy is applied: for we do not think resistance possible without a general slaughter, nor see what the end of concession is to be except ruin. Bibulus is exalted to the skies as far as admiration and affection go. His edicts and speeches are copied out and read. He has reached the summit of glory in a novel way. There is now nothing so popular as the dislike of the popular party. I have my fears as to how this will end. But if I ever see my way clearly in anything, I will write to you more explicitly. For yourself, if you love me as much as I am sure you do, take care to be ready to come in all haste as soon as I call for you. But I do my best, and shall do so, to make it unnecessary. I said I would call you Furius in my letters, but it is not necessary to change your name. I'll call myself Lælius and you Atticus, but I will use neither my own handwriting nor seal, if the letter happens to be such as I should not wish to fall into the hands of a stranger. Diodotus is dead; he has left me perhaps 1,000 sestertia. Bibulus has postponed the elections to the 18th of October, in an edict expressed in the vein of Archilochus.[266] I have received the books from Vibius: he is a miserable poet,[267] but yet he is not without some knowledge nor wholly useless. I am going to copy the book out and send it back.

[Footnote 264: M. Terentius Varro, "the most learned of the Romans," and author of very large numbers of books. He was afterwards one of Pompey's _legati_ in Spain. He survived most of the men of the revolutionary era.]

[Footnote 265: See Letter XXIV, p. 56.]

[Footnote 266: _I.e._, in biting language. _Archilochum proprio rabies armavit iambo_ (Hor. _A. P._ 79).]

[Footnote 267: The _Cosmographia_ of Alexander of Ephesus. See Letter XLVIII, p. 120.]

XLVII (A II, 21)

TO ATTICUS (IN EPIRUS)

ROME (JULY)

[Sidenote: B.C. 59, ÆT. 47]

Why should I write to you on the Republic in detail? It is utterly ruined; and is, so far, in a worse state than when you left it, that then a despotism seemed to be oppressing it which was popular with the multitude, and though offensive to the loyalists, yet short of actual mischief; but now all on a sudden they have become so universally hated, that I tremble to think what will be the end of it. For we have had experience of those men's resentment and violence, who have ruined everything in their anger against Cato; yet they were employing such slow poisons, that it seemed as though our end might be painless. Now, however, I fear they have been exasperated by the hisses of the crowd, the talk of the respectable classes, and the

murmurs of Italy. For my part, I was in hopes, as I often used actually to say to you, that the wheel of the state chariot had made its revolution with scarcely any noise and leaving scarcely any visible rut; and it would have been so, if people could only have waited till the storm had blown over. But after sighing in secret for a long time they all began, first to groan, and at last to talk and shout. Accordingly, that friend of ours, unaccustomed to being unpopular, always used to an atmosphere of praise, and revelling in glory, now disfigured in body and broken in spirit, does not know which way to turn; sees that to go on is dangerous, to return a betrayal of vacillation; has the loyalists his enemies, the disloyal themselves not his friends. Yet see how soft-hearted I am. I could not refrain from tears when, on the 25th of July, I saw him making a speech on the edicts of Bibulus. The man who in old times had been used to bear himself in that place with the utmost confidence and dignity, surrounded by the warmest affection of the people, amidst universal favour--how humble, how cast down he was then! How ill-content with himself, to say nothing of how unpleasing to his audience! Oh, what a spectacle! No one could have liked it but Crassus--no one else in the world! Not I, for considering his headlong descent from the stars, he seemed to me to have lost his footing rather than to have been deliberately following a path; and, as Apelles, if he had seen his Venus, or Protogenes his Ialysus daubed with mud, would, I presume, have felt great sorrow, so neither could I behold without great sorrow a man, portrayed and embellished with all the colours of my art, suddenly disfigured. Although no one thought, in view of the Clodius business, that I was bound to be his friend, yet so great was my affection for him, that no amount of injury was capable of making it run dry. The result is that those Archilochian edicts of Bibulus against him are so popular, that one can't get past the place where they are put up for the crowd of readers, and so deeply annoying to himself that he is pining with vexation. To me, by Hercules, they are distressing, both because they give excessive pain to a man whom I have always loved, and because I fear lest one so impulsive and so quick to strike, and so unaccustomed to personal abuse, may, in his passionate resentment, obey the dictates of indignation and anger. I don't know what is to be the end of Bibulus. As things stand at present he is enjoying a wonderful reputation. For on his having postponed the _comitia_ to October, as that is a measure which is always against the popular feeling, Cæsar had imagined that the assembly could be induced by a speech of his to go to Bibulus's house; but after a long harangue full of seditious suggestions, he failed to extract a word from anyone. In short, they feel that they do not possess the cordial goodwill of any section: all the more must we fear some act of violence. Clodius is hostile to us. Pompey persists in asserting that he will do nothing against me. It is risky for me to believe that, and I am preparing myself to meet his attack. I hope to have the warmest feelings of all orders on my side. I have personally a longing for you, and circumstances also demand your presence at that time. I shall feel it a very great addition to my policy, to my courage, and, in a word, to my safety, if I see you in time. Varro does all I can expect. Pompey talks like an angel. I have hopes that I shall come off with flying colours, or at any rate without being molested. Be sure and tell me how you are, how you are amusing yourself, and what settlement you have come to with the Sicyonians.

XLVIII (A II, 22)

TO ATTICUS (IN EPIRUS)

ROME (JULY)

[Sidenote: B.C. 59, ÆT. 47]

How I wished you had stayed at Rome! I am sure you would have stayed if you had foreseen what was going to happen. For then we should have had no difficulty in keeping "Pulchellus" in order, or at least should have known what he was going to do. As things are, he darts about, talks like a madman, never sticks to anything: threatens now this one and now that: seems likely, in reality, to do whatever turns up. When he sees how unpopular the present state of things is, he seems to intend an attack upon the authors of it; but when he again recalls their power and armies, he transfers his hostility to the loyalists. Me personally he threatens at one time with violence, at another with impeachment. With him Pompey has remonstrated, and, as he tells me himself--for I have no other evidence--has urgently remonstrated, pointing out that he would himself lie under the extreme imputation of perfidy and unprincipled conduct, if any danger to me were created by the man whom he had himself armed by acquiescing in his becoming a plebeian: that both he and Appius[268] had pledged themselves in regard to me: if Clodius did not respect that, he should shew such annoyance that everyone would understand that he valued my friendship above everything. Having said this and much else to the same effect, he told me that the fellow at first argued against it at great length and for a long time, but eventually gave way and declared that he would do nothing against his wishes. Nevertheless, he has not ceased since then speaking of me with the greatest bitterness. But even if he had not done so, I should have felt no confidence in him, but should have been making every preparation, as in fact I am doing. As it is, I am so conducting myself that every day the affections of people towards me and the strength of my position are enhanced. I don't touch politics in any shape or way; I employ myself with the greatest assiduity in pleading causes and in my regular forensic business.[269] And this I feel is extremely gratifying, not only to those who enjoy my services, but also to the people generally. My house is crowded; I am met by processions; the memory of my consulship is renewed; men's feelings are clearly shewn: my hopes are so raised, that the struggle hanging over me seems at times one from which I need not shrink. Now is the time that I need your advice, your love and fidelity. Wherefore come post haste! Everything will be easy for me if I have you. I can carry on many negotiations through our friend Varro, which will be on firmer ground with you to back them up; a great deal can be elicited from Publius himself, and be brought to my knowledge, which cannot possibly be kept concealed from you; a great deal also--but it is absurd to enumerate particulars, when I want you for everything. I would like you to be convinced of this above all, that everything will be simplified for me if I see you: but it all turns on this coming to pass _before_ he enters on his office. I think that if you are here while Crassus is egging on Pompey--as you can get out of Clodius himself, by the agency of "Iuno,"[270] how far they are acting

in good faith--we shall escape molestation, or at any rate not be left under a delusion. You don't stand in need of entreaties or urgency from me. You understand what my wish is, and what the hour and the importance of the business demand. As to politics, I can tell you nothing except that everybody entertains the greatest detestation for those who are masters of everything. There is, however, no hope of a change. But, as you easily understand, Pompey himself is discontented and extremely dissatisfied with himself. I don't see clearly what issue to expect: but certainly such a state of affairs seems likely to lead to an outbreak of some sort. Alexander's books[271]--a careless writer and a poor poet, and yet not without some useful information--I have sent back to you. I have had pleasure in admitting Numerius Numestius to my friendship, and I find him a man of character and good sense, worthy of your recommendation.

[Footnote 268: Appius Claudius Pulcher, elder brother of P. Clodius.]

[Footnote 269: The speeches known to us of this year are those for his colleague, C. Antonius, A. Thermus, and L. Flaccus. The two former are lost, but we know from his own account that he had not avoided touching on politics in the speech for Antonius, but had so offended Pompey and Cæsar that they at once carried out the adoption of Clodius (_de Domo_, § 41).]

[Footnote 270: Boῶπις, _i.e._, Clodia. See Letters XXXV, XL. _Crasso urgente_ is difficult. Cicero must mean that while Crassus (whom he always regards as hostile to himself) is influencing Pompey, he cannot trust what Pompey says, and must look for real information elsewhere.]

[Footnote 271: Alexander of Ephesus. See Letter XLVI, p. 115.]

XLIX (A II, 23)

TO ATTICUS (IN EPIRUS)

ROME (JULY OR AUGUST)

[Sidenote: B.C. 59, ÆT. 47]

I don't think you have ever before read a letter of mine not written by my own hand. You will be able to gather from that how I am distracted with business. For as I had not a moment to spare and was obliged to take a walk in order to refresh my poor voice, I have dictated this while walking. The first thing, then, which I wish you to know is that our friend "Sampsiceramus" is exceedingly dissatisfied with his position, and desires to be restored to the place from which he has fallen; that he confides his annoyance to me, and is without disguise seeking for a remedy--which I don't think can be found. The second thing is that all on that side, whether promoters or mere hangers-on, are falling out of fashion, though no one opposes them: there never was a greater unanimity of feeling or talk everywhere. For myself (for I am sure you wish to know it) I take part in no political deliberations, and have devoted myself entirely to my forensic business and work. Thereby, as may easily be understood, I have

frequent occasion to refer to my past achievements and to express my regret. But the brother of our "Iuno" is giving utterance to all kinds of alarming threats, and, while disclaiming them to "Sampsiceramus," makes an open avowal and parade of them to others. Wherefore, loving me as much as I know you do, if you are asleep, wake up; if you are standing, start walking; if you are walking, set off running; if you are running, take wings and fly. You can scarcely believe how much I confide in your advice and wisdom, and above all in your affection and fidelity. The importance of the interests involved perhaps demands a long disquisition, but the close union of our hearts is contented with brevity. It is of very great importance to me that, if you can't be at Rome at the elections, you should at least be here after his election is declared.[272] Take care of your health.

[Footnote 272: _I.e._, between the time of his election and of his entering on his office. The tribunes entered on their office on the 10th of December; the elections usually took place in July, but were postponed till October this year by Bibulus. See Letter XLVI, p. 115.]

L (A II, 24)

TO ATTICUS (IN EPIRUS)

ROME (JULY OR AUGUST)

[Sidenote: B.C. 59, ÆT. 47]

In the letter which I delivered to Numestius I begged you to come back, in the most urgent and vehement terms it was possible to use. To the speed which I then enjoined even add something if you possibly can. And yet do not be agitated, for I know you well, and am not ignorant of "how love is all compact of thought and fear." But the matter, I hope, is going to be less formidable in the end than it was at its beginning. That fellow Vettius, our old informer, promised Cæsar, as far as I can make out, that he would secure young Curio being brought under some suspicion of guilt. Accordingly, he wormed his way into intimacy with the young man, and having, as is proved, often met him, at last went the length of telling him that he had resolved by the help of his slaves to make an attack upon Pompey and assassinate him. Curio reported this to his father, the latter to Pompey. The matter was reported to the senate. Vettius, on being brought in, at first denied that he had ever had any appointment with Curio. However, he did not long stick to that, but immediately claimed the protection of the state as giving information. There was a shout of "no" to this;[273] but he went on to state that there had been a confederacy of young men under the leadership of Curio, to which Paullus had at first belonged, and Q. Cæpio (I mean Brutus[274]) and Lentulus, son of the flamen, with the privity of his father: that afterwards C. Septimius, secretary to Bibulus, had brought him a dagger from Bibulus. That made the whole thing ridiculous, as though Vettius would have been at a loss for a dagger unless the consul had given him one; and it was all the more scouted because on the 5th of May Bibulus had told Pompey to be on his guard

against plots; on which occasion Pompey had thanked him. Young Curio, being brought into the senate, spoke in answer to the allegations of Vettius; and on this particular occasion the strongest thing against Vettius was his having said that the plan of the young men was to attack Pompey in the forum, with the help of Gabinius's gladiators,[275] and that in this the ring-leader was Paullus, who was ascertained to have been in Macedonia at that time. A decree of the senate is passed that "Vettius, having confessed to having 'worn a dagger,'[276] should be cast into prison; that anyone releasing him would be guilty of treason to the state." The opinion generally held is that the whole affair had been arranged. Vettius was to be caught in the forum with a dagger, and his slaves also with weapons, and he was then to offer to lay an information; and this would have been carried out, had not the Curios given Pompey previous information. Presently the decree of the senate was read in public assembly. Next day, however, Cæsar--the man who formerly as prætor had bidden Q. Catulus[277] speak on the ground below--now brought Vettius on to the rostra, and placed him on an elevation to which Bibulus, though consul, was prevented from aspiring. Here that fellow said exactly what he chose about public affairs, and, having come there primed and instructed, first struck Cæpio's name out of his speech, though he had named him most emphatically in the senate, so that it was easy to see that a night and a nocturnal intercession[278] had intervened: next he named certain men on whom he had not cast even the slightest suspicion in the senate: L. Lucullus, by whom he said that C. Fannius was usually sent to him--the man who on a former occasion had backed a prosecution of Clodius; L. Domitius, whose house had been agreed on as the headquarters of the conspirators. Me he did not _name_, but he said that "an eloquent consular, who lived near the consul, had said to him that there was need of some Servilius Ahala or Brutus being found."[279] He added at the very end, on being recalled by Vatinius after the assembly had been dismissed, that he had been told by Curio that my son-in-law Piso was privy to these proceedings, as M. Laterensis also. At present Vettius is on trial for "violence" before Crassus Dives,[280] and when condemned he intends to claim the impunity of an informer; and if he obtains that, there seem likely to be some prosecutions. I don't despise the danger, for I never despise any danger, but neither do I much fear it. People indeed shew very great affection for me, but I am quite tired of life: such a scene of misery is it all. It was only the other day that we were fearing a massacre, which the speech of that gallant old man Q. Considius prevented:[281] now this one, which we might have feared any day, has suddenly turned up. In short, nothing can be more unfortunate than I, or more fortunate than Catulus, both in the splendour of his life and in the time of his death. However, in the midst of these miseries I keep my spirit erect and undismayed, and maintain my position in a most dignified manner and with great caution. Pompey bids me have no anxiety about Clodius, and shews the most cordial goodwill to me in everything he says. I desire to have you to suggest my policy, to be the partner in my anxieties, and to share my every thought. Therefore I have commissioned Numestius to urge you, and I now entreat you with the same or, if possible, greater earnestness, to literally fly to us. I shall breathe again when I once see you.

[Footnote 273: _Reclamatum est._ The MSS. have _haud reclamatum est_, "it was not refused."]

[Footnote 274: Marcus Iunius Brutus, the future assassin of Cæsar, adopted by his uncle, Q. Servilius Cæpio. The father of Lentulus was _flamen Martialis_ (L. Lentulus), _in Vat._ § 25. Paullus is L. Æmilius Paullus, consul B.C. 50.]

[Footnote 275: _Cum gladiatoribus._ Others omit _cum_, in which case the meaning will be "at the gladiatorial shows of Gabinius." As some _date_ is wanted, this is probably right.]

[Footnote 276: Under the _lex de sicariis_ of Sulla carrying a weapon with felonious intent was a capital crime, for which a man was tried _inter sicarios_. See 2 _Phil._ §§ 8, 74.]

[Footnote 277: Q. Lutatius Catulus, who died in the previous year, B.C. 60, had been a keen opponent of Cæsar, who tried to deprive him of the honour of dedicating the restored Capitoline temple, and beat him in the election of Pontifex Maximus.]

[Footnote 278: Servilia, mother of Brutus, was reported to be Cæsar's mistress. As Cicero is insinuating that the whole affair was got up by Cæsar to irritate Pompey with the _boni_, this allusion will be understood.]

[Footnote 279: If Vettius did say this, he at any rate successfully imitated Cicero's manner. These names are always in his mouth. See 2 _Phil._ §§ 26, 87; _pro Mil._ §§ 8, 82, etc. For a farther discussion of Vettius, see Appendix B.]

[Footnote 280: Probably a prætor, not the triumvir.]

[Footnote 281: Q. Considius Gallus, who, according to Plutarch (_Cæs._ 13), said in the senate that the attendance of senators was small because they feared a massacre. "What made you come, then?" said Cæsar. "My age," he replied; "I have little left to lose."]

LI (A II, 25)

TO ATTICUS (IN EPIRUS)

ROME (JULY OR AUGUST)

[Sidenote: B.C. 59, ÆT. 47]

When I have praised any one of your friends to you I should like you tell him that I have done so. For instance, you know I lately wrote to you about Varro's kindness to me, and that you wrote me back word that the circumstance gave you the greatest delight. But I should have preferred your writing to him and saying that he was doing all I could expect--not because he was, but in order that he might do so. For he is a man of astonishing whims, as you know, "tortuous and no wise----."[282] But I stick to the rule "Follies of those in power," etc.[283] But, by Hercules, that other friend of yours, Hortalus--with what a liberal hand, with what candour, and in what ornate

language has he praised me to the skies, when speaking of the prætorship of Flaccus and that incident of the Allobroges.[284] I assure you nothing could have been more affectionate, complimentary, or more lavishly expressed. I very much wish that you would write and tell him that I sent you word of it. Yet why write? I think you are on your way and are all but here. For I have urged you so strongly to come in my previous letters. I am expecting you with great impatience, longing for you very much; nor do I call for you more than circumstances themselves and the state of the times. Nothing can be more desperate than the position of politics, nothing more unpopular than the authors of it, I--as I think, hope, and imagine--am safe behind a rampart of goodwill of the strongest kind. Wherefore fly to me: you will either relieve me from all annoyance or will share it. My letter is all the shorter because, as I hope, I shall be able in a very short time to talk over what I want to say face to face. Take care of your health.

[Footnote 282:

ἑλικτὰ κοὐδὲν ὑγιὲς ἀλλὰ πᾶν πέριξ φρονοῦντες.

Eur. _Androm._ 448.

"With tortuous thoughts, naught honest, winding all."]

[Footnote 283:

τὰς τῶν κρατούντων ἀμαθίας φέρειν χρεών.

Eur. _Phœn._ 393.

"Follies of those in power we needs must bear."]

[Footnote 284: L. Valerius Flaccus, as prætor in B.C. 63, had assisted Cicero in the Catiline conspiracy. He was now being tried for embezzlement in Asia, and was defended by the famous Q. Hortensius (Hortalus) and Cicero--the only extant speech of this year.]

LII (Q FR I, 2)

TO HIS BROTHER QUINTUS (IN ASIA)

ROME, 26 OCTOBER

[Sidenote: B.C. 59, ÆT. 47]

Statius arrived at my house on the 25th October. His arrival gave me uneasiness, because you said in your letter that you would be plundered by your household in his absence. However, I thought it a very happy circumstance that he anticipated the expectation of his arrival, and the company that would have assembled to meet him, if he had left the province with you, and had not appeared before. For people have exhausted their remarks, and many observations have been made and done with of the "Nay, but I looked for a mighty man"[285] kind, which I am glad to have all over

before you come. But as for the motive for your sending him--that he might clear himself with me--that was not at all necessary. For, to begin with, I had never suspected him, nor in what I wrote to you about him was I expressing my own judgment; but since the interest and safety of all of us who take part in public business depends, not on truth alone, but on report also, I wrote you word of what people were saying, not what I thought myself. How prevalent and how formidable that talk was Statius ascertained himself on his arrival. For he was present when certain persons at my house gave vent to some complaints on that very subject, and had the opportunity of perceiving that the observations of the malevolent were being directed at himself especially. But it used to annoy me most when I was told that he had greater influence with you, than your sober time of life and the wisdom of a governor required. How many people, do you suppose, have solicited me to give them a letter of introduction to Statius? How often, do you suppose, has he himself, while talking without reserve to me, made such observations as, "I never approved of that," "I told him so," "I tried to persuade him," "I warned him not to"? And even if these things shew the highest fidelity, as I believe they do, since that is your judgment, yet the mere appearance of a freedman or slave enjoying such influence cannot but lower your dignity: and the long and short of it is--for I am in duty bound not to say anything without good grounds, nor to keep back anything from motives of policy--that Statius has supplied all the material for the gossip of those who wished to decry you; that formerly all that could be made out was that certain persons were angry at your strictness; but that after his manumission the angry had something to talk about.

Now I will answer the letters delivered to me by L. Cæsius, whom, as I see you wish it, I will serve in every way I can. One of them is about Zeuxis of Blaundus, whom you say was warmly recommended to you by me though a most notorious matricide. In this matter, and on this subject generally, please listen to a short statement, lest you should by chance be surprised at my having become so conciliatory towards Greeks. Seeing, as I did, that the complaints of Greeks, because they have a genius for deceit, were allowed an excessive weight, whenever I was told of any of them making complaint of you, I appeased them by every means in my power. First, I pacified the Dionysopolitans, who were very bitter: whose chief man, Hermippus, I secured not only by my conversation, but by treating him as a friend. I did the same to Hephæstus of Apameia; the same to that most untrustworthy fellow, Megaristus of Antandrus; the same to Nicias of Smyrna; I also embraced with all the courtesy I possessed the most trumpery of men, even Nymphôn of Colophôn. And all this I did from no liking for these particular people, or the nation as a whole: I was heartily sick of their fickleness and obsequiousness, of feelings that are not affected by our kindness, but by our position.

But to return to Zeuxis. When he was telling me the same story as you mention in your letter about what M. Cascellius had said to him in conversation, I stopped him from farther talk, and admitted him to my society. I cannot, however, understand your virulence when you say that, having sewn up in the parricide's-sack two Mysians at Smyrna, you desired to display a similar example of your severity in the upper part of your province, and that, therefore, you had wished to inveigle Zeuxis into your hands by every possible means. For if he had been brought into court, he ought

perhaps not to have been allowed to escape: but there was no necessity for his being hunted out and inveigled by soft words to stand a trial, as you say in your letter--especially as he is one whom I learn daily, both from his fellow citizens and from many others, to be a man of higher character than you would expect from such an obscure town as his.[286] But, you will say, it is only Greeks to whom I am indulgent. What! did not I do everything to appease L. Cæcilius? What a man! how irritable! how violent! In fact, who is there except Tuscenius,[287] whose case admitted of no cure, have I not softened? See again, I have now on my hands a shifty, mean fellow, though of equestrian rank, called Catienus: even he is going to be smoothed down. I don't blame you for having been somewhat harsh to his father, for I am quite sure you have acted with good reason: but what need was there of a letter of the sort which you sent to the man himself? "That the man was rearing the cross for himself from which you had already pulled him off once; that you would take care to have him smoked to death, and would be applauded by the whole province for it." Again, to a man named C. Fabius--for that letter also T. Catienus is handing round--"that you were told that the kidnapper Licinius, with his young kite of a son, was collecting taxes." And then you go on to ask Fabius to burn both father and son alive if he can; if not, to send them to you, that they may be burnt to death by legal sentence. That letter sent by you in jest to C. Fabius, if it really is from you, exhibits to ordinary readers a violence of language very injurious to you. Now, if you will refer to the exhortations in all my letters, you will perceive that I have never found fault with you for anything except harshness and sharpness of temper, and occasionally, though rarely, for want of caution in the letters you write. In which particulars, indeed, if my influence had had greater weight with you than a somewhat excessive quickness of disposition, or a certain enjoyment in indulging temper, or a faculty for epigram and a sense of humour, we should certainly have had no cause for dissatisfaction. And don't you suppose that I feel no common vexation when I am told how Vergilius is esteemed, and your neighbour C. Octavius?[288] For if you only excel your neighbours farther up country, in Cilicia and Syria, that is a pretty thing to boast of! And that is just the sting of the matter, that though the men I have named are not more blameless than yourself, they yet outdo you in the art of winning favour, though they know nothing of Xenophon's Cyrus or Agesilaus; from which kings, in the exercise of their great office, no one ever heard an irritable word. But in giving you this advice, as I have from the first, I am well aware how much good I have done.[289]

Now, however, as you are about to quit your province, pray do leave behind you--as I think you are now doing--as pleasant a memory as possible. You have a successor of very mild manners; in other respects, on his arrival, you will be much missed. In sending letters of requisition, as I have often told you, you have allowed yourself to be too easily persuaded. Destroy, if you can, all such as are inequitable, or contrary to usage, or contradictory to others. Statius told me that they were usually put before you ready written, read by himself, and that, if they were inequitable, he informed you of the fact: but that before he entered your service there had been no sifting of letters; that the result was that there were volumes containing a selection of letters, which were usually adversely criticised.[290] On this subject I am not going to give

you any advice at this time of day, for it is too late; and you cannot but be aware that I have often warned you in various ways and with precision. But I have, on a hint from Theopompus, intrusted him with this message to you: do see by means of persons attached to you, which you will find no difficulty in doing, that the following classes of letters are destroyed--first, those that are inequitable; next, those that are contradictory; then those expressed in an eccentric or unusual manner; and lastly, those that contain reflexions on anyone. I don't believe all I hear about these matters, and if, in the multiplicity of your engagements, you have let certain things escape you, now is the time to look into them and weed them out. I have read a letter said to have been written by your nomenclator Sulla himself, which I cannot approve: I have read some written in an angry spirit. But the subject of letters comes in pat: for while this sheet of paper was actually in my hands, L. Flavius, prætor-designate and a very intimate friend, came to see me. He told me that you had sent a letter to his agents, which seemed to me most inequitable, prohibiting them from taking anything from the estate of the late L. Octavius Naso, whose heir L. Flavius is, until they had paid a sum of money to C. Fundanius; and that you had sent a similar letter to the Apollonidenses, not to allow any payment on account of the estate of the late Octavius till the debt to Fundanius had been discharged. It seems to me hardly likely that you have done this; for it is quite unlike your usual good sense. The heir not to take anything? What if he disowns the debt? What if he doesn't owe it at all? Moreover, is the prætor wont to decide whether a debt is due?[291] Don't I, again, wish well to Fundanius? Am I not his friend? Am I not touched with compassion? No one more so: but in certain matters the course of law is so clear as to leave no place for personal feeling. And Flavius told me that expressions were used in the letter, which he said was yours, to the effect that you would "either thank them as friends, or make yourself disagreeable to them as enemies." In short, he was much annoyed, complained of it to me in strong terms, and begged me to write to you as seriously as I could. This I am doing, and I do strongly urge you again and again to withdraw your injunction to Flavius's agents about taking money from the estate, and not to lay any farther injunction on the Apollonidenses contrary to the rights of Flavius. Pray do everything you can for the sake of Flavius and, indeed, of Pompey also. I would not, upon my honour, have you think me liberal to him at the expense of any inequitable decision on your part: but I do entreat you to leave behind you some authority, and some memorandum of a decree or of a letter under your hand, so framed as to support the interests and cause of Flavius. For the man, who is at once very attentive to me, and tenacious of his own rights and dignity, is feeling extremely hurt that he has not prevailed with you either on the grounds of personal friendship or of legal right; and, to the best of my belief, both Pompey and Cæsar have, at one time or another, commended the interests of Flavius to you, and Flavius has written to you personally, and certainly I have. Wherefore, if there is anything which you think you ought to do at my request, let it be this. If you love me, take every care, take every trouble, and insure Flavius's cordial thanks both to yourself and myself. I cannot use greater earnestness in making any request than I use in this.

As to what you say about Hermias, it has been in truth a cause of much vexation to me. I wrote you a letter in a rather unbrotherly spirit, which I dashed off in a fit of

anger and now wish to recall, having been irritated by what Lucullus's freedman told me, immediately after hearing of the bargain. For this letter, which was not expressed in a brotherly way, you ought to have brotherly feeling enough to make allowance. As to Censorinus, Antonius, the Cassii, Scævola--I am delighted to hear from you that you possess their friendship. The other contents of that same letter of yours were expressed more strongly than I could have wished, such as your "with my ship at least well trimmed"[292] and your "die once for all."[293] You will find those expressions to be unnecessarily strong. My scoldings have always been very full of affection. They mention certain things for complaint,[294] but these are not important, or rather, are quite insignificant. For my part, I should never have thought you deserving of the least blame in any respect, considering the extreme purity of your conduct, had it not been that our enemies are numerous. Whatever I have written to you in a tone of remonstrance or reproach I have written from a vigilant caution, which I maintain, and shall maintain; and I shall not cease imploring you to do the same. Attalus of Hypæpa has begged me to intercede with you that you should not prevent his getting the money paid which has been decreed for a statue of Q. Publicius. In which matter I both ask as a favour and urge as a duty, that you should not consent to allow the honour of a man of his character, and so close a friend of mine, to be lowered or hindered by your means. Farthermore, Licinius, who is known to you, a slave of my friend Æsopus, has run away. He has been at Athens, living in the house of Patron the Epicurean as a free man. Thence he has made his way to Asia. Afterwards a certain Plato of Sardis, who is often at Athens, and happened to be at Athens at the time that Licinius arrived there, having subsequently learnt by a letter from Æsopus that he was an escaped slave, arrested the fellow, and put him into confinement at Ephesus; but whether into the public prison, or into a slave mill, we could not clearly make out from his letter. But since he is at Ephesus, I should be obliged if you would trace him in any manner open to you, and with all care either [send him] or bring him home with you. Don't take into consideration the fellow's value: such a good-for-nothing is worth very little; but Æsopus is so much vexed at his slave's bad conduct and audacity, that you can do him no greater favour than by being the means of his recovering him.

Now for the news that you chiefly desire. We have so completely lost the constitution that Cato,[295] a young man of no sense, but yet a Roman citizen and a Cato, scarcely got off with his life because, having determined to prosecute Gabinius for bribery, when the prætors could not be approached for several days, and refused to admit anyone to their presence, he mounted the rostra in public meeting and called Pompey an "unofficial dictator." No one ever had a narrower escape of being killed. From this you may see the state of the whole Republic. People, however, shew no inclination to desert my cause. They make wonderful professions, offers of service, and promises: and, indeed, I have the highest hopes and even greater spirit--so that I hope to get the better in the struggle, and feel confident in my mind that, in the present state of the Republic, I need not fear even an accident. However, the matter stands thus: if Clodius gives notice of an action against me, the whole of Italy will rush to my support, so that I shall come off with many times greater glory than before; but if he attempts the use of violence, I hope, by the zeal not only of friends

but also of opponents, to be able to meet force with force. All promise me the aid of themselves, their friends, clients, freedmen, slaves, and, finally, of their money. Our old regiment of loyalists is warm in its zeal and attachment to me. If there were any who had formerly been comparatively hostile or lukewarm, they are now uniting themselves with the loyalists from hatred to these despots. Pompey makes every sort of promise, and so does Cæsar: but my confidence in them is not enough to induce me to drop any of my preparations. The tribunes-designate are friendly to us. The consuls-designate make excellent professions. Some of the new prætors are very friendly and very brave citizens--Domitius, Nigidius, Memmius, Lentulus[296]--the others are loyalists also, but these are eminently so. Wherefore keep a good heart and high hopes. However, I will keep you constantly informed on particular events as they occur from day to day.

[Footnote 285: ἀλλ' αἰεί τινα φῶτα μέγαν καὶ καλὸν ἐδέγμην, "but I ever expected some big and handsome man" (Hom. _Odyss._ ix. 513). Statius had been manumitted by Quintus Cicero, and there had been much talk about it, as we have already heard. See XLIV, p. 109, and XLV, p. 111.]

[Footnote 286: Reading _quam pro civitate sua_ for _prope quam civitatem suam_. I think _prope_ and _pro_ (_pr_) might easily have been mistaken for each other, and if the order of _quam_ and _pro_ (mistaken for _prope_) were once changed, the case of _civitate_ would follow. Prof. Tyrrell, who writes the town _Blandus_, would read _molliorem_ for _nobiliorem_, and imagines a pun on the meaning of _Blandus_. But the name of the town seems certainly _Blaundus_, Βλαῦνδος, or Μλαῦνδος (Stephanus, Βλαῦδος); see Head, _Hist. Num._ p. 559: and Cicero, though generally punning on names, would hardly do so here, where he is making a grave excuse.]

[Footnote 287: Whom he called (Letter XXIX) "a madman and a knave."]

[Footnote 288: C. Vergilius Balbus, proprætor in Sicily (_pro Planc._ § 95; Letter XXIX). C. Octavius (father of Augustus), in Macedonia (see p. 78). L. Marcius Philippus was proprætor of Syria B.C. 61-59. The governor of Cilicia in the same period is not known; probably some one left in charge by Pompey.]

[Footnote 289: I have endeavoured to leave the English as ambiguous as the Latin. Cicero may mean that he has done some good, for at the end of Letter XXIX he says that Quintus has improved in these points, and had been better in his second than in his first year. On the other hand, the context here seems rather to point to the meaning "how _little_ good I have done!"--impatiently dismissing the subject of temper.]

[Footnote 290: These "requisitionary letters" were granted by a provincial governor to certain persons requiring supplies, payment of debts, or legal decisions in their favour in the provinces, or other privileges, and, if carelessly granted, were open to much abuse. Cicero, in his own government of Cilicia, boasted that he had signed none such in six months. The ill-wishers of Quintus had apparently got hold of a number of these letters signed by him (having been first written out by the suitors themselves and scarcely glanced at by him), and a selection of them published to prove his injustice or carelessness.]

[Footnote 291: The governor of a province would stand in such a matter in the place of the prætor in Rome, _i.e._, he would decide on questions of law, not of fact, as, whether a debt was due or not. However, Quintus perhaps only erred in the form of his injunction. He might forbid the deceased's estate being touched till the question of Fundanius's debt was decided; but in his letter he assumed (as he had no right to do) that the claim was good. Substantially it seems to me that Quintus was right, and certainly in his appeal to him Cicero does not follow his own injunction to disregard personal feelings.]

[Footnote 292: ὀρθὰν τὰν ναῦν. Quintus had written, it seems, defiantly about the slanders afloat against him, and had quoted two Greek proverbial sayings. The first is found in Stobæus, 108 (extract from Teles): "It was a fine saying of the pilot, 'At least, Poseidon, a ship well trimmed,'" _i.e._, if you sink my ship, she shall at least go down with honour. Quintus means, "Whatever my enemies may do afterwards, I will keep my province in a sound state as long as I am here."]

[Footnote 293: ἅπαξ θανεῖν, perhaps "Better to die once for all than give in to every unjust demand." The editors quote Æschylus, _Pr. V._ 769:

κρεῖσσον γὰρ εἰσάπαξ θανεῖν ἢ θὰς ἀπάσας ἡμέρας πάσχειν κακῶς.

But I don't feel sure that this is the passage alluded to.]

[Footnote 294: Reading _queruntur_ for _quæ sunt_.]

[Footnote 295: Gaius Cato, tribune B.C. 56.]

[Footnote 296: L. Domitius Ahenobarbus, who as prætor threatened Cæsar with impeachment, and as consul (B.C. 54) tried to get him recalled. He was, in 50-49, appointed Cæsar's successor in Gaul, defended Marseilles against him, and eventually fell in the battle of Pharsalia. P. Nigidius Figulus supported Cicero during the Catiline conspiracy. Gaius Memmius, ædile B.C. 60 (see p. 51). Lucretius dedicated his poem to him. L. Cornelius Lentulus Crus, consul B.C. 49, accused Clodius in B.C. 61, murdered in Africa after Pompey, B.C. 48.]

LIII (F XIII, 42)

TO L. CULLEOLUS (IN ILLYRICUM)

ROME[297]

[Sidenote: B.C. 59, ÆT. 47]

My friend L. Lucceius,[298] the most delightful fellow in the world, has expressed in my presence amazingly warm thanks to you, saying that you have given most complete and liberal promises to his agents. Since your words have roused such gratitude in him, you may imagine how grateful he will be for the thing itself, when, as I hope, you will have performed your promise. In any case the people of Bullis have shewn that they intend to do Lucceius right according to the award of Pompey. But

we have very great need of the additional support of your wishes, influence, and prætorian authority. That you should give us these I beg you again and again. And this will be particularly gratifying to me, because Lucceius's agents know, and Lucceius himself gathered from your letter to him, that no one's influence has greater weight with you than mine. I ask you once more, and reiterate my request, that he may find that to be the case by practical experience.

[Footnote 297: There is no direct means of dating these letters, as we have no other information as to the proconsulship of Culleolus. Illyricum was not always a separate government, but was sometimes under the governor of Macedonia, sometimes under the governor of Gaul. The indications of date are (1) Pompey is at home and often seen by Cicero, therefore it is not between the spring of B.C. 67 and the end of 62; (2) it is not later than March, B.C. 58, because from that time for ten years Cæsar was governor of Illyricum, and before he ceased to be so Pompey had left Italy, never to return. Even if Culleolus was not governor of Illyricum, but of Macedonia, the same argument holds good, for C. Antonius was in Macedonia B.C. 63-60, and Octavius from B.C. 60 to March, B.C. 59. That is, Culleolus could not have been in Macedonia while Pompey was in Italy till after March, B.C. 59.]

[Footnote 298: L. Lucceius, whom we have heard of before as a candidate for the consulship with Cæsar, and whom we shall hear of again as the author of a history of the social and civil wars (Sulla and Marius), and as being asked to write on Cicero's consulship. He was a close friend of Pompey, and took his side in B.C. 49 (Cæs. _B. C._ iii. 18). The people of Bullis owed Lucceius money, and Cicero asks for "mandatory letters" from Culleolus to get it.]

LIV (F XIII, 41)

TO L. CULLEOLUS (IN ILLYRICUM)

ROME

[Sidenote: B.C. 59, ÆT. 47]

In what you have done for the sake of L. Lucceius, I wish you to be fully aware that you have obliged a man who will be exceedingly grateful; and that, while this is very much the case with Lucceius himself, so also Pompey as often as he sees me--and he sees me very often--thanks you in no common terms. I add also, what I know will be exceedingly gratifying to you, that I am myself immensely delighted with your kindness to Lucceius. For the rest, though I have no doubt that as you acted before for my sake, so now, for the sake of your own consistency, you will abide by your liberal intentions, yet I reiterate my request to you with all earnestness, that what you first gave us reason to hope, and then actually carried out, you would be so good as to see extended and brought to a final completion by your means. I assure you, and I pledge my credit to it, that such a course will be exceedingly gratifying to both Lucceius and Pompey, and that you will be making a most excellent investment with them. About politics, and about the business going on here, and what we are all

thinking about, I wrote to you in full detail a few days ago, and delivered the letter to your servants. Farewell.

LETTERS IN EXILE

[Sidenote: B.C. 58. Coss., L. Piso, A. Gabinius.]

We have no record in Cicero's correspondence of the final measures taken by Clodius against him. We find him when the correspondence for this year opens on his way to exile: all his boasts of staying and fighting have been thrown to the winds. Clodius, indeed, had not simply done what Cicero expected at the worst--impeached him. He had gone more systematically to work. Among other measures calculated to win popularity, he proposed a modification of the _lex Ælia Fufia_, declaring it illegal for a magistrate to stop legislative _comitia_ by "watching the sky." Thus freed from one hindrance, he next proposed and carried a law for the prosecution of any magistrate who had put a citizen to death without trial (_qui indemnatos cives necavisset_). Cicero at once recognized his danger: if the people voted this law, a jury could scarcely fail to condemn. The triumvirs would do nothing. Pompey, after all his promises, avoided seeing Cicero as much as possible: Cæsar offered him a _legatio_ again; and though he spoke against giving the law a retrospective effect, he could not consistently object to the law itself, and shewed no sign of desiring to shelter Cicero, except on his consenting to leave Rome. Cicero then adopted the course which was open to all citizens threatened with a prosecution--that of going away from Rome--and started apparently with the view of going to Malta. Whether it was wise or not, Cicero afterwards lamented having taken this course, and thought that he had better have braved the danger and stood his trial. It at any rate facilitated the next move of Clodius, who proposed and carried a bill forbidding Cicero "fire and water" within 500 (afterwards reduced to 400) miles of Italy, and confiscating his property. Accordingly, Cicero had to go much farther than he had intended. He crossed from Brundisium to Dyrrachium, and proceeded along the _via Egnatia_ to its terminus at Thessalonica, where he spent the autumn, B.C. 58. In November, B.C. 58, he returned to Dyrrachium, ready for the recall which he heard was imminent. Meanwhile his town house was destroyed, its site made a _templum_, and a statue of Liberty set up in it, and his villas at Tusculum and Antium dismantled. The dangers of his position are not exaggerated in his letters, and may account for much of their melancholy tone. He had lost the protection of the laws, and any one of his many enemies meeting him might have killed him with practical impunity. He seems to have left Rome in April.

LV (A III, 3)

TO ATTICUS (AT ROME)

VIBO, APRIL

[Sidenote: B.C. 58, ÆT. 48]

I hope I may see the day when I shall thank you for having compelled me to remain alive! At present I thoroughly repent it. But I beg you to come and see me at Vibo at once, to which town I have for several reasons directed my journey.[299] But if you will only come there, I shall be able to consult you about my entire journey and exile. If you don't do so, I shall be surprised, but I feel sure you will.

[Footnote 299: Mod. _Monte Leone_, on the road to Rhegium, from which at this time Cicero meant to cross to Sicily, and thence to Malta.]

LVI (A III, 2)

TO ATTICUS (AT ROME)

NARES LUCANÆ,[300] APRIL

[Sidenote: B.C. 58, ÆT. 48]

The reason for having come this journey is that there was no place where I could be independent except on Sica's estate,[301] especially till the bill is emended,[302] and at the same time because I find that from this spot I can reach Brundisium, if you were only with me, but without you I cannot stay in those parts owing to Autronius.[303] At present, as I said in my previous letter, if you will come to me, we shall be able to form a plan for the whole business. I know the journey is troublesome, but the whole calamity is full of troubles. I cannot write more, I am so heart-broken and dejected. Take care of your health.

From Nares Lucanæ, 8 April.

[Footnote 300: Nares Lucanæ (_Monte Nero_), near the River Silarus, and on the _via Popilia_ (south-western branch of the _Appia_). Cicero has therefore come north again from Vibo, having given up the idea of Rhegium and Sicily, and making for Beneventum, and so by the _via Appia_ for Brundisium.]

[Footnote 301: A friend of Cicero's, of whose death at Brundisium we afterwards hear (_Fam._ xiv. 4, § 6).]

[Footnote 302: The bill originally named 500 miles as the distance from Italy. Before passing it had to be put up in public three weeks (_trinundinæ_), and meanwhile might be amended, and was amended to 400.]

[Footnote 303: P. Autronius Pætus, one of Catiline's confederates, who would injure Cicero if he could. Cicero would not be able to reach Epirus without coming within his reach; for he had been condemned for _ambitus_, and was in exile there or in Achaia. _Illas partes_=Epirus.]

LVII (A III, 4)

TO ATTICUS (AT ROME)

NEAR VIBO, APRIL

[Sidenote: B.C. 58, ÆT. 48]

I hope you will attribute my sudden departure from Vibo, whither I had asked you come, to my unhappiness rather than to fickleness. A copy of the bill for my ruin was brought to me, in which the correction of which I had been told was to the effect that I might legally remain anywhere beyond 400 miles. Since I was not allowed to go yonder,[304] I set out towards Brundisium before the day for carrying the bill had come, both to prevent Sica, in whose house I was staying, from being ruined,[305] and because I was prevented from residing at Malta. So now make haste to catch me up, if only I shall find any welcome there.[306] At present I receive kind invitations. But about the rest of my journey I am nervous. Truly, my dear Pomponius, I am very sorry I consented to live: in which matter you exercised the chief influence with me. But of these things when we meet. Only be sure and come.

[Footnote 304: To Malta. The proprætor of Sicily, C. Vergilius, opposed his going to Malta, which was in the province of Sicily, though it had a _primus_ of its own (_Planc._ 40; Plut. _Cic._ 32).]

[Footnote 305: Because of entertaining the condemned man, a special proviso in this law (Dio, xxxviii. 17).]

[Footnote 306: In Epirus, believing that Atticus will understand that his going to Brundisium means that he will go to Epirus: and as Atticus lives there, he naturally asks him to come to meet him. Epirus was, for certain purposes at least, in the province of Macedonia, and it depended on the governor, L. Appuleius Saturninus, what reception he would meet. His friend Plancius was quæstor.]

LVIII (A III, 1)

TO ATTICUS (AT ROME)

FROM THE NEIGHBOURHOOD OF THURIUM, ON THE WAY TO BRUNDISIUM, APRIL

[Sidenote: B.C. 58, ÆT. 48]

I always thought that it was of great importance to me that you should be with me: but when I read the bill, then, indeed, I understood that there could be nothing more desirable for me than that you should overtake me as soon as possible, in order that, if after quitting Italy I should have to travel through Epirus, I might avail myself of your protection and that of your friends; or, if I had to adopt any other plan, I might come to some definite resolution in accordance with your opinion. Wherefore I beg you to do your best to overtake me promptly, which will be easier for you to do since

the law about the province of Macedonia has now been passed.[307] I would urge you at greater length were it not that with you facts speak for me.

[Footnote 307: One of Clodius's concessions to the consuls, to keep them quiet, was to get Macedonia assigned by a _lex_ to L. Calpurnius Piso. As Atticus lived in what was practically part of the province, and had much business there, it was important to him to be on the spot, and try to influence the choice of a governor. That being over, he would not have so much to detain him in Rome.]

LIX (A III, 5)

TO ATTICUS (AT ROME)

THURIUM, 10 APRIL

[Sidenote: B.C. 58, ÆT. 48]

Terentia thanks you frequently and very warmly. That is a great comfort to me. I am the most miserable man alive, and am being worn out with the most poignant sorrow. I don't know what to write to you. For if you are at Rome, it is now too late for you to reach me; but if you are on the road, we shall discuss together all that needs to be discussed when you have overtaken me. All I ask you is to retain the same affection for me, since it was always myself you loved. For I am the same man: my enemies have taken what was mine, they have not taken myself. Take care of your health.

From Thurium, 10 April.

LX (A III, 6)

TO ATTICUS (AT ROME)

ON THE WAY TO TARENTUM, 18 APRIL

[Sidenote: B.C. 58, ÆT. 48]

I had felt certain of seeing you at Tarentum or Brundisium, and that was of importance to me in many respects: among others, as to my being able to stay in Epirus and consult you about the future. My disappointment in this is only another item in the long list of my misfortunes.[308] I mean to go to Asia, to Cyzicus for choice. I commend my family to you. I am very wretched and can scarcely support my life.

From near Tarentum, 17 April.

[Footnote 308: We suppose that Cicero has heard from Atticus that he is not going to be at Tarentum or Brundisium, for he writes before arriving at either.]

LXI (F XIV, 4)

TO TERENTIA, TULLIOLA, AND YOUNG CICERO (AT ROME)

BRUNDISIUM, 29 APRIL

[Sidenote: B.C. 58, ÆT. 48]

Yes, I do write to you less often than I might, because, though I am always wretched, yet when I write to you or read a letter from you, I am in such floods of tears that I cannot endure it. Oh, that I had clung less to life! I should at least never have known real sorrow, or not much of it, in my life. Yet if fortune has reserved for me _any_ hope of recovering at any time any position again, I was not utterly wrong to do so: if these miseries are to be permanent, I only wish, my dear, to see you as soon as possible and to die in your arms, since neither gods, whom you have worshipped with such pure devotion, nor men, whom I have ever served, have made us any return. I have been thirteen days at Brundisium in the house of M. Lænius Flaccus, a very excellent man, who has despised the risk to his fortunes and civil existence in comparison to keeping me safe, nor has been induced by the penalty of a most iniquitous law to refuse me the rights and good offices of hospitality and friendship. May I some time have the opportunity of repaying him! Feel gratitude I always shall. I set out from Brundisium on the 29th of April,[309] and intend going through Macedonia to Cyzicus. What a fall! What a disaster! What can I say? Should I ask you to come--a woman of weak health and broken spirit? Should I refrain from asking you? Am I to be without you, then? I think the best course is this: if there is any hope of my restoration, stay to promote it and push the thing on: but if, as I fear, it proves hopeless, pray come to me by any means in your power. Be sure of this, that if I have you I shall not think myself wholly lost. But what is to become of my darling Tullia? You must see to that now: I can think of nothing. But certainly, however things turn out, we must do everything to promote that poor little girl's married happiness and reputation. Again, what is my boy Cicero to do? Let him, at any rate, be ever in my bosom and in my arms.[310] I can't write more. A fit of weeping hinders me. I don't know how you have got on; whether you are left in possession of anything, or have been, as I fear, entirely plundered. Piso, as you say, I hope will always be our friend. As to the manumission of the slaves you need not be uneasy. To begin with, the promise made to yours was that you would treat them according as each severally deserved. So far Orpheus has behaved well, besides him no one very markedly so. With the rest of the slaves the arrangement is that, if my property is forfeited, they should become my freedmen, supposing them to be able to maintain at law that status.[311] But if my property remained in my ownership, they were to continue slaves, with the exception of a very few. But these are trifles. To return to your advice, that I should keep up my courage and not give up hope of recovering my position, I only wish that there were any good grounds for entertaining such a hope. As it is, when, alas! shall I get a letter from you? Who will bring it me? I would have

waited for it at Brundisium, but the sailors would not allow it, being unwilling to lose a favourable wind. For the rest, put as dignified a face on the matter as you can, my dear Terentia. Our life is over: we have had our day: it is not any fault of ours that has ruined us, but our virtue. I have made no false step, except in not losing my life when I lost my honours. But since our children preferred my living, let us bear everything else, however intolerable. And yet I, who encourage you, cannot encourage myself. I have sent that faithful fellow Clodius Philhetærus home, because he was hampered with weakness of the eyes. Sallustius seems likely to outdo everybody in his attentions. Pescennius is exceedingly kind to me; and I have hopes that he will always be attentive to you. Sica had said that he would accompany me; but he has left Brundisium. Take the greatest possible care of your health, and believe me that I am more affected by your distress than my own. My dear Terentia, most faithful and best of wives, and my darling little daughter, and that last hope of my race, Cicero, good-bye!

29 April, from Brundisium.

[Footnote 309: Reading _prid. Kal._ instead of _a. d. II. Kal._, which Tyrrell calls _audacius_ in Schutz. But absolute nonsense is not to be kept even for a MS.

(1) Cicero says that he has been thirteen days at Brundisium. In the next letter he tells Atticus he arrived on the 17th. That, in the Roman way of counting, brings it to _prid._ (29th).

(2) Either the date at the end of the letter is wrong, or _prid._ must be used here

(3) There is no such date properly as _a. d. II. Kal._ The day before _prid._ is _a. d. III_.

In regard to dates we must remember that Cicero is using the præ-Julian calendar, in which all months, except February, March, May, July, and October, had twenty-nine days. These last four had thirty-one and February twenty-eight.]

[Footnote 310: Cicero does not mean that young Marcus is to come to him at once, but that, when Tullia's marriage portion is settled, Terentia is to bring him with her if she comes. Really he didn't mean any of them to come, at any rate for a long while. Piso is Tullia's husband.]

[Footnote 311: If Cicero's property was confiscated, it might be held that the slaves went with it, and would be sold with it, and that his manumission of them was an evasion, which could not hold good at law. If his property was not confiscated, they were to remain in their status as slaves. See Letter CXCII.]

LXII (A III, 7)

TO ATTICUS (AT ROME)

BRUNDISIUM, 29 APRIL

[Sidenote: B.C. 58, ÆT. 48]

I arrived at Brundisium on the 17th of April. On that day your slaves delivered me your letter, and some other slaves, on the next day but one, brought me another. As to your invitation and advice to stay at your house in Epirus, your kindness is most gratifying, and far from being a novelty. It is a plan that would have exactly suited my wishes, if I might have spent all my time there: for I loathe a crowd of visitors, I can scarcely bear the light, and that solitude, especially in a spot so familiar, would have been the reverse of disagreeable. But to put up there as a mere stage in my journey! In the first place it is far out of my way, and in the next it is only four days from Autronius and the rest, and in the third place you are not there. Had I been going to reside permanently, a fortified castle would have been an advantage, but to one only passing through it is unnecessary. Why, if I had not been afraid, I should have made for Athens[312]--there were circumstances that made me much wish to go--but as it is, I have enemies in the neighbourhood, you are not there, and I fear they[313] might hold even that town not to be the legal distance from Italy, nor do you mention by what day I am to expect you. As to your urging me to remain alive, you carry one point--that I should not lay violent hands upon myself: the other you cannot bring to pass--that I should not regret my policy and my continuance in life. For what is there to attach me to it, especially if the hope which accompanied me on my departure is non-existent? I will not attempt to enumerate all the miseries into which I have fallen through the extreme injustice and unprincipled conduct, not so much of my enemies, as of those who were jealous of me, because I do not wish to stir up a fresh burst of grief in myself, or invite you to share the same sorrow. I say this deliberately--that no one was ever afflicted with so heavy a calamity, that no one had ever greater cause to wish for death; while I have let slip the time when I might have sought it most creditably. Henceforth death can never heal, it can only end my sorrow.[314] In politics I perceive that you collect all circumstances that you think may inspire me with a hope of a change: and though they are insignificant, yet, since you will have it so, let us have patience. In spite of what you say, you will catch us up if you make haste. For I will either come into Epirus to be near you, or I will travel slowly through Candavia.[315] My hesitation about Epirus is not caused by vacillation on my part, but by the fact that I do not know where I am likely to see my brother. As to him, I neither know how I am to see him, nor how I shall let him go. That is the greatest and most distressing of all my distresses. I would indeed have written to you oftener, and at greater length, had it not been that sorrow, while it has affected all parts of my intellect, has above all entirely destroyed my faculty for this kind of writing. I long to see you. Take care of your health.

Brundisium, 29 April.

[Footnote 312: He means that had it not been for enemies in Greece and Epirus, he should not only have gone as far south as Epirus, but farther--to Athens. There is a good deal to be said for Schutz's reading, _Achaiam_ for _Athenas_, but as the MS. reading can be explained, it is safer to keep it.]

[Footnote 313: The Clodian party at Rome. "That town" is Athens.]

[Footnote 314: "I have lost my chance of dying with honour; henceforth death may end my grief, but cannot heal my damaged reputation." _Reliqua tempora_, _i.e._, other opportunities of suicide.]

[Footnote 315: A mountain range in Illyria, over which the _via Egnatia_ passes (mod. _Elbassán_).]

LXIII (A III, 8)

TO ATTICUS (AT ROME)

THESSALONICA, 29 MAY

[Sidenote: B.C. 58, ÆT. 48]

I wrote to you at Brundisium, when on the point of starting, the reasons for my not going to Epirus: namely, the proximity of Achaia, which was full of enemies of the most unscrupulous character, and secondly, the difficulty of leaving it when I wished to resume my journey. Added to this, while I was at Dyrrachium two messages reached me: the first, that my brother was coming from Ephesus to Athens by ship; the second, that he was coming through Macedonia by land. Accordingly, I sent a message to meet him at Athens, telling him to come thence to Thessalonica. I myself continued my journey, and arrived at Thessalonica on the 23rd of May, but have no certain intelligence about his journey except that he had left Ephesus some time ago. At present I am feeling very nervous as to what steps are being taken at Rome. Although you say in one of your letters, dated the 15th of May, that you hear that he will be vigorously prosecuted, in another you say that things are calming down. But then the latter is dated a day before the former; which makes me all the more anxious. So while my own personal sorrow is every day tearing my heart and wearing out my strength, this additional anxiety indeed scarcely leaves me any life at all. However, the voyage itself was very difficult, and he perhaps, being uncertain where I was, has taken some other course. For my freedman Phaetho saw nothing of him. Phaetho was driven by the wind from Ilium[316] to Macedonia, and met me at Pella. How formidable other circumstances are I am fully aware, and I don't know what to say to you. I fear everything, nor is there any misery which would not seem possible in my present unfortunate position. Miserable as I still am in the midst of my heavy trials and sorrows, now that this anxiety is added to them, I remain at Thessalonica in a state of suspense without venturing upon any step whatever.

Now to answer you. I have not seen Cæcilius Trypho. I comprehend from your letter what you and Pompey have been saying. That any movement in politics is impending I cannot see as clearly as you either see, or perhaps only suggest for my consolation. For, as the case of Tigranes was passed over, all hope of a rupture is at an end.[317] You bid me thank Varro: I will do so; also Hypsæus.[318] As to your advice not to go farther off till the _acta_[319] of the month of May reach me, I think I shall do as you suggest. But where to stay? I have not yet come to any decision. And indeed my mind is so uneasy about Quintus, that I can determine on nothing.

However, I will let you know immediately. From the incoherent nature of my letters I think you will understand the agitation of my mind, caused not so much by my misery, though I have been overwhelmed by an incredible and unparalleled calamity, as by the recollection of my blunder. For by whose unprincipled advice I was egged on and betrayed you certainly now perceive,[320] and oh that you had perceived it before, and had not given your whole mind to lamentation along with me! Wherefore, when you are told that I am prostrate and unmanned with grief, consider that I am more distressed at my own folly than at the result of it, in having believed a man whom I did not think to be treacherous. My writing is impeded both by the recollection of my own disasters, and by my alarm about my brother. Yes, pray look after and direct all the affairs you mention. Terentia expresses the warmest gratitude to you. I have sent you a copy of the letter which I have written to Pompey.

Thessalonica, 29 May.

[Footnote 316: Reading _ab Ilio_ with Madvig for _ab illo_.]

[Footnote 317: Tigranes, a son of the king of Armenia, was brought to Rome by Pompey to adorn his triumph, and put under the care of Lucius Flavius. This prince was, for a bribe, released by Clodius by a trick, and the attempt to get him away led to a scuffle in which lives were lost. Pompey regarded this as a slight upon himself, and his partisan, the consul Gabinius, attempted to prevent it. But both were hustled in the forum and treated with insults. The hope of a breach in the triumvirate arose from the supposition that Clodius had the support of Cæsar in his high-handed proceeding (Dio, xxxviii. 30; Plut. _Pomp._ 48; Ascon. 47).]

[Footnote 318: P. Plautius Hypsæus, who had been Pompey's quæstor and on intimate terms with him. He had been, it seems, interesting himself on Cicero's behalf.]

[Footnote 319: The gazette of public transactions and measures passed in the senate, which was sent round to the provinces. We shall hear of it again.]

[Footnote 320: The next letter shews that he means Hortensius. The blunder which he complains of having committed, by the advice of Hortensius, is that of having left Rome, rather than stay and brave the impeachment.]

LXIV (A III, 9)

TO ATTICUS (AT ROME)

THESSALONICA, 13 JUNE

[Sidenote: B.C. 58, ÆT. 48]

My brother Quintus having quitted Asia before the 1st of May, and arrived at Athens on the 15th, he would have to make great haste to prevent proceedings being commenced against him in his absence, supposing there to be some one who was not content with the misfortunes we have already sustained. Accordingly, I preferred that

he should hurry on to Rome rather than come to me; and at the same time--for I will tell you the truth, and it will give you a notion of the extent of my wretchedness--I could not make up my mind to see him, devotedly attached to me as he is, and a man of most tender feelings, or to obtrude upon him my miseries and ruin in all their wretchedness, or to endure their being seen by him. And I was besides afraid of what certainly would have happened--that he would not have had the resolution to leave me. I had ever before my eyes the time when he would either have to dismiss his lictors,[321] or be violently torn from my arms. The prospect of this bitter pain I have avoided by the other bitter pain of not seeing my brother. It is all you, who advised me to continue living, that have forced me into this distressful position. Accordingly, I am paying the penalty of my error. However, I am sustained by your letter, from which I easily perceive how high your own hopes are. This did give me some consolation, but only, after all, till you passed from the mention of Pompey to the passage beginning "Now try and win over Hortensius and men of that sort." In heaven's name, my dear Pomponius, don't you yet perceive by whose means, by whose treachery, by whose dishonest advice, I have been ruined? But all this I will discuss with you when we meet. I will only say this much, which I think you know: it is not my enemies, but my jealous rivals, that have ruined me. Now, however, if things are really as you hope, I will keep up my spirits, and will rely upon the hope on which you bid me rely. But if, as I myself think, this proves illusory, what I was not allowed to do at the best time shall be done at a worse.[322] Terentia often expresses her gratitude to you. For myself one of my miseries also consists in fear--the business of my unhappy brother. If I could only know how it stands, I should know what I ought to do. Personally, the hope of the advantages and of the letters you mention keeps me still, as you advise, at Thessalonica. If I get any news, I shall know what I ought to do about the rest. Yes, if, as you say in your letter, you left Rome on the 1st of June, you will soon see us. I have sent you a letter which I wrote to Pompey.

Thessalonica, 15 June.

[Footnote 321: Because, though a provincial governor retained his lictors till he reached Rome, he was bound to go straight home or dismiss them.]

[Footnote 322: _I.e._, suicide.]

LXV (Q FR I, 3)

TO HIS BROTHER QUINTUS (ON HIS WAY TO ROME)

THESSALONICA, 15 JUNE

[Sidenote: B.C. 58, ÆT. 48]

Brother! Brother! Brother! did you really fear that I had been induced by some angry feeling to send slaves to you without a letter? Or even that I did not wish to see you? I to be angry with you! Is it possible for me to be angry with you? Why, one would think that it was you that brought me low! Your enemies, your unpopularity,

that miserably ruined me, and not I that unhappily ruined you! The fact is, the much-praised consulate of mine has deprived me of you, of children, country, fortune; from you I should hope it will have taken nothing but myself. Certainly on your side I have experienced nothing but what was honourable and gratifying: on mine you have grief for my fall and fear for your own, regret, mourning, desertion. _I_ not wish to see you? The truth is rather that I was unwilling to be seen by you. For you would not have seen your brother--not the brother you had left, not the brother you knew, not him to whom you had with mutual tears bidden farewell as he followed you on your departure for your province: not a trace even or faint image of him, but rather what I may call the likeness of a living corpse. And oh that you had sooner seen me or heard of me as a corpse! Oh that I could have left you to survive, not my life merely, but my undiminished rank! But I call all the gods to witness that the one argument which recalled me from death was, that all declared that to some extent your life depended upon mine. In which matter I made an error and acted culpably. For if I had died, that death itself would have given clear evidence of my fidelity and love to you. As it is, I have allowed you to be deprived of my aid, though I am alive, and with me still living to need the help of others; and my voice, of all others, to fail when dangers threatened my family, which had so often been successfully used in the defence of the merest strangers. For as to the slaves coming to you without a letter, the real reason (for you see that it was not anger) was a deadness of my faculties, and a seemingly endless deluge of tears and sorrows. How many tears do you suppose these very words have cost me? As many as I know they will cost you to read them! Can I ever refrain from thinking of you or ever think of you without tears? For when I miss you, is it only a brother that I miss? Rather it is a brother of almost my own age in the charm of his companionship, a son in his consideration for my wishes, a father in the wisdom of his advice! What pleasure did I ever have without you, or you without me? And what must my case be when at the same time I miss a daughter: How affectionate! how modest! how clever! The express image of my face, of my speech, of my very soul! Or again a son, the prettiest boy, the very joy of my heart? Cruel inhuman monster that I am, I dismissed him from my arms better schooled in the world than I could have wished: for the poor child began to understand what was going on. So, too, your own son, your own image, whom my little Cicero loved as a brother, and was now beginning to respect as an elder brother! Need I mention also how I refused to allow my unhappy wife--the truest of helpmates--to accompany me, that there might be some one to protect the wrecks of the calamity which had fallen on us both, and guard our common children? Nevertheless, to the best of my ability, I did write a letter to you, and gave it to your freedman Philogonus, which, I believe, was delivered to you later on; and in this I repeated the advice and entreaty, which had been already transmitted to you as a message from me by my slaves, that you should go on with your journey and hasten to Rome. For, in the first place, I desired your protection, in case there were any of my enemies whose cruelty was not yet satisfied by my fall. In the next place, I dreaded the renewed lamentation which our meeting would cause: while I could not have borne your departure, and was afraid of the very thing you mention in your letter--that you would be unable to tear yourself away. For these reasons the supreme pain of not seeing you--and nothing more painful or more wretched could, I think, have happened to the most affectionate and

united of brothers--was a less misery than would have been such a meeting followed by such a parting. Now, if you can, though I, whom you always regarded as a brave man, cannot do so, rouse yourself and collect your energies in view of any contest you may have to confront. I hope, if my hope has anything to go upon, that your own spotless character and the love of your fellow citizens, and even remorse for my treatment, may prove a certain protection to you. But if it turns out that you are free from personal danger, you will doubtless do whatever you think can be done for me. In that matter, indeed, many write to me at great length and declare that they have hopes; but I personally cannot see what hope there is, since my enemies have the greatest influence, while my friends have in some cases deserted, in others even betrayed me, fearing perhaps in my restoration a censure on their own treacherous conduct. But how matters stand with you I would have you ascertain and report to me. In any case I shall continue to live as long as you shall need me, in view of any danger you may have to undergo: longer than that I cannot go on in this kind of life. For there is neither wisdom nor philosophy with sufficient strength to sustain such a weight of grief. I know that there has been a time for dying, more honourable and more advantageous; and this is not the only one of my many omissions, which, if I should choose to bewail, I should merely be increasing your sorrow and emphasizing my own stupidity. But one thing I am not bound to do, and it is in fact impossible--remain in a life so wretched and so dishonoured any longer than your necessities, or some well-grounded hope, shall demand. For I, who was lately supremely blessed in brother, children, wife, wealth, and in the very nature of that wealth, while in position, influence, reputation, and popularity, I was inferior to none, however distinguished--I cannot, I repeat, go on longer lamenting over myself and those dear to me in a life of such humiliation as this, and in a state of such utter ruin. Wherefore, what do you mean by writing to me about negotiating a bill of exchange? As though I were not now wholly dependent on your means! And that is just the very thing in which I see and feel, to my misery, of what a culpable act I have been guilty in squandering to no purpose the money which I received from the treasury in your name,[323] while you have to satisfy your creditors out of the very vitals of yourself and your son. However, the sum mentioned in your letter has been paid to M. Antonius, and the same amount to Cæpio. For me the sum at present in my hands is sufficient for what I contemplate doing. For in either case--whether I am restored or given up in despair--I shall not want any more money. For yourself, if you are molested, I think you should apply to Crassus and Calidius. I don't know how far Hortensius is to be trusted. Myself, with the most elaborate pretence of affection and the closest daily intimacy, he treated with the most utter want of principle and the most consummate treachery, and Q. Arrius helped him in it: acting under whose advice, promises, and injunctions, I was left helpless to fall into this disaster. But this you will keep dark for fear they might injure you. Take care also--and it is on this account that I think you should cultivate Hortensius himself by means of Pomponius--that the epigram on the _lex Aurelia_[324] attributed to you when candidate for the ædileship is not proved by false testimony to be yours. For there is nothing that I am so afraid of as that, when people understand how much pity for me your prayers and your acquittal will rouse, they may attack you with all the greater violence. Messalla I reckon as really attached to you: Pompey I regard as still

pretending only. But may you never have to put these things to the test! And that prayer I would have offered to the gods had they not ceased to listen to prayers of mine. However, I do pray that they may be content with these endless miseries of ours; among which, after all, there is no discredit for any wrong thing done--sorrow is the beginning and end, sorrow that punishment is most severe when our conduct has been most unexceptionable. As to my daughter and yours and my young Cicero, why should I recommend them to you, my dear brother? Rather I grieve that their orphan state will cause you no less sorrow than it does me. Yet as long as you are uncondemned they will not be fatherless. The rest, by my hopes of restoration and the privilege of dying in my fatherland, my tears will not allow me to write! Terentia also I would ask you to protect, and to write me word on every subject. Be as brave as the nature of the case admits.

Thessalonica, 13 June.

[Footnote 323: See pp. 92, 107.]

[Footnote 324: Quintus was a candidate in B.C. 66 for the ædileship of the following year. The _lex Aurelia_, which divided the juries between the senators, equites, and _tribuni ærarii_, was passed in Pompey's first consulship, B.C. 70. As this was the compromise in the matter of the _iudicia_ favoured by Pompey, Hortensius, and the like, an attack on it would be likely to give offence.]

LXVI (A III, 10)

TO ATTICUS (AT ROME)

THESSALONICA, 17 JUNE

[Sidenote: B.C. 58, ÆT. 48]

The public transactions up to the 25th of May I have learnt from your letter. I am waiting for the rest, as you advised, at Thessalonica; and when they arrive I shall be better able to decide where to be. For if there is any reason, if any action is being taken, if I shall see any hopes, I shall either wait in the same place or go to your house; but if, as you say, these hopes have vanished into air, I shall look out for something else. At present you do not give me any indication except the disagreement of those friends of yours, which, however, arises between them on every kind of subject rather than myself. Therefore I don't see what good it is to me. However, as long as you all will have me hope, I shall obey you. For as to your scoldings so frequent and so severe, and your saying that I am faint-hearted, I would ask you what misery is there so heavy as not to be included in my disfranchisement? Did anyone ever fall from such a high position, in so good a cause, with such endowments of genius, wisdom and popularity, with such powerful supports from all loyalists? Can I forget what I was, and not feel what I am? Of what honour, of what glory, of what children, of what means, of what a brother I am deprived? This last, indeed, to draw your attention to a new kind of disaster--though I valued him, and

always had done so, more than myself--I have avoided seeing, lest I should behold his grief and mourning, or lest I--whom he had left in the highest prosperity--should obtrude myself upon him in a state of ruin and humiliation. I pass over the other particulars that are past bearing: for I am prevented by my tears. And here, let me ask, am I to be blamed for my grief, or for the unfortunate mistake of not retaining these advantages (and I could easily have done so, had not a plot for my destruction been hatched within my own walls), or at least of not losing them without losing my life at the same time? My purpose in writing these words is that you should rather console me, as you do, than think me deserving of correction or chiding; and the reason of the comparative brevity of my letters is, in the first place, that I am hindered by outbursts of sorrow, and, in the second place, that I have news to expect from Rome rather than any to communicate myself. But when that news arrives I will let you know my plans. Pray, as you have done hitherto, write to me on as many subjects as possible, that I may not be ignorant of any possible thing there is to know.

Thessalonica, 17 June.

LXVII (A III, 11)

TO ATTICUS (AT ROME)

THESSALONICA, 27 JUNE

[Sidenote: B.C. 58, ÆT. 48]

I have been kept at Thessalonica up to this time as well by your letter and some good news (which, however, did not rest on the best authority), and the expectation of hearing from you all at Rome, as by the fact that you advised my doing so. When I receive the letters which I expect, if there turns out to be the hope which rumour brings me, I shall go to your house;[325] if otherwise, I will inform you of what I have done. Pray go on, as you are doing, and help me by your exertions, advice, and influence. Cease now consoling me, but yet don't chide me; for when you do that, I fail to recognize your affection and regret! Yet I believe you to be so distressed yourself at my wretchedness, that it is not within anyone's power to console you. Give your support to Quintus, my best and kindest of brothers. Pray write to me fully on everything.

27 June.

[Footnote 325: _I.e._, to the house of Atticus at Buthrotum.]

LXVIII (A III, 12)

TO ATTICUS (AT ROME)

THESSALONICA, 17 JULY

[Sidenote: B.C. 58, ÆT. 48]

Well, you argue earnestly as to what hope is to be entertained, and especially through the action of the senate, and yet you mention that the clause of the bill is being posted up, in virtue of which the subject is forbidden to be mentioned in the senate. Accordingly, not a word is said about it. In these circumstances you find fault with me for distressing myself, when the fact is I am already more distressed than anybody ever was, as you know very well. You hold out hope as a consequence of the elections. What hope can there be with the same man tribune, and a consul-designate who is my enemy?[326] But you have dealt me a blow in what you say about my speech having got abroad.[327] Pray do your best to heal that wound, as you express it. I did indeed write one some time ago, in a fit of anger at what he had first composed against me; but I had taken such pains to suppress it, that I thought it would never get into circulation. How it has leaked out I cannot think. But since the occasion never arose for my having a word of dispute with him, and since it appears to me to be more carelessly written than my other speeches, I think it might be maintained not to be by me. Pray look after this if you think I can do anything to remedy the mischief; but if my ruin is inevitable, I don't so much care about it. I am still lying idle in the same place, without conversation, without being able to think. Though, as you say, I have "intimated" to you my desire that you should come to me, yet it is now clear to me[328] that you are doing me useful service where you are, but could not give me even a word of relief here. I cannot write any more, nor have I anything to say: I am rather waiting to hear from you all.

Thessalonica, 17 July.

[Footnote 326: Clodius was not re-elected, and Q. Cæcilius Metellus Nepos, who had as tribune (B.C. 63-62) been hostile to Cicero, now as consul supported Pompey in befriending Cicero.]

[Footnote 327: The speech in the senate _in Curionem et Clodium_, _i.e._, against the elder C. Curio, who had been Clodius's advocate in B.C. 61 on the charge _de incesto_. Fragments only of it are preserved. They are sufficiently violent. Cicero suggests repudiating the authorship, because the speech had never been delivered, and therefore was not necessarily intended for publication. There is no special reason for abusing Cicero's character on this account. If some enemy had got hold of the MS. and published it without his consent, it was not really the expression of his deliberate sentiments.]

[Footnote 328: Reading _nunc tamen intellego_ for _si donatam ut intellego_, which is meaningless. There may be latent in _si donatam_ some proper name, as _Dodonam_ or _Macedoniam_, but it is not possible to extract it now. _Istic_, as usual, means "where you are," _i.e._, at Rome.]

LXIX (A III, 14)

TO ATTICUS (AT ROME)

THESSALONICA, 21 JULY

[Sidenote: B.C. 58, ÆT. 48]

From your letter I am full of anxiety to hear what Pompey's view is of my case, or what he professes to be his view. The elections, I presume, are over; and when they were over you say that he was of opinion that my case should be mooted. If I seem foolish to you for entertaining hopes, it is at your bidding that I do so: yet I know that you have in your letters been usually inclined rather to check me and my hopes. Now pray write distinctly what your view is. I know that I have fallen into this distress from numerous errors of my own. If certain accidents have in any degree corrected those errors, I shall be less sorry that I preserved my life then and am still living. Owing to the constant traffic along the road[329] and the daily expectation of political change, I have as yet not removed from Thessalonica. But now I am being forced away, not by Plancius--for he, indeed, wishes to keep me here--but by the nature of the place, which is not at all calculated for the residence of a disfranchised man in such a state of sorrow. I have not gone to Epirus, as I had said I would, because all of a sudden the messages and letters that arrived have all indicated it to be unnecessary for me to be in the immediate neighbourhood of Italy. From this place, as soon as I have heard something about the elections, I shall set my face towards Asia, but to what particular part I am not yet certain: however, you shall know.

Thessalonica, 21 July.

[Footnote 329: The _via Egnatia_, the road across Macedonia, which was one of the great channels of communication between Rome and the East, and which terminated at Thessalonica.]

LXX (A III, 13)

TO ATTICUS (AT ROME)

THESSALONICA, 5 AUGUST

[Sidenote: B.C. 58, ÆT. 48]

As to my having written you word that I meant to go to Epirus, I changed my plan when I saw that my hope was vanishing and fading away, and did not remove from Thessalonica. I resolved to remain there until I heard from you on the subject mentioned in your last letter, namely, that there was going to be some motion made in the senate on my case immediately after the elections, and that Pompey had told you so. Wherefore, as the elections are over and I have no letter from you, I shall consider it as though you had written to say that nothing has come of it, and I shall not feel annoyed at having been buoyed up by a hope which did not keep me long in suspense. But the movement, which you said in your letter that you foresaw as likely to be to my advantage, people arriving here tell me will not occur.[330] My sole

remaining hope is in the tribunes-designate: and if I wait to see how that turns out, you will have no reason to think of me as having been wanting to my own cause or the wishes of my friends. As to your constantly finding fault with me for being so overwhelmed by my misfortune, you ought to pardon me when you see that I have sustained a more crushing blow than anyone you have ever seen or heard of. As to your saying that you are told that my intellect in even affected by grief, that is not so; my intellect is quite sound. Oh that it had been as much so in the hour of danger! when I found those, to whom I thought my safety was the dearest object of their life, most bitterly and unfeelingly hostile: who, when they saw that I had somewhat lost my balance from fear, left nothing undone which malice and treachery could suggest in giving me the final push, to my utter ruin. Now, as I must go to Cyzicus, where I shall get letters more rarely, I beg you to write me word all the more carefully of everything you may think I ought to know. Be sure you are affectionate to my brother Quintus: if in all my misery I still leave him with rights undiminished, I shall not consider myself utterly ruined.

5 August.

[Footnote 330: The probable split among the triumvirs, alluded to in Letter LXIII.]

LXXI (Q FR I, 4)

TO HIS BROTHER QUINTUS (AT ROME)

THESSALONICA, AUGUST

[Sidenote: B.C. 58, ÆT. 48]

I beg you, my dear brother, if you and all my family have been ruined by my single misfortune, not to attribute it to dishonesty and bad conduct on my part, rather than to short-sightedness and the wretched state I was in. I have committed no fault except in trusting those whom I believed to be bound by the most sacred obligation not to deceive me, or whom I thought to be even interested in not doing so. All my most intimate, nearest and dearest friends were either alarmed for themselves or jealous of me: the result was that all I lacked was good faith on the part of my friends and caution on my own.[331] But if your own blameless character and the compassion of the world prove sufficient to preserve you at this juncture from molestation, you can, of course, observe whether any hope of restoration is left for me. For Pomponius, Sestius, and my son-in-law Piso have caused me as yet to stay at Thessalonica, forbidding me, on account of certain impending movements, to increase my distance. But in truth I am awaiting the result more on account of their letters than from any firm hope of my own. For what can I hope with an enemy possessed of the most formidable power, with my detractors masters of the state, with friends unfaithful, with numbers of people jealous? However, of the new tribunes there is one, it is true, most warmly attached to me--Sestius--and I hope Curius, Milo, Fadius, Fabricius; but still there is Clodius in violent opposition, who even when out of office will be able to stir up the passions of the mob by the help of that same gang,

and then there will be found some one also to veto the bill.

Such a state of things was not put before me when I was leaving Rome, but I often used to be told that I was certain to return in three days with the greatest _éclat_. "What made you go, then?" you will say. What, indeed! Many circumstances concurred to throw me off my balance--the defection of Pompey, the hostility of the consuls, and of the prætors also, the timidity of the _publicani_, the armed bands. The tears of my friends prevented me seeking refuge in death, which would certainly have been the best thing for my honour, the best escape from unbearable sorrows. But I have written to you on this subject in the letter I gave to Phaetho. Now that you have been plunged into griefs and troubles, such as no one ever was before, if the compassion of the world can lighten our common misfortune, you will, it seems, score a success beyond belief! But if we are both utterly ruined--ah me!--I shall have been the absolute destruction of my whole family, to whom I used to be at least no discredit! But pray, as I said in a previous letter to you, look into the business, test it thoroughly, and write to me with the candour which our situation demands, and not as your affection for me would dictate. I shall retain my life as long as I shall think that it is in your interest for me to do so, or that it ought to be preserved with a view to future hope. You will find Sestius most friendly to us, and I believe that Lentulus, the coming consul, will also be so for your sake. However, deeds are not so easy as words. You will see what is wanted and what the truth is. On the whole, supposing that no one takes advantage of your unprotected position and our common calamity, it is by your means, or not at all, that something may be effected. But even if your enemies have begun to annoy you, don't flinch: for _you_ will be attacked by legal process, not by swords. However, I hope that this may not occur. I beg you to write me back word on all subjects, and to believe that though I have less spirit and resource than in old times, I have quite as much affection and loyalty.

[Footnote 331: Reading _defuit_ for _fuit_.]

LXXII (A III, 15)

TO ATTICUS (AT ROME)

THESSALONICA, 17 AUGUST

[Sidenote: B.C. 58, ÆT. 48]

On the 13th of August I received four letters from you: one in which you urge me in a tone of reproof to be less weak; a second, in which you say that Crassus's freedman has told you about my anxiety and leanness; a third, in which you describe the proceedings in the senate; a fourth on the subject of Varro's assurances to you as to the friendly feelings of Pompey.

To the first my answer is this: though I do grieve, yet I keep all my mental faculties, and it is precisely that which vexes me--I have no opportunity and no one with whom to employ so sound an intellect. For if you cannot find yourself separated

from one individual like myself without sorrow, what do you think must be my case, who am deprived both of you and of everyone else? And if you, while still in possession of all your rights, miss me, to what an extent do you think those rights are missed by me? I will not enumerate the things of which I have been despoiled, not only because you are not ignorant of them, but also lest I should reopen my own sorrow. I only assert this, that never did anyone in an unofficial position possess such great advantages, or fall into such great miseries. Moreover, lapse of time not only does not soften this grief, it even enhances it. For other sorrows are softened by age, this one cannot but be daily increased both by my sense of present misery and the recollection of my past life. For it is not only property or friends that I miss, but myself. For what am I? But I will not allow myself either to wring your soul with my complaints, or to place my hands too often on my wounds. For as to your defence of those whom I said had been jealous of me, and among them Cato, I indeed think that he was so far removed from that crime, that I am above all things sorry that the pretended zeal of others had more influence with me than his honesty. As for your excuses for the others, they ought to be excused in my eyes if they are so in yours. But all this is an old story now. Crassus's freedman, I think, spoke without any real sincerity. In the senate you say that the debate was satisfactory. But what about Curio? Hasn't he read that speech? I can't make out how it got into circulation! But Axius, in describing the proceedings of the same day, does not speak so highly of Curio.[332] But he may be omitting something; I know you have certainly not written anything except what actually occurred. Varro's talk gives me some hope of Cæsar, and would that Varro himself would throw himself into the cause! Which he certainly will do, both of his own accord and under pressure from you. For myself, if fortune ever grants me the enjoyment of you all and of my country, I will at least take care that you shall, above all the rest of my friends, have cause to be glad: and I will so discharge all the duties of affection and friendship, which (to confess the truth) have not heretofore been conspicuous, that you shall regard me as restored to yourself as much as to my brother and my children. If I have in any way sinned in my conduct to you, or rather since I have done so, pardon me. For I have sinned more grievously against myself. And I do not write this to you because I know you not to feel deeply for my misfortune: but certainly if it had been a matter of _obligation_ with you, and had always been so, to love me as much as you do and have done, you would never have allowed me to lack that judgment with which you are so well supplied,[333] nor would you have allowed me to be persuaded that the passing of the bill for the "colleges" was to our advantage.[334] But you did nothing but weep over my sorrow, as though you were my second self. This was indeed a sign of your affection: but what might have been done, if I had earned it at your hands--the spending by you of days and nights in thinking out the course I ought to have pursued--that was omitted, owing to my own culpable imprudence, not yours. Now if, I don't say you only, but if there had been anyone to urge me, when alarmed at Pompey's ungenerous answer,[335] not to adopt that most degrading course--and you are the person that, above all others, could have done it--I should either have died honourably, or we should have been living to-day triumphant. In this you must forgive me. For I find much greater fault with myself, and only call you in question afterwards, as at once my second self and the sharer in my error; and, besides, if I am ever restored, our

mistake will seem still less in my eyes, and to you at least I shall be endeared by your own kindness, since there is none on my side.[336] There is something in the suggestion you mentioned as having been made in your conversation with Culleo as to a _privilegium_,[337] but by far the better course is to have the law repealed. For if no one vetoes it, what course can be safer? But if anyone is found to prohibit its passing, he will be equally able to veto a decree of the senate. Nor is there need for the repeal of anything else. For the previous law did not touch me: and if, on its publication, I had chosen to speak in its favour, or to ignore it, as it ought to have been ignored, it could not have done me any harm at all.[338] It was at this point first that my judgment failed to assist me, nay, even did me harm. Blind, blind, I say, was I in laying aside my senator's toga, and in entreating the people; it was a fatal step to take before some attack had been begun upon me by name.[339] But I am harping on the past: it is, however, for the purpose of advising you, if any action is to be taken, not to touch that law, in which there are many provisions in the interests of the people. But it is foolish for me to be laying down rules as to what you are to do and how. I only wish that something may be done! And it is on that point that your letter displays much reserve: I presume, to prevent my being too much agitated by despair. For what action do you see possible to be taken, or in what way? Through the senate? But you yourself told me that Clodius had fixed upon the doorpost of the senate-house a certain clause in the law, "that it might neither be put to the house nor mentioned."[340] How could Domitius,[341] therefore, say that he would bring it before the house? How came it about also that Clodius held his tongue, when those you mention in your letter both spoke on the subject and demanded that a motion should be brought in? But if you go to the people--can it be carried except with the unanimous approval of the tribunes? What about my property? What about my house? Will it be possible to have it restored? Or, if that cannot, how can I be? Unless you see these difficulties on the way to be solved, what is the hope to which you invite me? But if, again, there is no hope, what sort of life is there for me? So I await at Thessalonica the gazette of the proceedings of the 1st of August, in accordance with which I shall decide whether to take refuge on your estate, in order at once to avoid seeing people I don't want to see, to see you, according to your letter, and to be nearer at hand in case of any motion being made (and this I understand is in accordance with your view and that of my brother Quintus), or to depart for Cyzicus. Now, my dear Pomponius, since you imparted to me none of your wisdom in time to save me, either because you had made up your mind that I had judgment enough of my own, or that you owed me nothing beyond being by my side; and since, betrayed, beguiled, and hurried into a snare as I was, I neglected all my defences, abandoned and left Italy, which was everywhere on the _qui vive_ to defend me, and surrendered myself and mine into the hands of enemies while you looked on and said nothing, though, even if you were not my superior in mental power, you were at least in less of a fright: now, if you can, raise the fallen, and in that way assist me! But if every avenue is barred, take care that I know that also, and cease at length either to scold me or to offer your kindly-meant consolations. If I had meant to impeach your good faith, I should not have chosen your roof, of all others, to which to trust myself: it is my own folly that I blame for having thought that your love for me was exactly what I could have wished it to be:[342] for if that had been so, you would have displayed the

same good faith, but greater circumspection; at least, you would have held me back when plunging headlong into ruin, and would not have had to encounter the labours which you are now enduring in saving the wrecks of my fortunes. Wherefore do be careful to look into, examine thoroughly, and write fully everything that occurs, and resolve (as I am sure you do) that I shall be _some one_, since I cannot now be the man I was and the man I might have been; and lastly, believe that in this letter it is not you, but myself that I have accused. If there are any people to whom you think that letters ought to be delivered in my name, pray compose them and see them delivered.

17 August.

[Footnote 332: Or, as Prof. Tyrrell suggests, "does not quote Curio to that effect." I think, however, that Cicero does not use _laudo_ in this sense except in connexion with _auctorem_, _auctores_, and even then generally with a subsense, at least, of commendation. The speech was composed to be delivered against the elder Curio and Clodius (see p. 155), but was never delivered. Its personal tone made it dangerous now.]

[Footnote 333: Cicero means that Atticus acted with the emotion spontaneously arising from his affection, but not with the caution which he would have shewn in doing a thing which he was under some obligation to do.]

[Footnote 334: The ancient "colleges" or "clubs" had been gradually increasing, and a decree of the senate in B.C. 64 had declared certain of them unlawful. But Clodius had overridden this decree by a _lex_ early in B.C. 58, and many new ones were formed, which he used for his political purposes (_pro Sest._ § 55; Dio, xxxviii. 13).]

[Footnote 335: That he could do nothing against the wishes of Cæsar (_Att._ x. 4, § 3; cp. _in Pis._ § 77). According to Plutarch, Pompey avoided a personal interview (_Cic._ 31).]

[Footnote 336: The kindness has been all on the side of Atticus, who will therefore be attached to the object of it--for the benefactor loves more than the benefited.]

[Footnote 337: A _privilegium_ was a law referring to a particular person, which was forbidden by the twelve tables, and if it was shewn to be unconstitutional a decree of the senate could declare it void. But Cicero seems to think that such a proceeding of the senate would give a possibility of raising the question afresh.]

[Footnote 338: The first bill named no one, but enacted that "anyone who had put a citizen to death uncondemned should be forbidden fire and water." The second, "that M. Tullius be forbidden fire and water." Cicero says that the former did not touch him, I suppose, because it could not be retrospective. This is in accordance with the view of Cæsar, who approved of the law, but said that old sores ought not to be ripped up--οὐ μὴν καὶ προσήκειν ἐπὶ παρεληλυθόσι τοιοῦτόν τινα νόμον συγγράφεσθει (Dio, xxxviii. 17).]

[Footnote 339: Because it shewed that he considered himself as coming under the new law.]

[Footnote 340: Letter LXVIII, p. 154.]

[Footnote 341: L. Domitius Ahenobarbus, who was a prætor this year.]

[Footnote 342: Though Cicero uses _tantum ... quantum_ here, he does not mean that Atticus failed to love him enough--that would have been too unreasonable. In a certain way he means that he loved him too much. He allowed his spontaneous feelings full vent, without acting with the cool wisdom which he would have shewn in fulfilling a duty or moral obligation. It is more fully expressed above. Still, it was a difficult thing to say, and he doesn't succeed in making it very clear.]

LXXIII (A III, 16)

TO ATTICUS (AT ROME)

THESSALONICA, 19 AUGUST

[Sidenote: B.C. 58, ÆT. 48]

My whole journey is in suspense till I receive letters from you all of the 1st of August. For if there turns out to be any hope, I am for Epirus: if not, I shall make for Cyzicus or some other place. Your letter is cheerful[343] indeed, but at the same time, the oftener I read it, the more it weakens the suggested ground for hope, so that it is easy to see that you are trying to minister at once to consolation and to truth. Accordingly, I beg you to write to me exactly what you know and exactly what you think.

19 August.

[Footnote 343: Reading _lætæ_ for _lectæ_.]

LXXIV (A III, 17)

TO ATTICUS (AT ROME)

THESSALONICA, 4 SEPTEMBER

[Sidenote: B.C. 58, ÆT. 48]

News of my brother Quintus of an invariably gloomy nature reached me from the 3rd of June up to the 29th of August. On that day, however, Livineius, a freedman of Lucius Regulus, came to me by the direction of Regulus himself.[344] He announced that absolutely no notice whatever had been given of a prosecution, but that there had, nevertheless, been some talk about the son of C. Clodius.[345] He also brought me a letter from my brother Quintus. But next day came the slaves of Sestius, who brought me a letter from you not so positive in regard to this alarm as the conversation of Livineius had been. I am rendered very anxious in the midst of my

own endless distress, and the more so as Appius[346] has the trial of the case. As to other circumstances mentioned in the same letter by you in connexion with my hopes, I understand that things are going less well than other people represent them. I, however, since we are now not far from the time at which the matter will be decided, will either go to your house or will still remain somewhere in this neighbourhood. My brother writes me word that his interests are being supported by you more than by anyone else. Why should I urge you to do what you are already doing? or offer you thanks which you do not expect? I only pray that fortune may give us the opportunity of enjoying our mutual affection in security. I am always very anxious to get your letters, in which I beg you not to be afraid of your minuteness boring me, or your plain speaking giving me pain.

4 September.

[Footnote 344: L. Livineius Regulus, whom Cicero (_F._ xiii. 60) calls a very intimate friend, and says that his freedman Trypho stood his friend in the hour of need. He seems to have been condemned (in B.C. 56?) for something, but he afterwards served under Iulius Cæsar (_B. Afr._ § 9). The freedman's full name was L. Livineius Trypho.]

[Footnote 345: About Appius acting as prosecutor of Quintus. He was a nephew of P. Clodius. See Letter CCXXII.]

[Footnote 346: Appius Claudius Pulcher, brother of P. Clodius, was prætor-designate for B.C. 57, and had allotted to him the _quæstio de rebus repetundis_ (_pro Sest._ § 78). He was consul B.C. 54.]

LXXV (A III, 18)

TO ATTICUS (AT ROME)

THESSALONICA (SEPTEMBER)

[Sidenote: B.C. 58, ÆT. 48]

You raised no little flutter in my mind when you said in your letter that Varro had assured you as a friend that Pompey would certainly take up my case, and that as soon as he had received a letter from Cæsar, which he was expecting, he would even name some one to formally carry out the business. Was that all mere talk, or was the letter from Cæsar hostile? Is there some ground for hope? You mentioned, too, that Pompey had also used the expression "after the elections." Pray, as you can conceive the severity of the troubles by which I am prostrated, and as you must think it natural to your kindness to do so, inform me fully as to the whole state of my case. For my brother Quintus, dear good fellow, who is so much attached to me, fills his letters with hopeful expressions, fearing, I suppose, my entirely losing heart. Whereas your letters vary in tone; for you won't have me either despair or cherish rash hopes. I beseech you to let me know everything as far as you can detect the truth.

LXXVI (A III, 19)

TO ATTICUS (AT ROME)

THESSALONICA, 15 SEPTEMBER

[Sidenote: B.C. 58, ÆT. 48]

As long as my letters from you all continued to be of such a nature as to keep expectation alive, I was bound to Thessalonica by hope and eager longing: afterwards, when all political measures for this year appeared to me to be over, I yet determined not to go to Asia, both because a crowd of people is disagreeable to me, and because, in case any movement was set on foot by the new magistrates, I was unwilling to be far off. Accordingly, I resolved to go to your house in Epirus, not because the natural features of the country mattered to me, shunning as I do the light of day altogether, but because it will be most grateful to my feelings to set out from a harbour of yours to my restoration; and, if that restoration is denied me, there is no place where I shall with greater ease either support this most wretched existence or (which is much better) rid myself of it. I shall be in a small society: I shall shake off the crowd. Your letters have never raised me to such a pitch of hope as those of others; and yet my hopes have always been less warm than your letters. Nevertheless, since a beginning has been made in the case, of whatever sort and from whatever motive, I will not disappoint the sad and touching entreaties of my best and only brother, nor the promises of Sestius and others, nor the hopes of my most afflicted wife, nor the entreaties of my most unhappy Tulliola, as well as your own loyal letter. Epirus will furnish me with a road to restoration or to that other alternative mentioned above. I beg and entreat of you, Titus Pomponius, as you see that I have been despoiled by the treachery of men of all that most adds splendour to life, of all that can most gratify and delight the soul, as you see that I have been betrayed and cast away by my own advisers, as you understand that I have been forced to ruin myself and my family--help me by your compassion, and support my brother Quintus, who is still capable of being saved; protect Terentia and my children. For myself, if you think it possible that you may see me at Rome, wait for me; if not, come to see me if you can, and make over to me just so much of your land as may be covered by my corpse. Finally, send slaves to me with letters as soon and as often as possible.

15 September.

LXXVII (A III, 20)

TO ATTICUS (AT ROME)

THESSALONICA, 4 OCTOBER

Cicero greets Q. Cæcilius Pomponianus Atticus, son of Quintus.[347]

[Sidenote: B.C. 58, ÆT. 48]

That this is now the case, and that your uncle has done what he ought to have done, I approve in the strongest manner possible: I will say I am "glad," when circumstances shall admit of my using such a word. Ah me! how well everything would have been going if my own spirit, my own judgment, and the good faith of those on whom I relied had not failed me! But I won't review these circumstances lest I increase my sorrow. Yet I feel sure that it occurs to your mind what a life ours was, how delightful, how dignified. To recover this, in the name of fortune, bestow all your energies, as I know you do, and take care that I keep the birthday of my return in your delightful house with you and my family. For this hope and expectation, though now put before me as being very strong, I yet wished to wait in your home in Epirus; but my letters are such as to make me think it better not to be in the same neighbourhood. What you say in your letter about my town house and about Curio's speech is exactly true. Under the general act of restoration, if only that is accorded me, everything will be included, of which I care for nothing more than for my house. But I don't give you any precise injunction, I trust myself wholly to your affection and honour. I am very glad to hear that you have extricated yourself from every embarrassment in view of so large an inheritance. As to your promise to employ your means in securing my restoration, though I am in all points assisted by you above all others, yet I quite see what a support that is, and I fully understand that you are undertaking and can carry on many departments of my cause, and do not need to be asked to do so. You tell me not to suspect that your feelings have been at all affected by acts of commission or omission on my part towards you--well, I will obey you and will get rid of that anxiety; yet I shall owe you all the more from the fact that your kind consideration for me has been on a higher level than mine for you. Please tell me in your letters whatever you see, whatever you make out, whatever is being done in my case, and exhort all your friends to help in promoting my recall. The bill of Sestius[348] does not shew sufficient regard for my dignity or sufficient caution. For the proposed law ought to mention me by name, and to contain a carefully expressed clause about my property. Pray see to it.

Thessalonica, 4 October.

[Footnote 347: Cicero gives Atticus his full name, rather playfully, as it was a new acquisition. His uncle, Q. Cæcilius, dying this year, left him heir to a large fortune, and adopted him in his will (Nep. _Att._ 5). He therefore, according to custom, took his uncle's _prænomen_ and _nomen_, Q. Cæcilius, retaining his own _nomen_ in an adjectival form (Pomponianus) as a _cognomen_, just as C. Octavius became, by his uncle's will, _C. Iulius Cæsar Octavianus_. His additional name of Atticus remained as before, and in ordinary life was his usual designation. See p. 15.]

[Footnote 348: Sestius, tribune-elect for B.C. 57, would come into office 10th December, B.C. 58. He means to bring a bill before the people for Cicero's recall, and a draft of it has been sent to Cicero, who criticises it as not entering sufficiently into details, though he had before said that a general _restitutio in integrum_ covered

everything; but perhaps this bill only repealed the Clodian law as a _privilegium_, without mentioning anything else.]

LXXVIII (F XIV, 2)

TO TERENTIA (AT ROME)

THESSALONICA, 5 OCTOBER

[Sidenote: B.C. 58, ÆT. 48]

Greetings to Terentia, and Tulliola, and Cicero. Don't suppose that I write longer letters to anyone else, unless some one has written at unusual length to me, whom I think myself bound to answer. For I have nothing to write about, and there is nothing at such a time as this that I find it more difficult to do. Moreover, to you and my dear Tulliola I cannot write without many tears. For I see you reduced to the greatest misery--the very people whom I desired to be ever enjoying the most complete happiness, a happiness which it was my bounden duty to secure, and which I should have secured if I had not been such a coward. Our dear Piso I love exceedingly for his noble conduct. I have to the best of my ability encouraged him by letter to proceed, and thanked him, as I was bound to do. I gather that you entertain hopes in the new tribunes. We shall have reason to depend on that, if we may depend on Pompey's goodwill, but yet I am nervous about Crassus. I gather that you have behaved in every respect with the greatest courage and most loyal affection, nor am I surprised at it; but I grieve that the position should be such that my miseries are relieved by such heavy ones on your part. For a kind friend of ours, Publius Valerius, has told me in a letter which I could not read without violent weeping, how you had been dragged from the temple of Vesta to the Valerian bank.[349] To think of it, my dear, my love! You from whom everybody used to look for help![350] That you, my Terentia, should now be thus harassed, thus prostrate in tears and humiliating distress! And that this should be brought about by my fault, who have preserved the rest of the citizens only to perish myself! As to what you say about our town house, or rather its site, I shall not consider myself fully restored, until it has also been restored for me. However, these things are not yet within our grasp. I am only sorry that you, impoverished and plundered as you are, should be called upon to bear any part of the present expenses. Of course, if the business is successfully accomplished we shall get everything back: but if the same evil fortune keeps us down, will you be so foolish as to throw away even the poor remains of your fortune?[351] I beseech you, my life, as far as expense goes, allow others to bear it, who are well able if they are only willing to do so; and do not, as you love me, try your delicate constitution. For I have you day and night before my eyes: I see you eagerly undertaking labours of every kind: I fear you cannot endure them. Yet I see that everything depends on you! Wherefore, to enable us to attain what you hope and are striving for, attend carefully to your health. _I_ don't know to whom to write except to those who write to me, or to those about whom you say something in your letters. I will not go farther off, since that is your wish, but

pray send me a letter as often as possible, especially if there is anything on which we may safely build our hope. Good-bye, my loves, good-bye!

Thessalonica, 5 October.

[Footnote 349: Terentia, whose half-sister was a Vestal, seems to have taken sanctuary with the Vestals, as did the mother and sister of Augustus in B.C. 43. The special indignity of which Cicero complains is that she had been forced to leave the sanctuary and appear at the bank of Valerius, but for what purpose we cannot now tell. It is suggested that it was to make some solemn declaration as to her husband's property, some of which she may be supposed to have tried to conceal. The term _ducta esses_ is that applied to prisoners led through the streets, but we may regard it as used _ad invidiam_.]

[Footnote 350: In securing her husband's advocacy.]

[Footnote 351: Mention is made of Terentia's separate estate in Letters XXX and LXXXI.]

LXXIX (A III, 21)

TO ATTICUS (AT ROME)

THESSALONICA, 28 OCTOBER

[Sidenote: B.C. 58, ÆT. 48]

It is exactly thirty days to the writing of this letter since I have heard from you. Well, my present intention is, as I have told you, to go into Epirus and there by preference to await whatever may turn up. I beg you to write to me with the utmost openness whatever you perceive to be the state of the case, and whether it is for good or evil, and also to send a letter, as you say, in my name to whomsoever you think it necessary.

28 October.

LXXX (A III, 22)

TO ATTICUS (AT ROME)

THESSALONICA AND DYRRACHIUM, 27 NOVEMBER

[Sidenote: B.C. 58, ÆT. 48]

Though my brother Quintus and Piso have given me a careful account of what has been done, yet I could have wished that your engagements had not hindered you from writing fully to me, as has been your custom, what was on foot and what you understood to be the facts. Up to the present, Plancius[352] keeps me here by his

generous treatment, though I have several times already made an effort to go to Epirus. He has conceived a hope, which I do not share, that we may possibly quit the province together: he hopes that that may redound greatly to his credit. But as soon as news shall come that soldiers are on their way hither,[353] I shall have to insist on quitting him. And as soon as I do that I will at once send you word, that you may know where I am. Lentulus,[354] in his own peculiar zeal for my cause, which he manifests by action and promises and writings, gives me some hope of Pompey's friendly feelings. For you have often told me in your letters that the latter was wholly devoted to him. As to Metellus,[355] my brother has written me word that by your agency as much has been accomplished as he had hoped. My dear Pomponius, fight hard that I may be allowed to live with you and my own family, and write me everything that occurs. I am heavy with sorrow and regret for all my dear ones, who have always been dearer to me than myself. Take care of your health.

* * * * *

Dyrrachium, 27 November. As, if I went through Thessaly into Epirus, I should have been likely to be a very long time without any intelligence, and as I have warm friends in the people of Dyrrachium, I have come to them, after writing the former part of this letter at Thessalonica. When I turn my face from this town towards your house I will let you know, and for your part I would have you write me everything with the utmost particularity, whatever its nature. I am now expecting some definite step or the abandonment of all hope.

[Footnote 352: Cn. Plancius, quæstor in Macedonia, whose kindness Cicero lauds highly when defending him in B.C. 54.]

[Footnote 353: The forces of the new governor, L. Calpurnius Piso, who was to have Macedonia after his consulship, and would be sending his troops on before him.]

[Footnote 354: P. Cornelius Lentulus, consul-designate for B.C. 57.]

[Footnote 355: Q. Cæcilius Metellus Nepos, consul-designate for B.C. 57. See pp. 22-23.]

LXXXI (F XIV, 1)

TO TERENTIA

PARTLY WRITTEN AT THESSALONICA, PARTLY AT DYRRACHIUM, 28 NOVEMBER

[Sidenote: B.C. 58, ÆT. 48]

Greetings to his Terentia, Tulliola, and Cicero. I learn, both from the letters of many and the conversation of all whom I meet, that you are shewing a virtue and courage surpassing belief; and that you give no sign of fatigue in mind or body from your labours. Ah me! To think that a woman of your virtue, fidelity, uprightness, and kindness should have fallen into such troubles on my account! And that my little

Tullia should reap such a harvest of sorrow from the father, from whom she used to receive such abundant joys! For why mention my boy Cicero, who from the first moment of conscious feeling has been made aware of the bitterest sorrows and miseries? And if, as you say, I had thought these things the work of destiny, I could have borne them somewhat more easily, but they were really all brought about by my own fault, in thinking myself beloved by those who were really jealous of me, and in not joining those who really wanted me.[356] But if I had followed my own judgment, and had not allowed the observations of friends, who were either foolish or treacherous, to have such great influence with me, we should have been living at the height of bliss. As it is, since friends bid us hope, I will do my best to prevent my weakness of health from failing to second your efforts. I fully understand the magnitude of the difficulty, and how much easier it will turn out to have been to stay at home than to get back. However, if we have all the tribunes on our side, if we find Lentulus as zealous as he appears to be, if, finally, we have Pompey and Cæsar, there is no reason to despair. About our slaves,[357] we will do what you say is the opinion of our friends. As to this place, by this time the epidemic has taken its departure; but while it lasted, it did not touch me. Plancius, the kindest of men, desires me to stay with him and still keeps me from departing. I wanted to be in a less frequented district in Epirus, to which neither Hispo[358] nor soldiers would come, but as yet Plancius keeps me from going; he hopes that he may possibly quit his province for Italy in my company. And if ever I see that day, and come once more into your arms, and if I ever recover you all and myself, I shall consider that I have reaped a sufficient harvest both of your piety and my own. Piso's[359] kindness, virtue, and affection toward us all are so great that nothing can surpass them. I hope his conduct may be a source of pleasure to him, a source of glory I see clearly that it will be. I did not mean to find fault with you about my brother Quintus, but I wished that you all, especially considering how few there are of you, should be as closely united as possible. Those whom you wished me to thank I have thanked, and told them that my information came from you. As to what you say in your letter, my dear Terentia, about your intention of selling the village, alas! in heaven's name, what will become of you? And if the same ill-fortune continues to pursue us, what will become of our poor boy? I cannot write the rest--so violent is my outburst of weeping, and I will not reduce you to the same tearful condition. I only add this: if my friends remain loyal to me, there will be no lack of money; if not, you will not be able to effect our object out of your own purse. In the name of our unhappy fortunes, beware how we put the finishing stroke to the boy's ruin. If he has something to keep him from absolute want, he will need only moderate character and moderate luck to attain the rest. See to your health, and mind you send me letter-carriers, that I may know what is going on and what you are all doing. I have in any case only a short time to wait. Give my love to Tulliola and Cicero. Good-bye.

Dyrrachium,[360] 27 November.

* * * * *

P.S.--I have come to Dyrrachium both because it is a free state, very kindly disposed to me, and the nearest point to Italy.[361] But if the crowded condition of

the place offends me, I shall take myself elsewhere and I will write you word.

[Footnote 356: The party of the triumvirs.]

[Footnote 357: See Letter LXI, p. 142.]

[Footnote 358: A centurion or other officer in the army of Piso crossing to Macedonia. But the name is otherwise unknown, and some have thought that it is an intentional disguise for the name of _Piso_ himself.]

[Footnote 359: Cicero's son-in-law.]

[Footnote 360: The greater part of this letter was evidently written at Thessalonica. Cicero appears to have put the date and place of departure to it after arriving at Dyrrachium, and then added a postscript to explain why he had come there.]

[Footnote 361: As a _libera civitas_ Dyrrachium had the _ius exilii_, and would not be filled with Roman officials. The crowded state of the town--by which Cicero means crowded with Romans--would arise from its being the usual place of disembarkation from Rome across the north of the Greek peninsula to the East. There was doubtless always a large traffic between it and Brundisium, but at this time of year, when sailing would be, if possible, avoided, he might hope to find it somewhat less crowded.]

LXXXII (A III, 23)

TO ATTICUS (AT ROME)

DYRRACHIUM, 29 NOVEMBER

[Sidenote: B.C. 58, ÆT. 48]

On the 26th of November I received three letters from you, one dated 25th of October, in which you exhort me to await the month of January with a good heart, and write at length on such topics as you think tend to encourage my hopes--as to the zeal of Lentulus, the goodwill of Metellus, and the general policy of Pompey. In the second letter, contrary to your usual custom, you append no date, but give sufficient indication of the time of its writing. For the law having been published by the eight tribunes, you mention that you wrote this letter on the very same day, that is, the 29th of October,[362] and you say what good you think that publication has done. In regard to which, if my restoration is to be despaired of along with this law, I would have you think in your affection for me that my fruitless exertions are pitiable rather than foolish: but if there is any ground for hope, try and secure that my cause may be hereafter supported with greater attention to details by the new magistrates. For this bill of the old tribunes[363] had three clauses, of which the one relating to my return was carelessly drafted. For nothing is restored to me except my citizenship and senatorial rank: which, in the circumstances of my position, suffices me, but it does not escape your observation what special provisions will have to be made, and in

what manner. The second clause is the usual one--"If anything be done in virtue of this law against other laws."[364] But observe, my dear Pomponius, what the object of the third clause is, and by whom it has been put in. For you know that Clodius provided that it should be scarcely possible, or rather altogether impossible, for his law to be deprived of validity either by senate or people. But you must see that the penal provisions of such laws as are repealed have never been observed. For in that case hardly any law could be repealed at all--for there is no law which does not hedge itself in by trying to make repeal difficult--but when a law is repealed, so is the clause meant to prevent its repeal. Now, though this is in truth the case, since it has been the universal doctrine and practice, our eight tribunes introduced the following clause: _If any provision is contained in this bill which, in view of existing laws or plebiscites_ (_i.e._, Clodius's law), _it is not lawful without incurring penalty, now or heretofore, whether to publish, repeal, amend, or supersede, or whereby he who has so published or amended would be liable to penalty or fine--such provision is not enacted by this law_. And observe that this contingency did not touch the case of those eight tribunes, for they were not bound by a law emanating from their own body.[365] Which makes one the more suspicious of some evil intention, since they have added a clause which did not affect themselves, but was against my interests: so that the new tribunes, if they happened to be somewhat timid, would think it still more necessary to employ the clause.[366] And Clodius did not fail to notice this. For he said in the public meeting of November the third, that by this clause a limit to their legal powers was laid down for the tribunes-designate; and yet it cannot escape your notice that in no law is there a clause of the sort: whereas, if it had been necessary, everybody would have employed it in repealing a law. How this point came to escape Ninnius[367] and the rest, pray find out, and who introduced the clause, and how it was that the eight tribunes did not hesitate to bring my case before the senate--which implies that they did not think that clause of the law binding--and were yet so cautious in their proposal for its repeal, as to be afraid (though not personally liable) of what need not be taken into consideration, even by those who are bound by the law. This clause I would not have the new tribunes propose; however, let them only carry something, no matter what: I shall be content with the single clause recalling me, so long only as the business is done. I have for some time been feeling ashamed of writing at such length; for I fear by the time you read this it will be all up with any hopes, so that this minute criticism of mine may seem pitiable to you and ridiculous to others. But if there is any ground for hope, pray look at the law which Visellius[368] drafted for T. Fadius. I like it very much: for that of our friend Sestius, which you say has your approbation, I don't like.

The third letter is dated 12th of November, in which you explain with wisdom and care what the circumstances are which seem to cause a postponement of my affair, and about Crassus, Pompey, and the rest. Accordingly, I beg you, if there is any hope that the matter can be settled by the zeal of the loyalists, by the exertion of influence, and by getting numbers on our side, to endeavour to break through all difficulties at a rush, to throw your whole weight into the attempt, and incite others to do the same. But if, as I perceive from your conjectures as well as my own, there is no hope left, I beg and implore you to cherish my brother Quintus, whom I to our mutual misery

have ruined, and not allow him to do anything to himself which would be to the detriment of your sister's son. My little Cicero, to whom, poor boy! I leave nothing but prejudice and the blot upon my name, pray protect to the best of your power. Terentia, that most afflicted of women, sustain by your kindness. I shall start for Epirus as soon as I have received news of the first days of the new tribunate.[369] Pray describe fully to me in your next letter what sort of a beginning is made.

29 November.

[Footnote 362: This bill for Cicero's recall would, of course, be vetoed by Clodius, and could not therefore be passed, but it would probably influence the action of the new tribunes for B.C. 57.]

[Footnote 363: _I.e._, the tribunes of B.C. 58.]

[Footnote 364: _I.e._, securing indemnity to the proposers if there is a technical breach of existing laws, something like the common clause--"all statutes to the contrary notwithstanding."]

[Footnote 365: The Clodian law.]

[Footnote 366: Because they would not be protected as the previous tribunes were by the fact of the Clodian law (which alone was contravened) having emanated from their own _collegium_.]

[Footnote 367: L. Quadratus Ninnius, tribune-elect. On the 1st of June next he brought forward the question of Cicero's restoration in the senate.]

[Footnote 368: Cicero's cousin, C. Visellius Varro, a learned jurisconsult (_Brut._ § 264; 1 _Verr._ § 71).]

[Footnote 369: The tribunes came into office on the 10th of December, nearly three weeks before the consuls, prætors, etc., who entered office on the 1st of January.]

LXXXIII (F XIV, 3)

TO TERENTIA (AT ROME)

DYRRACHIUM, 29 NOVEMBER

[Sidenote: B.C. 58, ÆT. 48]

Greetings to his Terentia, Tulliola, and Cicero. I have received three letters from the hands of Aristocritus, which I almost obliterated with tears. For I am thoroughly weakened with sorrow, my dear Terentia, and it is not my own miseries that torture me more than yours--and yours, my children! Moreover, I am more miserable than you in this, that whereas the disaster is shared by us both, yet the fault is all my own. It was my duty to have avoided the danger by accepting a legation,[370] or to resist it by careful management and the resources at my command, or to fall like a brave man. Nothing was more pitiful, more base, or more unworthy of myself than the line I

actually took. Accordingly, it is with shame as well as grief that I am overpowered. For I am ashamed of not having exhibited courage and care to a most excellent wife and most darling children. I have, day and night, before my eyes the mourning dresses, the tears of you all, and the weakness of your own health, while the hope of recall presented to me is slender indeed. Many are hostile, nearly all jealous. To expel me had been difficult, to keep me out is easy. However, as long as you entertain any hope, I will not give way, lest all should seem lost by my fault. As to your anxiety for my personal safety, that is now the easiest thing in the world for me, for even my enemies desire me to go on living in this utter wretchedness. I will, however, do as you bid me. I have thanked the friends you desired me to thank, and I have delivered the letters to Dexippus, and have mentioned that you had informed me of their kindness. That our Piso has shewn surprising zeal and kindness to us I can see for myself, but everybody also tells me of it. God grant that I may be allowed, along with you and our children, to enjoy the actual society of such a son-in-law! For the present our one remaining hope is in the new tribunes, and that, too, in the first days of their office; if the matter is allowed to get stale, it is all over with us. It is for that reason that I have sent Aristocritus back to you at once, in order that you may be able to write to me on the spot as to the first official steps taken, and the progress of the whole business; although I have also given Dexippus orders to hurry back here at once, and I have sent a message to my brother to despatch letter-carriers frequently. For the professed object of my being at Dyrrachium at the present juncture is that I may hear as speedily as possible what is being done; and I am in no personal danger, for this town has always been defended by me. When I am told that enemies are on their way here I shall retire into Epirus. As to your coming to me, as you say you will if I wish it--for my part, knowing that a large part of this burden is supported by you, I should like you to remain where you are. If you succeed in your attempt I must come to you: but if, on the other hand--but I needn't write the rest. From your first, or at most, your second letter, I shall be able to decide what I must do. Only be sure you tell me everything with the greatest minuteness, although I ought now to be looking out for some practical step rather than a letter. Take care of your health, and assure yourself that nothing is or has ever been dearer to me than you are. Good-bye, my dear Terentia, whom I seem to see before my eyes, and so am dissolved in tears. Good-bye!

29 November.

[Footnote 370: Either the _libera legatio_ or the acting _legatio_ in Gaul, both of which Cæsar offered him.]

LXXXIV (A III, 24)

TO ATTICUS (AT ROME)

DYRRACHIUM, 10 DECEMBER

[Sidenote: B.C. 58, ÆT. 48]

When, some time ago, I received letters from you all stating that with your consent the vote for the expenses of the consular provinces had been taken, though I was nervous as to the result of the measure, I yet hoped that you saw some good reason for it beyond what I could see: but when I was informed by word of mouth and by letters that this policy of yours was strongly censured, I was much disturbed, because the hope which I had cherished, faint as it was, seemed completely destroyed. For if the tribunes are angry with us, what hope can there be? And, indeed, they seem to have reason to be angry, since they, who had undertaken my cause, have not been consulted on the measure; while by your assenting to it they have been deprived of all the legitimate influence of their office: and that though they profess that it was for my sake that they wished to have the vote for the outfit of the consuls under their control, not in order to curtail their freedom of action, but in order to attach them to my cause:[371] that as things stand now, supposing the consuls to choose to take part against me, they can do so without let or hindrance, but if they wish to do anything in my favour they are powerless if the tribunes object. For as to what you say in your letter, that, if your party had not consented, they would have obtained their object by a popular vote--that would have been impossible against the will of the tribunes.[372] So I fear, on the one hand, that I have lost the favour of the tribunes; and on the other, even supposing that favour to remain, that the tie has been lost by which the consuls were to be attached. Added to this is another disadvantage, the abandonment of the weighty resolution--as, indeed, it was reported to me--that the senate should pass no decree until my case had been decided, and that, too, in the case of a measure which was not only not urgent, but even contrary to custom and unprecedented. For I think there is no precedent for voting the provincial outfit of magistrates when still only designate: so that, since in a matter like this the firm line[373] on which my cause had been taken up has been infringed, there is now no reason why any decree should not be passed. It is not surprising that those friends to whom the question was referred assented, for it was difficult to find anyone to express an opinion openly against proposals so advantageous to two consuls. It would in any case have been difficult not to be complaisant to such a warm friend as Lentulus, or to Metellus after the exceedingly kind way in which he put aside his quarrel with me. But I fear that, while failing to keep a hold on them, we have lost the tribunes. How this matter has occurred, and in what position the whole business stands, I would have you write to me, and in the same spirit as before: for your outspoken candour, even if not altogether pleasant, is yet what I prefer.

10 December.

[Footnote 371: The phrase _ornare provincias, ornare consules_, etc., means the vote in the senate deciding the number of troops, amount of money, and other outfit that the magistrates going to their provinces were to have. The provinces to be taken by outgoing consuls were decided before the elections--in this case they were Cilicia and Spain. But the _ornatio_ usually took place after the consuls had entered on their office, _i.e._, after the 1st of January. For this year, however--we don't know why--it had taken place before the 1st of December, B.C. 58. The result of this would be that the new tribunes for B.C. 57--entering on their office 10th December, B.C. 58--would have no voice in the matter, and would thus lose a great hold on the consuls. Most of

these tribunes were supporters of Cicero, while he was doubtful as to one of the consuls--Q. Cæcilius Metellus Nepos. He thinks, therefore, that his cause has lost by this measure, for the tribunes will have less power of putting force on the consuls to do anything for him, and yet the same power of stopping them should they wish to do anything of their own accord. Besides, the new tribunes may be alienated by what they may think a measure derogatory to their position. These fears came to nothing; the tribunes were loyal to Cicero, and the consul Piso forwarded his recall.]

[Footnote 372: Because the tribunes could have vetoed any measure brought before the people, and so could have forced the consuls to come to terms.]

[Footnote 373: _I.e._, that the senate would pass no decree prior to one recalling Cicero.]

LXXXV (A III, 25)

TO ATTICUS (? IN EPIRUS[374])

DYRRACHIUM (DECEMBER)

[Sidenote: B.C. 58, ÆT 48]

After you left me I received a letter from Rome, from which I see clearly that I must rot away in this state of disfranchisement: for I can't believe (don't be offended at my saying so) that you would have left town at this juncture, if there had been the least hope left of my restoration. But I pass over this, that I may not seem to be ungrateful and to wish everything to share my own ruin. All I ask of you is what you have faithfully promised, that you will appear before the 1st of January wherever I may be.

[Footnote 374: There is no indication in the letter as to where Atticus is. He left Rome late in B.C. 58, and apparently did not return till after Cicero's recall. The most natural explanation is that he was in Epirus, or somewhere in Greece, and that he had visited Cicero at Dyrrachium on his way. I do not quite see how this should be thought impossible in view of the last sentence of LXXXV or the next letter. Cicero asks Atticus to join him, but he might do so whether Atticus were at Buthrotum, or Rome, or anywhere else.]

LXXXVI (A III, 26)

[Sidenote: B.C. 57. Coss., P. Cornelius Lentulus Spinther, Q. Cæcilius Metellus Nepos.

The new year found Cicero still at Dyrrachium, waiting for the law to pass for his recall, which (owing chiefly to the riotous opposition of Clodius) did not pass till the 5th of August. We have no letters in the interval between January and August, but a few lively ones recounting the nature of his return (4th of September), and four speeches dealing with his position and that of his property. He seems at once to have

attached himself to Pompey, and to have promoted his appointment as _præfectus annonæ_.

TO ATTICUS (? IN EPIRUS[374])

DYRRACHIUM, JANUARY

[Sidenote: B.C. 57, ÆT. 49]

I have received a letter from my brother Quintus inclosing the decree of the senate passed concerning me. My intention is to await the time for legislation, and, if the law is defeated, I shall avail myself of the resolution of the senate,[375] and prefer to be deprived of my life rather than of my country. Make haste, I beg, to come to me.

[Footnote 375: On 1st January, B.C. 57, P. Lentulus brought the case of Cicero before the senate. The prevailing opinion was that his _interdictio_ having been illegal, the senate could quash it. But Pompey, for the sake of security, recommended a _lex_. One of the tribunes, without actually vetoing the _senatus consultum_, demanded a night for consideration. The question was again debated in succeeding meetings of the senate, but on the 25th was not decided. Technically an _auctoritas_ was a decree that had been vetoed by a tribune, and Cicero (_pro Sest._ § 74) implies that such a veto had been put in, and at any rate the _noctis postulatio_ was equivalent to a veto.]

LXXXVII (A III, 27)

TO ATTICUS (? AT ROME)

DYRRACHIUM (AFTER 25 JANUARY)

[Sidenote: B.C. 57, ÆT. 49]

From your letter and from the bare facts I see that I am utterly ruined.[376] I implore you, in view of my deplorable position, to stand by my family in whatever respect they shall need your help. I shall, as you say, see you soon.

[Footnote 376: Perhaps he has just heard that the sitting of the senate on the 25th of January had been interrupted by Clodius's roughs. But other similar events happened, and there is no certain means of dating this note. The difficulty, as it stands, is that it implies Atticus's temporary return to Rome.]

LXXXVIII (F V, 4)

TO Q. METELLUS THE CONSUL (AT ROME)

DYRRACHIUM (JANUARY)

[Sidenote: B.C. 57, ÆT. 49]

A letter from my brother Quintus, and one from my friend Titus Pomponius, had given me so much hope, that I depended on your assistance no less than on that of your colleague. Accordingly, I at once sent you a letter in which, as my present position required, I offered you thanks and asked for the continuance of your assistance. Later on, not so much the letters of my friends, as the conversation of travellers by this route, indicated that your feelings had undergone a change; and that circumstance prevented my venturing to trouble you with letters. Now, however, my brother Quintus has sent me a copy which he had made of your exceedingly kind speech delivered in the senate. Induced by this I have attempted to write to you, and I do ask and beg of you, as far as I may without giving you offence, to preserve your own friends along with me, rather than attack me to satisfy the unreasonable vindictiveness of your connexions. You have, indeed, conquered yourself so far as to lay aside your own enmity for the sake of the Republic: will you be induced to support that of others _against_ the interests of the Republic? But if you will in your clemency now give me assistance, I promise you that I will be at your service henceforth: but if neither magistrates, nor senate, nor people are permitted to aid me, owing to the violence which has proved too strong for me, and for the state as well, take care lest--though you may wish the opportunity back again for retaining all and sundry in their rights--you find yourself unable to do so, because there will be nobody to be retained.[377]

[Footnote 377: This intentionally enigmatical sentence is meant to contain a menace against Clodius, who is hinted at in the word _omnium_, just as he is earlier in the letter in the word _tuorum_. Clodius was a connexion by marriage of Metellus (through his late brother, the husband of Clodia), and Cicero assumes that Metellus is restrained from helping him by regard for Clodius. He knows, however, by this time, that one of the new tribunes, Milo, is prepared to repel force by force, and he hints to Metellus that if he countenances Clodius's violence he may some day find that there is no Clodius to save--if that's his object. In Letter LXXXIX he shews how early he had contemplated Clodius being killed by Milo (_occisum iri ab ipso Milone video_).]

LXXXIX (A IV, 1)

TO ATTICUS (IN EPIRUS)

ROME (SEPTEMBER)

[Sidenote: B.C. 57, ÆT. 49]

Directly I arrived at Rome, and there was anyone to whom I could safely intrust a letter for you, I thought the very first thing I ought to do was to congratulate you in your absence on my return. For I knew, to speak candidly, that though in giving me advice you had not been more courageous or far-seeing than myself, nor--considering my devotion to you in the past--too careful in protecting me from disaster, yet that you--though sharing in the first instance in my mistake, or rather madness, and in my

groundless terror--had nevertheless been deeply grieved at our separation, and had bestowed immense pains, zeal, care, and labour in securing my return. Accordingly, I can truly assure you of this, that in the midst of supreme joy and the most gratifying congratulations, the one thing wanting to fill my cup of happiness to the brim is the sight of you, or rather your embrace; and if I ever forfeit that again, when I have once got possession of it, and if, too, I do not exact the full delights of your charming society that have fallen into arrear in the past, I shall certainly consider myself unworthy of this renewal of my good fortune.

In regard to my political position, I have resumed what I thought there would be the utmost difficulty in recovering--my brilliant standing at the bar, my influence in the senate, and a popularity with the loyalists even greater than I desired. In regard, however, to my private property--as to which you are well aware to what an extent it has been crippled, scattered, and plundered--I am in great difficulties, and stand in need, not so much of your means (which I look upon as my own), as of your advice for collecting and restoring to a sound state the fragments that remain. For the present, though I believe everything finds its way to you in the letters of your friends, or even by messengers and rumour, yet I will write briefly what I think you would like to learn from my letters above all others. On the 4th of August I started from Dyrrachium, the very day on which the law about me was carried. I arrived at Brundisium on the 5th of August. There my dear Tulliola met me on what was her own birthday, which happened also to be the name-day of the colony of Brundisium and of the temple of Safety, near your house. This coincidence was noticed and celebrated with warm congratulations by the citizens of Brundisium. On the 8th of August, while still at Brundisium, I learnt by a letter from Quintus that the law had been passed at the _comitia centuriata_ with a surprising enthusiasm on the part of all ages and ranks, and with an incredible influx of voters from Italy. I then commenced my journey, amidst the compliments of the men of highest consideration at Brundisium, and was met at every point by legates bearing congratulations. My arrival in the neighbourhood of the city was the signal for every soul of every order known to my nomenclator coming out to meet me, except those enemies who could not either dissemble or deny the fact of their being such. On my arrival at the Porta Capena, the steps of the temples were already thronged from top to bottom[378] by the populace; and while their congratulations were displayed by the loudest possible applause, a similar throng and similar applause accompanied me right up to the Capitol, and in the forum and on the Capitol itself there was again a wonderful crowd. Next day, in the senate, that is, the 5th of September, I spoke my thanks to the senators. Two days after that--there having been a very heavy rise in the price of corn, and great crowds having flocked first to the theatre and then to the senate-house, shouting out, at the instigation of Clodius, that the scarcity of corn was my doing--meetings of the senate being held on those days to discuss the corn question, and Pompey being called upon to undertake the management of its supply in the common talk not only of the plebs, but of the aristocrats also, and being himself desirous of the commission, when the people at large called upon me by name to support a decree to that effect, I did so, and gave my vote in a carefully-worded speech. The other consulars, except Messalla and Afranius, having absented themselves on the ground that they could not vote

with safety to themselves, a decree of the senate was passed in the sense of my motion, namely, that Pompey should be appealed to to undertake the business, and that a law should be proposed to that effect. This decree of the senate having been publicly read, and the people having, after the senseless and new-fangled custom that now prevails, applauded the mention of my name,[379] I delivered a speech. All the magistrates present, except one prætor and two tribunes, called on me to speak.[380] Next day a full senate, including all the consulars, granted everything that Pompey asked for. Having demanded fifteen legates, he named me first in the list, and said that he should regard me in all things as a second self. The consuls drew up a law by which complete control over the corn-supply for five years throughout the whole world was given to Pompey. A second law is drawn up by Messius,[381] granting him power over all money, and adding a fleet and army, and an _imperium_ in the provinces superior to that of their governors. After that our consular law seems moderate indeed: that of Messius is quite intolerable. Pompey professes to prefer the former; his friends the latter. The consulars led by Favonius murmur: I hold my tongue, the more so that the pontifices have as yet given no answer in regard to my house.[382] If they annul the consecration I shall have a splendid site. The consuls, in accordance with a decree of the senate, will value the cost of the building that stood upon it; but if the pontifices decide otherwise, they will pull down the Clodian building, give out a contract in their own name (for a temple), and value to me the cost of a site and house. So our affairs are

"For happy though but ill, for ill not worst."[383]

In regard to money matters I am, as you know, much embarrassed. Besides, there are certain domestic troubles, which I do not intrust to writing. My brother Quintus I love as he deserves for his eminent qualities of loyalty, virtue, and good faith. I am longing to see you, and beg you to hasten your return, resolved not to allow me to be without the benefit of your advice. I am on the threshold, as it were, of a second life. Already certain persons who defended me in my absence begin to nurse a secret grudge at me now that I am here, and to make no secret of their jealousy. I want you very much.

[Footnote 378: Reading _ab infimo_.]

[Footnote 379: As backing the decree. The phrase was _aderat scribendo M. Tullius Cicero_, etc.]

[Footnote 380: _Dederunt_, _i.e._, _contionem_; lit. gave me a meeting, _i.e._, the right of addressing the meeting, which only magistrates or those introduced by magistrates could do.]

[Footnote 381: C. Messius, a tribune of the year.]

[Footnote 382: Clodius had consecrated the site of Cicero's house for a temple of Liberty. The pontifices had to decide whether that consecration held good, or whether the site might be restored to Cicero. Hence his speech _de Domo sua ad Pontifices_.]

[Footnote 383: The origin of the Latin line is not known. The English is Milton's, _P. L._ ii. 224.]

XC (A IV, 2)

TO ATTICUS (IN EPIRUS)

ROME (OCTOBER)

[Sidenote: B.C. 57, ÆT. 49]

If by any chance you get letters less frequently from me than from others, I beg you not to put it down to my negligence, or even to my engagements; for though they are very heavy, there can be none sufficient to stop the course of our mutual affection and of the attention I owe to you. The fact is that, since my return to Rome, this is only the second time that I have been told of anyone to whom I could deliver a letter, and accordingly this is my second letter to you. In my former I described the reception I had on my return, what my political position was, and how my affairs were.

"For happy though but ill, for ill not worst."

The despatch of that letter was followed by a great controversy about my house. I delivered a speech before the pontifices on the 29th of September. I pleaded my cause with care, and if I ever was worth anything as a speaker, or even if I never was on any other occasion, on this one at any rate my indignation at the business, and the importance of it, did add a certain vigour to my style.[384] Accordingly, the rising generation must not be left without the benefit of this speech, which I shall send you all the same, even if you don't want it.[385] The decree of the pontifices was as follows: "If neither by order of the people nor vote of the plebs the party alleging that he had dedicated had been appointed by name to that function, nor by order of the people or vote of the plebs had been commanded to do so, we are of opinion that the part of the site in question may be restored to M. Tullius without violence to religion." Upon this I was at once congratulated--for no one doubted that my house was thereby adjudged to me--when all on a sudden that fellow mounts the platform to address a meeting, invited to speak by Appius,[386] and announces at once to the people that the pontifices had decided in his favour,[387] but that I was endeavouring to take forcible possession; he exhorts them to follow himself and Appius to defend their own shrine of Liberty.[388] Hereupon, when even those credulous hearers partly wondered and partly laughed at the fellow's mad folly, I resolved not to go near the place until such time as the consuls by decree of the senate had given out the contract for restoring the colonnade of Catulus.[389] On the 1st of October there was a full meeting of the senate. All the pontifices who were senators were invited to attend, and Marcellinus,[390] who is a great admirer of mine, being called on to speak first, asked them what was the purport of their decree. Then M. Lucullus, speaking for all his colleagues, answered that the pontifices were judges of a question of religion, the senate of the validity of a law: that he and his colleagues had

given a decision on a point of religion; in the senate they would with the other senators decide on the law. Accordingly, each of them, when asked in their proper order for their opinion, delivered long arguments in my favour. When it came to Clodius's turn, he wished to talk out the day, and he went on endlessly; however, after he had spoken for nearly three hours, he was forced by the loud expression of the senate's disgust to finish his speech at last. On the decree in accordance with the proposal of Marcellinus passing the senate against a minority of one, Serranus interposed his veto.[391] At once both consuls referred the question of Serranus's veto to the senate. After some very resolute speeches had been delivered--"that it was the decision of the senate that the house should be restored to me": "that a contract should be given out for the colonnade of Catulus": "that the resolution of the house should be supported by all the magistrates": "that if any violence occurred, the senate would consider it to be the fault of the magistrate who vetoed the decree of the senate"--Serranus became thoroughly frightened, and Cornicinus repeated his old farce: throwing off his toga, he flung himself at his son-in-law's feet.[392] The former demanded a night for consideration. They would not grant it: for they remembered the 1st of January. It was, however, at last granted with difficulty on my interposition. Next day the decree of the senate was passed which I send you. Thereupon the consuls gave out a contract for the restoration of the colonnade of Catulus: the contractors immediately cleared that portico of his away to the satisfaction of all.[393] The buildings of my house the consuls, by the advice of their assessors, valued at 2,000,000 sesterces (about £16,000).[394] The rest was valued very stingily. My Tusculan villa at 500,000 sesterces (about £4,000): my villa at Formiæ at 250,000 sesterces (about £2,000)--an estimate loudly exclaimed against not only by all the best men, but even by the common people. You will say, "What was the reason?" They for their part say it was my modesty--because I would neither say no, nor make any violent expostulation. But that is not the real cause: for that indeed in itself would have been in my favour.[395] But, my dear Pomponius, those very same men, I tell you, of whom you are no more ignorant than myself, having clipped my wings, are unwilling that they should grow again to their old size. But, as I hope, they are already growing again. Only come to me! But this, I fear, may be retarded by the visit of your and my friend Varro. Having now heard the actual course of public business, let me inform you of what I have in my thoughts besides. I have allowed myself to be made _legatus_ to Pompey, but only on condition that nothing should stand in the way of my being entirely free either to stand, if I choose, for the censorship--if the next consuls hold a censorial election--or to assume a "votive commission" in connexion with nearly any fanes or sacred groves.[396] For this is what falls in best with our general policy and my particular occasions. But I wished the power to remain in my hands of _either_ standing for election, _or_ at the beginning of the summer of going out of town: and meanwhile I thought it not disadvantageous to keep myself before the eyes of the citizens who had treated me generously. Well, such are my plans in regard to public affairs; my domestic affairs are very intricate and difficult. My town house is being built: you know how much expense and annoyance the repair of my Formian villa occasions me, which I can neither bear to relinquish nor to look at. I have advertised my Tusculan property for sale; I don't much care for a suburban residence.[397] The liberality of friends has

been exhausted in a business which brought me nothing but dishonour: and this you perceived though absent, as did others on the spot, by whose zeal and wealth I could easily have obtained all I wanted, had only my supporters allowed it.[398] In this respect I am now in serious difficulty. Other causes of anxiety are somewhat more of the _tacenda_ kind.[399] My brother and daughter treat me with affection. I am looking forward to seeing you.

[Footnote 384: The speech _de Domo sua ad Pontifices_. The genuineness of the existing speech has been doubted. But it may very well be said that no one but Cicero could have written it. It is not certainly one of his happiest efforts, in spite of what he says here; but he is not unaccustomed to estimate his speeches somewhat highly, and to mistake violence for vigour.]

[Footnote 385: He will send it to Atticus to get copied by his _librarii_, and published.]

[Footnote 386: Appius Claudius Pulcher, brother of P. Clodius, was a prætor this year.]

[Footnote 387: It is not clear that Clodius was wrong; the pontifices decided that for a valid consecration an order of the people was requisite, and, of course, Clodius could allege such an order. Cicero devoted the greater part of his speech, therefore, to shewing (1) that Clodius's adoption was invalid, and that he was therefore no tribune, and incapable of taking an order of the people; (2) that the law was a _privilegium_, and therefore invalid. The pontifices did not consider either of these points, which were not properly before them, or within their competence; they merely decided the religious question--that unless there had been a _iussus populi_ or _plebis scitus_ there was no valid consecration.]

[Footnote 388: Or perhaps only "statue of Liberty," as the temple was not yet completed.]

[Footnote 389: A portico or colonnade, built by Q. Catulus, the conqueror of the Cimbri, on the site of the house of M. Flaccus, who was killed with Saturninus in B.C. 100. It was close to Cicero's house, and what Clodius appears to have done was to pull down the portico, and build another, extending over part of Cicero's site, on which was to be a temple for his statue of Liberty.]

[Footnote 390: Cn. Cornelius Lentulus Marcellinus was called on first as consul designate for B.C. 56.]

[Footnote 391: Sext. Attilius Serranus, a tribune. He had been a quæstor in Cicero's consulship, but had opposed his recall.]

[Footnote 392: Cn. Oppius Cornicinus, the father-in-law of Serranus, is said in _p. red. at Quir._ § 13 to have done the same in the senate on the 1st of January, when Serranus also went through the same form of "demanding a night" for consideration.]

[Footnote 393: Prof. Tyrrell brackets _porticum_. But I do not understand his difficulty, especially as he saw none in the last letter. Cicero (_de Domo_, § 102) certainly implies that Clodius had, at any rate, partly pulled down the _porticus

Catuli_, in order to build something on a larger scale, which was to take in some of Cicero's site. This was now to come down, and so leave Cicero his _area_, and, I presume, the old _porticus Catuli_ was to be restored.]

[Footnote 394: Cicero had given Crassus 3,500,000 for it (about £28,000). See Letter XVI.]

[Footnote 395: _I.e._, my modest reserve. There does not seem any reason for Tyrrell's emendation of _num_ for _nam_.]

[Footnote 396: I have translated Klotz's text. That given by Prof. Tyrrell is, to me at any rate, quite unintelligible. Cicero's _legatio_ under Pompey appears to have been, in fact, honorary, or _libera_, for he doesn't seem to have done anything. He wishes to reserve the right of resigning it to stand for the censorship (censors were elected in the following year), or of turning it into a _votiva legatio_, to visit certain sacred places on the plea of performing a vow, thus getting the opportunity, if he desired it, of retiring temporarily from Rome in a dignified manner. The force of _prope_ seems to be "almost any, I care not what." It was not likely that a man with his stormy past would do for the delicate duties of the censorship, and he would save appearances by going on a _votiva legatio_. See Letter XLIV.]

[Footnote 397: _Facile careo_, others read _non facile_, "I don't like being without a suburban residence."]

[Footnote 398: The thing which brought him "nothing but dishonour" was his quitting Rome, and the consequent expenses connected with winning over friends, or paying for Milo's bravoes to face those of Clodius. In the last part of the sentence he seems to mean that, had his supporters backed him properly, he would have got everything necessary to make good his losses from the liberality of the senate. Others explain that _defensores_ really means Pompey only.]

[Footnote 399: This and the omission of his wife in the next clause, as the similar hint at the end of the last letter, seem to point to some misunderstanding with Terentia, with whom, however, a final rupture was postponed for nearly twelve years (B.C. 46.)]

XCI (A IV, 3)

TO ATTICUS (IN EPIRUS)

ROME, 24 NOVEMBER

[Sidenote: B.C. 57, ÆT. 49]

I am very well aware that you long to know what is going on here, and also to know it from me, not because things done before the eyes of the whole world are better realized when narrated by my hand than when reported to you by the pens or lips of others, but because it is from my letters that you get what you want--a knowledge of _my_ feelings in regard to the occurrences, and what at such a juncture is the state of

my mind, or, in a word, the conditions in which I am living. On the 3rd of November the workmen were driven from the site of my house by armed ruffians: the _porticus Catuli_,[400] which was being rebuilt on a contract given out by the consuls, in accordance with a decree of the senate, and had nearly reached the roof, was battered down: the house of my brother Quintus[401] was first smashed with volleys of stones thrown from my site, and then set on fire by order of Clodius, firebrands having been thrown into it in the sight of the whole town, amidst loud exclamations of indignation and sorrow, I will not say of the loyalists--for I rather think there _are_ none--but of simply every human being. That madman runs riot: thinks after this mad prank of nothing short of murdering his opponents: canvasses the city street by street: makes open offers of freedom to slaves. For the fact is that up to this time, while trying to avoid prosecution,[402] he had a case, difficult indeed to support, and obviously bad, but still a case: he might have denied the facts, he might have shifted the blame on others, he might even have pleaded that some part of his proceedings had been legal. But after such wrecking of buildings, incendiaries, and wholesale robberies as these, being abandoned by his supporters, he hardly retains on his side Decimus the marshal,[403] or Gellius; takes slaves into his confidence; sees that, even if he openly assassinates everyone he wishes to, he will not have a worse case before a court of law than he has at present. Accordingly, on the 11th of November, as I was going down the Sacred Way, he followed me with his gang. There were shouts, stone-throwing, brandishing of clubs and swords, and all this without a moment's warning. I and my party stepped aside into Tettius Damio's vestibule: those accompanying me easily prevented his roughs from getting in. He might have been killed himself.[404] But I am now on a system of cure by regimen: I am tired of surgery. The fellow, seeing that what everybody called for was not his prosecution but his instant execution, has since made all your Catilines seem models of respectability.[405] For on the 12th of November he tried to storm and set fire to Milo's house, I mean the one on Germalus:[406] and so openly was this done, that at eleven o'clock in the morning he brought men there armed with shields and with their swords drawn, and others with lighted torches. He had himself occupied the house of P. Sulla[407] as his headquarters from which to conduct the assault upon Milo's. Thereupon Q. Flaccus led out some gallant fellows from Milo's other house (the _Anniana_): killed the most notorious bravoes of all Clodius's gang: wanted to kill Clodius himself; but my gentleman took refuge in the inner part of Sulla's house. The next thing was a meeting of the senate on the 14th. Clodius stayed at home: Marcellinus[408] was splendid: all were keen. Metellus[409] talked the business out by an obstructive speech, aided by Appius, and also, by Hercules! by your friend on whose firmness you wrote me such a wonderfully true letter! Sestius[410] was fuming. Afterwards the fellow vows vengeance on the city if his election is stopped. Marcellinus's resolution having been exposed for public perusal (he had read it from a written copy, and it embraced our entire case--the prosecution was to include his violent proceedings on the site of my house, his arson, his assault on me personally, and was to take place before the elections), he put up a notice that he intended to watch the sky during all comitial days.[411] Public speeches of Metellus disorderly, of Appius hot-headed, of Publius stark mad. The upshot, however, was that, had not Milo served his notice of bad omens in the _campus_, the elections would have been held.

On the 19th of November Milo arrived on the _campus_ before midnight with a large company. Clodius, though he had picked gangs of runaway slaves, did not venture into the _campus_. Milo stopped there till midday,[412] to everybody's great delight and his own infinite credit: the movement of the three brethren[413] ended in their own disgrace; their violence was crushed, their madness made ridiculous. However, Metellus demands that the obstructive notice should be served on him next day in the forum: "there was no need to come to the _campus_ before daybreak: he would be in the _comitium_ at the first hour of the day."[414] Accordingly, on the 20th Milo came to the forum before sunrise. Metellus at the first sign of dawn was stealthily hurrying to the _campus_, I had almost said by by-lanes: Milo catches our friend up "between the groves"[415] and serves his notice. The latter returned greeted with loud and insulting remarks by Q. Flaccus. The 21st was a market day.[416] For two days no public meeting. I am writing this letter on the 23rd at three o'clock in the morning. Milo is already in possession of the _campus_. The candidate Marcellus[417] is snoring so loud that I can hear him next door. I am told that Clodius's vestibule is completely deserted: there are a few ragged fellows there and a canvas lantern.[418] His party complains that I am the adviser of the whole business: they little know the courage and wisdom of that hero! His gallantry is astonishing. Some recent instances of his superhuman excellence I pass over; but the upshot is this: I don't think the election will take place. I think Publius will be brought to trial by Milo--unless he is killed first. If he once puts himself in his way in a riot, I can see that he will be killed by Milo himself. The latter has no scruple about doing it; he avows his intention; he isn't at all afraid of what happened to me, for _he_ will never listen to the advice of a jealous and faithless friend, nor trust a feeble aristocrat. In spirit, at any rate, I am as vigorous as in my zenith, or even more so; in regard to money I am crippled. However, the liberality of my brother I have, in spite of his protests, repaid (as the state of my finances compelled) by the aid of my friends, that I might not be drained quite dry myself. What line of policy to adopt in regard to my position as a whole, I cannot decide in your absence: wherefore make haste to town.

[Footnote 400: See last letter. The _porticus Catuli_ had been, at any rate, partly demolished by Clodius to make way for his larger scheme of building, which was to take in part of Cicero's "site." See _pro Cæl._ §79.]

[Footnote 401: Next door to Cicero's own house.]

[Footnote 402: He would avoid prosecution _de vi_ by getting elected to the ædileship for B.C. 56, for actual magistrates were rarely prosecuted; but he, in this case, actually avoided it by getting a consul and tribune to forbid it by edict (_pro Sest._ § 89).]

[Footnote 403: _Designatorem._ This may mean (1) an official who shewed people to their places in the theatre; (2) an undertaker's man, who marshalled funerals. To the latter office a certain _infamia_ was attached. We know nothing more of Decimus (see _pro Domo_, § 50). Gellius was an eques and a stepson of L. Marcius Philippus. He afterwards gave evidence against Sestius for _vis_ (see _pro Sest._ § 110). Cicero calls him the mover of all seditions (_in Vatin._ § 4), and one of Clodius's gang (_de Har. Resp._ § 59). See next letter.]

[Footnote 404: Perhaps by M. Antonius. See 2 _Phil._ § 21; _pro Mil._ § 40.]

[Footnote 405: Lit. "made all Catilines _Acidini_." Acidinus was the cognomen of several distinguished men. In _Leg. Agr._ ii. § 64, Cicero classes the _Acidini_ among men "respectable not only for the public offices they had held, and for their services to the state, but also for the noble way in which they had endured poverty." There does not, however, seem any very good reason known for their becoming proverbial as the antithesis to revolutionaries.]

[Footnote 406: A slope of the Palatine. Milo's other house (p. 196).]

[Footnote 407: P. Cornelius Sulla, nephew of the dictator. Cicero defended him in B.C. 62, but he had taken the part of Clodius in the time of Cicero's exile.]

[Footnote 408: Cn. Cornelius Lentulus Marcellinus, the consul-designate for the next year. In that capacity he would be called on for his _sententia_ first.]

[Footnote 409: Q. Cæcilius Metellus Nepos, the consul. Though he had not opposed Cicero's recall, he stood by his cousin, P. Clodius, in regard to the threatened prosecution. Appius is Appius Claudius, brother of P. Clodius.]

[Footnote 410: P. Sestius, the tribune favourable to Cicero, afterwards defended by him.]

[Footnote 411: Mr. Purser's reading of _nisi anteferret_ before _proscripsit_ seems to me to darken the passage. What happened was this. Marcellinus's _sententia_ was never put to the vote, because Metellus, Appius, and Hortensius (Cicero seems to mean him) talked out the sitting. Accordingly, Marcellinus published it, _i.e._, put it up outside the Curia to be read: and under it he (or some other magistrate whose name has dropped out of the text) put a notice that he was going to "watch the sky" all the _dies comitiales_, so as to prevent the election being held. But this had been rendered inoperative by Clodius's amendment of the _lex Ælia Fufia_ (see 2 _Phil._ § 81)--or at any rate of doubtful validity--and, accordingly, the only thing left was the _obnuntiatio_ by a magistrate, which Milo proceeded to make. The rule, however was that such _obnuntiatio_ must be made before the _comitia_ were begun (2 _Phil. ib._), which again could not begin till sunrise. Hence Milo's early visit to the _campus_. For the meaning of _proposita_ see Letter XLVII.]

[Footnote 412: After which the _comitia_ could not be begun.]

[Footnote 413: P. Clodius, his brother Appius, and his _cousin_ Metellus Nepos.]

[Footnote 414: Metellus means that he shall take the necessary auspices for the _comitia_ in the _comitium_, before going to the _campus_ to take the votes.]

[Footnote 415: Generally called _inter duos lucos_, the road down the Capitolium towards the Campus Martius, originally so called as being between the two heads of the mountain. It was the spot traditionally assigned to the "asylum" of Romulus.]

[Footnote 416: On the _nundinæ_ and the next day no _comitia_ and no meeting of the senate could be held.]

[Footnote 417: Candidate for the ædileship, of whom we know nothing.]

[Footnote 418: Apparently a poor lantern, whose sides were made of canvas instead of horn.]

XCII (Q FR II, 1)

TO HIS BROTHER QUINTUS (IN SARDINIA[419])

ROME (10 DECEMBER)

[Sidenote: B.C. 57, ÆT. 49]

The letter which you have already read I had sent off in the morning. But Licinius was polite enough to call on me in the evening after the senate had risen, that, in case of any business having been done there, I might, if I thought good, write an account of it to you. The senate was fuller than I had thought possible in the month of December just before the holidays. Of us consulars there were P. Servilius, M. Lucullus, Lepidus, Volcatius, Glabrio: the two consuls-designate; the prætors. We were a really full house: two hundred in all.[420] Lupus had excited some interest.[421] He raised the question of the Campanian land in considerable detail. He was listened to in profound silence. You are not unaware what material that subject affords. He omitted none of the points which I had made in this business.[422] There were some sharp thrusts at Cæsar, some denunciations of Gellius, some appeals to the absent Pompey. After concluding his speech at a late hour, he said that he would not ask for our votes lest he might burden us with a personal controversy; he quite understood the sentiments of the senate from the denunciations of past times and the silence on the present occasion. Milo spoke. Lupus begins the formula of dismissal,[423] when Marcellinus says: "Don't infer from our silence, Lupus, what we approve or disapprove of at this particular time. As far as I am concerned, and I think it is the same with the rest, I am only silent because I do not think it suitable that the case of the Campanian land should be debated in Pompey's absence." Then Lupus said that he would not detain the senate.[423] Racilius rose and began bringing before the house the case of the proposed prosecutions. He calls upon Marcellinus, of course, first;[424] who, after complaining in serious tones of the Clodian incendiaries, massacres, and stonings, proposed a resolution that "Clodius himself should, under the superintendence of the prætor urbanus, have his jury allotted to him; that the elections should be held only when the allotment of jurors[425] had been completed; that whoever stopped the trials would be acting against the interests of the state."[426] The proposal having been received with warm approval, Gaius Cato[427]--as did also Cassius--spoke against it, with very emphatic murmurs of disapprobation on the part of the senate, when he proposed to hold the elections before the trials. Philippus supported Lentulus.[428] After that Racilius called on me first of the unofficial senators for my opinion.[429] I made a long speech upon the whole story of P. Clodius's mad proceedings and murderous violence: I impeached him as though he were on his trial, amidst frequent murmurs of approbation from the whole senate. My speech was praised at considerable length,

and, by Hercules! with no little oratorical skill by Antistius Vetus, who also supported the priority of the legal proceedings, and declared that he should consider it of the first importance. The senators were crossing the floor in support of this view,[430] when Clodius, being called on, began trying to talk out the sitting. He spoke in furious terms of having been attacked by Racilius in an unreasonable and discourteous manner. Then his roughs on the Græcostasis[431] and the steps of the house suddenly raised a pretty loud shout, in wrath, I suppose, against Q. Sextilius and the other friends of Milo. At this sudden alarm we broke up with loud expressions of indignation on all sides. Here are the transactions of one day for you: the rest, I think, will be put off to January. Of all the tribunes I think Racilius is by far the best: Antistius also seems likely to be friendly to me: Plancius, of course, is wholly ours. Pray, if you love me, be careful and cautious about sailing in December.

[Footnote 419: Quintus Cicero was in Sardinia as Pompey's _legatus_ as superintendent of the corn-supply, to which office he had been appointed in August. The letter is written not earlier than the 10th of December, for the new tribunes for B.C. 56 have come into office, and not later than the 16th, because on the 17th the Saturnalia began. Perhaps as the senate is summoned and presided over by Lupus, it is on the 10th, the day of his entrance upon office.]

[Footnote 420: "Full," that is, for the time of year. A "full house" is elsewhere mentioned as between three and four hundred.]

[Footnote 421: P. Rutilius Lupus, one of the new tribunes.]

[Footnote 422: This refers to Cicero's attempts to exempt the _ager publicus_ in Campania from being divided (see Letter XXIV, p. 55); and not only to his speeches against Rullus. It was because Cæsar disregarded the ancient exception of this land from such distribution that Cicero opposed his bill, and refused to serve on the commission.]

[Footnote 423: _Nihil vos moramur_ were the words used by the presiding magistrate, indicating that he had no more business to bring before the senate. If no one said anything, the senate was dismissed; but any magistrate, or magistrate-designate, could speak, and so continue the sitting up to nightfall, when the house stood adjourned.]

[Footnote 424: Because consul-designate. L. Racilius, one of the new tribunes.]

[Footnote 425: The _sortitio iudicum_ was performed by the prætor drawing out the required number of names from the urn, which contained the names of all liable to serve. The accused could, however, challenge a certain number, and the prætor had then to draw others.]

[Footnote 426: The formula whereby the senate declared its opinion that so and so was guilty of treason. It had no legal force, but the magistrates might, and sometimes did, act on it.]

[Footnote 427: C. Porcius Cato, distant relation of Cato Uticensis, one of the new tribunes.]

[Footnote 428: _I.e._, Marcellinus (Cn. Cornelius Lentulus).]

[Footnote 429: The senators not in office only spoke when called on (_rogati_). The consuls-designate (if there were any) were always called first, and then the consulars in order. To be called _first_ was a subject of ambition, and an opportunity for the presiding magistrate to pay a compliment or the reverse.]

[Footnote 430: They went and sat or stood near the speaker they wished to support. It was not, however, a formal division till the speeches ended, and the presiding magistrate counted. Still, it made the division easier.]

[Footnote 431: A platform outside the senate-house, where representatives originally of Greek and then of other states were placed. It was apparently possible to hear, or partly hear, the debates from it. It was a _locus substructus_ (Varro, _L. L._ v. 155). There is no evidence that it was a building to lodge ambassadors in, as Prof. Tyrrell says.]

XCIII (F VII, 26)

TO M. FADIUS GALLUS (AT ROME)

TUSCULUM[432] (? DECEMBER)

[Sidenote: B.C. 57, ÆT. 49]

Having been suffering for nine days past from a severe disorder of the bowels, and being unable to convince those who desired my services that I was ill because I had no fever, I fled to my Tusculan villa, after having, in fact, observed for two days so strict a fast as not even to drink a drop of water. Accordingly, being thoroughly reduced by weakness and hunger, I was more in want of your services than I thought mine could be required by you. For myself, while shrinking from all illnesses, I especially shrink from that in regard to which the Stoics attack your friend Epicurus for saying that "he suffered from strangury and pains in the bowels"--the latter of which complaints they attribute to gluttony, the former to a still graver indulgence. I had been really much afraid of dysentery. But either the change of residence, or the mere relaxation of anxiety, or perhaps the natural abatement of the complaint from lapse of time, seems to me to have done me good. However, to prevent your wondering how this came about, or in what manner I let myself in for it, I must tell you that the sumptuary law, supposed to have introduced plain living, was the origin of my misfortune. For whilst your epicures wish to bring into fashion the products of the earth, which are not forbidden by the law, they flavour mushrooms, _petits choux_, and every kind of pot-herb so as to make them the most tempting dishes possible.[433] Having fallen a victim to these in the augural banquet at the house of Lentulus, I was seized with a violent diarrhœa, which, I think, has been checked to-day for the first time. And so I, who abstain from oysters and lampreys without any difficulty, have been beguiled by beet and mallows. Henceforth, therefore, I shall be more cautious. Yet, having heard of it from Anicius[434]--for he saw me turning

sick--you had every reason not only for sending to inquire, but even for coming to see me. I am thinking of remaining here till I am thoroughly restored, for I have lost both strength and flesh. However, if I can once get completely rid of my complaint, I shall, I hope, easily recover these.

[Footnote 432: The year of this letter has been inferred from the mention of Lentulus's augural banquet. For P. Cornelius Lentulus Spinther, son of the consul of B.C. 57, was in this year elected into the college of augurs. Yet as we know that Cicero's Tusculan villa was dismantled by Clodius, and was advertised for sale (though not sold), it seems rather extraordinary that Cicero should have gone there for his health. The _Fadii Galli_ were a family of Cicero's native place, Arpinum.]

[Footnote 433: There were several sumptuary laws. Those which may possibly be referred to here are (1) the _lex Licinia_ (? B.C. 103), which defined certain foods as illegal at banquets, but excepted _quod ex terra vite arbore ve sit natum_ (Macrobius, _Sat._ iii. 17, 9; Gell. ii. 24, 7); (2) the _lex Æmilia_ (B.C. 68), which also defined both the quantity and quality of food allowable at banquets (Gell. ii. 24, 12).]

[Footnote 434: C. Anicius, a senator and intimate friend of Cicero's.]

XCIV (F I, I)

[Sidenote: B.C. 56. Coss., Cn. Cornelius Lentulus Marcellinus, L. Marcius Philippus.]

In the year B.C. 56 the growing differences between the triumvirs were temporarily composed at the meeting at Luca, and Cicero made up his mind that the only course for him to pursue was to attach himself to them, as the party of the _boni_ had not, as he hoped, taken advantage of those differences to attach Pompey to themselves as a leader against Cæsar. His recantation is indicated in the speeches _de Provinciis Consularibus_ and _pro Balbo_, in which he practically supports part, at least, of the arrangements of Luca.

TO P. LENTULUS SPINTHER[435] (IN CILICIA)

ROME, 13 JANUARY

[Sidenote: B.C. 56, ÆT. 50]

Whatever attention or affection I may shew you, though it may seem sufficient in the eyes of others, can never seem sufficient in my own. For such has been the magnitude of your services to me that, inasmuch as you never rested till my affair was brought to a conclusion, while I cannot effect the same in your cause,[436] I regard my life as a burden. The difficulties are these. The king's agent, Hammonius, is openly attacking us by bribery. The business is being carried out by means of the same money-lenders as it was when you were in town. Such people as wish it done for the king's sake--and they are few--are all for intrusting the business to Pompey. The senate supports the trumped-up religious scruple, not from any respect to religion, but from ill-feeling towards him, and disgust at the king's outrageous bribery. I never

cease advising and instigating Pompey--even frankly finding fault with and admonishing him--to avoid what would be a most discreditable imputation.[437] But he really leaves no room for either entreaties or admonitions from me. For, whether in everyday conversation or in the senate, no one could support your cause with greater eloquence, seriousness, zeal, and energy than he has done, testifying in the highest terms to your services to himself and his affection for you. Marcellinus, you know, is incensed with his flute-playing majesty.[438] In everything, saving and excepting this case of the king, he professes the intention of being your champion. We take what he gives: nothing can move him from his motion as to the religious difficulty, which he made up his mind to bring, and has, in fact, brought several times before the senate. The debate up to the Ides (for I am writing early in the morning of the Ides[439]) has been as follows: Hortensius and I and Lucullus voted for yielding to the religious scruple as far as concerned the army,[440] for otherwise there was no possibility of getting the matter through, but, in accordance with the decree already passed on your own motion, were for directing you to restore the king, "so far as you may do so without detriment to the state": so that while the religious difficulty prohibits the employment of an army, the senate might still retain you as the person authorized. Crassus votes for sending three legates, not excluding Pompey: for he would allow them to be selected even from such as are at present in possession of _imperium_.[441] Bibulus is for three legates selected from men without _imperium_. The other consulars agree with the latter, except Servilius, who says that he ought not to be restored at all: and Volcatius, who on the motion of Lupus votes for giving the business to Pompey: and Afranius, who agrees with Volcatius. This last fact increases the suspicion as to Pompey's wishes: for it was noticed that Pompey's intimates agreed with Volcatius. We are in a very great difficulty: the day seems going against us. The notorious colloguing and eagerness of Libo and Hypsæus, and the earnestness displayed by Pompey's intimates, have produced an impression that Pompey desires it; and those who don't want him to have it are at the same time annoyed with your having put power into his hands.[442] I have the less influence in the case because I am under an obligation to you. Moreover, whatever influence I might have had is extinguished by the idea people entertain as to Pompey's wishes, for they think they are gratifying him. We are in much the same position as we were long before your departure: now, as then, the sore has been fomented secretly by the king himself and by the friends and intimates of Pompey, and then openly irritated by the consulars, till the popular prejudice has been excited to the highest pitch. All the world shall recognize my loyalty, and your friends on the spot shall see my affection for you though you are absent. If there were any good faith in those most bound to shew it, we should be in no difficulty at all.

[Footnote 435: Consul of B.C. 57, who had gone at the end of his consulship to be governor of Cilicia.]

[Footnote 436: When Ptolemy Auletes first appealed to the senate (B.C. 57) to restore him to the throne of Egypt, it appears that a resolution was passed authorizing the proconsul of Cilicia to do so; but as Pompey wished to have the business, the senate found itself in a difficulty, not wishing to put him in military command, or daring to offend him by an open refusal (Dio, xxxix. 12). The tribune C.

Cato found up a Sibylline oracle forbidding the employment of an army for the purpose, which served the senate as a decent excuse. The commission to Lentulus was eventually withdrawn by an _auctoritas senatus_, and Lentulus did not venture to do it. Ptolemy, finding that he could not succeed in getting Pompey commissioned, retired to Ephesus, and afterwards succeeded by an enormous bribe in inducing Gabinius, the proconsul of Syria, to do it (B.C. 55).]

[Footnote 437: Of having been induced by greed or ambition to undertake the restoration of Ptolemy.]

[Footnote 438: Reading _tibicini_ for the unmeaning _tibi_. It is not certain, but it makes good sense. Ptolemy was called _Auletes_ (flute-player), of which the Latin _tibicen_ is a translation, meant, no doubt, somewhat jocosely.]

[Footnote 439: _I.e._, before going to the senate on the Ides of January (13th). See next letter.]

[Footnote 440: The Sibylline oracle forbade restoring the king "with a multitude."]

[Footnote 441: Pompey had at this time _imperium_ as _curator annonæ_.]

[Footnote 442: Because it was on Lentulus's motion that Pompey had been made _curator annonæ_, and so in possession of _imperium_ with naval and military forces.]

XCV (F I, 2)

TO P. LENTULUS SPINTHER (IN CILICIA)

ROME, 15 JANUARY

[Sidenote: B.C. 56, ÆT. 50]

Nothing was done on the 13th of January in the senate, because the day was to a great extent spent in an altercation between the consul Lentulus and the tribune Caninius. On that day I also spoke at considerable length, and thought that I made a very great impression on the senate by dwelling on your affection for the house. Accordingly, next day we resolved that we would deliver our opinions briefly: for it appeared to us that the feelings of the senate had been softened towards us--the result not only of my speech, but of my personal appeal and application to individual senators. Accordingly, the first proposition, that of Bibulus, having been delivered, that three legates should restore the king: the second, that of Hortensius, that you should restore him without an army: the third, that of Volcatius, that Pompey should do it, a demand was made that the proposal of Bibulus should be taken in two parts.[443] As far as he dealt with the religious difficulty--a point which was now past being opposed--his motion was carried; his proposition as to three legates was defeated by a large majority. The next was the proposition of Hortensius. Thereupon the tribune Lupus, on the ground that he had himself made a proposal about Pompey, starts the contention that he ought to divide the house before the consuls. His speech was received on all sides by loud cries of "No": for it was both unfair and

unprecedented. The consuls would not give in, and yet did not oppose with any vigour. Their object was to waste the day, and in that they succeeded:[444] for they saw very well that many times the number would vote for the proposal of Hortensius, although they openly professed their agreement with Volcatius. Large numbers were called upon for their opinion, and that, too, with the assent of the consuls: for they wanted the proposal of Bibulus carried. This dispute was protracted till nightfall, and the senate was dismissed. I happened to be dining with Pompey on that day, and I seized the opportunity--the best I have ever had, for since your departure I have never occupied a more honourable position in the senate than I had on that day--of talking to him in such a way, that I think I induced him to give up every other idea and resolve to support your claims. And, indeed, when I actually hear him talk, I acquit him entirely of all suspicion of personal ambition: but when I regard his intimates of every rank, I perceive, what is no secret to anybody, that this whole business has been long ago corruptly manipulated by a certain coterie, not without the king's own consent and that of his advisers.

I write this on the 15th of January, before daybreak. To-day there is to be a meeting of the senate. We shall maintain, as I hope, our position in the senate as far as it is possible to do so in such an age of perfidy and unfair dealing. As to an appeal to the people on the subject, we have, I think, secured that no proposition can be brought before them without neglect of the auspices or breach of the laws, or, in fine, without downright violence.[445] The day before my writing these words a resolution of the senate on these matters of the most serious character was passed, and though Cato and Caninius vetoed it, it was nevertheless written out.[446] I suppose it has been sent to you. On all other matters I will write and tell you what has been done, whatever it is, and I will see that everything is carried out with the most scrupulous fairness as far as my caution, labour, attention to details, and influence can secure it.

[Footnote 443: The proposal of Bibulus to send "three legates" implied a concession to the Sibylline verse, in not sending "an army." It was therefore to be voted on as two questions--(1) Shall the Sibylline verse be obeyed, and an army not sent? (2) Shall three legates be sent?]

[Footnote 444: That is, the debate went off on the side issue as to who had the prior right of dividing the house. Lupus said _he_ had, because the proposal of Volcatius was really made before the others, _i.e._, in the previous day's debate (see last letter). The consuls were only too glad thus to avoid having the main question brought to a vote, and let this technical point be spun out in a languid debate.]

[Footnote 445: Because they had magistrates ready to stop the _comitia_ by declaring bad omens, and tribunes ready to veto any proposal.]

[Footnote 446: A _senatus consultum_ vetoed by a tribune was written out, with the names of its proposers and backers, and a statement at the end as to the tribunes vetoing it. It was thus on record as an _auctoritas senatus_, "resolution of the senate," not a _senatus consultum_. A perfect specimen is given in Letter CCXXIII. This _auctoritas_ was to the effect that no one was to undertake the restoration. See Letter CXIII.]

XCVI (F I, 3)

TO P. LENTULUS SPINTHER (IN CILICIA)

ROME (? JANUARY)

M. Cicero presents his compliments to P. Lentulus, proconsul.

[Sidenote: B.C. 56, ÆT. 50]

Aulus Trebonius, who has important business in your province, both of wide extent and sound, is an intimate friend of mine of many years' standing. As before this he has always, both from his brilliant position and the recommendations of myself and his other friends, enjoyed the highest popularity in the province, so at the present time, trusting to your affection for me and our close ties, he feels sure that this letter of mine will give him a high place in your esteem. That he may not be disappointed in that hope I earnestly beg of you, and I commend to you all his business concerns, his freedmen, agents, and servants; and specially that you will confirm the decrees made by T. Ampius in his regard, and treat him in all respects so as to convince him that my recommendation is no mere ordinary one.[447]

[Footnote 447: This is a specimen of the short letter of introduction to a provincial governor which were given almost as a matter of course by men of position at Rome. We shall have many of them in the course of the correspondence: and Cicero elsewhere warns the recipient of such letters not to pay attention to them unless he expressly indicates his wish by some less formal sentence (see Letter CXIV). T. Ampius was the predecessor of Lentulus in Cilicia.]

XCVII (F I, 4)

TO P. LENTULUS SPINTHER (IN CILICIA)

ROME, JANUARY

[Sidenote: B.C. 56, ÆT. 50]

Though in the senate of the 15th of January we made a most glorious stand, seeing that on the previous day we had defeated the proposal of Bibulus about the three legates, and the only contest left was with the proposal of Volcatius, yet the business was spun out by our opponents by various obstructive tactics. For we were carrying our view in a full senate, in spite of the multifarious devices and inveterate jealousy of those who were for transferring the cause of the king from you to some one else. That day we found Curio very bitterly opposed, Bibulus much more fair, almost friendly even. Caninius and Cato declared that they would not propose any law before the elections. By the _lex Pupia_, as you know, no senate could be held before the 1st of February, nor in fact during the whole of February,[448] unless the business of the

legations were finished or adjourned. However, the Roman people are generally of opinion that the pretext of a trumped-up religious scruple has been introduced by your jealous detractors, not so much to hinder you, as to prevent anyone from wishing to go to Alexandria with a view of getting the command of an army. However, everyone thinks that the senate has had a regard for your position. For there is no one that is ignorant of the fact that it was all the doing of your opponents that no division took place: and if they, under the pretext of a regard for the people, but really from the most unprincipled villainy, attempt to carry anything, I have taken very good care that they shall not be able to do so without violating the auspices or the laws, or, in fact, without absolute violence. I don't think I need write a word either about my own zeal or the injurious proceedings of certain persons. For why should I make any display myself--since, if I were even to shed my blood in defence of your position, I should think that I had not covered a tithe of your services to me? Or why complain of the injurious conduct of others, which I cannot do without the deepest pain? I cannot at all pledge myself to you as to the effect of open violence, especially with such feeble magistrates; but, open violence out of the question, I can assure you that you will retain your high position, if the warmest affections both of the senate and the Roman people can secure it to you.

[Footnote 448: _I.e._, no meeting of the senate for ordinary business. During the month of February the senate usually devoted all its time to hearing and answering deputations from the provinces or foreign states. The _lex Pupia_ forbade the meeting of the senate on _dies comitiales_, and after the 14th the days in January were all _comitiales_: but another law (_lex Vatinia_) ordered it to meet every day in February for the business of the legations. If this business was concluded or deferred it remained a moot point whether a magistrate was not still bound or, at least, allowed to summon it for other business (_ad Q. Fr._ ii. 13).]

XCVII (F I, 5)

TO P. LENTULUS SPINTHER (IN CILICIA)

ROME, FEBRUARY

[Sidenote: B.C. 56, ÆT. 50]

Though the first wish of my heart is that my warmest gratitude to you should be recognized first of all by yourself and then by everybody else, yet I am deeply grieved that such a state of things has followed your departure as to give you occasion, in your absence, to test the loyalty and good disposition towards you both of myself and others. That you see and feel that men are shewing the same loyalty in maintaining your position as I experienced in the matter of my restoration, I have understood from your letter. Just when I was depending most securely on my policy, zeal, activity and influence in the matter of the king, there was suddenly sprung on us the abominable bill of Cato's,[449] to hamper all our zeal and withdraw our thoughts from a lesser anxiety to a most serious alarm. However, in a political upset of that

kind, though there is nothing that is not a source of terror yet the thing to be chiefly feared is treachery: and Cato, at any rate, whatever happens, we have no hesitation in opposing. As to the business of Alexandria and the cause of the king, I can only promise you thus much, that I will to the utmost of my power satisfy both you, who are absent, and your friends who are here. But I fear the king's cause may either be snatched from our hands or abandoned altogether, and I cannot easily make up my mind which of the two alternatives I would least wish. But if the worst comes to the worst, there is a third alternative, which is not wholly displeasing either to Selicius[450] or myself--namely, that we should not let the matter drop, and yet should not allow the appointment, in spite of our protests, to be transferred to the man to whom it is now regarded as practically transferred.[451] We will take the utmost care not to omit struggling for any point that it seems possible to maintain, and not to present the appearance of defeat if we have in any case failed to maintain it. You must shew your wisdom and greatness of mind by regarding your fame and high position as resting on your virtue, your public services, and the dignity of your character, and by believing that, if the perfidy of certain individuals has deprived you of any of those honours which fortune has lavished on you, it will be more injurious to them than to you. I never let any opportunity slip either of acting or thinking for your interests. I avail myself of the aid of Q. Selicius in everything: nor do I think that there is any one of all your friends either shrewder, or more faithful, or more attached to you.

[Footnote 449: That of the tribune C. Cato for the recall of Lentulus.]

[Footnote 450: A money-lender, and friend of Lentulus Spinther.]

[Footnote 451: Pompey.]

XCIX (Q FR II, 2)

TO HIS BROTHER QUINTUS (IN SARDINIA)

ROME, 18 JANUARY

[Sidenote: B.C. 56, ÆT. 50]

It was not from the multiplicity of business, though I am very much engaged, but from a slight inflammation of the eyes that I was induced to dictate this letter, and not, as is my usual habit, write it with my own hand. And, to begin with, I wish to excuse myself to you on the very point on which I accuse you. For no one up to now has asked me "whether I have any commands for Sardinia"--I think you often have people who say, "Have you any commands for Rome?" As to what you have said in your letters to me about the debt of Lentulus and Sestius, I have spoken with Cincius.[452] However the matter stands, it is not the easiest in the world. But surely Sardinia must have some special property for recalling one's memory of the past. For just as the famous Gracchus--as augur--after arriving in that province remembered something that had happened to him, when holding the elections in the Campus

Martius, in violation of the auspices, so you appear to me to have recalled at your ease in Sardinia the design of Numisius and the debts due to Pomponius. As yet I have made no purchase. Culleo's auction has taken place: there was no purchaser for his Tusculan property. If very favourable terms were to be offered, I should perhaps not let it slip. About your building I do not fail to press Cyrus.[453] I hope he will do his duty. But everything goes on somewhat slowly, owing to the prospect of that madman's ædileship.[454] For it seems that the legislative assembly will take place without delay: it has been fixed for the 20th of January. However, I would not have you uneasy. Every precaution shall be taken by me. In regard to the Alexandrine king, a decree of the senate was passed declaring it dangerous to the Republic that he should be restored "with a host." The point remaining to be decided in the senate being whether Lentulus or Pompey should restore him, Lentulus seemed on the point of carrying the day. In that matter I did justice to my obligations to Lentulus marvellously well, while at the same time splendidly gratifying Pompey's wishes: but the detractors of Lentulus contrived to talk the matter out by obstructive speeches. Then followed the comitial days, on which a meeting of the senate was impossible. What the villainy of the tribunes is going to accomplish I cannot guess; I suspect, however, that Caninius will carry his bill by violence.[455] In this business I cannot make out what Pompey really wishes. What his _entourage_ desire everybody sees. Those who are financing the king are openly advancing sums of money against Lentulus. There seems no doubt that the commission has been taken out of Lentulus's hands, to my very great regret, although he has done many things for which I might, if it were not for superior considerations, be justly angry with him. I hope, if it is consistent with your interests, that you will embark as soon as possible, when the weather is fair and settled, and come to me. For there are countless things, in regard to which I miss you daily in every possible way. Your family and my own are well.

18 January.

[Footnote 452: Agent or steward of Atticus.]

[Footnote 453: The architect. See Letter XXVIII, p. 68.]

[Footnote 454: Clodius, who was ædile this year.]

[Footnote 455: For commissioning Pompey with two lictors to restore Ptolemy.]

C (A IV, 4 a)

TO ATTICUS (RETURNING FROM EPIRUS)

ROME, 28 JANUARY

[Sidenote: B.C. 56, ÆT. 50]

I was charmed to see Cincius when he called on me on the 28th of January before daybreak. For he told me that you were in Italy and that he was sending slaves to you. I did not like them to go without a letter from me; not that I had anything to say to you, especially as you are all but here, but that I might express merely this one

thing--that your arrival is most delightful and most ardently wished for by me. Wherefore fly to us with the full assurance that your affection for me is fully reciprocated. The rest shall be reserved for our meeting. I write in great haste. The day you arrive, mind, you and your party are to dine with me.

CI (Q FR II, 3)

TO HIS BROTHER QUINTUS (IN SARDINIA)

ROME, 12 FEBRUARY

[Sidenote: B.C. 56, ÆT. 50]

I have already told you the earlier proceedings; now let me describe what was done afterwards. The legations were postponed from the 1st of February to the 13th. On the former day our business was not brought to a settlement. On the 2nd of February Milo appeared for trial. Pompey came to support him. Marcellus spoke on being called upon by me.[456] We came off with flying colours. The case was adjourned to the 7th. Meanwhile (in the senate), the legations having been postponed to the 13th, the business of allotting the quæstors and furnishing the outfit of the prætors was brought before the house. But nothing was done, because many speeches were interposed denouncing the state of the Republic. Gaius Cato published his bill for the recall of Lentulus, whose son thereupon put on mourning. On the 7th Milo appeared. Pompey spoke, or rather wished to speak. For as soon as he got up Clodius's ruffians raised a shout, and throughout his whole speech he was interrupted, not only by hostile cries, but by personal abuse and insulting remarks. However, when he had finished his speech--for he shewed great courage in these circumstances, he was not cowed, he said all he had to say, and at times had by his commanding presence even secured silence for his words--well, when he had finished, up got Clodius. Our party received him with such a shout--for they had determined to pay him out--that he lost all presence of mind, power of speech, or control over his countenance. This went on up to two o'clock--Pompey having finished his speech at noon--and every kind of abuse, and finally epigrams of the most outspoken indecency were uttered against Clodius and Clodia. Mad and livid with rage Clodius, in the very midst of the shouting, kept putting the questions to his claque: "Who was it who was starving the commons to death?" His ruffians answered, "Pompey." "Who wanted to be sent to Alexandria?" They answered, "Pompey." "Who did they wish to go?" They answered, "Crassus." The latter was present at the time with no friendly feelings to Milo. About three o'clock, as though at a given signal, the Clodians began spitting at our men. There was an outburst of rage. They began a movement for forcing us from our ground. Our men charged: his ruffians turned tail. Clodius was pushed off the rostra: and then we too made our escape for fear of mischief in the riot. The senate was summoned into the Curia: Pompey went home. However, I did not myself enter the senate-house, lest I should be obliged either to refrain from speaking on matters of such gravity, or in defending Pompey (for he was

being attacked by Bibulus, Curio, Favonius, and Servilius the younger) should give offence to the loyalists. The business was adjourned to the next day. Clodius fixed the Quirinalia (17 of February) for his prosecution. On the 8th the senate met in the temple of Apollo, that Pompey might attend. Pompey made an impressive speech. That day nothing was concluded. On the 9th in the temple of Apollo a decree passed the senate "that what had taken place on the 7th of February was treasonable." On this day Cato warmly inveighed against Pompey, and throughout his speech arraigned him as though he were at the bar. He said a great deal about me, to my disgust, though it was in very laudatory terms. When he attacked Pompey's perfidy to me, he was listened to in profound silence on the part of my enemies. Pompey answered him boldly with a palpable allusion to Crassus, and said outright that "he would take better precautions to protect his life than Africanus had done, whom C. Carbo had assassinated."[457] Accordingly, important events appear to me to be in the wind. For Pompey understands what is going on, and imparts to me that plots are being formed against his life, that Gaius Cato is being supported by Crassus, that money is being supplied to Clodius, that both are backed by Crassus and Curio, as well as by Bibulus and his other detractors: that he must take extraordinary precautions to prevent being overpowered by that demagogue--with a people all but wholly alienated, a nobility hostile, a senate ill-affected, and the younger men corrupt. So he is making his preparations and summoning men from the country. On his part, Clodius is rallying his gangs: a body of men is being got together for the Quirinalia. For that occasion we are considerably in a majority, owing to the forces brought up by Pompey himself: and a large contingent is expected from Picenum and Gallia, to enable us to throw out Cato's bills also about Milo and Lentulus.

On the 10th of February an indictment was lodged against Sestius for bribery by the informer Cn. Nerius, of the Pupinian tribe, and on the same day by a certain M. Tullius for riot.[458] He was ill. I went at once, as I was bound to do, to his house, and put myself wholly at his service: and that was more than people expected, who thought that I had good cause for being angry with him. The result is that my extreme kindness and grateful disposition are made manifest both to Sestius himself and to all the world, and I shall be as good as my word. But this same informer Nerius also named Cn. Lentulus Vatia and C. Cornelius to the commissioners.[459] On the same day a decree passed the senate "that political clubs and associations should be broken up, and that a law in regard to them should be brought in, enacting that those who did not break off from them should be liable to the same penalty as those convicted of riot."

On the 11th of February I spoke in defence of Bestia[460] on a charge of bribery before the prætor Cn. Domitius,[461] in the middle of the forum and in a very crowded court; and in the course of my speech I came to the incident of Sestius, after receiving many wounds in the temple of Castor, having been preserved by the aid of Bestia. Here I took occasion to pave the way beforehand for a refutation of the charges which are being got up against Sestius, and I passed a well-deserved encomium upon him with the cordial approval of everybody. He was himself very much delighted with it. I tell you this because you have often advised me in your letters to retain the friendship of Sestius. I am writing this on the 12th of February

before daybreak: the day on which I am to dine with Pomponius on the occasion of his wedding.

Our position in other respects is such as you used to cheer my despondency by telling me it would be--one of great dignity and popularity: this is a return to old times for you and me effected, my brother, by your patience, high character, loyalty, and, I may also add, your conciliatory manners. The house of Licinius, near the grove of Piso,[462] has been taken for you. But, as I hope, in a few months' time, after the 1st of July, you will move into your own. Some excellent tenants, the Lamiæ, have taken your house in Carinæ.[463] I have received no letter from you since the one dated Olbia. I am anxious to hear how you are and what you find to amuse you, but above all to see you yourself as soon as possible. Take care of your health, my dear brother, and though it is winter time, yet reflect that after all it is Sardinia that you are in.[464]

15 February.

[Footnote 456: Milo impeached by Clodius before the _comitia tributa_ for his employment of gladiators. Dio (xxxix. 18) says that Clodius thus impeached Milo, not with any hope of securing his conviction against the powerful support of Cicero and Pompey, but to get the chance of insulting these latter. Marcellus was one of the candidates for the ædileship with Clodius. See Letter XCI.]

[Footnote 457: In B.C. 129, after making a speech in favour of the claims of the Italians for exemption from the agrarian law of Gracchus, Scipio Æmilianus, the younger Africanus, was found dead in his bed. The common report was that he had been assassinated by Carbo, or with his privity, but it was never proved (see _de Orat._ ii. § 170). Cicero does not here assume the truth of the story, he merely repeats Pompey's words.]

[Footnote 458: M. Tullius Albinovanus. It was on this charge _de vi_ that Cicero defended Sestius in the extant speech. The charge of bribery does not appear to have been proceeded with.]

[Footnote 459: _Adlegatos_, probably commissioners named to receive and report on a deposition of an informer before the senate acted.]

[Footnote 460: L. Calpurnius Piso Bestia, a candidate in the last election of ædiles.]

[Footnote 461: Cn. Domitius Calvinus, consul B.C. 53. In the Civil War he sided with Pompey, and perished at sea after Thapsus (B.C. 46).]

[Footnote 462: _Ad lucum Pisonis_. The place is not known, but there is not sufficient reason for the change to _ad lacum Pisonis_, a place equally unknown.]

[Footnote 463: A part of Rome on the slope of the Mons Oppius.]

[Footnote 464: _I.e._, get out of it as soon as you can.]

CII (F I, 5 b)

TO P. LENTULUS SPINTHER (IN CILICIA)

ROME (FEBRUARY)

[Sidenote: B.C. 56, ÆT. 50]

What is being done and has been done here I imagine you know from letters of numerous correspondents and from messengers: but what are still matters for conjecture, and seem likely to take place, I think I ought to write and tell you. After Pompey had been roughly treated with shouts and insulting remarks, while speaking before the people on the 7th of February in defence of Milo, and had been accused in the senate by Cato in exceedingly harsh and bitter terms amidst profound silence, he appeared to me to be very much upset in his mind. Accordingly, he seems to me to have quite given up any idea of the Alexandrine business--which, as far as we are concerned, remains exactly where it was, for the senate has taken nothing from you except what, owing to the same religious difficulty, cannot be granted to anyone else. My hope and my earnest endeavour now is that the king, when he understands that he cannot obtain what he had in his mind--restoration by Pompey--and that, unless restored by you, he will be abandoned, and neglected, should pay you a visit.[465] This he will do without any hesitation, if Pompey gives the least hint of his approval. But you know that man's deliberate ways and obstinate reserve. However, I will omit nothing that may contribute to that result. The other injurious proceedings instituted by Cato I shall, I hope, have no difficulty in resisting. I perceive that none of the consulars are friendly to you except Hortensius and Lucullus; the rest are either hostile, without openly shewing it, or undisguisedly incensed. Keep a brave and high spirit, and feel confident that the result will be to utterly repulse the attack of a most contemptible fellow, and to retain your high position and fame.

[Footnote 465: Ptolemy was at Ephesus.]

CIII (F I, 6)

TO P. LENTULUS SPINTHER (IN CILICIA)

ROME (FEBRUARY)

[Sidenote: B.C. 56, ÆT. 50]

What is going on you will learn from Pollio,[466] who not only was engaged in all the transactions, but was the leader in them. In my own deep distress, occasioned by the course your business has taken,[467] I am chiefly consoled by the hope which makes me strongly suspect that the dishonest practices of men will be defeated both by the measures of your friends and by mere lapse of time, which must have a tendency to weaken the plans of your enemies and of traitors. In the second place, I derive a ready consolation from the memory of my own dangers, of which I see a reflexion in your fortunes. For though your position is attacked in a less important particular than that which brought mine to the ground, yet the analogy is so strong, that I trust you will pardon me if I am not frightened at what you did not yourself consider ought to cause alarm. But shew yourself the man I have known you to be, to

use a Greek expression, "since your nails were soft."[468] The injurious conduct of men will, believe me, only make your greatness more conspicuous. Expect from me the greatest zeal and devotion in everything: I will not falsify your expectation.

[Footnote 466: The famous C. Asinius Pollio.]

[Footnote 467: The postponement of the Egyptian commission.]

[Footnote 468: ἐξ ἀπαλῶν ὀνύχων, _i.e._, "from your earliest youth." Others explain it to mean "from the bottom of your heart," or "thoroughly," from the idea that the nerves ended in the nails. ἔξ αὐτῶν τῶν ὀνύχων, "thoroughly," occurs in late Greek, and similar usages in the Anthology.]

CIV (Q FR II, 4 AND PART OF 6)

TO HIS BROTHER QUINTUS (IN SARDINIA)

ROME, MARCH

[Sidenote: B.C. 56, ÆT. 50]

Our friend Sestius was acquitted on the 11th of March, and, what was of great importance to the Republic--that there should be no appearance of difference of opinion in a case of that sort--was acquitted unanimously. As to what I had often gathered from your letters, that you were anxious about--that I should not leave any loophole for abuse to an unfriendly critic on the score of my being ungrateful, if I did not treat with the utmost indulgence his occasional wrong-headedness--let me tell you that in this trial I established my character for being the most grateful of men. For in conducting the defence I satisfied in the fullest manner possible a man of difficult temper, and, what he above all things desired, I cut up Vatinius (by whom he was being openly attacked) just as I pleased, with the applause of gods and men. And, farther, when our friend Paullus[469] was brought forward as a witness against Sestius, he affirmed that he would lay an information against Vatinius[470] if Licinius Macer hesitated to do so, and Macer, rising from Sestius's benches, declared that he would not fail. Need I say more? That impudent swaggering fellow Vatinius was overwhelmed with confusion and thoroughly discredited.

That most excellent boy, your son Quintus, is getting on splendidly with his education. I notice this the more because Tyrannio[471] gives his lessons in my house. The building of both your house and mine is being pushed on energetically. I have caused half the money to be paid to your contractor. I hope before winter we may be under the same roof. As to our Tullia, who, by Hercules, is very warmly attached to you, I hope I have settled her engagement with Crassipes.[472] There are two days after the Latin festival which are barred by religion.[473] Otherwise the festival of Iuppiter Latiaris has come to an end.

The affluence which you often mention I feel the want of to a certain extent; but while I welcome it if it comes to me, I am not exactly beating the covert for it.[474] I

am building in three places, and am patching up my other houses. I live somewhat more lavishly than I used to do. I am obliged to do so. If I had you with me I should give the builders full swing for a while.[475] But this too (as I hope) we shall shortly talk over together.

The state of affairs at Rome is this: Lentulus Marcellinus is splendid as consul, and his colleague does not put any difficulty in his way: he is so good, I repeat, that I have never seen a better. He deprived them of all the comitial days; for even the Latin festival is being repeated,[476] nor were thanksgiving days wanting.[477] In this way the passing of most mischievous laws is prevented, especially that of Cato,[478] on whom, however, our friend Milo played a very pretty trick. For that defender of the employment of gladiators and beast-fighters had bought some beast-fighters from Cosconius and Pomponius, and had never appeared in public without them in their full armour. He could not afford to maintain them, and accordingly had great difficulty in keeping them together. Milo found this out. He commissioned an individual, with whom he was not intimate, to buy this troop from Cato without exciting his suspicion. As soon as it had been removed, Racilius--at this time quite the only real tribune--revealed the truth, acknowledged that the men had been purchased for himself--for this is what they had agreed--and put up a notice that he intended to sell "Cato's troop." This notice caused much laughter. Accordingly, Lentulus has prevented Cato from going on with his laws, and also those who published bills of a monstrous description about Cæsar, with no tribune to veto them. Caninius's proposal, indeed, about Pompey has died a natural death. For it is not approved of in itself, and our friend Pompey is also spoken of with great severity for the breach of his friendship with Publius Lentulus. He is not the man he was. The fact is that to the lowest dregs of the populace his support of Milo gives some offence, while the aristocrats are dissatisfied with much that he omits to do, and find fault with much that he does. This is the only point, however, in which I am not pleased with Marcellinus--that he handles him too roughly. Yet in this he is not going counter to the wishes of the senate: consequently I am the more glad to withdraw from the senate-house and from politics altogether. In the courts I have the same position as I ever had: never was my house more crowded. One untoward circumstance has occurred owing to Milo's rashness--the acquittal of Sext. Clodius[479]--whose prosecution at this particular time, and by a weak set of accusers, was against my advice. In a most corrupt panel his conviction failed by only three votes. Consequently the people clamour for a fresh trial, and he must surely be brought back into court. For people will not put up with it, and seeing that, though pleading before a panel of his own kidney, he was all but condemned, they look upon him as practically condemned. Even in this matter the unpopularity of Pompey was an obstacle in our path. For the votes of the senators were largely in his favour, those of the knights were equally divided, while the _tribuni ærarii_ voted for his condemnation. But for this _contretemps_ I am consoled by the daily condemnations of my enemies, among whom, to my great delight, Servius[480] got upon the rocks: the rest are utterly done for. Gaius Cato declared in public meeting that he would not allow the elections to be held, if he were deprived of the days for doing business with the people. Appius has not yet returned from his visit to Cæsar. I am looking forward

with extraordinary eagerness to a letter from you. Although I know the sea is still closed, yet they tell me that certain persons have, nevertheless, arrived from Olbia full of your praises, and declaring you to be very highly thought of in the province. They said also that these persons reported that you intended to cross as soon as navigation became possible. That is what I desire: but although it is yourself, of course, that I most look forward to, yet meanwhile I long for a letter. Farewell, my dear brother.

[Footnote 469: L. Æmilius Paullus, prætor B.C. 53, consul B.C. 50, a strong Optimate and friend of Cicero's.]

[Footnote 470: P. Vatinius, the tribune of B.C. 59, who had supported Cæsar and proposed the law for his five years' command in Gaul. Cicero spoke against him for perjury; but afterwards we shall find them ostensibly reconciled.]

[Footnote 471: A Greek grammarian and geographer, of whom we have heard before, and shall hear of again in connexion with Cicero's library.]

[Footnote 472: P. Furius Crassipes. Tullia's first husband, C. Calpurnius Piso Frugi, died, it seems, before Cicero returned from exile in B.C. 57. This second marriage (or, perhaps, only betrothal) was shortly ended by a divorce.]

[Footnote 473: _I.e._, on which the _sponsalia_ could not take place.]

[Footnote 474: Not going the right way to work to get it.]

[Footnote 475: At the end of the next letter he says that, pending Quintus's arrival, he has stopped some of his building.]

[Footnote 476: On some alleged informality the _feriæ Latinæ_ were held a second time (_instauratæ_), really, Cicero implies, in order to bar some additional days for public business, and prevent legislation, as later on the election of Pompey and Crassus was prevented (Dio, xxxix. 30).]

[Footnote 477: At the end of B.C. 57, or the beginning of 56, fifteen days of _supplicatio_ were decreed in consequence of Cæsar's success in Gaul (Cæs. _B. G._ ii. 35).]

[Footnote 478: Gaius Cato the tribune, who proposed to recall Lentulus.]

[Footnote 479: A _scriba_ or public clerk, and a client of the patrician Clodii.]

[Footnote 480: Unknown. Cicero's words seem to imply that he nearly got convicted, but not quite.]

CV (Q FR II, 5 AND PARTS OF 6 AND 7)

TO HIS BROTHER QUINTUS (IN SARDINIA)

ROME, 8 APRIL

[Sidenote: B.C. 56, ÆT. 50]

I have already sent you a letter containing the information of my daughter Tullia having been betrothed to Crassipes on the 4th of April, and other intelligence public and private. The following are the events since then. On the 5th of April, by a decree of the senate, a sum of money amounting to 40,000 sestertia (about £320,000) was voted to Pompey for the business of the corn-supply. But on the same day there was a vehement debate on the Campanian land, the senators making almost as much noise as a public meeting. The shortness of money and the high price of corn increased the exasperation. Nor will I omit the following: the members of the colleges of the Capitolini and the Mercuriales[481] expelled from their society a Roman knight named M. Furius Flaccus, a man of bad character: the expulsion took place when he was at the meeting, and though he threw himself at the feet of each member.

On the 6th of April, the eve of my departure from town, I gave a betrothal party to Crassipes. That excellent boy, your and my Quintus, was not at the banquet owing to a very slight indisposition. On the 7th of April I visited Quintus and found him quite restored. He talked a good deal and with great feeling about the quarrels between our wives. What need I say more? Nothing could have been pleasanter. Pomponia, however, had some complaints to make of you also: but of this when we meet. After leaving your boy I went to the site of your house: the building was going on with a large number of workmen. I urged the contractor Longilius to push on. He assured me that he had every wish to satisfy us. The house will be splendid, for it can be better seen now than we could judge from the plan: my own house is also being built with despatch. On this day I dined with Crassipes. After dinner I went in my sedan to visit Pompey at his suburban villa. I had not been able to call on him in the daytime as he was away from home. However, I wished to see him, because I am leaving Rome to-morrow, and he is on the point of starting for Sardinia. I found him at home and begged him to restore you to us as soon as possible. "Immediately," he said. He is going to start, according to what he said, on the 11th of April, with the intention of embarking at Livorno or Pisa.[482] Mind, my dear brother, that, as soon as he arrives, you seize the first opportunity of setting sail, provided only that the weather is favourable. I write this on the 8th of April before daybreak, and am on the point of starting on my journey, with the intention of stopping to-day with Titus Titius at Anagnia. To-morrow I think of being at Laterium,[483] thence, after five days in Arpinum, going to my Pompeian house, just looking in upon my villa at Cumæ on my return journey, with the view--since Milo's trial has been fixed for the 7th of May--of being at Rome on the 6th, and of seeing you on that day, I hope, dearest and pleasantest of brothers. I thought it best that the building at Arcanum[484] should be suspended till your return. Take good care, my dear brother, of your health, and come as soon as possible.

[Footnote 481: In B.C. 357 a "college" was established for celebrating the _ludi Capitolini_, in celebration of the failure of the Gauls to take it. It consisted of men living on the Capitoline (Livy, v. 50). The _Mercuriales_ were a "college" or company of merchants who celebrated the _fête_ of the consecration of the temple of Mercury (B.C., 495) on the Ides of May (Livy, ii. 27; Ov. _F._ v. 669; C. _I. L._ i. p. 206).]

[Footnote 482: It was on this journey that Pompey visited Luca tomeet Cæsar and Crassus.]

[Footnote 483: The name of a property of Quintus at Arpinum.]

[Footnote 484: Another property of Quintus near Mintumæ.]

CVI (A IV, 4 b)

TO ATTICUS (RETURNING FROM EPIRUS)

ANTIUM (APRIL)

[Sidenote: B.C. 56, ÆT. 50]

It will be delightful if you come to see us here. You will find that Tyrannio has made a wonderfully good arrangement of my books, the remains of which are better than I had expected. Still, I wish you would send me a couple of your library slaves for Tyrannio to employ as gluers, and in other subordinate work, and tell them to get some fine parchment to make title-pieces, which you Greeks, I think, call "sillybi." But all this is only if not inconvenient to you. In any case, be sure you come yourself, if you can halt for a while in such a place, and can persuade Pilia[485] to accompany you. For that is only fair, and Tullia is anxious that she should come. My word! You have purchased a fine troop! Your gladiators, I am told, fight superbly. If you had chosen to let them out you would have cleared your expenses by the last two spectacles. But we will talk about this later on. Be sure to come, and, as you love me, see about the library slaves.

[Footnote 485: The recently married wife of Atticus. See p. 216.]

CVII (A IV, 5)

TO ATTICUS (AT ROME)

ANTIUM (APRIL)

[Sidenote: B.C. 56, ÆT. 50]

Do you really mean it? Do you think that there is anyone by whom I prefer to have what I write read and approved of before yourself? "Why, then, did I send it to anyone before you?" I was pressed by the man to whom I sent it, and had no copy. And--well! I am nibbling at what I must, after all, swallow--my "recantation"[486] did seem to me a trifle discreditable! But good-bye to straightforward, honest, and high-minded policy! One could scarcely believe the amount of treachery there is in those leaders of the state, as they wish to be, and might be, if they had any principle of honour in them. I had felt it, known it--taken in, abandoned, and cast aside by them, as I had been! and yet my purpose still was to stick by them in politics. They were the same men as they ever had been. At last, on your advice, my eyes have been opened. You

will say that your advice only extended to action, not to writing also. The truth is that I wanted to bind myself to this new combination, that I might have no excuse for slipping back to those who, even at a time when I could claim their compassion, never cease being jealous of me. However, I kept within due limits in my subject, when I did put pen to paper. I shall launch out more copiously if _he_ shews that he is glad to receive it, and those make wry faces who are angry at my possessing the villa which once belonged to Catulus, without reflecting that I bought it from Vettius: who say that I ought not to have built a town house, and declare that I ought to have sold. But what is all this to the fact that, when I have delivered senatorial speeches in agreement with their own views, their chief pleasure has yet been that I spoke contrary to Pompey's wishes? Let us have an end of it. Since those who have no power refuse me their affection, let us take care to secure the affection of those who have power. You will say, "I could have wished that you had done so before." I know you did wish it, and that I have made a real ass of myself. But now the time has come to shew a little affection for myself, since I can get none from them on any terms.

I am much obliged to you for frequently going to see my house. Crassipes[487] swallows up my money for travelling. Tullia will go straight to your suburban villa.[488] That seems the more convenient plan. Consequently she will be at your town house the next day: for what can it matter to you? But we shall see. Your men have beautified my library by making up the books and appending title-slips. Please thank them.

[Footnote 486: παλινῳδία--something he had apparently written and sent to Pompey or Cæsar, giving in his adhesion to the policy of the triumvirs. It can hardly have been the speech _de Provinciis Consularibus_ or the _oratio pro Balbo_, which had probably not yet been delivered, for the arrangement recommended in the former speech was not that of the conference of Luca, while in the latter, though he speaks respectfully of Cæsar, there is nothing in the shape of a palinode in general politics.]

CVIII (F V, 12)

TO L. LUCCEIUS[489]

ARPINUM (APRIL)

[Sidenote: B.C. 56, ÆT. 50]

I have often tried to say to you personally what I am about to write, but was prevented by a kind of almost clownish bashfulness. Now that I am not in your presence I shall speak out more boldly: a letter does not blush. I am inflamed with an inconceivably ardent desire, and one, as I think, of which I have no reason to be ashamed, that in a history written by _you_ my name should be conspicuous and frequently mentioned with praise. And though you have often shewn me that you meant to do so, yet I hope you will pardon my impatience. For the style of your composition, though I had always entertained the highest expectations of it, has yet

surpassed my hopes, and has taken such a hold upon me, or rather has so fired my imagination, that I was eager to have my achievements as quickly as possible put on record in your history. For it is not only the thought of being spoken of by future ages that makes me snatch at what seems a hope of immortality, but it is also the desire of fully enjoying in my lifetime an authoritative expression of your judgment, or a token of your kindness for me, or the charm of your genius. Not, however, that while thus writing I am unaware under what heavy burdens you are labouring in the portion of history you have undertaken, and by this time have begun to write. But because I saw that your history of the Italian and Civil Wars was now all but finished, and because also you told me that you were already embarking upon the remaining portions of your work, I determined not to lose my chance for the want of suggesting to you to consider whether you preferred to weave your account of me into the main context of your history, or whether, as many Greek writers have done--Callisthenes, the Phocian War; Timæus, the war of Pyrrhus; Polybius, that of Numantia; all of whom separated the wars I have named from their main narratives--you would, like them, separate the civil conspiracy from public and external wars. For my part, I do not see that it matters much to my reputation, but it does somewhat concern my impatience, that you should not wait till you come to the proper place, but should at once anticipate the discussion of that question as a whole and the history of that epoch. And at the same time, if your whole thoughts are engaged on one incident and one person, I can see in imagination how much fuller your material will be, and how much more elaborately worked out. I am quite aware, however, what little modesty I display, first, in imposing on you so heavy a burden (for your engagements may well prevent your compliance with my request), and in the second place, in asking you to shew me off to advantage. What if those transactions are not in your judgment so very deserving of commendation? Yet, after all, a man who has once passed the border-line of modesty had better put a bold face on it and be frankly impudent. And so I again and again ask you outright, both to praise those actions of mine in warmer terms than you perhaps feel, and in that respect to neglect the laws of history. I ask you, too, in regard to the personal predilection, on which you wrote in a certain introductory chapter in the most gratifying and explicit terms--and by which you shew that you were as incapable of being diverted as Xenophon's Hercules by Pleasure--not to go against it, but to yield to your affection for me a little more than truth shall justify. But if I can induce you to undertake this, you will have, I am persuaded, matter worthy of your genius and your wealth of language. For from the beginning of the conspiracy to my return from exile it appears to me that a moderate-sized monograph might be composed, in which you will, on the one hand, be able to utilize your special knowledge of civil disturbances, either in unravelling the causes of the revolution or in proposing remedies for evils, blaming meanwhile what you think deserves denunciation, and establishing the righteousness of what you approve by explaining the principles on which they rest: and on the other hand, if you think it right to be more outspoken (as you generally do), you will bring out the perfidy, intrigues, and treachery of many people towards me. For my vicissitudes will supply you in your composition with much variety, which has in itself a kind of charm, capable of taking a strong hold on the imagination of readers, when you are the writer. For nothing is better fitted to interest a reader than variety of circumstance

and vicissitudes of fortune, which, though the reverse of welcome to us in actual experience, will make very pleasant reading: for the untroubled recollection of a past sorrow has a charm of its own. To the rest of the world, indeed, who have had no trouble themselves, and who look upon the misfortunes of others without any suffering of their own, the feeling of pity is itself a source of pleasure. For what man of us is not delighted, though feeling a certain compassion too, with the death-scene of Epaminondas at Mantinea? He, you know, did not allow the dart to be drawn from his body until he had been told, in answer to his question, that his shield was safe, so that in spite of the agony of his wound he died calmly and with glory. Whose interest is not roused and sustained by the banishment and return of Themistocles?[490] Truly the mere chronological record of the annals has very little charm for us--little more than the entries in the _fasti_: but the doubtful and varied fortunes of a man, frequently of eminent character, involve feelings of wonder, suspense, joy, sorrow, hope, fear: if these fortunes are crowned with a glorious death, the imagination is satisfied with the most fascinating delight which reading can give. Therefore it will be more in accordance with my wishes if you come to the resolution to separate from the main body of your narrative, in which you embrace a continuous history of events, what I may call the drama of my actions and fortunes: for it includes varied acts, and shifting scenes both of policy and circumstance. Nor am I afraid of appearing to lay snares for your favour by flattering suggestions, when I declare that I desire to be complimented and mentioned with praise by you above all other writers. For you are not the man to be ignorant of your own powers, or not to be sure that those who withhold their admiration of you are more to be accounted jealous, than those who praise you flatterers. Nor, again, am I so senseless as to wish to be consecrated to an eternity of fame by one who, in so consecrating me, does not also gain for himself the glory which rightfully belongs to genius. For the famous Alexander himself did not wish to be painted by Apelles, and to have his statue made by Lysippus above all others, merely from personal favour to them, but because he thought that their art would be a glory at once to them and to himself. And, indeed, those artists used to make images of the person known to strangers: but if such had never existed, illustrious men would yet be no less illustrious. The Spartan Agesilaus, who would not allow a portrait of himself to be painted or a statue made, deserves to be quoted as an example quite as much as those who have taken trouble about such representations: for a single pamphlet of Xenophon's in praise of that king has proved much more effective than all the portraits and statues of them all. And, moreover, it will more redound to my present exultation and the honour of my memory to have found my way into your history, than if I had done so into that of others, in this, that I shall profit not only by the genius of the writer--as Timoleon did by that of Timæus, Themistocles by that of Herodotus--but also by the authority of a man of a most illustrious and well-established character, and one well known and of the first repute for his conduct in the most important and weighty matters of state; so that I shall seem to have gained not only the fame which Alexander on his visit to Sigeum said had been bestowed on Achilles by Homer, but also the weighty testimony of a great and illustrious man. For I like that saying of Hector in Nævius, who not only rejoices that he is "praised," but adds, "and by one who has himself been praised." But if I fail to obtain my request from you, which is equivalent to saying, if you are by some

means prevented--for I hold it to be out of the question that you would _refuse_ a request of mine--I shall perhaps be forced to do what certain persons have often found fault with, write my own panegyric, a thing, after all, which has a precedent of many illustrious men. But it will not escape your notice that there are the following drawbacks in a composition of that sort: men are bound, when writing of themselves, both to speak with greater reserve of what is praiseworthy, and to omit what calls for blame. Added to which such writing carries less conviction, less weight; many people, in fine, carp at it, and say that the heralds at the public games are more modest, for after having placed garlands on the other recipients and proclaimed their names in a loud voice, when their own turn comes to be presented with a garland before the games break up, they call in the services of another herald, that they may not declare themselves victors with their own voice. I wish to avoid all this, and, if you undertake my cause, I shall avoid it: and, accordingly, I ask you this favour. But why, you may well ask, when you have already often assured me that you intended to record in your book with the utmost minuteness the policy and events of my consulship, do I now make this request to you with such earnestness and in so many words? The reason is to be found in that burning desire, of which I spoke at the beginning of my letter, for something _prompt_: because I am in a flutter of impatience, both that men should learn what I am from your books, while I am still alive, and that I may myself in my lifetime have the full enjoyment of my little bit of glory. What you intend doing on this subject I should like you to write me word, if not troublesome to you. For if you do undertake the subject, I will put together some notes of all occurrences: but if you put me off to some future time, I will talk the matter over with you. Meanwhile, do not relax your efforts, and thoroughly polish what you have already on the stocks, and--continue to love me.

[Footnote 487: That is, the dowry and expenses of Tullia's betrothal to Crassipes.]

[Footnote 488: _Tullia de via recta in hortos_, for _tu_, etc., and _ad te postridie_. This may not be right, but no other suggestions as to the meaning of these abrupt clauses have been made which are in the least convincing. We must suppose that Atticus has asked Tullia to stay with him and his wife Pilia, and Cicero is describing her journey from Antium.]

[Footnote 489: L. Lucceius, of whom we have heard before, as having some quarrel with Atticus. His work has not survived. No letter of the correspondence has brought more adimadversion on Cicero, and yet log-rolling and the appealing to friends on the press to review one's book are not wholly unknown even in our time.]

[Footnote 490: Cicero appears by a slip to have written Themistocles instead of Aristeides. The dramatic return of the latter just before the battle of Salamis is narrated in Herodotus: whereas the former never returned, though his dead body was said to have been brought to Athens.]

CIX (A IV, 6)

TO ATTICUS (AT ROME)

FROM THE COUNTRY (APRIL-MAY)

[Sidenote: B.C. 56, ÆT. 50]

Of course I am as sorry about Lentulus as I am bound to be: we have lost a good patriot and a great man, one who to great strength of character united a culture equally profound. My consolation is a miserable one, but still it is a consolation--that I do not grieve on his account: I don't mean in the sense of Saufeius and your Epicurean friends, but, by Hercules, because he loved his country so deeply, that he seems to me to have been snatched away by a special favour of providence from its conflagration. For what could be more humiliating than the life we are living, especially mine? For as to yourself, though by nature a politician, you have yet avoided having any servitude peculiar to yourself: you merely come under an appellation common to us all.[491] But _I_, who, if I say what I ought about the Republic, am looked on as mad, if what expediency dictates, as a slave, and if I say nothing, as utterly crushed and helpless--what must I be suffering? Suffer, indeed, I do, and all the more keenly that I cannot even shew my pain without appearing ungrateful. Again: what if I should choose a life of inactivity and take refuge in the harbour of retired leisure? Impossible! Rather war and the camp! Am I to serve in the ranks after refusing to be a general? I suppose I must. For I perceive you, too, think so, you whom I wish that I had always obeyed. All that is left to me now is, "You have drawn Sparta: make the best of it!" But, by heavens, I can't: and I feel for Philoxenus,[492] who preferred a return to gaol. However, in my present retirement I am thinking over how to express my rejection of the old policy, and when we meet you will strengthen me in it.

I notice that you have written to me at frequent intervals, but I received all the letters at once. This circumstance increased my grief. For I had read three to begin with, in which the report of Lentulus was that he was a little better. Then came the thunderbolt of the fourth. But it is not he, as I said, who is to be pitied, but we who are so callous as to live on.[493] You remind me to write that essay on Hortensius: I have digressed into other subjects, but have not forgotten your charge. But, by heaven, at the first line I shrank from the task, lest I, who seem to have acted foolishly in resenting his intemperate conduct as a friend, should once more be foolishly rendering his injurious treatment of me conspicuous, if I wrote anything; and at the same time lest my high _morale_, manifested in my actions, should be somewhat obscured in my writing, and this mode of taking satisfaction should seem to imply a certain instability. But we shall see. Only be sure to write me something as often as possible. I sent a letter to Lucceius asking him to write the history of my consulship: be sure you get it from him, for it is a very pretty bit of writing, and urge him to use despatch, and thank him for having written me an answer saying that he would do so. Go and see my house as often as you can. Say something to Vestorius:[494] for he is acting very liberally in regard to me.

[Footnote 491: Reading _communi fueris nomine_. After all, the meaning is very doubtful.]

[Footnote 492: Philoxenus, who, having been sent to the quarries by Dionysius of Syracuse, for criticising the tyrant's poetry, was given another chance. After reading a few lines he turned away silently. "Where are you going?" said Dionysius. "Back to the quarries," said Philoxenus. For Σπαρταν ἔλαχες, ταύτην κοσμεῖ, see p. 59.]

[Footnote 493: _Ferrei_. The true meaning of the word here seems to me to be shewn by _de Am._ § 87, _quis tam esset ferreus, qui eam vitam ferre posset, cuique non auferret fructum voluptatum omnium solitudo_? There is an intentional play on the words _ferreus_ and _ferre_. Others have altered it to _servi_, and others have explained it as an allusion to the iron age, in both cases spoiling the antithesis--he died, we remain--and in the latter using the word in a sense not elsewhere found. Lentulus is L. Cornelius Lentulus. See Letter L.]

[Footnote 494: A money-lender.]

CX (A IV, 7)

TO ATTICUS (AT ROME)

ARPINUM (APRIL-MAY)

[Sidenote: B.C. 56, ÆT. 50]

Nothing could be better timed than your letter, which much relieved the anxiety I was feeling about that excellent boy, our Quintus. Two hours earlier Chærippus had arrived: his news was simply awful. As to what you say about Apollonius, why, heaven confound him! a Greek and turn bankrupt! Thinks he may do what Roman knights do! For, of course, Terentius is within his rights! As to Metellus--_de mortuis_, etc.[495]--yet there has been no citizen die these many years past who ----. Well, I am willing to warrant your getting the money: for what have you to fear, whomsoever he made his heir, unless it were Publius? But he has, in fact, made a respectable man his heir, though he was himself ----! Wherefore in this business you will not have to open your money-chest: another time you will be more cautious. Please see to my instructions about my house: hire some guards: give Milo a hint.[496] The Arpinates grumble amazingly about Laterium.[497] Well, what can I say? I was much annoyed myself, but "to words of mine he gave no heed."[498] For the rest, take care of young Cicero and love him as always.

[Footnote 495: οὐχ ὁσίη φθιμένοισιν, leaving Atticus, as often, to fill in the words ἐπ' ἀνδράσιν εὐχετάασθαι (Hom. _Od._ xxii. 412, where the word is κταμένοισιν). Terentius is some eques who has stopped payment.]

[Footnote 496: Because Clodius was attempting to pull down Cicero's new-built house on the ground that the site was still consecrated. He was prevented by Milo (Dio, xxxix. 20).]

[Footnote 497: Something that Quintus had done, perhaps about water, on his estate which annoyed his fellow townsmen.]

[Footnote 498: ὁ δ' οὐκ ἐμπάζετο μύθων (Hom. _Od._ i. 271).]

CXI (A IV, 8 a)

TO ATTICUS (AT ROME)

ANTIUM (APRIL-MAY)

[Sidenote: B.C. 56, ÆT. 50]

There were many things in your letter which pleased me, but nothing more than your "dish of cheese and salt fish"![499] For as to what you say about the sale,

"Boast not yourself before you see the end"[500]

I can find nothing in the way of a building for you in the neighbourhood. In the town there is something of the sort, though it is doubtful whether it is for sale, and, in fact, close to my own house. Let me tell you that Antium is the Buthrotum of Rome, just what your Buthrotum is to Corcyra. Nothing can be quieter, cooler, or prettier--"be this mine own dear home."[501] Moreover, since Tyrannio has arranged my books for me, my house seems to have had a soul added to it; in which matter your Dionysius and Menophilus were of wonderful service. Nothing can be more charming than those bookcases of yours, since the title-slips have shewn off the books. Good-bye. I should like you to write me word about the gladiators, but only if they fight well, I don't want to know about them if they were failures.

[Footnote 499: We must suppose Atticus to have mentioned some money loss (see last letter), and to have added that, though a ruinous one, his tastes were simple, and he could live on simple fare. Cicero laughs at the affectation of the rich Atticus. _Rauduscul̇um_, "a piece of bronze," was the ancient term for the piece of bronze money used in sales, _per æs et libram_ (Varro, _L. L._ v. 163).]

[Footnote 500: μήπω μέγ' εἴπῃς πρὶν τελευτήσαντ' ἴδῃς, "Do not boast till you see a man dead"--a well-known line from a lost play of Sophocles, containing a sentiment elsewhere often repeated, especially in Herodotus's account of the interview of Solon and Crœsus.]

[Footnote 501: εἴη μοὶ οὗτος φίλος οἶκος, according to a probable restoration of the Greek words (instead of εἴη μισητὸς φίλος οἶκος, "I might even hate my town house in comparison"); cp. Hor. _Od._ ii. 6, 7.]

CXII (F V, 3)

FROM Q. METELLUS NEPOS (IN SPAIN)

[Sidenote: B.C. 56, ÆT. 50]

The insults of a most outrageous person, with which he loads me in frequent public speeches, are alleviated by your kind services to me; and as they are of little weight

as coming from a man of that character, they are regarded by me with contempt, and I am quite pleased by an interchange of persons to regard you in the light of a cousin.[502] Him I don't wish even to remember, though I have twice saved his life in his own despite. Not to be too troublesome to you about my affairs, I have written to Lollius as to what I want done about my provincial accounts, with a view to his informing and reminding you. If you can, I hope you will preserve your old goodwill to me.

[Footnote 502: _Fratris_. The mother of Clodius, Cæcilia, was a daughter of Q. Cæcilius Metellus Baleáricus (consul B.C. 123), father of the writer of this letter.]

CXIII (F I, 7)

TO P. LENTULUS SPINTHER (IN CILICIA)

ROME (OCTOBER)

[Sidenote: B.C. 56, ÆT. 50]

I have read your letter in which you say that you are obliged for the frequent information I give you about all current events, and for the clear proof you have of my kindness to yourself. The latter--the regarding you with warm affection--it is my duty to do, if I wish to maintain the character which you desired for me; the former it is a pleasure to do, namely, separated as we are by length of space and time, to converse with you as frequently as possible by means of letters. But if this shall occur less frequently than you expect, the reason will be that my letters are of such a kind that I dare not trust them to everybody promiscuously. As often as I get hold of trustworthy persons to whom I may safely deliver them, I will not omit to do so. As to your question about each particular person's loyalty and friendly feelings towards you, it is difficult to speak in regard to individuals. I can venture on this one assertion, which I often hinted to you before, and now write from close observation and knowledge--that certain persons, and those, above all others, who were most bound and most able to help you, have been exceedingly jealous of your claims: and that, though the point in question is different, your present position is exceedingly like what mine was some time ago in this, that those whom you had attacked on public grounds now openly assail you, while those whose authority, rank, and policy you had defended, are not so much mindful of your kindness as enemies to your reputation. In these circumstances, as I wrote you word before, I perceive that Hortensius is very warmly your friend, Lucullus anxious to serve you: while of the magistrates L. Racilius shews special loyalty and affection. For my taking up the cudgels for you, and advocating your claims, would seem in the eyes of most people to be the measure of my obligation to you rather than of my deliberate opinion. Besides these I am, in fact, not able to bear witness to any one of the consulars shewing zeal or kindness or friendly feeling towards you. For you are aware that Pompey, who is very frequently accustomed, not on my instigation but of his own accord, to confide in me about you, did not often attend the senate during these discussions. It is true your last letter, as I

could easily conceive, was very gratifying to him. To me, indeed, your reasonableness, or rather your extreme wisdom, seemed not only charming, but simply admirable. For by that letter you retained your hold on a man of lofty character, who was bound to you by the signal generosity of your conduct towards him, but who was entertaining some suspicions that, owing to the impression prevailing among certain persons as to his own ambitious desires, you were alienated from him. I always thought that he wished to support your reputation, even in that very dubious episode of Caninius's proposal;[503] but when he had read your letter, I could plainly see that he was thinking with his whole soul of you, your honours, and your interests. Wherefore look upon what I am going to write as written after frequent discussions with him, in accordance with his opinion, and with the weight of his authority. It is this: "That, since no senatorial decree exists taking the restoration of the Alexandrine king out of your hands, and since the resolution written out upon that restoration (which, as you are aware, was vetoed) to the effect that no one was to restore the king at all,[504] has rather the weight of a measure adopted by men in anger than of a deliberate decision of the senate--you can yourself see, since you are in possession of Cilicia and Cyprus,[505] what it is within your power to effect and secure; and that, if circumstances seem to make it possible for you to occupy Alexandria and Egypt, it is for your own dignity and that of the empire that, after having first placed the king at Ptolemais or some neighbouring place, you should proceed with fleet and army to Alexandria, in order that, when you have secured it by restoring peace and placing a garrison in it, Ptolemy may go back to his kingdom: thus it will be brought about that he is restored at once by your agency, as the senate originally voted, and without a 'host,' as those who are scrupulous about religion said was the order of the Sibyl."

But though both he and I agreed in this decision, we yet thought that men would judge of your policy by its result: if it turns out as we wish and desire, everybody will say that you acted wisely and courageously; if any hitch occurs, those same men will say that you acted ambitiously and rashly. Wherefore what you really can do it is not so easy for us to judge as for you, who have Egypt almost within sight. For us, our view is this: if you are certain that you can get possession of that kingdom, you should not delay: if it is doubtful, you should not make the attempt. I can guarantee you this, that, if you succeed, you will be applauded by many while abroad, by all when you return. I see great danger in any failure, on account of the senatorial resolution and the religious scruple that have been introduced into the question. But for me, as I exhort you to snatch at what is certain to bring you credit, so I warn you against running any risks, and I return to what I said at the beginning of my letter--that men will judge all you do, not so much from the policy which prompted it as from its result. But if this method of procedure appears to you to be dangerous, our opinion is that, if the king fulfils his obligations to those of your friends, who throughout your province and sphere of government have lent him money, you should assist him both with troops and supplies: such is the nature and convenient situation of your province, that you either secure his restoration by giving him aid, or hinder it by neglecting to do so. In carrying out this policy you will perceive better and more easily than anyone else what the actual state of affairs, the nature of the case, and

the circumstances of the hour admit: what our opinion was I thought that I was the person, above all others, to tell you.

As to your congratulations to myself on my present position, on my intimacy with Milo, on the frivolity and impotency of Clodius--I am not at all surprised that, like a first-rate artist, you take pleasure in the brilliant works of your own hands. However, people's wrong-headedness--I don't like to use a harsher word--surpasses belief; they might have secured me by their sympathy in a cause in which they were all equally interested, yet they have alienated me by their jealousy: for by their carping and most malicious criticisms I must tell you that I have been all but driven from that old political standpoint of mine, so long maintained, not, it is true, so far as to forget my position, but far enough to admit at length some consideration for my personal safety also. Both might have been amply secured if there had been any good faith, any solidity in our consulars: but such is the frivolity of most of them, that they do not so much take pleasure in my political consistency, as offence at my brilliant position. I am the more outspoken in writing this to you, because you lent your support, not only to my present position, which I obtained through you, but also long ago to my reputation and political eminence, when they were, so to speak, but just coming into existence; and at the same time because I see that it was not, as I used formerly to think, my want of curule pedigree that excited prejudice: for I have noticed in your case, one of the noblest of the land, a similar exhibition of base jealousy, and though they did not object to class you among the _noblesse_, they were unwilling that you should take any higher flight. I rejoice that your fortune has been unlike mine: for there is a great difference between having one's reputation lowered and one's personal safety abandoned to the enemy. In my case it was your noble conduct that prevented me from being too much disgusted with my own; for you secured that men should consider more to have been added to my future glory than had been taken from my present fortune. As for you--instigated both by your kindness to myself and my affection for you, I urge you to use all your care and industry to obtain the full glory, for which you have burned with such generous ardour from boyhood, and never, under anyone's injurious conduct, to bend that high spirit of yours, which I have always admired and always loved. Men have a high opinion of you; they loudly praise your liberality; they vividly remember your consulship. You must surely perceive how much more marked, and how much more prominent these sentiments will be, if backed up by some considerable repute from your province and your government. However, in every administrative act which you have to perform by means of your army and in virtue of your _imperium_, I would have you reflect on these objects long before you act, prepare yourself with a view to them, turn them over in your mind, train yourself to obtain them, and convince yourself that you can with the greatest ease maintain the highest and most exalted position in the state. This you have always looked for, and I am sure you understand that you have attained it. And that you may not think this exhortation of mine meaningless or adopted without reason, I should explain that the consideration which has moved me to make it was the conviction that you required to be warned by the incidents, which our careers have had in common, to be careful for the rest of your life as to whom to trust and against whom to be on your guard.

As to your question about the state of public affairs--there is the most profound difference of opinion, but the energy is all on one side. For those who are strong in wealth, arms, and material power, appear to me to have scored so great a success from the stupidity and fickleness of their opponents, that they are now the stronger in moral weight as well. Accordingly, with very few to oppose them, they have got everything through the senate, which they never expected to get even by the popular vote without a riot: for a grant for military pay and ten legates have been given to Cæsar by decree,[506] and no difficulty has been made of deferring the nomination of his successor, as required by the Sempronian law.[507] I say the less to you on this point, because this position of public affairs is no pleasure to me: I mention it, however, in order to urge you to learn, while you can do so without suffering for it, the lesson which I myself, though devoted from boyhood to every kind of reading, yet learnt rather from bitter experience than from study, that we must neither consider our personal safety to the exclusion of our dignity, nor our dignity to the exclusion of our safety.

In your congratulations as to my daughter and Crassipes I am obliged to you for your kindness, and do indeed expect and hope that this connexion may be a source of pleasure to us. Our dear Lentulus, a young man who gives such splendid promise of the highest qualities, be sure you instruct both in those accomplishments which you have yourself ever been forward in pursuing, and also, above all, in the imitation of yourself: he can study in no better school than that. He holds a very high place in my regard and affection, as well because he is yours, as because he is worthy of such a father, and because he is devoted to me, and has always been so.

[Footnote 503: See Letter XCV.]

[Footnote 504: See Letter CII.]

[Footnote 505: Joined to the province of Cilicia by Cato in B.C. 58-57. What Cicero is recommending is a clear evasion. Lentulus is not to _take_ Ptolemy back, but to go to Egypt and make it ready for him.]

[Footnote 506: Cicero says elsewhere that he supported this (_pro Balbo_, §61; _de Prov. Cons._ §28; cp. Dio, xxxix. 25).]

[Footnote 507: The law of Gaius Gracchus (B.C. 123) enacting that the senate should name before the elections the provinces to be held by the next consuls.]

CXIV (F XIII, 6 a)

Q. VALERIUS ORCA (PROCONSUL IN AFRICA)

ROME (MAY)

[Sidenote: B.C. 56, ÆT. 50]

If you are well I shall be glad. I am quite well. I presume that you will remember that, when escorting you on the commencement of your official journey,[508] I mentioned to you in the presence of Publius Cuspius, and also afterwards urged you

privately at some length, that whomsoever I might recommend to you as connexions of his, you should regard as among connexions of my own. You, as was to be expected from your extreme regard and uninterrupted attentions to me, undertook to do this for me with the utmost liberality and kindness. Cuspius, who is most careful in his duties towards all connected with him, takes a surprising interest in the well-being of certain persons of your province, because he has been twice in Africa when presiding over the very large concerns of his revenue-company. Accordingly, this patronage of his, which he exercises on their behalf, I am accustomed as far as I can to back up by such means and influence as I possess. Wherefore I thought it necessary to explain to you in this letter why I give letters of introduction to all the friends of Cuspius. In future letters I will merely append the mark[509] agreed upon between you and me, and at the same time indicate that he is one of Cuspius's friends. But the recommendation which I have resolved to subscribe to in this present letter, let me tell you, is more serious than any of them. For P. Cuspius has pressed me with particular earnestness to recommend Lucius Iulius to you as warmly as possible. I appear to be barely able to satisfy his eagerness by using the words which I generally use when most in earnest. He asks for something out of the common way from me, and thinks I have a special knack in that style of writing. I have promised him to produce a masterpiece of commendation--a specimen of my choicest work. Since I cannot reach that standard, however, I would beg you to make him think that some astonishing effect has been produced by the style of my letter. You will secure that, if you treat him with all the liberality which your kindness can suggest and your official power make feasible--I don't mean merely in the way of material assistance, but also in words and even in looks: and what influence such things have in a province I could have wished that you had already learnt by experience, though I have an idea that you soon will do so. This man himself, whom I am recommending to you, I believe to be thoroughly worthy of your friendship, not only because Cuspius says so (though that should be enough), but because I know the keenness of his judgment of men and in the selection of his friends. I shall soon be able to judge what has been the effect of this letter, and shall, I feel certain, have reason to thank you. For myself, I shall with zeal and care see to all that I think to be your wish or to concern your interests. Take care of your health.

[Footnote 508: _Paludatum_, lit. dressed in the _paludamentum_, the military dress in which provincial governors left Rome with _imperium_.]

[Footnote 509: _Notam_, some cipher, which he had agreed upon with Valerius to indicate that the _commendatio_ was not to be looked upon as a mere matter of course.]

CXV (F XIII, 6 b)

TO Q. VALERIUS ORCA (PROCONSUL IN AFRICA)

ROME (MAY)

[Sidenote: B.C. 56, ÆT. 50]

P. Cornelius, who delivers you this letter, has been recommended to me by P. Cuspius, for whose sake you are thoroughly informed from me how much I desire and am bound to do. I earnestly beg you that Cuspius may have as great, early, and frequent occasion as possible to thank me for this introduction.

CXVI (Q FR II, 6)

TO HIS BROTHER QUINTUS (RETURNING FROM SARDINIA)

ROME, MAY

[Sidenote: B.C. 56, ÆT. 50]

How delighted I was to get your letter! It had been expected by me at first, it is true, only with longing, but recently with alarm also. And, in fact, let me tell you that this is the only letter which has reached me since the one brought me by your sailor and dated Olbia. But let everything else, as you say, be reserved till we can talk it over together. One thing, however, I cannot put off: on the 15th of May the senate covered itself with glory by refusing Gabinius a _supplicatio_. Procilius[510] vows that such a slight was never inflicted on anyone. Out of doors there is much applause. To me, gratifying as it is on its own account, it is even more so because it was done when I was not in the house. For it was an unbiassed[511] judgment of the senate, without any attack or exercise of influence on my part. The debate previously arranged for the 15th and 16th, namely, the question of the Campanian land, did not come on. In this matter I don't quite see way.[512] But I have said more than I meant to say: for it is best reserved till we meet. Goodbye, best and most longed-for of brothers! Fly to me. Our boys both share my prayer: of course, you will dine with me the day of your arrival.

[Footnote 510: One of the tribunes. He was convicted of _vis_ in B.C., 54. Gabinius was governor of Syria B.C. 57-54. He had been engaged in some warlike affairs in Iudæa, for which, or for some successes over the Arabs, he claimed the _supplicatio_.]

[Footnote 511: εἰλικρινές, "pure," "clear."]

[Footnote 512: _Mihi aqua hæret_, "there's a stoppage in my water course."]

CXVII (A IV, 8 b)

[Sidenote: B.C. 55. Coss., Cu. Pompeius Magnus, M. Licinius Crassus.]

In this year Cicero devoted much of his time and energy to the composition of the _de Oratore_. He was glad to be away from Rome, for though he had resolved to give up his opposition to the triumvirs, he was never really happy in supporting or even witnessing their policy, and the first letter betrays his sentiments as to the way in which the consuls had secured their election. His fear of an autocracy, however, seems now to be directed rather to Pompey than Cæsar; nor was he at all charmed by

the splendour of the games given at the opening of Pompey's new theatre. The only extant speech is that against L. Calpurnius Piso (consul B.C. 58) who had been recalled from Macedonia.

TO ATTICUS (AT ROME)

TUSCULUM[513] (JANUARY)

[Sidenote: B.C. 55, ÆT. 51]

Apenas had scarcely left me, when your letter came. Really? Do you suppose he won't propose his law?[514] Pray speak a little louder: I seem scarcely to have caught what you said. But let me know it at once, if it is all the same to you, that is! Well, since an additional day has been assigned to the games, I am all the more content to spend that day with Dionysius. About Trebonius I cordially agree with you. About Domitius,[515]

"I swear by Ceres that no single fig Was e'er so like another,"

as his case to mine, either in the sameness of persons, the unexpectedness of it, or the futility of the loyalists. There is one difference--he has brought it upon himself. For as to the misfortune itself, I rather think mine is the less grievous. For what could be more mortifying than that a man, who has been consul-designate, so to speak, ever since he was born, should fail in securing his election? Especially when he is the only (plebeian) candidate, or at most had but one opponent. If it is also the fact, which I rather think it is, that _he_[516] has in the register of his pocket-book some equally long pages of future, no less than of past consuls, what more humiliating position than our friend's, except that of the Republic? My first information about Natta[517] was from your letter: I couldn't bear the man. As to your question about my poem: what if it is all agog to escape from my hands? Well? Would you permit it? About Fabius Luscus--I was just going to speak of him: the man was always very cordial to me, and I never had any cause to dislike him; for he is intelligent, very well-behaved, and serviceable enough. As I was seeing nothing of him, I supposed him to be out of town: but was told by this fellow Gavius of Firmum, that he was at Rome, and had never been away. It made a disagreeable impression on me. "Such a trifle as that?" you will say. Well, he had told me a good deal of which there could be no doubt as to these brothers of Firmum. What it is that has made him hold aloof from me, if he has done so, I have no idea.

As to your advice to me to act "diplomatically" and keep to the "outside course"--I will obey you. But I want still more worldly wisdom, for which, as usual, I shall come to you. Pry small things out from Fabius,[518] if you can get at him, and pick the brains of your guest, and write me word on these points and all others every day. When there is nothing for you to write, write and say so. Take care of your health.

[Footnote 513: The letter appears to be from Tusculum, because Cicero asks for a letter every day, which he could hardly expect if he were farther off. This year Cicero was much away from Rome, and yet his correspondence is meagre compared with

other years. So far as this is not due to accident in the preservation of his letters, it may be accounted for by the fact that he was working at his _de Oratore_--so hard, that even his brother Quintus had scruples in breaking in upon him.]

[Footnote 514: This may refer to the laws of Trebonius, giving Pompey and Crassus Spain and Syria respectively, and Cæsar an additional five years in Gaul, or to some of Pompey's own legislation.]

[Footnote 515: L. Domitius Ahenobarbus, a candidate for the consulship of B.C. 55, but whose election had never come off. By various contrivances the _comitia_ were prevented, so that the new year opened with an _interregnum_; and Pompey and Crassus were elected under the presidency of an _interrex_ (Dio, xxxix. 31).]

[Footnote 516: Pompey.]

[Footnote 517: L. Natta, a brother-in-law of Clodius, a pontifex who had presided at the _consecratio_ of Cicero's house. He seems to have just died.]

[Footnote 518: A friend of Pompey's. I think "your guest" must be Pompey himself, whom Atticus is about to entertain at dinner.]

CXVIII (F I, 8)

TO P. LENTULUS SPINTHER (IN CILICIA)

ROME (JANUARY)

[Sidenote: B.C. 55, ÆT. 51]

What debates have taken place in the senate, what determination has been come to in your business, and what Pompey has undertaken to do, all this you will best learn from Marcus Plætorius, who has not only been engaged in these matters, but has even taken the lead in them, and left nothing undone which the greatest affection for you, the greatest good sense, and the greatest care could do. From the same man you will ascertain the general position of public affairs, which are of such a nature as is not easy to put in writing. They are, it is true, all in the power of our friends, and to such an extent that it does not seem probable that the present generation will witness a change. For my part, as in duty bound, as you advised, and as personal affection and expediency compel, I am attaching myself to the fortunes of the man whose alliance you thought you must court when my fortunes were in question. But you must feel how difficult it is to put away a political conviction, especially when it happens to be right and proved up to the hilt. However, I conform myself to the wishes of him from whom I cannot dissent with any dignity: and this I do not do, as perhaps some may think, from insincerity; for deliberate purpose and, by heaven! affection for Pompey are so powerful with me, that whatever is to his interest, and whatever he wishes, appears to me at once to be altogether right and reasonable. Nor, as I think, would even his opponents be wrong if, seeing that they cannot possibly be his equals, they were to cease to struggle against him. For myself I have

another consolation--my character is such that all the world thinks me justified beyond all others, whether I support Pompey's views, or hold my tongue, or even, what is above everything else to my taste, return to my literary pursuits. And this last I certainly shall do, if my friendship for this same man permits it. For those objects which I had at one time in view, after having held the highest offices and endured the greatest fatigues--the power of intervening with dignity in the debates of the senate, and a free hand in dealing with public affairs--these have been entirely abolished, and not more for me than for all. For we all have either to assent to a small clique, to the utter loss of our dignity, or to dissent to no purpose. My chief object in writing to you thus is that you may consider carefully what line you will also take yourself. The whole position of senate, law courts, and indeed of the entire constitution has undergone a complete change. The most we can hope for is tranquillity: and this the men now in supreme power seem likely to give us, if certain persons[519] shew somewhat more tolerance of their despotism. The old consular prestige, indeed, of a courageous and consistent senator we must no longer think of: that has been lost by the fault of those who have alienated from the senate both an order once very closely allied to it, and an individual of the most illustrious character. But to return to what more immediately affects your interests--I have ascertained that Pompey is warmly your friend, and with him as consul, to the best of my knowledge and belief, you will get whatever you wish. In this he will have me always at his elbow, and nothing which affects you shall be passed over by me. Nor, in fact, shall I be afraid of boring him, for he will be very glad for his own sake to find me grateful to him. I would have you fully persuaded that there is nothing, however small, affecting your welfare that is not dearer to me than every interest of my own. And entertaining these sentiments, I can satisfy myself indeed, as far as assiduity is concerned, but in actual achievement I cannot do so, just because I cannot reach any proportion of your services to me, I do not say by actual return in kind, but by any return even of feeling. There a report that you have won a great victory.[520] Your despatch is anxiously awaited, and I have already talked to Pompey about it. When it arrives, I will shew my zeal by calling on the magistrates and members of the senate: and in everything else which may concern you, though I shall strive for more than I can achieve, I shall yet do less than I ought.

[Footnote 519: The extreme Optimates, such as Cato.]

[Footnote 520: Against the predatory and piratic inhabitants of Cilicia.]

CXIX (Q FR II, 7)

TO HIS BROTHER QUINTUS (IN THE COUNTRY)

ROME (FEBRUARY)

[Sidenote: B.C. 55, ÆT. 51]

I thought you would like my book:[521] that you like it as much as you say I am greatly delighted. As to your hint about my Urania and your advice to remember the

speech of Iupiter,[522] which comes at the end of that book, I do indeed remember it, and that whole passage was aimed at myself rather than at the rest of the world. Nevertheless, the day after you started I went long before daybreak with Vibullius to call on Pompey; and upon addressing him on the subject of the works and inscriptions in your honour,[523] he answered me very kindly, gave me great hopes, said he would like to talk to Crassus about it, and advised me to do so too. I joined in escorting Crassus to his house on his assuming the consulate: he undertook the affair, and said that Clodius would at this juncture have something that he wanted to get by means of himself and Pompey: he thought that, if I did not baulk Clodius's views, I might get what I wanted without any opposition. I left the matter entirely in his hands and told him that I would do exactly as he wished. Publius Crassus the younger was present at this conversation, who, as you know, is very warmly attached to me. What Clodius wants is an honorary mission (if not by decree of the senate, then by popular vote) to Byzantium or to Brogitarus, or to both.[524] There is a good deal of money in it. It is a thing I don't trouble myself about much, even if I don't get what I am trying to get. Pompey, however, has spoken to Crassus. They seem to have taken the business in hand. If they carry it through, well and good: if not, let us return to my "Iupiter."

On the 11th of February a decree passed the senate as to bribery on the motion of Afranius, against which I had spoken when you were in the house. To the loudly expressed disapprobation of the senate the consuls did not go on with the proposals of those who, while agreeing with Afranius's motion, added a rider that after their election the prætors were to remain private citizens for sixty days.[525] On that day they unmistakably threw over Cato. In short, they manage everything their own way, and wish all the world to understand it to be so.

[Footnote 521: His poem "On his own Times."]

[Footnote 522: In his poem _de Consulatu suo_, the second book of which (Urania) ends with a speech of Iupiter, who recommends his leaving politics for literature.]

[Footnote 523: A statue in the temple of Tellus.]

[Footnote 524: Brogitarus was a Galatian and connexion of Deiotarus. Clodius, as tribune, had done some services to Byzantium, and had also got Brogitarus the office of high priest of Cybele. He wants now to go and get his money for these favours.]

[Footnote 525: The prætorian elections, like the consular, had been put off till February. Those elected would therefore enter on their office at once, and so escape prosecution, to which they would have been liable if, as in ordinary years, they had been "prætors-designate" from July to January. Afranius's motion seems to have been for suspending the bribery laws _pro hac vice_. Cato had been beaten: if there had been an opportunity of impeaching his rivals he might have got in.]

CXX (A IV, 10)

TO ATTICUS (AT ROME)

CUMÆ, 20 APRIL

[Sidenote: B.C. 55, ÆT. 51]

At Puteoli there is a great report that Ptolemy has been restored. If you have any more certain news, I should like to know it. I am here devouring the library of Faustus.[526] Perhaps you thought I was feasting on the beauties of Puteoli and the Lucrine lake. Well, I have them too. But I declare to heaven that the more I am debarred from the enjoyment of ordinary pleasures, owing to the political situation, the more do I find support and refreshment in literature; and I would rather be sitting in that charming seat of yours, under your bust of Aristotle, than in _their_[527] curule chair, and be taking a stroll with you rather than with the great man[528] with whom I see I shall have to walk. But as to that walk, let fortune look to it, or god, if there is any god who cares for such things. I wish, when possible, you would come and see my walk and Spartan bath, and the buildings planned by Cyrus, and would urge Philotimus to make haste, that I may have something to match with yours in that department.[529] Pompey came to his Cuman property on the Parilia (19th April). He at once sent a man to me with his compliments. I am going to call on him on the morning of the 20th, as soon as I have written this letter.

[Footnote 526: Son of the dictator Sulla, who is known to have brought back from Athens a famous Aristotelian library.]

[Footnote 527: Pompey and Crassus, the consuls.]

[Footnote 528: Pompey, as the context shews. In the next clause _ambulatio_ has a double meaning of physical walking and of a political course of conduct.]

[Footnote 529: Philotimus, a freedman of Terentia's, seems to have been engaged at Rome in the reconstruction of Cicero's house. The Spartan bath (_Laconicum_) was a hot-air bath, like a Turkish bath.]

CXXI (A IV, 9)

TO ATTICUS (AT ROME)

CUMÆ, 28 APRIL

[Sidenote: B.C. 55, ÆT. 51]

I should much like to know whether the tribunes are hindering the census by stopping business with their bad omens[530] (for there is a rumour to that effect), and what they are doing and contriving as to the censorship altogether. I have had an interview with Pompey here. He talked a good deal to me about politics. He is not at all satisfied with himself, to judge from what he says--one is obliged to put in that proviso in his case. He thinks very little of Syria as a province; talks a good deal about Spain--here, too, I must add, "to judge from what he says," and, I think, his whole conversation requires that reservation, and to be ticketed as Phocylides did his

verses--καὶ τόδε Φωκυλίδου.[531] He expressed gratitude to you for undertaking to arrange the statues:[532] towards myself he was, by Hercules, most effusively cordial. He even came to my Cuman house to call on me. However, the last thing he seemed to wish was that Messalla should stand for the consulship: that is the very point on which I should like to hear what you know. I am much obliged by your saying that you will recommend my fame to Lucceius, and for your frequent inspection of my house. My brother Quintus has written to tell me that, as you have that dear boy, his son Quintus, staying with you, he intends coming to your house on the 7th of May. I left my Cuman villa on the 26th of April. That night I spent at Naples with Pætus. I write this very early on the 27th, on my road to my Pompeian house.

[Footnote 530: The tribunes had no _veto_ against the censors, they could only hinder them by the indirect method of _obnuntiatio_, declaring that the omens were bad, and so preventing business.]

[Footnote 531: This also is Phocylides's.]

[Footnote 532: In Pompey's new theatre.]

CXXII (Q FR II, 8)

TO HIS BROTHER QUINTUS (AT ROME)

CUMÆ (APRIL)

[Sidenote: B.C. 55, ÆT. 51]

Afraid that you will interrupt me--you? In the first place, if I were as busy as you think, do you know what interruption means? Have you taken a lesson from Ateius?[533] So help me heaven, in my eyes you give _me_ a lesson in a kind of learning which I never enjoy unless you are with me. Why, that you should talk to me, interrupt me, argue against me, or converse with me, is just what I should like. Nothing could be more delightful! Never, by Hercules, did any crazy poet read with greater zest his last composition than I listen to you, no matter what business is in hand, public or private, rural or urban. But it was all owing to my foolish scrupulousness that I did not carry you off with me when I was leaving town. You confronted me the first time with an unanswerable excuse--the health of my son: I was silenced. The second time it was both boys, yours and mine: I acquiesced.[534] Now comes a delightful letter, but with this drop of gall in it--that you seem to have been afraid, and still to be afraid, that you might bore me. I would go to law with you if it were decent to do so; but, by heaven! if ever I have a suspicion of such a feeling on your part, I can only say that I shall begin to be afraid of boring _you_ at times, when in your company. [I perceive that you have sighed at this. 'Tis the way of the world: "But if you lived on earth" ...I will never finish the quotation and say, "Away with all care!"[535] Marius,[536] again, I should certainly have forced into my sedan--I don't mean that famous one of Ptolemy that Anicius got hold of:[537] for I remember when I was conveying him from Naples to Baiæ in Anicius's eight-bearer

sedan, with a hundred armed guards in our train, I had a real good laugh when Marius, knowing nothing of his escort, suddenly drew back the curtains of the sedan--he was almost dead with fright and I with laughing; well, this same friend, I say, I should at least have carried off, to secure, at any rate, the delicate charm of that old-fashioned courtesy, and of a conversation which is the essence of culture. But I did not like to invite a man of weak health to a villa practically without a roof, and which even now it would be a compliment to describe as unfinished. It would indeed be a special treat to me to have the enjoyment of him here also. For I assure you that the neighbourhood of Marius makes the sunshine of that other country residence of mine.[538] I will see about getting him put up in the house of Anicius. For I myself, though a student, can live with workpeople in the house. I get this philosophy, not from Hymettus, but from Arpinum.[539] Marius is feebler in health and constitution. As to interrupting my book[540]--I shall take from you just so much time for writing as you may leave me. I only hope you'll leave me none at all, that my want of progress may be set down to your encroachment rather than to my idleness! In regards to politics, I am sorry that you worry yourself too much, and are a better citizen than Philoctetes, who, on being wronged himself, was anxious for the very spectacle[541] that I perceive gives you pain. Pray hasten hither: I will console you and wipe all sorrow from your eyes: and, as you love me, bring Maruis. But haste, haste, both of you! There is a garden at my house.[542]

[Footnote 533: Some bore, unknown to us.]

[Footnote 534: The two boys seem to be receiving their education together at this time in the house of Quintus.]

[Footnote 535: It is all but impossible to explain these words. Some editors transfer them to the sentence after _de Republica_. But they are scarcely more in place there. The Greek quotation is not known.]

[Footnote 536: M. Marius, to whom Letter CXXVI is addressed.]

[Footnote 537: C. Anicius, a senator, seems to have obtained from Ptolemy Auletes, by gift or purchase, his state sedan and its attendants.]

[Footnote 538: The Pompeianum.]

[Footnote 539: An unintellible word, meant apparently for Greek (perhaps _arce_ Ψυρίᾳ, see _Att._ xvi. 13), is in the text. The most probable conjecture refers it in some way to Arpinum, Cicero's hardy mountain birthplace.]

[Footnote 540: The _de Oratore_.]

[Footnote 541: The ruin of his country.]

[Footnote 542: For us to walk and converse in. It hardly refers to a supply of vegetables, as some suggest.]

CXXIII (A IV, 11)

TO ATTICUS (AT ROME)

CUMÆ (APRIL)

[Sidenote: B.C. 55, ÆT. 51]

I was delighted with your two letters which I received together on the 26th. Go on with the story. I long to know all the facts of what you write about. Also I should like you to find out what this means: you can do so from Demetrius. Pompey told me that he was expecting Crassus in his Alban villa on the 27th: that as soon as he arrived, they were going at once to Rome to settle accounts with the _publicani_. I asked, "During the gladiatorial exhibitions?" He answered, "Before they were begun." What that means I wish you would send me word either at once, if you know, or when he has reached Rome. I am engaged here in devouring books with the aid of that wonderful fellow Dionysius,[543] for, by Hercules, that is what he seems to me to be. He sends compliments to you and all your party.

"No bliss so great as knowing all that is."

Wherefore indulge my thirst for knowledge by telling what happened on the first and on the second day of the shows: what about the censors,[544] what about Appius,[545] what about that she-Appuleius of the people?[546] Finally, pray write me word what you are doing yourself. For, to tell the truth, revolutions don't give me so much pleasure as a letter from you. I took no one out of town with me except Dionysius: yet I am in no fear of wanting conversation--so delightful do I find that youth. Pray give my book to Lucceius.[547] I send you the book of Demetrius of Magnesia,[548] that there may be a messenger on the spot to bring me back a letter from you.

[Footnote 543: A learned freedman of Atticus's.]

[Footnote 544: See p. 250. Censors were elected this year, but the powers of the censorship had been much curtailed by a law of Clodius in B.C. 58.]

[Footnote 545: Apius Claudius (brother of Clodius) was a candidate for the consulship of B.C. 54.]

[Footnote 546: Clodius, a revolutionary, like Appuleius Saturninus. The feminine gender is an insult.]

[Footnote 547: Either his poem "On his own Times," or the notes of events which he had promised in Letter CVIII, p. 231.]

[Footnote 548: A treatise on union (περὶ ὁμονοίας). The rhetorician Dionysius of Magnesia had been with Cicero during his tour in Asia.]

CXXIV (A IV, 12)

TO ATTICUS (AT ROME)

CUMÆ, APRIL

[Sidenote: B.C. 55, ÆT. 51]

Egnatius[549] is at Rome. But I spoke strongly to him at Antium about Halimetus's business. He assured me that he would speak seriously to Aquilius.[550] You will see the man therefore, if you please. I think I can scarcely be ready for Macro:[551] for I see that the auction at Larinum is on the Ides and the two days following. Pray forgive me for that, since you think so much of Macro. But, as you love me, dine with me on the 2nd, and bring Pilia. You must absolutely do so. On the 1st I think of dining at Crassipes' suburban villa as a kind of inn. I thus elude the decree of the senate. Thence to my town house after dinner, so as to be ready to be at Milo's in the morning.[552] There, then, I shall see you, and shall march you on with me. My whole household sends you greeting.

[Footnote 549: L. Egnatius, who owed Q. Cicero money.]

[Footnote 550: C. Aquilius Gallus, Cicero's colleague in the prætorship, and a busy advocate. See p. 13.]

[Footnote 551: Apparently a money-lender.]

[Footnote 552: Perhaps at his _sponsalia_, as he was married towards the end of the year.]

CXXV (F VII, 23)

TO M. FADIUS GALLUS

ROME (MAY)

[Sidenote: B.C. 55, ÆT. 51]

I had only just arrived from Arpinum when your letter was delivered to me; and from the same bearer I received a letter from Arrianus,[553] in which there was this most liberal offer, that when he came to Rome he would enter my debt to him on whatever day I chose. Pray put yourself in my place: is it consistent with your modesty or mine, first to prefer a request as to the day, and then to ask more than a year's credit? But, my dear Gallus, everything would have been easy, if you had bought the things I wanted, and only up to the price that I wished. However, the purchases which, according to your letter, you have made shall not only be ratified by me, but with gratitude besides: for I fully understand that you have displayed zeal and affection in purchasing (because you thought them worthy of me) things which pleased yourself--a man, as I have ever thought, of the most fastidious judgment in all matters of taste. Still, I should like Damasippus[554] to abide by his decision: for there is absolutely none of those purchases that I care to have. But you, being unacquainted with my habits, have bought four or five of your selection at a price at which I do not value any statues in the world. You compare your Bacchæ with

Metellus's Muses. Where is the likeness? To begin with, I should never have considered the Muses worth all that money, and I think all the Muses would have approved my judgment: still, it would have been appropriate to a library, and in harmony with my pursuits. But Bacchæ! What place is there in my house for them? But, you will say, they are pretty. I know them very well and have often seen them. I would have commissioned you definitely in the case of statues known to me, if I had decided on them. The sort of statues that I am accustomed to buy are such as may adorn a place in a _palæstra_ after the fashion of gymnasia.[555] What, again, have I, the promoter of peace, to do with a statue of Mars? I am glad there was not a statue of Saturn also: for I should have thought these two statues had brought me debt! I should have preferred some representation of Mercury: I might then, I suppose, have made a more favourable bargain with Arrianus. You say you meant the table-stand[556] for yourself; well, if you like it, keep it. But if you have changed your mind I will, of course, have it. For the money you have laid out, indeed, I would rather have purchased a place of call at Tarracina,[557] to prevent my being always a burden on my host. Altogether I perceive that the fault is with my freedman, whom I had distinctly commissioned to purchase certain definite things, and also with Iunius, whom I think you know, an intimate friend of Arrianus. I have constructed some new sitting-rooms in a miniature colonnade on my Tusculan property. I want to ornament them with pictures: for if I take pleasure in anything of that sort it is in painting. However, if I am to have what you have bought, I should like you to inform me where they are, when they are to be fetched, and by what kind of conveyance. For if Damasippus doesn't abide by his decision, I shall look for some would-be Damasippus,[558] even at a loss.

As to what you say about the house, as I was going out of town I intrusted the matter to my daughter Tullia:[559] for it was at the very hour of my departure that I got your letter. I also discussed the matter with your friend Nicias, because he is, as you know, intimate with Cassius. On my return, however, before I got your last letter, I asked Tullia what she had done. She said that she had approached Licinia[560] (though I think Cassius is not very intimate with his sister), and that she at once said that she could not venture, in the absence of her husband (Dexius is gone to Spain), to change houses without his being there and knowing about it. I am much gratified that you should value association with me and my domestic life so highly, as, in the first place, to take a house which would enable you to live not only near me, but absolutely with me, and, in the second place, to be in such a hurry to make this change of residence. But, upon my life, I do not yield to you in eagerness for that arrangement. So I will try every means in my power. For I see the advantage to myself, and, indeed, the advantages to us both. If I succeed in doing anything, I will let you know. Mind you also write me word back on everything, and let me know, if you please, when I am to expect you.

[Footnote 553: C. Arrianus Evander, a dealer in statues, it seems, from whom Fadius had bought some for Cicero. He offers to let the debt for them (and so the interest) run from any day Cicero pleases.]

[Footnote 554: A well-known connoisseur, mentioned by Horace, _Sat._ ii. 3, 64, _seq._. He seems to have offered to take the bargain off Cicero's hands.]

[Footnote 555: That is, for his _palæstra_ or gymnasium, as he calls it, in his Tusculanum. See Letters I, II, VII.]

[Footnote 556: An ornamental leg or stand for table or sideboard (_abacus_). See picture in Rich's _Dictionary of Antiquities_.]

[Footnote 557: On the _via Appia_, where the canal across the marshes began. Cicero stops there a night between Formiæ and Pomptina Summa (_Att._ vii. 5).]

[Footnote 558: One who professes to be an amateur of art like Damasippus.]

[Footnote 559: As in Letter CVI, Tullia, not Terentia, seems to be in Cicero's confidence and presiding in his house. Terentia must already have been on bad terms with him, and perhaps was residing on her own property.]

[Footnote 560: Half-sister of Gaius Cassius.]

CXXVI (F VII, I)

TO M. MARIUS (AT CUMÆ)

ROME (OCTOBER?)

[Sidenote: B.C. 55, ÆT. 51]

If some bodily pain or weakness of health has prevented your coming to the games, I put it down to fortune rather than your own wisdom: but if you have made up your mind that these things which the rest of the world admires are only worthy of contempt, and, though your health would have allowed of it, you yet were unwilling to come, then I rejoice at both facts--that you were free from bodily pain, and that you had the sound sense to disdain what others causelessly admire. Only I hope that some fruit of your leisure may be forthcoming, a leisure, indeed, which you had a splendid opportunity of enjoying to the full, seeing that you were left almost alone in your lovely country. For I doubt not that in that study of yours, from which you have opened a window into the Stabian waters of the bay, and obtained a view of Misenum, you have spent the morning hours of those days in light reading, while those who left you there were watching the ordinary farces[561] half asleep. The remaining parts of the day, too, you spent in the pleasures which you had yourself arranged to suit your own taste, while we had to endure whatever had met with the approval of Spurius Mæcius.[562] On the whole, if you care to know, the games were most splendid, but not to your taste. I judge from my own. For, to begin with, as a special honour to the occasion, those actors had come back to the stage who, I thought, had left it for their own. Indeed, your favourite, my friend Æsop, was in such a state that no one could say a word against his retiring from the profession. On the beginning to recite the oath his voice failed him at the words "If I knowingly deceive." Why should I go on with the story? You know all about the rest of the games, which hadn't even that

amount of charm which games on a moderate scale generally have: for the spectacle was so elaborate as to leave no room for cheerful enjoyment, and I think you need feel no regret at having missed it. For what is the pleasure of a train of six hundred mules in the "Clytemnestra," or three thousand bowls in the "Trojan Horse," or gay-coloured armour of infantry and cavalry in some battle? These things roused the admiration of the vulgar; to you they would have brought no delight. But if during those days you listened to your reader Protogenes, so long at least as he read anything rather than my speeches, surely you had far greater pleasure than any one of us. For I don't suppose you wanted to see Greek or Oscan plays, especially as you can see Oscan farces in your senate-house over there, while you are so far from liking Greeks, that you generally won't even go along the Greek road to your villa. Why, again, should I suppose you to care about missing the athletes, since you disdained the gladiators? in which even Pompey himself confesses that he lost his trouble and his pains. There remain the two wild-beast hunts, lasting five days, magnificent--nobody denies it--and yet, what pleasure can it be to a man of refinement, when either a weak man is torn by an extremely powerful animal, or a splendid animal is transfixed by a hunting spear? Things which, after all, if worth seeing, you have often seen before; nor did I, who was present at the games, see anything the least new. The last day was that of the elephants, on which there was a great deal of astonishment on the part of the vulgar crowd, but no pleasure whatever. Nay, there was even a certain feeling of compassion aroused by it, and a kind of belief created that that animal has something in common with mankind.[563] However, for my part, during this day, while the theatrical exhibitions were on, lest by chance you should think me too blessed, I almost split my lungs in defending your friend Caninius Gallus.[564] But if the people were as indulgent to me as they were to Æsop, I would, by heaven, have been glad to abandon my profession and live with you and others like us. The fact is I was tired of it before, even when both age and ambition stirred me on, and when I could also decline any defence that I didn't like; but now, with things in the state that they are, there is no life worth having. For, on the one hand, I expect no profit of my labour; and, on the other, I am sometimes forced to defend men who have been no friends to me, at the request of those to whom I am under obligations. Accordingly, I am on the look-out for every excuse for at last managing my life according to my own taste, and I loudly applaud and vehemently approve both you and your retired plan of life: and as to your infrequent appearances among us, I am the more resigned to that because, were you in Rome, I should be prevented from enjoying the charm of your society, and so would you of mine, if I have any, by the overpowering nature of my engagements; from which, if I get any relief--for entire release I don't expect--I will give even you, who have been studying nothing else for many years, some hints as to what it is to live a life of cultivated enjoyment. Only be careful to nurse your weak health and to continue your present care of it, so that you may be able to visit my country houses and make excursions with me in my litter. I have written you a longer letter than usual, from superabundance, not of leisure, but of affection, because, if you remember, you asked me in one of your letters to write you something to prevent you feeling sorry at having missed the games. And if I have succeeded in that, I am glad: if not, I yet console myself with this reflexion, that in future you will both come to the games and come to see me, and will not leave your

hope of enjoyment dependent on my letters.[565]

[Footnote 561: _Communis_, which is not satisfactory. But neither is the emendation proposed, _cominus_. For _communis_, "common," "vulgar," see _de Off._ ii. § 45.]

[Footnote 562: Whom Pompey employed to select the plays to be exhibited in his new theatre.]

[Footnote 563: Pliny (_N. H._ viii. § 21) says that the people were so moved that they loudly cursed Pompey.]

[Footnote 564: L. Caninius Gallus (see p. 210). What he was accused of does not appear.]

[Footnote 565: I do not like to think this letter a mere rhetorical exercise, as has been suggested, rather than a true account of Cicero's feelings as to the theatre and amphitheatre. He often expresses his want of interest in the latter. The vulgar display in the theatre, unlike the severe simplicity of Greek art, was an old evil (see Polyb. xxx. 14).]

CXXVII (F XIII, 74)

TO Q. PHILIPPUS (PROCONSUL IN ASIA)

ROME

[Sidenote: B.C. 55, ÆT. 51]

Though, considering your attention to me and our close ties, I have no doubt of your remembering my recommendation, yet I again and again recommend to you the same L. Oppius, my intimate friend who is now in Rome, and the business of L. Egnatius, my very intimate friend who is now abroad. With the latter my connexion and intimacy are so strong, that I could not be more anxious if the business were my own. Wherefore I shall be highly gratified if you take the trouble too make him feel that I have as high a place in your affections as I think I have. You cannot oblige me more than by doing so: and I beg you warmly to do it.

CXXVIII (F XIII, 40)

TO Q. ANCHARIUS (PROCONSUL IN MACEDONIA)

ROME

[Sidenote: B.C. 55, ÆT. 51]

Lucius and Gaius, sons of Lucius Aurelius, with whom, as with their excellent father, I am most intimately acquainted, I recommend to you with more than usual

earnestness, as young men endowed with the best qualities, as being very closely allied to myself, and as being in the highest degree worthy of your friendship. If any recommendations of mine have ever had influence with you, as I know that many have had much, I beg you to let this one have it. If you treat them with honour and kindness, you will not only have attached to yourself two very grateful and excellent young men, but you will also have done me the very greatest favour.

CXXIX (A IV, 13)

TO ATTICUS (AT ROME)

TUSCULUM, 15 NOVEMBER

[Sidenote: B.C. 55, ÆT. 51]

I see that you know of my arrival at Tusculum on the 14th of November. I found Dionysius there. I wish to be at Rome on the 17th. Why do I say "wish"? Rather I am forced to be so. Milo's wedding. There is some idea of an election. Even supposing that to be confirmed,[566] I am glad to have been absent from the wrangling debates which I am told have taken place in the senate. For I should either have defended him, which would have been against my opinion, or have deserted him whom I was bound to defend. But, by Hercules, describe to me to the utmost of your power those events, and the present state of politics, and how the consuls stand this bother. I am very ravenous for news, and, to tell you the truth, I feel no confidence in anything. Our friend Crassus indeed, people say, started in his official robes with less dignity than in the old times did L. Paullus,[567] at the same time of life as he is, and, like him, in his second consulship. What a sorry fellow! About my oratorical books, I have been working hard. They have been long in hand and much revised: you can get them copied.[568] I again beg of you an outline sketch of the present situation, that I may not arrive in Rome quite a stranger.

[Footnote 566: _Ego, ut sit rata_, Schutz's reading, which seems the best for the unintelligible _ergo et si irata_ of the MSS. It would mean, "though I regret not having been back for Domitius's election (if it has taken place), I am glad to have been away from the previous wrangling in the senate."]

[Footnote 567: Crassus starts for Syria; he compares him to L. Æmilius Paullus starting for the war with Perses (B.C. 168). Paullus was, like Crassus, sixty years old, and in his second consulship. Paullus set out with good omens, Crassus with a curse, denounced by the tribune C. Ateius Capito (_de Div._ i. § 29; Plutarch, _Crass._ 16).]

[Footnote 568: By his _librarii_. Atticus was again acting as his publisher.]

CXXX (F V, 8)

[Sidenote: B.C. 54. Coss., L. Domitius Ahenobarbus, Ap. Claudius Pulcher.]

During this year politics were comparatively uneventful. Crassus was gone to Syria. Pompey should have gone to Spain, but at the request of the senate he stayed near Rome, and in the autumn his wife Iulia died, thus breaking one strong tie between him and Cæsar. Quintus Cicero went as _legatus_ to Cæsar and accompanied him to Britain. Cicero himself kept up a correspondence with Cæsar, and seems to nurse his friendship with him with an almost feverish eagerness, which, however, lacks spontaneity. He was engaged this year in composing his treatise on the Republic.

TO M. LICINIUS CRASSUS (ON HIS WAY TO SYRIA)

ROME (JANUARY)

[Sidenote: B.C. 54, ÆT. 52]

I have no doubt all your friends have written to tell you what zeal I displayed on the ----[569] in the defence, or you might call it the promotion, of your official position. For it was neither half-hearted nor inconspicuous, nor of a sort that could be passed over in silence. In fact, I maintained a controversy against both the consuls and many consulars with a vehemence such as I have never shewn in any cause before, and I took upon myself the standing defence of all your honours, and paid the duty I owed to our friendship--long in arrear, but interrupted by the great complexity of events--to the very utmost. Not, believe me, that the will to shew you attention and honour was ever wanting to me; but certain pestilent persons--vexed at another's fame--did at times alienate you from me, and sometimes changed my feelings towards you. But I have got the opportunity, for which I had rather wished than hoped, of shewing you in the very height of your prosperity that I remember our mutual kindness and am faithful to our friendship. For I have secured not only that your whole family, but that the entire city should know that you have no warmer friend than myself. Accordingly, that most noble of women, your wife, as well as your two most affectionate, virtuous, and popular sons, place full confidence in my counsel, advice, zeal, and public actions; and the senate and Roman people understand that in your absence there is nothing upon which you can so absolutely count and depend as upon my exertions, care, attention, and influence in all matters which affect your interests. What has been done and is being done in the senate I imagine that you are informed in the letters from members of your family. For myself, I am very anxious that you should think and believe that I did not stumble upon the task of supporting your dignity from some sudden whim or by chance, but that from the first moment of my entering on public life I have always looked out to see how I might be most closely united to you. And, indeed, from that hour I never remember either my respect for you, or your very great kindness and liberality to me, to have failed. If certain interruptions of friendship have occurred, based rather on suspicion than fact, let them, as groundless and imaginary, be uprooted from our entire memory and life. For such is your character, and such I desire mine to be, that, fate having brought us face to face with the same condition of public affairs, I would fain hope that our union and friendship will turn out to be for the credit of us both. Wherefore how much

consideration should in your judgment be shewn to me, you will yourself decide, and that decision, I hope, will be in accordance with my position in the state. I, for my part, promise and guarantee a special and unequalled zeal in every service which may tend to your honour and reputation. And even if in this I shall have many rivals, I shall yet easily surpass them all in the judgment of the rest of the world as well as that of your sons, for both of whom I have a particular affection; but while equally well-disposed to Marcus, I am more entirely devoted to Publius for this reason, that, though he always did so from boyhood, he is at this particular time treating me with the respect and affection of a second father.

I would have you believe that this letter will have the force of a treaty, not of a mere epistle; and that I will most sacredly observe and most carefully perform what I hereby promise and undertake. The defence of your political position which I have taken up in your absence I will abide by, not only for the sake of our friendship, but also for the sake of my own character for consistency. Therefore I thought it sufficient at this time to tell you this--that if there was anything which I understood to be your wish or for your advantage or for your honour, I should do it without waiting to be asked; but that if I received a hint from yourself or your family on any point, I should take care to convince you that no letter of your own or any request from any of your family has been in vain. Wherefore I would wish you to write to me on all matters, great, small, or indifferent, as to a most cordial friend; and to bid your family so to make use of my activity, advice, authority, and influence in all business matters--public or private, forensic or domestic, whether your own or those of your friends, guests, or clients--that, as far as such a thing is possible, the loss of your presence may be lessened by my labour.

[Footnote 569: The date has been lost.]

CXXXI (Q FR II, 9)

TO HIS BROTHER QUINTUS (IN THE COUNTRY)

ROME (FEBRUARY)

[Sidenote: B.C. 54, ÆT. 52]

Your note by its strong language has drawn out this letter. For as to what actually occurred on the day of your start, it supplied me with absolutely no subject for writing. But as when we are together we are never at a loss for something to say, so ought our letters at times to digress into loose chat. Well then, to begin, the liberty of the Tenedians has received short shrift,[570] no one speaking for them except myself, Bibulus, Calidius, and Favonius. A complimentary reference to you was made by the legates from Magnesia and Sipylum, they saying that you were the man who alone had resisted the demand of L. Sestius Pansa.[571] On the remaining days of this business in the senate, if anything occurs which you ought to know, or even if there is nothing, I will write you something every day. On the 12th I will not fail you or Pomponius. The poems of Lucretius are as you say--with many flashes of genius, yet

very technical.[572] But when you return, ... if you succeed in reading the _Empedoclea_ of Sallustius, I shall regard you as a hero, yet scarcely human.

[Footnote 570: Lit. "has been beheaded with the axe of Tenes," mythical founder and legislator of Tenedos, whose laws were of Draconian severity. A _legatio_ from Tenedos, heard as usual in February, had asked that Tenedos might be made a _libera civitas_.]

[Footnote 571: Some _publicanus_ who had made a charge on the Magnesians which they considered excessive.]

[Footnote 572: Lucretius seems to have been now dead, according to Donatus 15 October (B.C. 55), though the date is uncertain. I have translated the reading _multæ tamen artis_, which has been changed by some to _multæ etiam artis_. But the contrast in the criticism seems to be between the fine poetical passages in the _de Rerum Natura_ and the mass of technical exposition of philosophy which must have repelled the "general reader" at all times. It suggests at once to Cicero to mention another poem on a similar subject, the _Empedoclea_ of Sallustius, of which and its writer we know nothing. It was not the historian.]

CXXXII (Q FR II, 10)

TO HIS BROTHER QUINTUS (IN THE COUNTRY)

ROME (FEBRUARY)

[Sidenote: B.C. 54, ÆT. 52]

I am glad you like my letter: however, I should not even now have had anything to write about, if I had not received yours. For on the 12th, when Appius had got together a thinly-attended meeting of the senate, the cold was so great that he was compelled by the general clamour[573] to dismiss us. As to the Commagenian, because I have blown that proposition to the winds, Appius makes wonderful advances to me both personally and through Pomponius; for he sees that if I adopt a similar style of discussion in the other business, February will not bring him anything in. And certainly I did chaff him pretty well, and not only wrenched from his grasp that petty township of his--situated in the territory of Zeugma on the Euphrates[574]--but also raised a loud laugh by my satire on the man's purple-edged toga, which he had been granted when Cæsar was consul.[575] "His wish," said I, "for a renewal of the same honour, to save the yearly re-dying of his purple-edged toga, I do not think calls for any decree of the house; but you, my lords, who could not endure that the Bostrian[576] should wear the _toga prætexta_, will you allow the Commagenian to do so?" You see the style of chaff, and the line I took. I spoke at length against the petty princeling, with the result that he was utterly laughed out of court. Alarmed by this exhibition, as I said, Appius is making up to me. For nothing could be easier than to explode the rest of his proposals. But I will not go so far as to trip him up, lest he appeal to the god of hospitality, and summon all his Greeks--it is

they who make us friends again. I will do what Theopompus wants. I had forgotten to write to you about Cæsar: for I perceive what sort of letter you have been expecting. But the fact is, he has written word to Balbus that the little packet of letters, in which mine and Balbus's were packed, had been so drenched with rain that he was not even aware that there was a letter from me. He had, however, made out a few words of Balbus's letter, to which he answered as follows: "I perceive that you have written something about Cicero, which I have not fully made out: but, as far I could guess, it was of a kind that I thought was more to be wished than hoped for." Accordingly, I afterwards sent Cæsar a duplicate copy of the letter. Don't be put off by that passage about his want of means. In answer to it I wrote back saying that he must not stop payment from any reliance on my money chest, and descanted playfully on that subject, in familiar terms and yet without derogating from my dignity. His good feeling towards us, however, according to all accounts, is marked. The letter, indeed, on the point of which you expect to hear, will almost coincide with your return:[577] the other business of each day I will write on condition of your furnishing me with letter-carriers. However, such cold weather is threatening,[578] that there is very great danger that Appius may find his house frost-bitten and deserted![579]

[Footnote 573: Retaining _populi convicio_, and explaining _populus_ to have the general meaning of the crowd, including senators and spectators. Cicero uses _populus_ in this vague way elsewhere.]

[Footnote 574: Zeugma I take to mean the "territory of Zeugma," a town on the Euphrates, part of the Roman province of Syria, and close to the frontier of Commagene. Antiochus had asked that some stronghold should be reckoned as his rather than as belonging to the province.]

[Footnote 575: Appius, he insinuates, hoped to make money by granting the request of Antiochus, left king of Commagene by Pompey, for some special privileges, among which was the right of wearing the _toga prætexta_, which symbolized some position with a shadow of Roman _imperium_, while at the same time conveying a compliment to the Roman suzernainty. See Polyb. lib. xxvi.; xxx. 26; Suet. _Aug._ 60.]

[Footnote 576: Some petty prince of Bostra (_Bozra_), in Arabia, of whom we know nothing.]

[Footnote 577: Quintus was expecting, what he got, the offer of serving under Cæsar as _legatus_. Cæsar was preparing for his second invasion of Britain.]

[Footnote 578: Which will prevent meetings of the senate, and so give me no news to send you.]

[Footnote 579: There is a _double entendre_. Cold weather will prevent the meetings of the senate actually, but metaphorically politics will be also cold and dull, and that dullness will probably be nowhere so evident as in the deserted state of the consul Appius's house, which in all probability will miss its usual bevy of callers. This explanation--put forward by Prof. Tyrrell--is not wholly satisfactory, yet it is the best that has been given.]

CXXXIII (F VII, 5)

TO CÆSAR (IN GAUL)

ROME (FEBRUARY)

[Sidenote: B.C. 54, ÆT. 52]

Cicero greets Cæsar, _imperator_. Observe how far I have convinced myself that you are my second self, not only in matters which concern me personally, but even in those which concern my friends. It had been my intention to take Gaius Trebatius with me for whatever destination I should be leaving town, in order to bring him home again honoured as much as my zeal and favour could make him. But when Pompey remained at home longer than I expected, and a certain hesitation on my part (with which you are not unacquainted) appeared to hinder, or at any rate to retard, my departure,[580] I presumed upon what I will now explain to you. I begin to wish that Trebatius should look to you for what he had hoped from me, and, in fact, I have been no more sparing of my promises of goodwill on your part than I had been wont to be of my own. Moreover, an extraordinary coincidence has occurred which seems to support my opinion and to guarantee your kindness. For just as I was speaking to our friend Balbus[581] about this very Trebatius at my house, with more than usual earnestness, a letter from you was handed to me, at the end of which you say: "Miscinius Rufus,[582] whom you recommend to me, I will make king of Gaul, or, if you choose, put him under the care of Lepta. Send me some one else to promote." I and Balbus both lifted our hands in surprise: it came so exactly in the nick of time, that it appeared to be less the result of mere chance than something providential. I therefore send you Trebatius, and on two grounds, first that it was my spontaneous idea to send him, and secondly because you have invited me to do so. I would beg you, dear Cæsar, to receive him with such a display of kindness as to concentrate on his single person all that you can be possibly induced to bestow for my sake upon my friends. As for him I guarantee--not in the sense of that hackneyed expression of mine, at which, when I used it in writing to you about Milo, you very properly jested, but in good Roman language such as sober men use--that no honester, better, or more modest man exists. Added to this, he is at the top of his profession as a jurisconsult, possesses an unequalled memory, and the most profound learning. For such a man I ask neither a tribuneship, prefecture, nor any definite office, I ask only your goodwill and liberality: and yet I do not wish to prevent your complimenting him, if it so please you, with even these marks of distinction. In fact, I transfer him entirely from my hand, so to speak, to yours, which is as sure a pledge of good faith as of victory. Excuse my being somewhat importunate, though with a man like you there can hardly be any pretext for it--however, I feel that it will be allowed to pass. Be careful of your health and continue to love me as ever.

[Footnote 580: Pompey had two functions at this time: he was governor of Spain and _præfectus annonæ_. The latter office, as being extraordinary, might be, perhaps, held with the other without an actual breach of law, but it was certainly

against the spirit of the constitution. Cicero knows that Pompey's staying in Italy and governing his province by _legati_ will not be acceptable to Cæsar, and he alludes to it in carefully guarded terms. He had been named his _legatus_ when Pompey first undertook the care of the corn-supply, but it does not seem as if he ever seriously contemplated going on actual service.]

[Footnote 581: L. Cornelius Balbus, whom Cicero defended, and who acted as Cæsar's agent.]

[Footnote 582: The name of the person jocosely referred to by Cæsar is uncertain, from corruption of the text. Q. Lepta is Cæsar's _præfectus fabrum_.]

CXXXIV (Q FR II, 11 [13])

TO HIS BROTHER QUINTUS (IN THE COUNTRY)

ROME (15 FEBRUARY)

[Sidenote: B.C. 54, ÆT. 52]

Your "black snow"[583] made me laugh, and I am very glad that you are in a cheerful frame of mind and ready for a joke. As to Pompey, I agree with you, or rather you agree with me. For, as you know, I have long been singing the praises of your Cæsar. Believe me, he is very close to my heart, and I am not going to let him slip from his place. Now for the history of the Ides (13th). It was Cælius's tenth day.[584] Domitius had not obtained a full panel. I am afraid that foul ruffian, Servius Pola, will appear for the prosecution. For our friend Cælius has a dead set made at him by the Clodian gens. There is nothing certain as yet, but I am afraid. On the same day there was a full house for the case of the Tyrians: the _publicani_ of Syria appeared in large numbers against them. Gabinius was abused roundly:[585] the _publicani_ were also denounced by (the consul) Domitius for having escorted him on his start on horseback. Our friend Lucius Lamia was somewhat insolent: for on Domitius saying, "It is your fault, equites of Rome, that such things have happened: for you give verdicts laxly," he said, "Yes, we give verdicts, but you senators give evidence of character."[586] Nothing was done that day: the house stood adjourned at nightfall. On the comitial days which follow the Quirinalia (17th February), Appius holds the view that he is not prevented by the _lex Pupia_ from holding a meeting of the senate, and that by the _lex Gabinia_ he is even compelled to have a meeting for the legations from the 1st of February to the 1st of March.[587] And so the elections are supposed to be put off till March. Nevertheless, on these comitial days the tribunes say that they will bring forward the case of Gabinius.[588] I collect every item of intelligence, that I may have some news to tell you: but, as you see, I am short of material. Accordingly, I return to Callisthenes and Philistus, in whom I see that you have been wallowing. Callisthenes is a commonplace and hackneyed piece of business, like a good many Greeks. The Sicilian is a first-rate writer, terse, sagacious, concise, almost a minor Thucydides;[589] but which of his two books you have--for these are two works--I don't know. That about Dionysius is my favourite. For Dionysius himself is a

magnificent intriguer, and was familiarly known to Philistus. But as to your postscript--are you really going in for writing history? You have my blessing on your project: and since you furnish me with letter-carriers, you shall hear to-day's transactions on the Lupercalia (15th February). Enjoy yourself with our dear boy to your heart's content.

[Footnote 583: We cannot tell the allusion, not having the letter of Quintus. But he seems to have used the expression for something incongruous either in politics, or in regard to his contemplated services with Cæsar.]

[Footnote 584: _I.e._, the day he had to appear for trial, usually fixed by the prætor on the tenth day from the notice of prosecution. Cælius had been acqiuitted in B.C. 56, when Cicero defended him; this second trial appears to have in some way fallen through. The prætor Domitius is said to be Cn. Domitius Ahenobarbus, son of Lucius, but he was much too young to have been prætor this year. The former trial of Cælius (B.C. 56) had been before Cn. Comitius Calvinus, hence a difficulty about this passage. For the prætor Domitius of this year is not known. Domitius Calvinus was prætor B.C. 56.]

[Footnote 585: The _publicani_ of Syria were enraged with Gabinius for neglecting his province while going to Egypt, thus allowing the pirates so to plunder that they could not collect enough dues to recoup them for their bargain to the state (Dio, xxxix. 59).]

[Footnote 586: L. Ælius Lamia, an eques, appears to have been one of the deputation of _publicani_ who attended the senate to accuse Gabinius.]

[Footnote 587: The prætorian elections were again postponed from the previous year to the early months of B.C. 54. Appius Claudius found means to put them off till March by holding meetings of the senate each day--the electoral _comita_ not being able to meet on the same day as the senate.]

[Footnote 588: The tribune C. Memmius was prosecuting Gabinius (Letter CXLVII). The judicial _comita_ could meet, though not the electoral.]

[Footnote 589: Callisthenes of Olynthus wrote (1) a history of the Trojan war; (2) an account of Alexander the Great. Philistus of Syracuse (1) a history of Sicily; (2) a life of Dionysius the elder; (3) a life of Dionysius the younger. He imitated Thucydides (_de Orat._ § 17).]

CXXXV (F VII, 6)

TO C. TREBATIUS TESTA (IN GAUL)

CUMÆ (APRIL)

[Sidenote: B.C. 54, ÆT. 52]

In all my letters to Cæsar or Balbus there is a sort of statutory appendix containing a recommendation of you, and not one of the ordinary kind, but accompanied by some signal mark of my warm feeling towards you. See only that you get rid of that feeble regret of yours for the city and city ways, and carry out with persistence and courage what you had in your mind when you set out. We, your friends, shall pardon your going away for that purpose as much as

"The wealthy noble dames who held the Corinthian peak"

pardoned Medea, whom, with hands whitened to the utmost with chalk, she persuaded not to think ill of her for being absent from her fatherland: for

"Many have served themselves abroad and served the state as well; Many have spent their lives at home to be but counted fools."

In which latter category you would have certainly been, had I not forced you abroad. But I will write more another time. You who learnt to look out for others, look out, while in Britain, that you are not yourself taken in by the charioteers; and, since I have begun quoting the _Medea_, remember this line:

"The sage who cannot serve himself is vainly wise I ween."

Take care of your health.[590]

[Footnote 590: Trebatius is going to join Cæsar, who is about to sail to Britain; hence the jest about the _essedarii_, drivers of Gallic and British war-chariots. Letter CXXXIII recommended him to Cæsar. The lines quoted are from the _Medea_ of Ennius, adapted or translated from Euripides. I date these two letters from Cumæ, because he speaks of writing to Balbus, who was at Rome (p. 267).]

CXXXVI (F VII, 7)

TO C. TREBATIUS TESTA (ON HIS WAY TO GAUL)

CUMÆ (APRIL OR MAY)

[Sidenote: B.C. 54, ÆT. 52]

For my part, I never cease recommending you, but I am eager to know from you how far my recommendation is of service. My chief hope is in Balbus, to whom I write about you with the greatest earnestness and frequency. It often excites my wonder that I don't hear from you as often as from my brother Quintus. In Britain I am told there is no gold or silver. If that turns out to be the case, I advise you to capture a war-chariot and hasten back to us at the earliest opportunity. But if--letting Britain alone--we can still obtain what we want, take care to get on intimate terms with Cæsar. In that respect my brother will be of much use to you, so will Balbus, but most of all, believe me, your own modesty and industry. You have an _imperator_ of the most liberal character, your age is exactly the best one for employment, and your recommendation at any rate is quite unique, so that all you have to fear is not doing

yourself full justice.

CXXXVII (A IV, 14)

TO ATTICUS (ON A JOURNEY)

CUMÆ (MAY)

[Sidenote: B.C. 54, ÆT. 52]

Our friend Vestorius[591] has informed me by letter that you are believed to have left Rome on the 10th of May--later than you said that you intended--because you had not been very well. If you are now better I rejoice indeed. I wish you would write to your town house, ordering your books to be at my service just as if you were at home, especially those of Varro. For I have occasion to use some passages of those books in reference to those which I have in hand, and which, I hope, will meet with your strong approval.[592] Pray, if by chance you have any news, principally from my brother Quintus, next from Cæsar, and, finally, anything about the elections or about politics--for you have an excellent nose for such things--write and tell me about them: if you have no news, nevertheless write something. For a letter from you never yet seemed to me either ill-timed or too long-winded. But above all I beg that, when your business and your whole tour has been concluded to your mind, you will come back to us as soon as possible. Give my compliments to Dionysius. Take care of your health.

[Footnote 591: A banker at Puteoli.]

[Footnote 592: The six books on the Republic.]

CXXXVIII (Q FR II, 12 [14])

TO HIS BROTHER QUINTUS (IN GAUL)

CUMÆ (MAY)

[Sidenote: B.C. 54, ÆT. 52]

I have up to now received two letters from you, one just as I was leaving town, the other dated Ariminum: others which you say in your letter that you have sent I have not received. I am having a fairly pleasant time (except that you are not here) at Cumæ and Pompeii, and intend staying in these parts till the 1st of June. I am writing the treatise of which I spoke to you, "On the Republic," a very bulky and laborious work. But if it turns out as I wish, it will be labour well bestowed, and if not I shall toss it into the very sea which I have before my eyes as I write, and set to work on something else; since to do nothing is beyond my power. I will carefully observe your instruction both as to attaching certain persons to myself and not alienating certain others. But my chief care will be to see your son, or rather our son, if possible, every

day at any rate, and to watch the progress of his education as often as possible; and, unless he declines my help, I will even offer to be his instructor, a practice to which I have become habituated in the leisure of these days while bringing my own boy, the younger Cicero, on. Yes, do as you say in your letter, what, even if you had not said so, I know you do with the greatest care--digest, follow up, and carry out my instructions. For my part, when I get to Rome, I will let no letter-carrier of Cæsar go without a letter for you. During these days you must excuse me: there has been no one to whom I could deliver a letter until the present bearer M. Orfius, a Roman knight, a man that is my friend as well from personal consideration as because he comes from the _municipium_ of Atella,[593] which you know is under my patronage. Accordingly, I recommend him to you with more than common warmth, as a man in a brilliant position in his own town and looked up to even beyond it. Pray attach him to yourself by your liberal treatment of him: he is a military tribune in your army. You will find him grateful and attentive. I earnestly beg you to be very friendly to Trebatius.

[Footnote 593: A _municipium_ of Campania nine miles from Naples.]

CXXXIX (F VII, 8)

TO C. TREBATIUS TESTA (IN GAUL)

ROME (JUNE)

[Sidenote: B.C. 54, ÆT. 52]

Cæsar has written me a very courteous letter saying that he has not yet seen as much of you as he could wish, owing to his press of business, but that he certainly will do so. I have answered his letter and told him how much obliged I shall be if he bestows on you as much attention, kindness, and liberality as he can. But I gathered from your letters that you are in somewhat too great a hurry: and at the same time I wondered why you despised the profits of a military tribuneship, especially as you are exempted from the labour of military duty. I shall express my discontent to Vacerra and Manilius: for I dare not say a word to Cornelius,[594] who is responsible for your unwise conduct, since you profess to have learnt legal wisdom from him. Rather press on your opportunity and the means put into your hands, than which none better will ever be found. As to what you say of the jurist Precianus, I never cease recommending you to him; for he writes me word that you owe him thanks. Be sure to let me know to what that refers. I am waiting for a letter from you dated "Britain."[595]

[Footnote 594: Vacerra, Manilius, Cornelius, well-known lawyers or jurists of the day.]

[Footnote 595: We shall afterwards see that Trebatius did not go to Britain.]

CXL (Q FR II, 13)

TO HIS BROTHER QUINTUS (IN GAUL)

ROME (3 JUNE)

[Sidenote: B.C. 54, ÆT. 52]

On the 2nd of June, the day of my return to Rome, I received your letter dated Placentia: then next day another dated Blandeno, along with a letter from Cæsar filled full of courteous, earnest, and pleasant expressions. These expressions are indeed valuable, or rather _most_ valuable, as tending very powerfully to secure our reputation and exalted position in that state. But believe me--for you know my heart--that what I value most in all this I already possess, that is, first of all, your active contribution to our common position; and, secondly, all that warm affection of Cæsar for me, which I prefer to all the honours which he desires me to expect at his hands. His letter too, despatched at the same time as your own--which begins by saying what pleasure your arrival and the renewed memory of our old affection had given him, and goes on to say that he will take care that, in the midst of my sorrow and regret at losing you, I shall have reason to be glad that you are with him of all people--gave me extraordinary delight. Wherefore you, of course, are acting in a truly brotherly spirit when you exhort me, though, by heaven, I am now indeed forward enough to do so, to concentrate all my attentions upon him alone. Yes, I will do so, indeed, with a burning zeal: and perhaps I shall manage to accomplish what is frequently the fortune of travellers when they make great haste, who, if they have got up later than they intended, have, by increasing their speed, arrived at their destination sooner than if they had waked up before daylight. Thus I, since I have long overslept myself in cultivating that great man, though you, by heaven, often tried to wake me up, will make up for my slowness with horses and (as you say he likes my poem) a poet's chariots. Only let me have Britain to paint in colours supplied by yourself, but with my own brush. But what am I saying? What prospect of leisure have I, especially as I remain at Rome in accordance with his request? But I will see. For perhaps, as usual, my love for you will overcome all difficulties. For my having sent Trebatius to him he even thanks me in very witty and polite terms, remarking that there was no one in the whole number of his staff who knew how to draw up a recognizance. I have asked him for a tribuneship for M. Curtius--since Domitius (the consul) would have thought that he was being laughed at, if my petition had been addressed to him, for his daily assertion is that he hasn't the appointment of so much as a military tribune: he even jested in the senate at his colleague Appius as having gone to visit Cæsar,[596] that he might get from him at least one tribuneship. But my request was for next year, for that was what Curtius wished. Whatever line you think I ought to take in politics and in treating my opponents, be sure I shall take, and shall be "gentler than any ear-lap." Affairs at Rome stand thus; there is some hope of the elections taking place, but it is an uncertain one. There is some latent idea of a dictatorship,[597] but neither is that confirmed. There is profound calm in the forum, but it is rather the calm of decrepitude than content. The opinions I express in the senate are of a kind to win the assent of others rather than my own:

"Such the effects of miserable war."[598]

[Footnote 596: At Luca in the year B.C. 56.]

[Footnote 597: _Comitia habendi causa_. No such had been appointed since B.C. 202, and the irregular dictatorship of Sulla in B.C. 82 made the idea distasteful. Pompey was understood to wish for the appointment, now and later on. See pp. 326, 335.]

[Footnote 598: τοιαῦθ' ὁ τλήμων πόλεμος ἐξεργάζεται (Eur. _Supp._ 119).]

CXLI (Q FR II, 14 [15 b])

TO HIS BROTHER QUINTUS (IN GAUL)

ROME (JULY)

[Sidenote: B.C. 54, ÆT. 52]

Well! this time I'll use a good pen, well-mixed ink, and superfine paper. For you say you could hardly read my previous letter, for which, my dear brother, the reason was none of those which you suppose. For I was not busy, nor agitated, nor out of temper with some one: but it is always my way to take the first pen that turns up and use it as if it were a good one. But now attend, best and dearest of brothers, to my answer to what you wrote in this same short letter in such a very business-like way. On this subject you beg that I should write back to you with brotherly candour, without concealment, or reserve, or consideration for your feelings--I mean whether you are to hasten home, as we had talked of, or to stay where you are, if there is any excuse for doing so, in order to extricate yourself from your embarrassments. If, my dear Quintus, it were some small matter on which you were asking my opinion, though I should have left it to you to do what you chose, I should yet have shewn you what mine was. But on this subject your question amounts to this--what sort of year I expect the next to be? Either quite undisturbed as far as we are concerned, or at any rate one that will find us in the highest state of preparation for defence. This is shewn by the daily throng at my house, my reception in the forum, the cheers which greet me in the theatre. My friends feel no anxiety, because they know the strength of my position in my hold upon the favour both of Cæsar and Pompey. These things give me entire confidence. But if some furious outbreak of that madman occurs, everything is ready for crushing him. This is my feeling, my deliberate opinion: I write to you with entire confidence. I bid you have no doubts, and I do so with no intention of pleasing you, but with brotherly frankness. Therefore, while I should wish you to come at the time you arranged, for the sake of the pleasure we should have in each other's society, yet I prefer the course you yourself think the better one. I, too, think these objects of great importance--ample means for yourself and extrication from your load of debt. Make up your mind to this, that, free from embarrassments, we should be the happiest people alive if we keep well. For men of our habits the deficiency is small, and such as can be supplied with the greatest ease, granted only that we keep our health.

There is an enormous recrudescence of bribery. Never was there anything equal to it. On the 15th of July the rate of interest rose from four to eight per cent., owing to the compact made by Memmius with the consul Domitius:[599] I wish Scaurus could get the better of it. Messalla is very shaky. I am not exaggerating--they arrange to offer as much as 10,000 sestertia (about £80,000) for the vote of the first century. The matter is a burning scandal. The candidates for the tribuneship have made a mutual compact--having deposited 500 sesteria (about £4,000) apiece with Cato, they agree to conduct their canvass according to his direction, with the understanding that anyone offending against it is to be condemned by him. If this election then turns out to be pure, Cato will have been of more avail than all laws and jurors put together.

[Footnote 599: For the nature of this compact, see p. 300.]

CXLII (A IV, 16 AND PART OF 17)

TO ATTICUS (IN EPIRUS OR ON HIS JOURNEY TO ASIA)

ROME (? 24 JUNE)

[Sidenote: B.C. 54, ÆT. 52]

The bare fact of my letter being by the hand of an amanuensis will be a sign of the amount of my engagements. I have no fault to find with you as to the number of your letters, but most of them told me nothing except where you were, or at most shewed by the fact that they came from you that no harm had happened to you. Of this class of letters there were two which gave me very great pleasure, dated by you from Buthrotum almost at the same time: for I was anxious to know that you had had a favourable crossing. But this constant supply of your letters did not give me so much pleasure by the richness of their contents as by their frequency. The one which your guest, M. Paccius, delivered to me was important and full of matter. I will therefore answer it. And this is the first thing I have to say: I have shewn Paccius, both by word and deed, what weight a recommendation from you has: accordingly, he is among my intimate friends, though unknown to me before. Now for the rest. Varro, of whom you write, shall be got in somewhere, if I can but find a place for him.[600] But you know the style of my Dialogues: just as in those "On the Orator," which you praise to the skies, a mention of anyone by the interlocutors was impossible, unless he had been known to or heard of by them, so in the "Dialogue on the Republic," which I have begun, I have put the discussion in the mouths of Africanus, Philus, Lælius, and Manilius. I have added two young men, Q. Tubero and P. Rutilius, and the two sons-in-law of Lælius, Scævola and Fannius. So I am thinking how (since I employ introductions to each book, as Aristotle does in what he calls his "Exoterics") to contrive some pretext for naming your friend in a natural way, as I understand is your wish. May I only be enabled to carry out my attempt! For, as you cannot but observe, I have undertaken a subject wide, difficult, and requiring the utmost leisure--the very thing that, above all others, I lack. In those books which you commend you complain

of the absence of Scævola among the speakers. Well, I did not withdraw him without a set purpose, but I did exactly what that god of our idolatry, Plato, did in his Republic. When Socrates had come to the Piræus on a visit to Cephalus, a wealthy and cheerful old man, during all the introductory conversation the old man takes part in the discussion; then, after having himself made a speech very much to the point, he says that he wants to go away to attend on the religious rites, and does not return again. I believe Plato hardly thought that it would be quite natural, if he kept a man of that age any longer in a conversation so protracted. I thought that I was bound to be still more careful in the case of Scævola, who was at the age and with the broken health as you remember he then was, and who had enjoyed such high offices, that it was scarcely in accordance with etiquette for him to be staying several days in the Tusculan villa of Crassus. Besides, the conversation in the first book was not unconnected with Scævola's special pursuits: the other books, as you know, contain a technical discussion. In such I was unwilling that that facetious veteran, as you know he was, should take part.

As to Pilia's business, which you mention, I will see to it. For the matter is quite clear, as you say, from the information supplied by Aurelianus, and in managing it I shall have also an opportunity of glorifying myself in my Tullia's eyes. I am supporting Vestorius: for I know that it gratifies you, and I am careful that he would understand that to be the case. But do you know the sort of man he is? Though he has two such good-natured people to deal with, nothing can exceed his impracticability. Now as to what you ask about Gaius Cato. You know that he was acquitted under the _lex Iunia Licinia_:[601] I have to tell you that he will be acquitted under the _lex Fufia_,[602] and not so much to the satisfaction of his defenders as of his accusers. However, he has become reconciled to myself and Milo. Drusus has had notice of prosecution by Lucretius. The 3rd of July is the day fixed for challenging his jurors. About Procilius[603] there are sinister rumours--but you know what the courts are. Hirrus is on good terms with Domitius.[604] The senatorial decree which the present consuls have carried about the provinces--"whoever henceforth, etc."--does not seem to me likely to have any effect.

As to your question about Messalla, I don't know what to say: I have never seen candidates so closely matched. Messalla's means of support you know. Scaurus has had notice of prosecution from Triarius. If you ask me, no great feeling of sympathy for him has been roused. Still, his ædileship is remembered with some gratitude, and he has a certain hold on the country voters from the memory of his father. The two remaining plebeian candidates have compensating advantages which make them about equal: Domitius Calvinus is strong in friends, and is farther supported by his very popular exhibition of gladiators; Memmius finds favour with Cæsar's veterans and relies on Pompey's client towns in Gaul. If this does not avail him, people think that some tribune will be found to push off the elections till Cæsar comes back, especially since Cato has been acquitted.

I have answered your letter brought by Paccius: now for the rest. From my brother's letter I gather surprising indications of Cæsar's affection for me, and they have been confirmed by a very cordial letter from Cæsar himself. The result of the

British war is a source of anxiety. For it is ascertained that the approaches to the island are protected by astonishing masses of cliff. Moreover, it is now known that there isn't a pennyweight of silver in that island, nor any hope of booty except from slaves, among whom I don't suppose you can expect any instructed in literature or music.

Paullus has almost brought his basilica in the forum to the roof, using the same columns as were in the ancient building: the part for which he gave out a contract he is building on the most magnificent scale.[605] Need I say more? Nothing could be more gratifying or more to his glory than such a monument. Accordingly, the friends of Cæsar--I mean myself and Oppius, though you burst with anger--have thought nothing of 60,000 sestertia (about £480,000) for that monument, which you used to speak of in such high terms, in order to enlarge the forum and extend it right up to the Hall of Liberty. The claims of private owners could not be satisfied for less. We will make it a most glorious affair. For in the Campus Martius we are about to erect voting places for the _comitia tributa_, of marble and covered, and to surround them with a lofty colonnade a mile in circumference: at the same time the _Villa Publica_ will also be connected with these erections.[606] You will say: "What good will this monument do me?" But why should I trouble myself about that? I have told you all the news at Rome: for I don't suppose you want to know about the lustrum, of which there is now no hope,[607] or about the trials which are being held under the (Cincian) law.[608]

Now allow yourself to be scolded, if you deserve it. For you say in the letter from Buthrotum, delivered to me by C. Decimus, that you think you will have to go to Asia. There did not, by Hercules, seem to me to be anything that made it matter in the least whether you did the business by agents or in person; or anything to make you go so often and so far from your friends. But I could have wished that I had urged this on you before you had taken any step. For I certainly should have had some influence on you. As things are, I will suppress the rest of my scolding. May it only have some effect in hastening your return! The reason of my not writing oftener to you is the uncertainty I am in as to where you are or are going to be. However, I thought I ought to give this letter to a chance messenger, because he seemed to be likely to see you. Since you think you really will go to Asia, pray tell me by what time we may expect you back, and what you have done about Eutychides.

[Footnote 600: That is, as an interlocutor in the dialogue "On the Republic," which Cicero was engaged in writing.]

[Footnote 601: A law re-enacting the _lex Didia_, and enacting under penalties that no law was to be brought forward without due publication beforehand.]

[Footnote 602: A law which enabled the magistrates and tribunes to stop legislation by _obnuntiatio_.]

[Footnote 603: Procilius had been condemned _de vi_ (p. 280). The rumours, I suppose, were as to the jury having been corrupted.]

[Footnote 604: The consul L. Domitius Ahenobarbus and C. Lucceius Hirrus, the latter a warm partisan of Pompey, who was supposed to be agitating for a

dictatorship.]

[Footnote 605: L. Æmilius Paullus (consul B.C. 50) restored the basilica built by his ancestor M. Æmilius Lepidus in B.C. 179, and appears to have added largely to it, or even built a new one.]

[Footnote 606: These works seem to have been contemplated by the censors and senate, and Cicero speaks of himself and Oppius as doing them because they supported the measure. They were partly carried out by Cæsar but not completed till the time of Augustus.]

[Footnote 607: Because the tribunes stopped it--the formal act at the end of the Censor's office--by _obnuntiationes_.]

[Footnote 608: The name of the law mentioned here is uncertain. The _lex Cincia de munuibus_ forbade advocates taking fees for pleading.]

CXLIII (A IV, 15)

TO ATTICUS (IN EPIRUS)

ROME, 27 JULY

[Sidenote: B.C. 54, ÆT. 52]

I am glad about Eutychides, who, using your old _prænomen_ and your new _nomen_, will be called Titus Cæcilius, just as Dionysius, from a combination of your names and mine, is Marcus Pomponius. I am, by Hercules, exceedingly gratified that Eutychides has had cause to know your kindness to me, and that the sympathy he shewed me in the time of my sorrow was neither unnoticed at the time nor afterwards forgotten by me. I suppose you were obliged to undertake your journey to Asia. For you never would have been willing, without the most urgent cause, to be so far from so many persons and things which you love so much, and which give you so much delight. But the speed of your return will shew your kindness and love for your friends. Yet I fear lest the rhetorician Clodius, by his charms, and Pituanius, that excellent scholar, as he is said to be, and now, indeed, so wholly devoted to Greek letters, may detain you. But if you would shew the feelings of a man, come back to us at the time you promised. You will, after all, be able to enjoy their society at Rome, when they get there safe. You say you desire something in the way of a letter from me: I have written, and, indeed, on many subjects--everything detailed like a journal--but, as I conjecture from your not having, as it seems, remained long in Epirus, I suppose it has not reached you. Moreover, my letters to _you_ are generally of such a kind, that I don't like to put them in anyone's hands, unless I can feel certain that he will deliver them to you.

Now for affairs at Rome. On the 4th of July Sufenas and Cato were acquitted, Procilius condemned. From which we have learnt that our treble-distilled Areopagites care not a rush for bribery, elections, _interregnum, lèse majesté_, or, in fact, for the

state generally; but that they would rather that a father of a family were not murdered on his own hearth-stone--and even that preference not very decided. There were twenty-two votes for acquittal, twenty-nine for condemnation![609] Publius, no doubt by an eloquent peroration in his speech for the prosecution, had quickened the feelings of the jurors! Herbalus[610] was in the case, and behaved as usual. I said never a word. For my little girl, who is unwell, was afraid of offending Publius's feelings. After this was over the people of Reate conducted me to their Temple, to plead their cause against the people of Interamna before the consul and ten commissioners, because the Veline Lake, which had been drained by Manius Curius by cutting away the mountain, flowed into the Nar, by which means the famous Rosia has been reclaimed from the swamp, though still fairly moist.[611] I lived with Axius, who took me also to visit Seven Waters. I returned to Rome on the 9th of July for the sake of Fonteius. I entered the theatre. At first I was greeted with loud and general applause--but don't take any notice of that, I was a fool to mention it--then I turned my attention to Antiphon. He had been manumitted before being brought on to the stage. Not to keep you in suspense, he bore away the palm. But there never was anything so dwarfish, so destitute of voice, so---- But keep this to yourself. However, in the _Andromache_ he was just taller than Astyanax: among the rest he had not one of his own height. You next ask about Arbuscula: she had a great success. The games were splendid and much liked. The wild-beast hunt was put off to a future occasion. Next follow me into the _campus_. Bribery is raging: "and I a sign to you will tell."[612] The rate of interest from being four percent, on the 15th of July has gone up to eight percent. You will say, "Well, _I_ don't mind that."[613] What a man! What a citizen! Memmius is supported by all Cæsar's influence. The consuls have formed a coalition between him and Domitius (Calvinus) on terms which I dare not commit to paper. Pompey rages, remonstrates, backs Scaurus, but whether only ostensibly or from the heart people don't feel sure. No one takes the lead: money reduces all to the same level. Messalla's chance is at a low ebb: not because he is wanting in spirit or friends, but because this coalition of the consuls, as well as Pompey's opposition, stands in his way. I think the result will be a postponement of the elections. The tribunician candidates have taken an oath to conduct their canvass according to the direction of Cato. They have deposited with him 500 sestertia apiece, on condition that whoever Cato condemns should forfeit it, and that it should be paid over to his competitors. I write this the day before the elections are to take place. But on the 28th of July, if they have taken place, and if the letter-carrier has not started, I will write you an account of the whole _comitia_: and, if they are conducted without corruption, Cato by himself will have been more efficacious than all laws and jurors put together. I have undertaken to defend Messius, who has been recalled from his legation: for Appius had named him _legatus_ to Cæsar. Servilius ordered his attendance in an edict. His jurors are to be from the tribes Pomptina, Velina, and Mæcia. It is a sharp fight: however, it is going fairly well. After that I have to prepare myself for Drusus, then for Scaurus. Very high-sounding title-slips are being prepared for my speeches! Perhaps even the consuls-designate will be added to the list of my clients: and if Scaurus is not one of them, he will find himself in serious difficulties in this trial. Judging from my brother Quintus's letter, I suspect that by this time he is in Britain. I await news of him with anxiety. We have certainly gained one

advantage--many unmistakable indications enable us to feel sure that we are in the highest degree liked and valued by Cæsar. Please give my compliments to Dionysius, and beg and exhort him to come as soon as possible, that he may continue the instruction of my son and of myself as well.

[Footnote 609: M. Nonius Sufenas and C. Cato were charged with bribery and other illegal proceedings during their tribuneship: Procilius for riot (_de vi_) when some citizen was killed.]

[Footnote 610: Q. Hortensius, the great orator.]

[Footnote 611: This refers to the famous waterfall of Terni. An artificial cutting drained the River Velinus (which otherwise covered the high valley as a lake) into the Nar, which is in the valley below. What was good for the people of Reate was, of course, dangerous for the people of Interamna living below. M. Curius Dentatus was consul B.C. 290.]

[Footnote 612: σήμα δέ τοι ἐρέω (Hom. _Il._ xxiii. 326).]

[Footnote 613: Because Atticus lent money.]

CXLIV (F VII, 9)

TO C. TREBATIUS TESTA (IN GAUL)

ROME (SEPTEMBER)

[Sidenote: B.C. 54, ÆT. 52]

It is a long time since I heard how you were getting on: for you don't write, nor have I written to you for the last two months. As you were not with my brother Quintus I did not know where to send a letter, or to whom to give it. I am anxious to know how you are and where you mean to winter. For my part, my opinion is that you should do so with Cæsar; but I have not ventured to write to him owing to his mourning.[614] I would rather you put off your return to us, so long as you come with fuller pockets. There is nothing to make you hurry home, especially since "Battara"[615] is dead. But you are quite capable of thinking for yourself. I desire to know what you have settled. There is a certain Cn. Octavius or Cn. Cornelius, a friend of yours,

"Of highest race begot, a son of Earth."

He has frequently asked me to dinner, because he knows that you are an intimate friend of mine. At present he has not succeeded in getting me: however, I am much obliged to him.

[Footnote 614: For the death (in September) of his daughter Iulia, wife of Pompey.]

[Footnote 615: A nickname, it is said, of Vacerra (perhaps because he stuttered), who had been a teacher of Trebatius.]

CXLV (F VII, 17)

TO C. TREBATIUS TESTA (IN GAUL)

ROME (SEPTEMBER)

[Sidenote: B.C. 54, ÆT. 52]

From what I gather from your letter I have thanked my brother Quintus, and can besides at last heartily commend you, because you at length seem to have come to some fixed resolution. For I was much put out by your letters in the first months of your absence, because at times you seemed to me--pardon the expression--to be light-minded in your longing for the city and city life, at others timid in undertaking military work, and often even a little inclined to presumption--a thing as unlike your usual self as can be. For, as though you had brought a bill of exchange, and not a letter of recommendation to your commander-in-chief, you were all in a hurry to get your money and return home; and it never occurred to you that those who went to Alexandria[616] with real bills of exchange have as yet not been able to get a farthing. If I looked only to my own interests, I should wish, above all things, to have you with me: for I used to find not only pleasure of no ordinary kind in your society, but also much advantage from your advice and active assistance. But since from your earliest manhood you had devoted yourself to my friendship and protection, I thought it my duty not only to see that you came to no harm, but to advance your fortunes and secure your promotion. Accordingly, as long as I thought I should be going abroad to a province, I am sure you remember the voluntary offers I made you. After that plan had been changed, perceiving that I was being treated by Cæsar with the highest consideration, and was regarded by him with unusual affection, and knowing as I did his incredible liberality and unsurpassed loyalty to his word, I recommended you to him in the weightiest and most earnest words at my command. And he accepted this recommendation in a gratifying manner, and repeatedly indicated to me in writing, and shewed you by word and deed, that he had been powerfully affected by my recommendation. Having got such a man as your patron, if you believe me to have any insight, or to be your well-wisher, do not let him go; and if by chance something at times has annoyed you, when from being busy or in difficulties he has seemed to you somewhat slow to serve you, hold on and wait for the end, which I guarantee will be gratifying and honourable to you. I need not exhort you at any greater length: I only give you this warning, that you will never find a better opportunity, if you let this slip, either of securing the friendship of a most illustrious and liberal man, or of enjoying a wealthier province or a more suitable time of life. "Quintus Cornelius concurred," as you say in your law books. I am glad you didn't go to Britain, because you have been saved some hard work, and I the necessity of listening to your stories about that expedition. Pray write to me at full length as to where you are going to winter, and what your hopes and present position are.

[Footnote 616: To Ptolemy Auletes, who had agreed to pay large sums to certain persons for supporting his interests in the senate.]

CXLVI (Q FR II, 15)

TO HIS BROTHER QUINTUS (IN BRITAIN)

ROME (SEPTEMBER)

[Sidenote: B.C. 54, ÆT. 52]

When you receive a letter from me by the hand of an amanuensis, you may be sure that I have not even a little leisure; when by my own--a little. For let me tell you that in regard to causes and trials in court, I have never been closer tied, and that, too, at the most unhealthy season of the year, and in the most oppressively hot weather. But these things, since you so direct me, I must put up with, and must not seem to have come short of the ideas and expectations which you and Cæsar entertain of me, especially since, even if it were somewhat difficult not to do that, I am yet likely from this labour to reap great popularity and prestige. Accordingly, as you wish me to do, I take great pains not to hurt anyone's feelings, and to secure being liked even by those very men who are vexed at my close friendship with Cæsar, while by those who are impartial, or even inclined to this side, I may be warmly courted and loved. When some very violent debates took place in the senate on the subject of bribery for several days, because the candidates for the consulship had gone to such lengths as to be past all bearing, I was not in the house. I have made up my mind not to attempt any cure of the political situation without powerful protection. The day I write this Drusus has been acquitted on a charge of collusion by the _tribuni ærarii_, in the grand total by four votes, for the majority of senators and equites were for condemnation. On the same day I am to defend Vatinius. That is an easy matter. The _comitia_ have been put off to September. Scaurus's trial will take place immediately, and I shall not fail to appear for him. I don't like your "Sophoclean Banqueters" at all, though I see that you played your part with a good grace.[617] I come now to a subject which, perhaps, ought to have been my first. How glad I was to get your letter from Britain! I was afraid of the ocean, afraid of the coast of the island. The other parts of the enterprise I do not underrate; but yet they inspire more hope than fear, and it is the suspense rather than any positive alarm that renders me uneasy. You, however, I can see, have a splendid subject for description, topography, natural features of things and places, manners, races, battles, your commander himself--what themes for your pen! I will gladly, as you request, assist you in the points you mention, and will send you the verses you ask for, that is, "An owl to Athens."[618] But, look you! I think you are keeping me in the dark. Tell me, my dear brother, what Cæsar thinks of my verses. For he wrote before to tell me he had read my first book. Of the first part, he said that he had never read anything better even in Greek: the rest, up to a particular passage, somewhat "careless"[619]--that is his word. Tell me the truth--is it the subject-matter or the "style" that he does not like? You needn't be afraid: I shall not admire myself one whit the less. On this subject speak like a lover of truth, and with your usual brotherly frankness.

[Footnote 617: In the "Banqueters" (σύνδειπνοι) of Sophocles, Achilles is excluded from a banquet in Tenedos. Some social mishap seems to have occurred to Quintus in camp.]

[Footnote 618: Sending coals to Newcastle.]

[Footnote 619: ῥαθυμότερα.]

CXLVII (Q FR III, 1)

TO HIS BROTHER QUINTUS (IN BRITAIN)

ARPINUM AND ROME, 28 SEPTEMBER

[Sidenote: B.C. 54, ÆT. 52]

After extraordinarily hot weather--I never remember greater heat--I have refreshed myself at Arpinum, and enjoyed the extreme loveliness of the river during the days of the games, having left my tribesmen under the charge of Philotimus.[620] I was at Arcanum on the 10th of September. There I found Mescidius and Philoxenus, and saw the water, for which they were making a course not far from your villa, running quite nicely, especially considering the extreme drought, and they said that they were going to collect it in much greater abundance. Everything is right with Herus. In your Manilian property I came across Diphilus outdoing himself in dilatoriness. Still, he had nothing left to construct, except baths, and a promenade, and an aviary. I liked that villa very much, because its paved colonnade[621] gives it an air of very great dignity. I never appreciated this till now that the colonnade itself has been all laid open, and the columns have been polished. It all depends--and this I will look to--upon the stuccoing being prettily done. The pavements seemed to be being well laid. Certain of the ceilings I did not like, and ordered them to be changed. As to the place in which they say that you write word that a small entrance hall is to be built--namely, in the colonnade--I liked it better as it is. For I did not think there was space sufficient for an entrance hall; nor is it usual to have one, except in those buildings which have a larger court; nor could it have bedrooms and apartments of that kind attached to it. As it is, from the very beauty of its arched roof, it will serve as an admirable summer room. However, if you think differently, write back word as soon as possible. In the bath I have moved the hot chamber to the other corner of the dressing-room, because it was so placed that its steampipe was immediately under the bedrooms. A fair-sized bedroom and a lofty winter one I admired very much, for they were both spacious and well-situated--on the side of the promenade nearest to the bath. Diphilus had placed the columns out of the perpendicular, and not opposite each other. These, of course, he shall take down; he will learn some day to use the plumb-line and measure. On the whole, I hope Diphilus's work will be completed in a few months: for Cæsius, who was with me at the time, keeps a very sharp look-out upon him.

Thence I started straight along the _via Vitularia_ to your Fufidianum, the estate which we bought for you a few weeks ago at Arpinum for 100,000 sesterces (about

£800). I never saw a shadier spot in summer--water springs in many parts of it, and abundant into the bargain. In short, Cæsius thought that you would easily irrigate fifty _iugera_ of the meadow land. For my part, I can assure you of this, which is more in my line, that you will have a villa marvellously pleasant, with the addition of a fish-pond, spouting fountains, a _palæstra_, and a shrubbery. I am told that you wish to keep this Bovillæ estate. You will determine as you think good. Calvus said that, even if the control of the water were taken from you, and the right of drawing it off were established by the vendor, and thus an easement were imposed on that property, we could yet maintain the price in case we wished to sell. He said that he had agreed with you to do the work at three sesterces a foot, and that he had stepped it, and made it three miles. It seemed to me more. But I will guarantee that the money could nowhere be better laid out. I had sent for Cillo from Venafrum, but on that very day four of his fellow servants and apprentices had been crushed by the falling in of a tunnel at Venafrum. On the 13th of September I was at Laterium. I examined the road, which appeared to me to be so good as to seem almost like a high road, except a hundred and fifty paces--for I measured it myself from the little bridge at the temple of Furina, in the direction of Satricum. There they had put down dust, not gravel (this shall be changed), and that part of the road is a very steep incline. But I understood that it could not be taken in any other direction, particularly as you did not wish it to go through the property of Locusta or Varro. The latter alone had made the road very well where it skirted his own property. Locusta hadn't touched it; but I will call on him at Rome, and think I shall be able to stir him up, and at the same time I shall ask M. Taurus, who is now at Rome, and whom I am told promised to allow you to do so, about making a watercourse through his property. I much approved of your steward Nicephorius, and I asked him what orders you had given about that small building at Laterium, about which you spoke to me. He told me in answer that he had himself contracted to do the work for sixteen sestertia (about £128), but that you had afterwards made many additions to the work, but nothing to the price, and that he had therefore given it up. I quite approve, by Hercules, of your making the additions you had determined upon; although the villa as it stands seems to have the air of a philosopher, meant to rebuke the extravagance of other villas. Yet, after all, that addition will be pleasing. I praised your landscape gardener: he has so covered everything with ivy, both the foundation-wall of the villa and the spaces between the columns of the walk, that, upon my word, those Greek statues seemed to be engaged in fancy gardening, and to be shewing off the ivy. Finally, nothing can be cooler or more mossy than the dressing-room of the bath. That is about all I have to say about country matters. The gardener, indeed, as well as Philotimus and Cincius are pressing on the ornamentation of your town house; but I also often look in upon it myself, as I can do without difficulty. Wherefore don't be at all anxious about that.

As to your always asking me about your son, of course I "excuse you"; but I must ask you to "excuse" me also, for I don't allow that you love him more than I do. And oh that he had been with me these last few days at Arpinum, as he had himself set his heart on being, and as I had no less done! As to Pomponia, please write and say that, when I go out of town anywhere, she is to come with me and bring the boy. I'll do wonders with him, if I get him to myself when I am at leisure: for at Rome there is no

time to breathe. You know I formerly promised to do so for nothing. What do you expect with such a reward as you promise me? I now come to your letters which I received in several packets when I was at Arpinum. For I received three from you in one day, and, indeed, as it seemed, despatched by you at the same time--one of considerable length, in which your first point was that my letter to you was dated earlier than that to Cæsar. Oppius at times cannot help this: the reason is that, having settled to send letter-carriers, and having received a letter from me, he is hindered by something turning up, and obliged to despatch them later than he had intended; and I don't take the trouble to have the day altered on a letter which I have once handed to him. You write about Cæsar's extreme affection for us. This affection you must on your part keep warm, and I for mine will endeavour to increase it by every means in my power. About Pompey, I am carefully acting, and shall continue to act, as you advise. That my permission to you to stay longer is a welcome one, though I grieve at your absence and miss you exceedingly, I am yet partly glad. What you can be thinking of in sending for such people as Hippodamus and some others, I do not understand. There is not one of those fellows that won't expect a present from you equal to a suburban estate. However, there is no reason for your classing my friend Trebatius with them. I sent him to Cæsar, and Cæsar has done all I expected. If he has not done quite what _he_ expected himself, I am not bound to make it up to him, and I in like manner free and absolve you from all claims on his part. Your remark, that you are a greater favourite with Cæsar every day, is a source of undying satisfaction to me. As to Balbus, who, as you say, promotes that state of things, he is the apple of my eye. I am indeed glad that you and my friend Trebonius like each other. As to what you say about the military tribuneship, I, indeed, asked for it definitely for Curtius, and Cæsar wrote back definitely to say that there was one at Curtius's service, and chided me for my modesty in making the request. If I have asked one for anyone else--as I told Oppius to write and tell Cæsar--I shall not be at all annoyed by a refusal, since those who pester me for letters _are_ annoyed at a refusal from me. I like Curtius, as I have told him, not only because you asked me to do so, but from the character you gave of him; for from your letter I have gathered the zeal he shewed for my restoration. As for the British expedition, I conclude from your letter that we have no occasion either for fear or exultation. As to public affairs, about which you wish Tiro to write to you, I have written to you hitherto somewhat more carelessly than usual, because I knew that all events, small or great, were reported to Cæsar. I have now answered your longest letter.

Now hear what I have to say to your small one. The first point is about Clodius's letter to Cæsar. In that matter I approve of Cæsar's policy, in not having given way to your request so far as to write a single word to that Fury. The next thing is about the speech of Calventius "Marius."[622] I am surprised at your saying that you think I ought to answer it, particularly as, while no one is likely to read that speech, unless I write an answer to it, every schoolboy learns mine against him as an exercise. My books, all of which you are expecting, I have begun, but I cannot finish them for some days yet. The speeches for Scaurus and Plancius which you clamour for I have finished. The poem to Cæsar, which I had begun, I have cut short. I will write what you ask me for, since your poetic springs are running dry, as soon as I have time.

Now for the third letter. It is very pleasant and welcome news to hear from you that Balbus is soon coming to Rome, and so well accompanied![623] and will stay with me continuously till the 15th of May. As to your exhorting me in the same letter, as in many previous ones, to ambition and labour, I shall, of course, do as you say: but when am I to enjoy any real life?

Your fourth letter reached me on the 13th of September, dated on the 10th of August from Britain. In it there was nothing new except about your _Erigona_, and if I get that from Oppius I will write and tell you what I think of it. I have no doubt I shall like it.[624] Oh yes! I had almost forgotten to remark as to the man who, you say in your letter, had written to Cæsar about the applause given to Milo--I am not unwilling that Cæsar should think that it was as warm as possible. And in point of fact it was so, and yet that applause, which is given to him, seems in a certain sense to be given to me.[625]

I have also received a very old letter, but which was late in coming into my hands, in which you remind me about the temple of Tellus and the colonnade of Catulus. Both of these matters are being actively carried out. At the temple of Tellus I have even got your statue placed. So, again, as to your reminder about a suburban villa and gardens, I was never very keen for one, and now my town house has all the charm of such a pleasure-ground. On my arrival in Rome on the 18th of September I found the roof on your house finished: the part over the sitting-rooms, which you did not wish to have many gables, now slopes gracefully towards the roof of the lower colonnade. Our boy, in my absence, did not cease working with his rhetoric master. You have no reason for being anxious about his education, for you know his ability, and I see his application. Everything else I take it upon myself to guarantee, with full consciousness that I am bound to make it good.

As yet there are three parties prosecuting Gabinius: first, L. Lentulus, son of the _flamen_, who has entered a prosecution for _lèse majesté_;[626] secondly, Tib. Nero, with good names at the back of his indictment; thirdly, C. Memmius the tribune in conjunction with L. Capito. He came to the walls of the city on the 19th of September, undignified and neglected to the last degree. But in the present state of the law courts I do not venture to be confident of anything. As Cato is unwell, he has not yet been formally indicted for extortion. Pompey is trying hard to persuade me to be reconciled to him, but as yet he has not succeeded at all, nor, if I retain a shred of liberty, will he succeed. I am very anxious for a letter from you. You say that you have been told that I was a party to the coalition of the consular candidates--it is a lie. The compacts made in that coalition, afterwards made public by Memmius, were of such a nature that no loyal man ought to have been a party to them;[627] nor at the same time was it possible for me to be a party to a coalition from which Messalla was excluded, who is thoroughly satisfied with my conduct in every particular, as also, I think, is Memmius. To Domitius himself I have rendered many services, which he desired and asked of me. I have put Scaurus under a heavy obligation by my defence of him. It is as yet very uncertain both when the elections will be and who will be consuls.

Just as I was folding up this epistle letter-carriers arrived from you and Cæsar (20th September) after a journey of twenty days. How anxious I was! How painfully I was affected by Cæsar's most kind letter![628] But the kinder it was, the more sorrow did his loss occasion me. But to turn to your letter. To begin with, I reiterate my approval of your staying on, especially as, according to your account, you have consulted Cæsar on the subject. I wonder that Oppius has anything to do with Publius, for I advised against it. Farther on in your letter you say that I am going to be made _legatus_ to Pompey on the 13th of September: I have heard nothing about it, and I wrote to Cæsar to tell him that neither Vibullius nor Oppius had delivered his message to Pompey about my remaining at home. Why, I know not. However, it was I who restrained Oppius from doing so, because it was Vibullius who should take the leading part in that matter: for with him Cæsar had communicated personally, with Oppius only by letter. I indeed can have no "second thoughts"[629] in matters connected with Cæsar. He comes next after you and our children in my regard, and not much after. I think I act in this with deliberate judgment, for I have by this time good cause for it, yet warm personal feeling no doubt does influence me also.

Just as I had written these last words--which are by my own hand--your boy came in to dine with me, as Pomponia was dining out. He gave me your letter to read, which he had received shortly before--a truly Aristophanic mixture of jest and earnest, with which I was greatly charmed.[630] He gave me also your second letter, in which you bid him cling to my side as a mentor. How delighted he was with those letters! And so was I. Nothing could be more attractive than that boy, nothing more affectionate to me!--This, to explain its being in another handwriting, I dictated to Tiro while at dinner.

Your letter gratified Annalis very much, as shewing that you took an active interest in his concerns, and yet assisted him with exceedingly candid advice. Publius Servilius the elder, from a letter which he said he had received from Cæsar, declares himself highly obliged to you for having spoken with the greatest kindness and earnestness of his devotion to Cæsar. After my return to Rome from Arpinum I was told that Hippodamus had started to join you. I cannot say that I was surprised at his having acted so discourteously as to start to join you without a letter from me: I only say this, that I was annoyed. For I had long resolved, from an expression in your letter, that if I had anything I wished conveyed to you with more than usual care, I should give it to him: for, in truth, into a letter like this, which I send you in an ordinary way, I usually put nothing that, if it fell into certain hands, might be a source of annoyance. I reserve myself for Minucius and Salvius and Labeo. Labeo will either be starting late or will stay here altogether. Hippodamus did not even ask me whether he could do anything for me. T. Penarius sends me a kind letter about you: says that he is exceedingly charmed with your literary pursuits, conversation, and above all by your dinners. He was always a favourite of mine, and I see a good deal of his brother. Wherefore continue, as you have begun, to admit the young man to your intimacy.

From the fact of this letter having been in hand during many days, owing to the delay of the letter-carriers, I have jotted down in it many various things at odd times,

as, for instance, the following. Titus Anicius has mentioned to me more than once that he would not hesitate to buy a suburban property for you, if he found one. In these remarks of his I find two things surprising: first, that when you write to him about buying a suburban property, you not only don't write to me to that effect, but write even in a contrary sense; and, secondly, that in writing to him you totally forget his letters which you shewed me at Tusculum, and as totally the rule of Epicharmus, "Notice how he has treated another":[631] in fact, that you have quite forgotten, as I think, the lesson conveyed by the expression of his face, his conversation, and his spirit. But this is your concern. As to a suburban property, be sure to let me know your wishes, and at the same time take care that that fellow doesn't get you into trouble. What else have I to say? Anything? Yes, there is this: Gabinius entered the city by night on the 27th of September, and to-day, at two o'clock, when he ought to have appeared on his trial for _lèse majesté_, in accordance with the edict of C. Alfius, he was all but crushed to the earth by a great and unanimous demonstration of the popular hatred. Nothing could exceed his humiliating position. However, Piso comes next to him. So I think of introducing a marvellous episode into my second book[632]--Apollo declaring in the council of the gods what sort of return that of the two commanders was to be, one of whom had lost, and the other sold his army. From Britain I have a letter of Cæsar's dated the 1st of September, which reached me on the 27th, satisfactory enough as far as the British expedition is concerned, in which, to prevent my wondering at not getting one from you, he tells me that you were not with him when he reached the coast. To that letter I made no reply, not even a formal congratulation, on account of his mourning. Many, many wishes, dear brother, for your health.

[Footnote 620: That is, to get them seats at the games. See Letter XXVI, p. 63.]

[Footnote 621: The _porticus_ is a kind of cloister round the _peristylium_ or _atrium_.]

[Footnote 622: Calventius is said to stand for L. Calpurnius Piso Cæsoninus, the consul of B.C. 58, against whom Cicero's speech was spoken in B.C. 55 in the senate. He calls him Calventius from his maternal grandfather, and Marius because--as he had said, in the speech, § 20--he had himself gone into exile rather than come to open fight with him; just as Q. Metellus had done in B.C. 100, when, declining to take the oath to the agrarian law of Saturninus, rather than fight Marius, who had taken the oath, he went into exile. This seems rather a roundabout explanation; but no better has been proposed, and, of course, Quintus, who had lately read the speech, would be able better to understand the allusion.]

[Footnote 623: _I.e._, with money.]

[Footnote 624: This tragedy of Quintus's never reached Cicero. It was lost in transit. Perhaps no great loss.]

[Footnote 625: Milo was ædile and had just given some splendid games.]

[Footnote 626: _Maiestas._ He would be liable to this charge, under a law of Sulla's, for having left his province to interfere in Egypt.]

[Footnote 627: See p. 300.]

[Footnote 628: Apparently referring to the death of his daughter Iulia.]

[Footnote 629: δευτέρας φροντίδας from Eurip. _Hipp._ 436, αἱ δευτέραι πως φροντίδες σοφωτέραι.]

[Footnote 630: Or, "as kindly and critical at once as Aristophanes (of Byzantium)," as though Quintus had written a Caxtonian criticism of his son's style.]

[Footnote 631: γυῶθι πῶς ἄλλω κέχρηται.]

[Footnote 632: Of his poem "On his own Times." Piso in Macedonia, where he had been unsuccessful with border tribes: Gabinius in going to Egypt to support Ptolemy. He left many of his soldiers there.]

CXLVIII (A IV, 17 AND PARTS OF 16)

TO ATTICUS (ABROAD)

ROME, 1 OCTOBER

[Sidenote: B.C. 54, ÆT. 52]

You think I imagine that I write more rarely to you than I used to do from having forgotten my regular habit and purpose, but the fact is that, perceiving your locality and journeys to be equally uncertain, I have never intrusted a letter to anyone--either for Epirus, or Athens, or Asia, or anywhere else--unless he was going expressly to you. For my letters are not of the sort to make their non-delivery a matter of indifference; they contain so many confidential secrets that I do not as a rule trust them even to an amanuensis, for fear of some jest leaking out in some direction or another.

The consuls are in a blaze of infamy because Gaius Memmius, one of the candidates, read out in the senate a compact which he and his fellow candidate, Domitius Calvinus, had made with the consuls--that both were to forfeit to the consuls 40 sestertia apiece (in case they were themselves elected consuls), if they did not produce three augurs to depose that they had been present at the passing of a _lex curiata_, which, in fact, had not been passed; and two consulars to depose to having helped to draft a decree for furnishing the consular provinces, though there had not even been a meeting of the senate at all.[633] As this compact was alleged not to have been a mere verbal one, but to have been drawn up with the sums to be paid duly entered, formal orders for payment, and written attestations of many persons, it was, on the suggestion of Pompey, produced by Memmius, but with the names obliterated. It has made no difference to Appius--he had no character to lose! To the other consul it was a real knock-down blow, and he is, I assure you, a ruined man. Memmius, however, having thus dissolved the coalition, has lost all chance of election, and is by this time in a worse position than ever, because we are now informed that his revelation is strongly disapproved of by Cæsar. Our friend Messalla

and his fellow candidate, Domitius Calvinus, have been very liberal to the people. Nothing can exceed their popularity. They are certain to be consuls. But the senate has passed a decree that a "trial with closed doors" should be held before the elections in respect to each of the candidates severally by the panels already allotted to them all. The candidates are in a great fright. But certain jurors--among them Opimius, Veiento, and Rantius--appealed to the tribunes to prevent their being called upon to act as jurors without an order of the people[634]. The business goes on. The _comitia_ are postponed by a decree of the senate till such time as the law for the "trial with closed doors" is carried. The day for passing the law arrived. Terentius vetoed it. The consuls, having all along conducted this business in a half-hearted kind of way, referred the matter back to the senate. Hereupon--Bedlam! my voice being heard with the rest. "Aren't you wise enough to keep quiet, after all?" you will say. Forgive me: I can hardly restrain myself. But, nevertheless, was there ever such a farce? The senate had voted that the elections should not be held till the law was passed: that, in case of a tribunician veto, the whole question should be referred to them afresh. The law is introduced in a perfunctory manner: is vetoed, to the great relief of the proposers: the matter is referred to the senate. Upon that the senate voted that it was for the interest of the state that the elections should be held at the earliest possible time!

Scaurus, who had been acquitted a few days before,[635] after a most elaborate speech from me on his behalf--when all the days up to the 29th of September (on which I write this) had one after the other been rendered impossible for the _comitia_ by notices of ill omens put in by Scævola--paid the people what they expected at his own house, tribe by tribe. But all the same, though his liberality was more generous, it was not so acceptable as that of the two mentioned above, who had got the start of him. I could have wished to see your face when you read this;[636] for I am certain you entertain some hope that these transactions will occupy a great many weeks! But there is to be a meeting of the senate to-day, that is, the 1st of October--for day is already breaking. There no one will speak his mind except Antius and Favonius,[637] for Cato is ill. Don't be afraid about me: nevertheless, I make no promises. Is there anything else you want to know? Anything? Yes, the trials, I think. Drusus and Scaurus[638] are believed not to have been guilty. Three candidates are thought likely to be prosecuted: Domitius Calvinus by Memmius, Messalla by Q. Pompeius Rufus, Scaurus[639] by Triarius or by L. Cæsar. "What will you be able to say for them?" quoth you. May I die if I know! In those books[640] certainly, of which you speak so highly, I find no suggestion.

[Footnote 633: The object of the existing consuls in making such a bargain was to get to their provinces without difficulty, with _imperium_, which had to be bestowed by a formal meeting of the old _comitia curiata_. But that formality could be stopped by tribunes or other magistrates "watching the sky," or declaring evil omens: and just as these means were being resorted to to put off the elections, so they were also likely to be used in this matter. If it was thus put off into the next year, Domitius and Appius, not being any longer consuls, would have still greater difficulty. Corrupt as the arrangement was, it seems not to have come under any existing law, and both escaped punishment. Appius went as proconsul to Cilicia, in spite of the _lex curiata_

not being passed, but Domitius Ahenobarbus seems not to have had a province. The object of Domitius Calvinus and Memmius in making the compact was to secure their own election, which the existing consuls had many means of assisting, but it is not clear what Memmius's object in disclosing it was. Perhaps anger on finding his hopes gone, and an idea that anything that humiliated Ahenobarbus would be pleasing to Cæsar. He also seems to have quarrelled with Calvinus. Gaius Memmius Gemellus is not to be confounded with Gaius Memmius the tribune mentioned in the next letter.]

[Footnote 634: There is considerable uncertainty as to the exact nature of _iudicium tacitum_, here rendered "a trial with closed doors," on the analogy of the _senatus consultum tacitum_ described by Capitolinus, _in Gordian_. ch. xii. It is not, I think, mentioned elsewhere (_iudiciis tacitis_ of 2 _Off._ § 24, is a general expression for "anonymous expressions of opinion"), and the passage in Plutarch (_Cato min._ 44) introduces a new difficulty, for it indicates a court in which candidates _after_ election are to purge themselves. Again, _quæ erant omnibus sortita_ is very difficult. Cicero nowhere else, I believe, uses the passive _sortitus_. But, passing that, what are the _consilia_ meant? The tense and mood shew, I think, that the words are explanatory by the writer, not part of the decree. I venture, contrary to all editors, to take _omnibus_ as dative, and to suppose that the _consilia_ meant are those of the _album iudicum_ who had been selected to try cases of _ambitus_, of which many were expected. There is no proof that the _iudices_ in a _iudicium tacitum_ had to be senators, and the names in the next sentence point the other way. The senate proposed that the law should allow this selection from the _album_ to form the _iudicium tacitum_, which would give no public verdict, but on whose report they could afterwards act.]

[Footnote 635: M. Æmilius Scaurus was acquitted on the 2nd of September on a charge of extortion in Sardinia. The trial had been hurried on lest he should use the Sardinian money in bribing for the consulship. Hence he could not begin distributing his gifts to the electors till after September 2nd, and his rivals Domitius and Messalla got the start of him. See Asconius, 131 _seq._]

[Footnote 636: He means that Atticus--as a lender of money--would be glad of anything that kept the rate of interest up (see p. 286). He is, of course, joking.]

[Footnote 637: Antius is not known. Favonius was a close imitator of Cato's Stoicism. He was now opposing both Pompey and Cæsar strenuously, but on the Civil War breaking out, attached himself strongly to Pompey. He was put to death by Augustus after the battle of Philippi (Suet. _Aug._ 13). He had a very biting tongue. See Plut. _Pomp._ 60.]

[Footnote 638: Drusus was probably Livius Drusus, the father of Livia, wife of Augustus; he was accused by Lucretius of _prævaricatio_, "collusion."]

[Footnote 639: This time for _ambitus_.]

[Footnote 640: The _de Oratore_.]

CXLIX (Q FR III, 2)

TO HIS BROTHER QUINTUS (IN GAUL)

ROME, OCTOBER

[Sidenote: B.C. 54, ÆT. 52]

In the evening of the 10th of October Salvius started on board ship for Ostia with the things you wished sent to you from home. On that same day Memmius[641] gave Gabinius such a splendid warning in public meeting that Calidius couldn't say a word for him. To-morrow (which is strictly the day after to-morrow, for I am writing before daybreak) there is a trial before Cato for the selection of his prosecutor between Memmius, Tiberius Nero, and Gaius and Lucius, sons of M. Antonius. I think the result will be in favour of Memmius, though a strong case is being made out for Nero. In short, he is in a fairly tight fix, unless our friend Pompey, to the disgust of gods and men, upsets the whole concern. Let me give you a specimen of the fellow's impudence, and extract _something_ amusing from the public disasters. Gabinius having given out wherever he came that he was demanding a triumph, and having suddenly, the excellent general! invaded the city of his enemies by night,[642] did not venture to enter the senate. Meanwhile, exactly on the tenth day, on which he was bound to report the number of the enemy and of his own soldiers who had been killed, he slunk into the house, which was very thinly attended. When he made as if to go out, he was stopped by the consuls. The _publicani_ were introduced. The fellow was assailed on every side, and my words stinging him more than all, he lost patience, and in a voice quivering with anger called me "Exile." Thereupon--Heavens! I never had such a compliment paid me in all my life!--the senate rose up to a man with a loud shout and made a menacing movement in his direction: the _publicani_ made an equal noise and a similar movement. In fine, they all behaved exactly as you would have done. It is the leading topic of conversation out of the house. However, I refrain from prosecuting, with difficulty, by Hercules! yet refrain I do: either because I don't want to quarrel with Pompey--the impending question of Milo is enough in that direction--or because we have no jurors worthy of the name. I fear a fiasco: besides, there is the ill-will of certain persons to me, and I am afraid my conducting the prosecution might give him some advantage: besides, I do not despair of the thing being done both without me and yet partly through my assistance. All the candidates for the consulships have had prosecutions for bribery lodged against them: Domitius Calvinus by Memmius (the tribune), Memmius (the candidate) by Q. Acutius, an excellent young man and a good lawyer, Messalla by Q. Pompeius, Scaurus by Triarius. The affair causes great commotion, because it is a plain alternative between shipwreck for the men concerned or for the laws. Pressure is being applied to prevent the trials taking place. It looks like an _interregnum_ again. The consuls desire to hold the _comitia_: the accused don't wish it, and especially Memmius, because he hopes that Cæsar's approach[643] may secure him the consulship. But he is at a very low ebb. Domitius, with Messalla as his colleague, I think is a certainty. Scaurus has lost his chance. Appius declares that he will relieve Lentulus even without a curiate law,[644] and, indeed, he distinguished himself amazingly that day (I almost forgot to mention it) in an attack upon Gabinius. He accused him of _lèse majesté_, and gave

the names of his witnesses without Gabinius answering a word. That is all the public news. At home all is well: your house itself is being proceeded with by the contractors with fair expedition.

[Footnote 641: C. Memmius, a tribune of this year, not the same as the C. Memmius Gemellus of the last letter.]

[Footnote 642: Referring to the fact that Gabinius, on his arrival outside Rome, without the usual procession of friends which met a returning proconsul, skulked about till nightfall, not venturing to enter Rome (the city of his enemies!) in daylight. By entering Rome he gave up his _imperium_ and could no longer ask a triumph.]

[Footnote 643: Cæsar was accustomed to come to North Italy (Gallia Cisalpina) for the winter to Ravenna or Luca, and there he could be communicated with and exercise great influence.]

[Footnote 644: That is, he would go to his province of Cilicia on the strength of his nomination or allotment by the senate. There was some doubt as to the question whether such allotment did not give _imperium_ even without a _lex curiata_. Besides, the consul had already _imperium_, and he might consider it to be uninterrupted if he left Rome immediately. However, as there was always an interval between the end of the consulship and the quitting Rome _paludatus_, the _lex curiata_ had generally been considered necessary (Cæs. _B. C._ i. 6). After B.C. 52 the _lex Pompeia_ enacted a five years' interval, when, of course, a law would be necessary.]

CL (Q FR III, 3)

TO HIS BROTHER QUINTUS (IN GAUL)

ROME (OCTOBER)

[Sidenote: B.C. 54, ÆT. 52]

The writing of an amanuensis must shew you the amount of my engagements. I assure you that no day passes without my appearing for the defence of some one. Accordingly, all composition or reflexion I reserve for the hour of my walk. So stands my business: matters at home, however, are everything I could wish. Our boys are well, diligent in their studies, and affectionate to me and each other. The decoration of both of our houses is still in hand: but your rural works at Arcanum and Laterium are now completed. For the rest, as to the water and the road, I went into the case thoroughly, in a certain letter of mine, without omitting anything. But, in truth, the anxiety which is now giving me great uneasiness and pain is that for a period of fifty days I have heard nothing from you or from Cæsar--nothing has found its way from those parts, either in the shape of a letter, or even of a rumour. Moreover, both the sea and land out there make me uneasy, and I never cease imagining, as one does when one's affections are deeply involved, all that I least desire. Wherefore I do not, indeed, for the present ask you to write me an account of yourself and your doings,

for that you never omit doing when possible, but I wish you to know this--that I have scarcely ever been so anxious for anything as at the moment of writing I am for a letter from you. Now for what is going on in politics. One day after another for the _comitia_ is struck out by notices of bad omens, to the great satisfaction of all the loyalists: so great is the scandal in which the consuls are involved, owing to the suspicion of their having bargained for a bribe from the candidates. The four candidates for the consulship are all arraigned: their cases are difficult of defence, but I shall do my best to secure the safety of our friend Messalla--and that is inseparable from the acquittal of the others. Publius Sulla has accused Gabinius of bribery--his stepson Memmius, his cousin Cæcilius, and his son Sulla backing the indictment. L. Torquatus put in his claim to the conduct of the prosecution, and, to everybody's satisfaction, failed to establish it. You ask, "What will become of Gabinius?" We shall know in three days' time about the charge of _lèse majesté_. In that case he is at a disadvantage from the hatred entertained by all classes for him; witnesses against him as damaging as can be: accusers in the highest degree inefficient: the panel of jurors of varied character: the president a man of weight and decision--Alfius: Pompey active in soliciting the jurors on his behalf. What the result will be I don't know; I don't see, however, how he can maintain a position in the state. I shew no rancour in promoting his destruction, and await the result with the utmost good temper. That is nearly all the news. I will add this one item: your boy (who is mine also) is exceedingly devoted to his rhetoric master Pæonius, a man, I think, of great experience in his profession, and of very good character. But you are aware that my method of instruction aims at a somewhat more scholarly and philosophical style.[645] Accordingly I, for my part, am unwilling that his course of training should be interrupted, and the boy himself seems to be more drawn to that declamatory style, and to like it better; and as that was the style in which I was myself initiated, let us allow him to follow in my path, for I feel sure it will eventually bring him to the same point; nevertheless, if I take him with me somewhere in the country, I shall guide him to the adoption of my system and practice. For you have held out before me a great reward, which it certainly shall not be my fault if I fail to fully obtain. I hope you will write and tell me most carefully in what district you are going to pass the winter, and what your prospects are.

[Footnote 645: θετικώτερον. From θέσις, a philosophical proposition or thesis. In _Paradox. præf._ he uses θετικά of subjects suited to such theses.]

CLI (Q FR III, 4)

TO HIS BROTHER QUINTUS (IN GAUL)

ROME, 24 OCTOBER

[Sidenote: B.C. 54, ÆT. 52]

Gabinius has been acquitted. Nothing could be more absolutely futile than his accuser, Lentulus, and the backers of the indictment, or more corrupt than the jury.

Yet, after all, had it not been for incredible exertions and entreaties on Pompey's part, and even an alarming rumour of a dictatorship, he would not have been able to answer even Lentulus; for even as it was, with such an accuser and such a jury, he had thirty-two votes out of seventy recorded against him. This trial is altogether so scandalous, that he seems certain to be convicted in the other suits, especially in that for extortion. But you must see that the Republic, the senate, the law courts are mere cyphers, and that not one of us has any constitutional position at all. What else should I tell you about the jurors? Two men of prætorian rank were on the panel--Domitius Calvinus, who voted for acquittal so openly that everybody could see; and Cato, who, as soon as the voting tablets had been counted, withdrew from the ring of people, and was the first to tell Pompey the news. Some people--for instance, Sallust--say that I ought to have been the prosecuting counsel. Was I to have exposed myself to such a jury as this? What would have been my position, if he had escaped when I conducted the case? But there were other considerations which influenced me. Pompey would have looked upon it as a contest with me, not for that man's safety, but for his own position: he would have entered the city;[646] it would have become a downright quarrel; I should have seemed like a Pacideianus matched with the Samnite Æserninus[647]--he would, perhaps, have bitten off my ear,[648] and at least he would have become reconciled to Clodius. For my part, especially if you do not disapprove of it, I strongly approve my own policy. That great man, though his advancement had been promoted by unparalleled exertions on my part, and though I owed him nothing, while he owed me all, yet could not endure that I should differ from him in politics--to put it mildly--and, when in a less powerful position, shewed me what he could do against me when in my zenith. At this time of day, when I don't even care to be influential, and the Republic certainly has no power to do anything, while he is supreme in everything, was I to enter upon a contest with him? For that is what I should have had to have done. I do not think that you hold me bound to have undertaken it. "Then, as an alternative," says the grave Sallust, "you should have defended him, and have made that concession to Pompey's earnest wish, for he begged you very hard to do so." An ingenious friend is Sallust, to give me the alternative of a dangerous quarrel or undying infamy! I, however, am quite pleased with the middle course which I have steered; and another gratifying circumstance is that, when I had given my evidence with the utmost solemnity, in accordance with my honour and oath, the defendant said that, if he retained his right to remain in the city, he would repay me, and did not attempt to cross-question me.

As to the verses which you wish me to compose, it is true that I am deficient in industry in regard to them, which requires not only time, but also a mind free from all anxiety, but I am also wanting in inspiration. For I am not altogether without anxiety as to the coming year, though without fear. At the same time, and, upon my word, I speak without irony, I consider you a greater master of that style of writing than myself. As to filling up your Greek library, effecting interchanges of books, and purchasing Latin books, I should be very glad that your wishes should be carried out, especially as they would be very useful to me. But I have no one to employ for myself in such a business: for such books as are really worth getting are not for sale, and purchases cannot be effected except by an agent who is both well-informed and

active. However, I will give orders to Chrysippus and speak to Tyrannio. I will inquire what Scipio has done about the treasury. I will see that what seems to be the right thing is done. As to Ascanio, do what you like: I shall not interfere. As to a suburban property, I commend your not being in a hurry, but I advise your having one. I write this on the 24th of October, the day of the opening of the games, on the point of starting for my Tusculan villa, and taking my dear young Cicero with me as though to school (a school not for sport, but for learning), since I did not wish to be at any greater distance from town, because I purposed supporting Pomptinus's[649] claim of a triumph on the 3rd of November. For there will be, in fact, some little difficulty; as the prætors, Cato and Servilius,[650] threaten to forbid it, though I don't know what they can do. For he will have on his side Appius the consul, some prætors and tribunes. Still, they do threaten--and among the foremost Q. Scævola, "breathing war."[651] Most delightful and dearest of brothers, take good care of your health.

[Footnote 646: Pompey was outside the _pomœrium_ (_ad Romam_) as having _imperium_.]

[Footnote 647: Two gladiators, one incomparably superior to the other.]

[Footnote 648: A proverbial expression, cp. "snapped my nose off."]

[Footnote 649: C. Pomptinus, prætor in B.C. 63 (when he had supported Cicero), was afterwards employed against the Allobroges as proprætor of Narbonensis (B.C. 61). He had been, ever since leaving his province (? B.C. 58), urging his claim to a triumph. He obtained it now by the contrivance of the prætor Serv. Sulpicius Galba, who got a vote passed by the _comitia_ before daybreak, which was unconstitutional (Dio, 39, 65).]

[Footnote 650: P. Servilius Vatia Isauricus (consul B.C. 48) was an admirer of Cato. See p. 112.]

[Footnote 651: Ἄρη πνέων.]

CLII (F I, 9)

TO P. LENTULUS SPINTHER (IN CILICIA)

ROME (OCTOBER)

[Sidenote: B.C. 54, ÆT. 52]

M. Cicero desires his warmest regards to P. Lentulus, _imperator_.[652] Your letter was very gratifying to me, from which I gathered that you fully appreciated my devotion to you: for why use the word kindness, when even the word "devotion" itself, with all its solemn and holy associations, seems too weak to express my obligations to you? As for your saying that my services to you are gratefully accepted, it is you who in your overflowing affection make things, which cannot be omitted without criminal negligence, appear deserving of even gratitude. However, my feelings towards you would have been much more fully known and conspicuous, if, during all this time that

we have been separated, we had been together, and together at Rome. For precisely in what you declare your intention of doing--what no one is more capable of doing, and what I confidently look forward to from you--that is to say, in speaking in the senate, and in every department of public life and political activity, we should together have been in a very strong position (what my feelings and position are in regard to politics I will explain shortly, and will answer the questions you ask), and at any rate I should have found in you a supporter, at once most warmly attached and endowed with supreme wisdom, while in me you would have found an adviser, perhaps not the most unskilful in the world, and at least both faithful and devoted to your interests. However, for your own sake, of course, I rejoice, as I am bound to do, that you have been greeted with the title of _imperator_, and are holding your province and victorious army after a successful campaign. But certainly, if you had been here, you would have enjoyed to a fuller extent and more directly the benefit of the services which I am bound to render you. Moreover, in taking vengeance on those whom you know in some cases to be your enemies, because you championed the cause of my recall, in others to be jealous of the splendid position and renown which that measure brought you, I should have done you yeoman's service as your associate. However, that perpetual enemy of his own friends, who, in spite of having been honoured with the highest compliments on your part, has selected you of all people for the object of his impotent and enfeebled violence, has saved me the trouble by punishing himself. For he has made attempts, the disclosure of which has left him without a shred, not only of political position, but even of freedom of action.[653] And though I should have preferred that you should have gained your experience in my case alone, rather than in your own also, yet in the midst of my regret I am glad that you have learnt what the fidelity of mankind is worth, at no great cost to yourself, which I learnt at the price of excessive pain. And I think that I have now an opportunity presented me, while answering the questions you have addressed to me, of also explaining my entire position and view. You say in your letter that you have been informed that I have become reconciled to Cæsar and Appius, and you add that you have no fault to find with that. But you express a wish to know what induced me to defend and compliment Vatinius. In order to make my explanation plainer I must go a little farther back in the statement of my policy and its grounds.

Well, Lentulus! At first--after the success of your efforts for my recall--I looked upon myself as having been restored not alone to my friends, but to the Republic also; and seeing that I owed you an affection almost surpassing belief, and every kind of service, however great and rare, that could be bestowed on your person, I thought that to the Republic, which had much assisted you in restoring me, I at least was bound to entertain the feeling which I had in old times shewed merely from the duty incumbent on all citizens alike, and not as an obligation incurred by some special kindness to myself. That these were my sentiments I declared to the senate when you were consul, and you had yourself a full view of them in our conversations and discussions. Yet from the very first my feelings were hurt by many circumstances, when, on your mooting the question of the full restoration of my position, I detected the covert hatred of some and the equivocal attachment of others. For you received no support from them either in regard to my monuments, or the illegal violence by

which, in common with my brother, I had been driven from my house; nor, by heaven, did they shew the goodwill which I had expected in regard to those matters which, though necessary to me owing to the shipwreck of my fortune, were yet regarded by me as least valuable--I mean as to indemnifying me for my losses by decree of the senate. And though I saw all this--for it was not difficult to see--yet their present conduct did not affect me with so much bitterness as what they had done for me did with gratitude. And therefore, though according to your own assertion and testimony I was under very great obligation to Pompey, and though I loved him not only for his kindness, but also from my own feelings, and, so to speak, from my unbroken admiration of him, nevertheless, without taking any account of his wishes, I abode by all my old opinions in politics.[654] With Pompey sitting in court,[655] upon his having entered the city to give evidence in favour of Sestius, and when the witness Vatinius had asserted that, moved by the good fortune and success of Cæsar, I had begun to be his friend, I said that I preferred the fortune of Bibulus, which he thought a humiliation, to the triumphs and victories of everybody else; and I said during the examination of the same witness, in another part of my speech, that the same men had prevented Bibulus from leaving his house as had forced me from mine: my whole cross-examination, indeed, was nothing but a denunciation of his tribuneship;[656] and in it I spoke throughout with the greatest freedom and spirit about violence, neglect of omens, grants of royal titles. Nor, indeed, in the support of this view is it only of late that I have spoken: I have done so consistently on several occasions in the senate. Nay, even in the consulship of Marcellinus and Philippus,[657] on the 5th of April the senate voted on my motion that the question of the Campanian land should be referred to a full meeting of the senate on the 15th of May. Could I more decidedly invade the stronghold of his policy, or shew more clearly that I forgot my own present interests, and remembered my former political career? On my delivery of this proposal a great impression was made on the minds not only of those who were bound to have been impressed, but also of those of whom I had never expected it. For, after this decree had passed in accordance with my motion, Pompey, without shewing the least sign of being offended with me, started for Sardinia and Africa, and in the course of that journey visited Cæsar at Luca. There Cæsar complained a great deal about my motion, for he had already seen Crassus at Ravenna also, and had been irritated by him against me. It was well known that Pompey was much vexed at this, as I was told by others, but learnt most definitely from my brother. For when Pompey met him in Sardinia, a few days after leaving Luca, he said: "You are the very man I want to see; nothing could have happened more conveniently. Unless you speak very strongly to your brother Marcus, you will have to pay up what you guaranteed on his behalf."[658] I need not go on. He grumbled a great deal: mentioned his own services to me: recalled what he had again and again said to my brother himself about the "acts" of Cæsar, and what my brother had undertaken in regard to me; and called my brother himself to witness that what he had done in regard to my recall he had done with the consent of Cæsar: and asked him to commend to me the latter's policy and claims, that I should not attack, even if I would not or could not support them. My brother having conveyed these remarks to me, and Pompey having, nevertheless, sent Vibullius to me with a message, begging me not to commit myself on the question of the Campanian land till his return, I reconsidered my position and begged

the state itself, as it were, to allow me, who had suffered and done so much for it, to fulfil the duty which gratitude to my benefactors and the pledge which my brother had given demanded, and to suffer one whom it had ever regarded as an honest citizen to shew himself an honest man. Moreover, in regard to all those motions and speeches of mine which appeared to be giving offence to Pompey, the remarks of a particular set of men, whose names you must surely guess, kept on being reported to me; who, while in public affairs they were really in sympathy with my policy, and had always been so, yet said that they were glad that Pompey was dissatisfied with me, and that Cæsar would be very greatly exasperated against me. This in itself was vexatious to me: but much more so was the fact that they used, before my very eyes, so to embrace, fondle, make much of, and kiss my enemy--mine do I say? rather the enemy of the laws, of the law courts, of peace, of his country, of all loyal men!--that they did not indeed rouse my bile, for I have utterly lost all that, but imagined they did. In these circumstances, having, as far as is possible for human prudence, thoroughly examined my whole position, and having balanced the items of the account, I arrived at a final result of all my reflexions, which, as well as I can, I will now briefly put before you.

If I had seen the Republic in the hands of bad or profligate citizens, as we know happened during the supremacy of Cinna, and on some other occasions, I should not under the pressure, I don't say of rewards, which are the last things to influence me, but even of danger, by which, after all, the bravest men are moved, have attached myself to their party, not even if their services to me had been of the very highest kind. As it is, seeing that the leading statesman in the Republic was Pompey, a man who had gained this power and renown by the most eminent services to the state and the most glorious achievements, and one of whose position I had been a supporter from my youth up, and in my prætorship and consulship an active promoter also, and seeing that this same statesman had assisted me, in his own person by the weight of his influence and the expression of his opinion, and, in conjunction with you, by his counsels and zeal, and that he regarded my enemy as his own supreme enemy in the state--I did not think that I need fear the reproach of inconsistency, if in some of my senatorial votes I somewhat changed my standpoint, and contributed my zeal to the promotion of the dignity of a most distinguished man, and one to whom I am under the highest obligations. In this sentiment I had necessarily to include Cæsar, as you see, for their policy and position were inseparably united. Here I was greatly influenced by two things--the old friendship which you know that I and my brother Quintus have had with Cæsar, and his own kindness and liberality, of which we have recently had clear and unmistakable evidence both by his letters and his personal attentions. I was also strongly affected by the Republic itself, which appeared to me to demand, especially considering Cæsar's brilliant successes, that there should be no quarrel maintained with these men, and indeed to forbid it in the strongest manner possible. Moreover, while entertaining these feelings, I was above all shaken by the pledge which Pompey had given for me to Cæsar, and my brother to Pompey. Besides, I was forced to take into consideration the state maxim so divinely expressed by our master Plato--"Such as are the chief men in a republic, such are ever wont to be the other citizens." I called to mind that in my consulship, from the very 1st of

January, such a foundation was laid of encouragement for the senate, that no one ought to have been surprised that on the 5th of December there was so much spirit and such commanding influence in that house. I also remember that when I became a private citizen up to the consulship of Cæsar and Bibulus, when the opinions expressed by me had great weight in the senate, the feeling among all the loyalists was invariable. Afterwards, while you were holding the province of hither Spain with _imperium_ and the Republic had no genuine consuls, but mere hucksters of provinces, mere slaves and agents of sedition, an accident threw my head as an apple of discord into the midst of contending factions and civil broils. And in that hour of danger, though a unanimity was displayed on the part of the senate that was surprising, on the part of all Italy surpassing belief, and of all the loyalists unparalleled, in standing forth in my defence, I will not say what happened--for the blame attaches to many, and is of various shades of turpitude--I will only say briefly that it was not the rank and file, but the leaders, that played me false. And in this matter, though some blame does attach to those who failed to defend me, no less attaches to those who abandoned me: and if those who were frightened deserve reproach, if there are such, still more are those to be blamed who pretended to be frightened. At any rate, my policy is justly to be praised for refusing to allow my fellow citizens (preserved by me and ardently desiring to preserve me) to be exposed while bereft of leaders to armed slaves, and for preferring that it should be made manifest how much force there might be in the unanimity of the loyalists, if they had been permitted to champion my cause before I had fallen, when after that fall they had proved strong enough to raise me up again. And the real feelings of these men you not only had the penetration to see, when bringing forward my case, but the power to encourage and keep alive. In promoting which measure--I will not merely not deny, but shall always remember also and gladly proclaim it--you found certain men of the highest rank more courageous in securing my restoration than they had been in preserving me from my fall: and, if they had chosen to maintain that frame of mind, they would have recovered their own commanding position along with my salvation. For when the spirit of the loyalists had been renewed by your consulship, and they had been roused from their dismay by the extreme firmness and rectitude of your official conduct; when, above all, Pompey's support had been secured; and when Cæsar, too, with all the prestige of his brilliant achievements, after being honoured with unique and unprecedented marks of distinction and compliments by the senate, was now supporting the dignity of the house, there could have been no opportunity for a disloyal citizen of outraging the Republic.

But now notice, I beg, what actually ensued. First of all, that intruder upon the women's rites, who had shewn no more respect for the Bona Dea than for his three sisters, secured immunity by the votes of those men who, when a tribune wished by a legal action to exact penalties from a seditious citizen by the agency of the loyalists, deprived the Republic of what would have been hereafter a most splendid precedent for the punishment of sedition. And these same persons, in the case of the monument, which was not mine, indeed--for it was not erected from the proceeds of spoils won by me, and I had nothing to do with it beyond giving out the contract for its construction--well, they allowed this monument of the senate's to have branded upon

it the name of a public enemy, and an inscription written in blood. That those men wished my safety rouses my liveliest gratitude, but I could have wished that they had not chosen to take my bare safety into consideration, like doctors, but, like trainers, my strength and complexion also! As it is, just as Apelles perfected the head and bust of his Venus with the most elaborate art, but left the rest of her body in the rough, so certain persons only took pains with my head, and left the rest of my body unfinished and unworked. Yet in this matter I have falsified the expectation, not only of the jealous, but also of the downright hostile, who formerly conceived a wrong opinion from the case of Quintus Metellus, son of Lucius--the most energetic and gallant man in the world, and in my opinion of surpassing courage and firmness--who, people say, was much cast down and dispirited after his return from exile.[659] Now, in the first place, we are asked to believe that a man who accepted exile with entire willingness and remarkable cheerfulness, and never took any pains at all to get recalled, was crushed in spirit about an affair in which he had shewn more firmness and constancy than anyone else, even than the pre-eminent M. Scaurus himself![660] But, again, the account they had received, or rather the conjectures they were indulging in about him, they now transferred to me, imagining that I should be more than usually broken in spirit: whereas, in fact, the Republic was inspiring me with even greater courage than I had ever had before, by making it plain that I was the one citizen it could not do without; and by the fact that while a bill proposed by only one tribune had recalled Metellus, the whole state had joined as one man in recalling me--the senate leading the way, the whole of Italy following after, eight of the tribunes publishing the bill, a consul putting the question at the centuriate assembly, all orders and individuals pressing it on, in fact, with all the forces at its command. Nor is it the case that I afterwards made any pretension, or am making any at this day, which can justly offend anyone, even the most malevolent: my only effort is that I may not fail either my friends or those more remotely connected with me in either active service, or counsel, or personal exertion. This course of life perhaps offends those who fix their eyes on the glitter and show of my professional position, but are unable to appreciate its anxieties and laboriousness.

Again, they make no concealment of their dissatisfaction on the ground that in the speeches which I make in the senate in praise of Cæsar I am departing from my old policy. But while giving explanations on the points which I put before you a short time ago, I will not keep till the last the following, which I have already touched upon. You will not find, my dear Lentulus, the sentiments of the loyalists the same as you left them--strengthened by my consulship, suffering relapse at intervals afterwards, crushed down before your consulship, revived by you: they have now been abandoned by those whose duty it was to have maintained them: and this fact they, who in the old state of things as it existed in our day used to be called _Optimates_, not only declare by look and expression of countenance, by which a false pretence is easiest supported, but have proved again and again by their actual sympathies and votes. Accordingly, the entire view and aim of wise citizens, such as I wish both to be and to be reckoned, must needs have undergone a change. For that is the maxim of that same great Plato, whom I emphatically regard as my master: "Maintain a political controversy only so far as you can convince your fellow citizens of its justice: never

offer violence to parent or fatherland."[661] He, it is true, alleges this as his motive for having abstained from politics, because, having found the Athenian people all but in its dotage, and seeing that it could not be ruled by persuasion, or by anything short of compulsion, while he doubted the possibility of persuasion, he looked upon compulsion as criminal. My position was different in this: as the people was not in its dotage, nor the question of engaging in politics still an open one for me, I was bound hand and foot. Yet I rejoiced that I was permitted in one and the same cause to support a policy at once advantageous to myself and acceptable to every loyalist. An additional motive was Cæsar's memorable and almost superhuman kindness to myself and my brother, who thus would have deserved my support whatever he undertook; while as it is, considering his great success and his brilliant victories, he would seem, even if he had not behaved to me as he has, to claim a panegyric from me. For I would have you believe that, putting you aside, who were the authors of my recall, there is no one by whose good offices I would not only confess, but would even rejoice, to have been so much bound.

Having explained this matter to you, the questions you ask about Vatinius and Crassus are easy to answer. For, since you remark about Appius, as about Cæsar, "that you have no fault to find," I can only say that I am glad you approve my policy. But as to Vatinius, in the first place there had been in the interval a reconciliation effected through Pompey, immediately after his election to the prætorship, though I had, it is true, impugned his canditature in some very strong speeches in the senate, and yet not so much for the sake of attacking him as of defending and complimenting Cato. Again, later on, there followed a very pressing request from Cæsar that I should undertake his defence. But my reason for testifying to his character I beg you will not ask, either in the case of this defendant or of others, lest I retaliate by asking you the same question when you come home: though I can do so even before you return: for remember for whom you sent a certificate of character from the ends of the earth. However, don't be afraid, for those same persons are praised by myself, and will continue to be so. Yet, after all, there was also the motive spurring me on to undertake his defence, of which, during the trial, when I appeared for him, I remarked that I was doing just what the parasite in the _Eunuchus_ advised the captain to do:

"As oft as she names Phædria, you retort With Pamphila. If ever she suggest, 'Do let us have in Phædria to our revel:' Quoth you, 'And let us call on Pamphila To sing a song.' If she shall praise _his_ looks, Do you praise _hers_ to match them: and, in fine, Give tit for tat, that you may sting her soul."

So I asked the jurors, since certain men of high rank, who had also done me very great favours, were much enamoured of my enemy, and often under my very eyes in the senate now took him aside in grave consultation, now embraced him familiarly and cheerfully--since these men had their Publius, to grant me another Publius, in whose person I might repay a slight attack by a moderate retort.[662] And, indeed, I am often as good as my word, with the applause of gods and men. So much for Vatinius. Now about Crassus. I thought I had done much to secure his gratitude in having, for the sake of the general harmony, wiped out by a kind of voluntary act of

oblivion all his very serious injuries, when he suddenly undertook the defence of Gabinius, whom only a few days before he had attacked with the greatest bitterness. Nevertheless, I should have borne that, if he had done so without casting any offensive reflexions on me. But on his attacking me, though I was only arguing and not inveighing against him, I fired up not only, I think, with the passion of the moment--for that perhaps would not have been so hot--but the smothered wrath at his many wrongs to me, of which I thought I had wholly got rid, having, unconsciously to myself, lingered in my soul, it suddenly shewed itself in full force. And it was at this precise time that certain persons (the same whom I frequently indicate by a sign or hint), while declaring that they had much enjoyed my outspoken style, and had never before fully realized that I was restored to the Republic in all my old character, and when my conduct of that controversy had gained me much credit outside the house also, began saying that they were glad both that he was now my enemy, and that those who were involved with him would never be my friends. So when their ill-natured remarks were reported to me by men of most respectable character, and when Pompey pressed me as he had never done before to be reconciled to Crassus, and Cæsar wrote to say that he was exceedingly grieved at that quarrel, I took into consideration not only my circumstances, but my natural inclination: and Crassus, that our reconciliation might, as it were, be attested to the Roman people, started for his province, it might almost be said, from my hearth. For he himself named a day and dined with me in the suburban villa of my son-in-law Crassipes. On this account, as you say that you have been told, I supported his cause in the senate, which I had undertaken on Pompey's strong recommendation, as I was bound in honour to do.

I have now told you with what motives I have supported each measure and cause, and what my position is in politics as far as I take any part in them: and I would wish you to make sure of this--that I should have entertained the same sentiments, if I had been still perfectly uncommitted and free to choose. For I should not have thought it right to fight against such overwhelming power, nor to destroy the supremacy of the most distinguished citizens, even if it had been possible; nor, again, should I have thought myself bound to abide by the same view, when circumstances were changed and the feelings of the loyalists altered, but rather to bow to circumstances. For the persistence in the same view has never been regarded as a merit in men eminent for their guidance of the helm of state; but as in steering a ship one secret of the art is to run before the storm, even if you cannot make the harbour; yet, when you can do so by tacking about, it is folly to keep to the course you have begun rather than by changing it to arrive all the same at the destination you desire: so while we all ought in the administration of the state to keep always in view the object I have very frequently mentioned, peace combined with dignity, we are not bound always to use the same language, but to fix our eyes on the same object. Wherefore, as I laid down a little while ago, if I had had as free a hand as possible in everything, I should yet have been no other than I now am in politics. When, moreover, I am at once induced to adopt these sentiments by the kindness of certain persons, and driven to do so by the injuries of others, I am quite content to think and speak about public affairs as I conceive best conduces to the interests both of myself and of the Republic. Moreover, I make this declaration the more openly and frequently, both because my brother

Quintus is Cæsar's legate, and because no word of mine, however trivial, to say nothing of any act, in support of Cæsar has ever transpired, which he has not received with such marked gratitude, as to make me look upon myself as closely bound to him. Accordingly, I have the advantage of his popularity, which you know to be very great, and his material resources, which you know to be immense, as though they were my own. Nor do I think that I could in any other way have frustrated the plots of unprincipled persons against me, unless I had now combined with those protections, which I have always possessed, the goodwill also of the men in power. I should, to the best of my belief, have followed this same line of policy even if I had had you here. For I well know the reasonableness and soberness of your judgment: I know your mind, while warmly attached to me, to be without a tinge of malevolence to others, but on the contrary as open and candid as it is great and lofty. I have seen certain persons conduct themselves towards you as you might have seen the same persons conduct themselves towards me. The same things that have annoyed me would certainly have annoyed you. But whenever I shall have the enjoyment of your presence, you will be the wise critic of all my plans: you who took thought for my safety will also do so for my dignity. Me, indeed, you will have as the partner and associate in all your actions, sentiments, wishes--in fact, in everything; nor shall I ever in all my life have any purpose so steadfastly before me, as that you should rejoice more and more warmly every day that you did me such eminent service.

As to your request that I would send you any books I have written since your departure, there are some speeches, which I will give Menocritus, not so very many, so don't be afraid! I have also written--for I am now rather withdrawing from oratory and returning to the gentler Muses, which now give me greater delight than any others, as they have done since my earliest youth--well, then, I have written in the Aristotelian style, at least that was my aim, three books in the form of a discussion in dialogue "On the Orator," which, I think, will be of some service to your Lentulus. For they differ a good deal from the current maxims, and embrace a discussion on the whole oratorical theory of the ancients, both that of Aristotle and Isocrates. I have also written in verse three books "On my own Times," which I should have sent you some time ago, if I had thought they ought to be published--for they are witnesses, and will be eternal witnesses, of your services to me and of my affection--but I refrained because I was afraid, not of those who might think themselves attacked, for I have been very sparing and gentle in that respect, but of my benefactors, of whom it were an endless task to mention the whole list. Nevertheless, the books, such as they are, if I find anyone to whom I can safely commit them, I will take care to have conveyed to you: and as far as that part of my life and conduct is concerned, I submit it entirely to your judgment. All that I shall succeed in accomplishing in literature or in learning--my old favourite relaxations--I shall with the utmost cheerfulness place before the bar of your criticism, for you have always had a fondness for such things. As to what you say in your letter about your domestic affairs, and all you charge me to do, I am so attentive to them that I don't like being reminded, can scarcely bear, indeed, to be asked without a very painful feeling. As to your saying, in regard to Quintus's business, that you could not do anything last summer, because you were prevented by illness from crossing to Cilicia, but that you will now do everything in

your power to settle it, I may tell you that the fact of the matter is that, if he can annex this property, my brother thinks that he will owe to you the consolidation of this ancestral estate. I should like you to write about all your affairs, and about the studies and training of your son Lentulus (whom I regard as mine also) as confidentially and as frequently as possible, and to believe that there never has been anyone either dearer or more congenial to another than you are to me, and that I will not only make you feel that to be the case, but will make all the world and posterity itself to the latest generation aware of it.

Appius used some time back to repeat in conversation, and afterwards said openly, even in the senate, that if he were allowed to carry a law in the _comitia curiata_, he would draw lots with his colleague for their provinces; but if no curiatian law were passed, he would make an arrangement with his colleague and succeed you: that a curiatian law was a proper thing for a consul, but was not a necessity: that since he was in possession of a province by a decree of the senate, he should have _imperium_ in virtue of the Cornelian law until such time as he entered the city. I don't know what your several connexions write to you on the subject: I understand that opinion varies. There are some who think that you can legally refuse to quit your province, because your successor is named without a curiatian law: some also hold that, even if you do quit it, you may leave some one behind you to conduct its government. For myself, I do not feel so certain about the point of law--although there is not much doubt even about that--as I do of this, that it is for your greatest honour, dignity, and independence, which I know you always value above everything, to hand over your province to a successor without any delay, especially as you cannot thwart his greediness without rousing suspicion of your own. I regard my duty as twofold--to let you know what I think, and to defend what you have done.

P.S.--I had written the above when I received your letter about the _publicani_, to whom I could not but admire the justice of your conduct. I could have wished that you had been able by some lucky chance to avoid running counter to the interests and wishes of that order, whose honour you have always promoted. For my part, I shall not cease to defend your decrees: but you know the ways of that class of men; you are aware how bitterly hostile they were to the famous Q. Scævola himself. However, I advise you to reconcile that order to yourself, or at least soften its feelings, if you can by any means do so. Though difficult, I think it is, nevertheless, not beyond the reach of your sagacity.

[Footnote 652: Cicero gives him this title, by which he had been greeted by his soldiers after some victory over the predatory tribes in Cilicia. This letter is Cicero's most elaborate apology for his change of policy in favour of the triumvirs.]

[Footnote 653: Cicero has been variously supposed to refer to C. Cato (who proposed the recall of Lentulus), to Appius the consul, and finally to Pompey. The last seems on the whole most likely, though the explanation is not without difficulties. In that case the "disclosure" will refer to Pompey's intrigues as to the restoration of Ptolemy Auletes, of which he wished to have the management.]

[Footnote 654: _I.e._, to keep in with the Optimates, who were at this time suspicious of, and hostile to Pompey.]

[Footnote 655: At the trial of Sestius.]

[Footnote 656: B.C. 59, when Vatinius proposed the law for Cæsar's five years' rule in Gaul.]

[Footnote 657: B.C. 56.]

[Footnote 658: Pompey is only speaking metaphorically. Quintus had guaranteed Cicero's support. Pompey half-jestingly speaks as though he had gone bail for him for a sum of money.]

[Footnote 659: Q. Cæcilius Metellus Numidius, expelled from the senate and banished B.C. 100 for refusing the oath to the agrarian law of Saturninus, but recalled in the following year. Cicero is fond of comparing himself with him. See Letter CXLVII.]

[Footnote 660: M. Æmilius Scaurus, consul B.C. 115 and 108, censor 109, and long _princeps senatus_. Cicero comments elsewhere on his _severitas_ (_de Off._ § 108).]

[Footnote 661: Plato, _Crit._ xii.]

[Footnote 662: Like the character in the play (Terence, _Eun._ 440), if the nobles annoyed Cicero by their attentions to P. Clodius, he would annoy them by his compliments to Publius Vatinius.]

CLIII (A IV, 18)

TO ATTICUS (IN ASIA)

ROME, OCTOBER

[Sidenote: B.C. 54, ÆT. 52]

... As it is,[663] to tell you my opinion of affairs, we must put up with it. You ask me how I have behaved. With firmness and dignity. "What about Pompey," you will say, "how did he take it?" With great consideration, and with the conviction that he must have some regard for my position, until a satisfactory atonement had been made to me. "How, then," you will say, "was the acquittal secured?" It was a case of mere dummies,[664] and incredible incompetence on the part of the accusers--that is to say, of L. Lentulus, son of Lucius, who, according to the universal murmur, acted collusively. In the next place, Pompey was extraordinarily urgent; and the jurors were a mean set of fellows. Yet, in spite of everything, there were thirty-two votes for conviction, thirty-eight for acquittal. There are the other prosecutions hanging over his head: he is by no means entirely free yet. You will say, "Well, then, how do _you_ bear it?" With the best air possible, by heaven! and I really do plume myself on my behaviour. We have lost, my dear Pomponius, not only all the healthy sap and blood of our old constitution, but even its colour and outward show. There is no Republic to

give a moment's pleasure or a feeling of security. "And is that, then," you will say, "a satisfaction to you?" Precisely that. For I recall what a fair course the state had for a short time, while I was at the helm, and what a return has been made me! It does not give me a pang that one man absorbs all power. The men to burst with envy are those who were indignant at my having had some power. There are many things which console me, without my departing an inch from my regular position; and I am returning to the life best suited to my natural disposition--to letters and the studies that I love. My labour in pleading I console by my delight in oratory. I find delight in my town house and my country residences. I do not recall the height from which I have fallen, but the humble position from which I have risen. As long as I have my brother and you with me, let those fellows be hanged, drawn, and quartered for all I care: I can play the philosopher with you. That part of my soul, in which in old times irritability had its home, has grown completely callous. I find no pleasure in anything that is not private and domestic. You will find me in a state of magnificent repose, to which nothing contributes more than the prospect of your return. For there is no one in the wide world whose feelings are so much in sympathy with my own. But now let me tell you the rest. Matters are drifting on to an _interregnum_; and there is a dictatorship in the air, in fact a good deal of talk about it, which did Gabinius also some service with timid jurors. All the candidates for the consulship are charged with bribery. You may add to them Gabinius, on whom L. Sulla had served notice, feeling certain that he was in a hopeless position--Torquatus having, without success, demanded to have the prosecution. But they will all be acquitted, and henceforth no one will be condemned for anything except homicide. This last charge is warmly pressed, and accordingly informers are busy. M. Fulvius Nobilior has been convicted. Many others have had the wit to abstain from even putting in an appearance. Is there any more news? Yes! After Gabinius's acquittal another panel of jurors, in a fit of irritation, an hour later condemned Antiochus Gabinius, some fellow from the studio of Sopolis, a freedman and orderly officer of Gabinius, under the _lex Papia_. Consequently he at once remarked, "So the Republic will not acquit me under the law of treason as it did you!"[665]

Pomptinus wants to celebrate a triumph on the 2nd of November. He is openly opposed by the prætors Cato and Servilius and the tribune Q. Mucius. For they say that no law for his _imperium_ was ever carried:[666] and this one too was carried, by heaven, in a stupid way. But Pomptinus will have the consul Appius on his side.[667] Cato, however, declares that he shall never triumph so long as he is alive. I think this affair, like many of the same sort, will come to nothing. Appius thinks of going to Cilicia without a law, and at his own expense.[668] I received a letter on the 24th of October from my brother and from Cæsar, dated from the nearest coasts of Britain on the 26th of September. Britain done with ... hostages taken ... no booty ... a tribute, however, imposed; they were on the point of bringing back the army. Q. Pilius has just set out to join Cæsar. If you have any love for me or your family, or any truth in you, or even if you have any taste left, and any idea of enjoying all your blessings, it is really time for you to be on your way home, and, in fact, almost here. I vow I cannot get on without you. And what wonder that I can't get on without _you_, when I miss Dionysius so much? The latter, in fact, as soon as the day comes, both I and my young

Cicero will demand of you. The last letter I had from you was dated Ephesus, 9th of August.

[Footnote 663: The beginning of the letter is lost, referring to the acquittal of Gabinius on a charge of _maiestas_.]

[Footnote 664: γοργεῖα γυμνά, "mere bugbears."]

[Footnote 665: Antiochus Gabinius was tried, not for treason (_maiestas_), but under the _lex Papia_, for having, though a _peregrinus_, acted as a citizen; but he says "will not acquit me of _treason_," because he means to infer that his condemnation was really in place of Gabinius, whose acquittal had irritated his jury; therefore he was practically convicted of _maiestas_ instead of his patron Gabinius. I have, accordingly, ventured to elicit the end of a hexameter from the Greek letters of the MS., of which no satisfactory account has been given, and to read _Itaque dixit statim "respublica lege maiestatis_ οὐ σοί κεν ἄρ' ἴσα μ' ἀφείη (or ἀφιῇ)." The quotation is not known. Antiochus Gabinius was doubtless of Greek origin and naturally quoted Greek poetry. Sopolis was a Greek painter living at Rome (Pliny, _N. H._ xxxv. §§ 40, 43).]

[Footnote 666: Pomptinus had been waiting outside Rome for some years to get his triumph (see p. 309). The _negant latum de imperio_ must refer to a _lex curiata_ originally conferring his _imperium_, which his opponents alleged had not been passed. The _insulse latum_ refers to the law now passed granting him the triumph in spite of this. This latter was passed by the old trick of the prætor appearing in the _campus_ before daybreak to prevent _obnuntiatio_. The result was that the tribunes interrupted the procession, which led to fighting and bloodshed (Dio, 39, 65).]

[Footnote 667: Because he wanted to go to his province himself in spite of having failed to get a _lex curiata_ (p. 324).]

[Footnote 668: _I.e._, without waiting for the senate to vote the usual outfit (_ornare provinciam_).]

CLIV (Q FR III, 5-6)

TO HIS BROTHER QUINTUS (IN GAUL)

TUSCULUM (OCTOBER)

[Sidenote: B.C. 54, ÆT. 52]

You ask me what I have done about the books which I begun to write when in my Cuman villa: I have not been idle and am not being idle now; but I have frequently changed the whole plan and arrangement of the work. I had already completed two books, in which I represented a conversation taking place on the Novendialia held in the consulship of Tuditanus and Aquilius,[669] between Africanus, shortly before his death, and Lælius, Philus, Manilius, P. Rutilius, Q. Tubero, and Lælius's sons-in-law, Fannius and Scævola; a conversation which was extended to nine days and the same

number of books "On the best Constitution of the State" and "On the best Citizen." The work was excellently composed, and the rank of the speakers added considerable weight to the style. But when these books were read to me in the presence of Sallustius at Tusculum, it was suggested to me by him that a discourse on such subjects would come with much greater force if I were myself the speaker on the Republic, especially as I was a no mere Heraclides Ponticus,[670] but an ex-consul, and one who had been engaged in the most important affairs in the state: that when I put them in the mouth of men of such ancient date they would have an air of unreality: that I had shewn good taste in my books about the science of rhetoric in keeping the dialogue of the orators apart from myself, and yet had attributed it to men whom I had personally seen: and, finally, that Aristotle delivers in the first person his essays "On the Republic" and "On the Eminent Man." I was influenced the more by this from the fact that I was unable to touch on the most important commotions in our state, because they were subsequent to the age of the speakers. Moreover, my express object then was not to offend anyone by launching into the events of my own time: as it is, I shall avoid that and at the same time be the speaker with you. Nevertheless, when I come to Rome I will send you the dialogues as they originally stood. For I fancy that those books will convince you that they have not been abandoned by me without some chagrin.

I am extremely gratified by Cæsar's affection of which you write to me. The offers which he holds out I do not much reckon on, nor have I any thirst for honours or longing for glory; and I look forward more to the continuation of his kindness than to the fulfilment of his promises. Still, I live a life so prominent and laborious that I might seem to be expecting the very thing that I deprecate. As to your request that I should compose some verses, you could hardly believe, my dear brother, how short of time I am: nor do I feel much moved in spirit to write poetry on the subject you mention. Do you really come to me for disquisitions on things that I can scarcely conceive even in imagination--you who have distanced everybody in that style of vivid and descriptive writing? Yet I would have done it if I could, but, as you will assuredly not fail to notice, for writing poetry there is need of a certain freshness of mind of which my occupations entirely deprive me. I withdraw myself, it is true, from all political anxiety and devote myself to literature; still, I will hint to you what, by heaven, I specially wished to have concealed from you. It cuts me to the heart, my dearest brother, to the heart, to think that there is no Republic, no law courts, and that my present time of life, which ought to have been in the full bloom of senatorial dignity, is distracted with the labours of the forum or eked out by private studies, and that the object on which from boyhood I had set my heart,

"Far to excel, and tower above the crowd,"[671]

is entirely gone: that my opponents have in some cases been left unattacked by me, in others even defended: that not only my sympathies, but my very dislikes, are not free: and that Cæsar is the one man in the world who has been found to love me to my heart's content, or even, as others think, the only one who was inclined to do so. However, there is none of all these vexations of such a kind as to be beyond the reach of many daily consolations; but the greatest of consolations will be our being

together. As it is, to those other sources of vexation there is added my very deep regret for your absence. If I had defended Gabinius, which Pansa thought I ought to have done, I should have been quite ruined: those who hate him--and that is entire orders--would have begun to hate me for the sake of their hatred for him. I confined myself, as I think with great dignity, to doing only that which all the world saw me do. And to sum up the whole case, I am, as you advise, devoting all my efforts to tranquillity and peace. As to the books: Tyrannio is a slow-coach: I will speak to Chrysippus, but it is a laborious business and requires a man of the utmost industry. I find it in my own case, for, though I am as diligent as possible, I get nothing done. As to the Latin books, I don't know which way to turn--they are copied and exposed for sale with such a quantity of errors! However, whatever can possibly be done I will not neglect to do. Gaius Rebilus, as I wrote to you before, is at Rome. He solemnly affirms his great obligations to you, and reports well of your health.[672] I think the question of the treasury was settled in my absence. When you speak of having finished four tragedies in sixteen days, I presume you are borrowing from some one else? And do _you_ deign to be indebted to others after writing the _Electra_, and the _Troades_? Don't be idle; and don't think the proverbial γνῶθι σεαυτόν was only meant to discourage vanity: it means also that we should be aware of our own qualities. But pray send me these tragedies as well as the _Erigona_. I have now answered your last two letters.

[Footnote 669: B.C. 129. The _Novendialia_ was a nine days' festival on the occasion of some special evil omens or prodigies; for an instance (in B.C. 202), see Livy, 30, 38. The book referred to is that "On the Republic."]

[Footnote 670: _I.e._, a mere theorist like Heraclides Ponticus, a pupil of Plato's, whose work "On Constitutions" still exists.]

[Footnote 671: Hom. _Il._ vi. 208.]

[Footnote 672: Reading _qui omnia adiurat debere tibi et te valere renuntiat_. The text, however, is corrupt.]

CLV (Q FR III, 7)

TO HIS BROTHER QUINTUS (IN GAUL)

TUSCULUM (NOVEMBER)

[Sidenote: B.C. 54, ÆT. 52]

At Rome, and especially on the Appian road as far as the temple of Mars, there is a remarkable flood. The promenade of Crassipes has been washed away, pleasure grounds, a great number of shops. There is a great sheet of water right up to the public fish-pond. That doctrine of Homer's is in full play:

"The days in autumn when in violent flood Zeus pours his waters, wroth at sinful men"--

for it falls in with the acquittal of Gabinius--

"Who wrench the law to suit their crooked ends And drive out justice, recking naught of Gods."[673]

But I have made up my mind not to care about such things. When I get back to Rome I will write and tell you my observations, and especially about the dictatorship, and I will also send a letter to Labienus and one to Ligurius. I write this before daybreak by the carved wood lamp-stand, in which I take great delight, because they tell me that you had it made when you were at Samos. Good-bye, dearest and best of brothers.

[Footnote 673: Hom. _Il._ xvi. 385.]

CLVI (F VII, 16)

TO C. TREBATIUS TESTA (IN GAUL)

ROME (NOVEMBER)

[Sidenote: B.C. 54, ÆT. 52]

In the "Trojan Horse," just at the end, you remember the words, "Too late they learn wisdom."[674] You, however, old man, were wise in time. Those first snappy letters of yours were foolish enough, and then----! I don't at all blame you for not being over-curious in regard to Britain. For the present, however, you seem to be in winter quarters somewhat short of warm clothing, and therefore not caring to stir out:

"Not here and there, but everywhere, Be wise and ware: No sharper steel can warrior bear."

If I had been by way of dining out, I would not have failed your friend Cn. Octavius; to whom, however, I did remark upon his repeated invitations, "Pray, who are you?" But, by Hercules, joking apart, he is a pretty fellow: I could have wished you had taken him with you! Let me know for certain what you are doing and whether you intend coming to Italy at all this winter. Balbus has assured me that you will be rich. Whether he speaks after the simple Roman fashion, meaning that you will be well supplied with money, or according to the Stoic dictum, that "all are rich who can enjoy the sky and the earth," I shall know hereafter. Those who come from your part accuse you of pride, because they say you won't answer men who put questions to you. However, there is one thing that will please you: they all agree in saying that there is no better lawyer than you at Samarobriva![675]

[Footnote 674: By Livius Andronicus or Nævius. Tyrrell would write the proverb _in extremo sero sapiunt_, "'tis too late to be wise at the last." There was a proverb, _sero parsimonia in fundo_, something like this, Sen. _Ep._ i. 5, from the Greek (Hes. _Op._ 369), δειλὴ δ' ἐν πυθμένι φειδώ.]

[Footnote 675: In Gallia Belgica, mod. _Amiens._]

CLVII (A IV, 17)

TO ATTICUS (ON HIS WAY TO ROME)

ROME (NOVEMBER)

[Sidenote: B.C. 54, ÆT. 52]

At last the long-expected letter from you! Back to Italy, how delightful! What wonderful fidelity to your promise! What a charming voyage! About this last, by Hercules, I was very nervous, remembering the fur wrappers of your former crossing. But, unless I am mistaken, I shall see you sooner than you say in your letter. For I believe you thought that your ladies were in Apulia, and when you find that not to be the case, what can there be to detain you there? Are you bound to give Vestorius some days, and must you go through the stale banquet of his Latin Atticism again after an interval? Nay, fly hither and visit (the remains) of that genuine Republic of ours!...[676] Observe my strength of mind and my supreme indifference to the Felician[677] one-twelfth legacy, and also, by heaven, my very gratifying connexion with Cæsar--for this delights me as the one spar left me from the present shipwreck--Cæsar, I say, who treats your and my Quintus, heavens! with what honour, respect, and favours! It is exactly as if I were the _imperator_. The choice was just lately offered him of selecting any of the winter quarters, as he writes me word. Wouldn't you be fond of such a man as that? Of which of your friends would you, if not of him? But look you! did I write you word that I was _legatus_ to Pompey, and should be outside the city from the 13th of January onwards? This appeared to me to square with many things. But why say more? I will, I think, reserve the rest till we meet, that you may, after all, have something to look forward to. My very best regards to Dionysius, for whom, indeed, I have not merely kept a place, but have even built one. In fine, to the supreme joy of your return, a finishing stroke will be added by his arrival. The day you arrive, you and your party will, I entreat you, stay with me.

[Footnote 676: There are some words here too corrupt to be translated with any confidence. They appear to convey a summary of news already written in several letters as to the bribery at the elections, the acquittal of Gabinius, and the rumour of a dictatorship.]

[Footnote 677: A legacy of a twelfth left by a certain Felix to Cicero and Quintus had been rendered null by a mistake as to the will. See the letter to Quintus, p. 338.]

CLVIII (Q FR III, 8)

TO HIS BROTHER QUINTUS (IN GAUL)

ROME (NOVEMBER)

[Sidenote: B.C. 54, ÆT. 52]

The earlier of your two letters is full of irritability and complainings, and you say you gave another of the same sort the day before to Labienus, who has not yet arrived--but I have nothing to say in answer to it, for your more recent letter has obliterated all trace of vexation from my mind. I will only give you this hint and make this request, that in the midst of your vexations and labours you should recall what our notion was as to your going to Cæsar. For our object was not the acquisition of certain small and unimportant gains. For what was there of that kind which we should have thought worth the price of our separation? What we sought was the strongest possible security for the maintenance of our entire political position by the countenance of a man of the highest character and most commanding influence. Our interest is not so much in the acquisition of sums of money, as in the realization of this hope: all else that you get is to be regarded only as a security against actual loss.[678] Wherefore, if you will frequently turn your thoughts back upon what we originally proposed to ourselves and hoped to do, you will bear with less impatience the labours of military service of which you speak and the other things which annoy you, and, nevertheless, will resign them whenever you choose. But the right moment for that step is not yet come, though it is now not far off. Farthermore, I give you this hint--don't commit anything at all to writing, the publication of which would be annoying to us. There are many things that I would rather not know than learn at some risk. I shall write at greater length to you with a mind less preoccupied, when my boy Cicero is, as I hope he will be, in a good state of health. Pray be careful to let me know to whom I should give the letter which I shall then send you--to Cæsar's letter-carriers, for him to forward them direct to you, or to those of Labienus? For where your Nervii dwell, and how far off, I have no idea.[679] I derived great pleasure from your letter describing the courage and dignity displayed (as you say) by Cæsar in his extreme sorrow. You bid me finish the poem in his honour which I had begun; and although I have been diverted from it by business, and still more by my feelings, yet, since Cæsar knows that I did begin something, I will return to my design, and will complete in these leisure days of the "supplications,"[680] during which I greatly rejoice that our friend Messalla and the rest are at last relieved from worry. In reckoning on him as certain to be consul with Domitius, you are quite in agreement with my own opinion. I will guarantee Messalla to Cæsar: but Memmius cherishes a hope, founded on Cæsar's return to Italy, in which I think he is under a mistake. He is, indeed, quite out of it here. Scaurus, again, has been long ago thrown over by Pompey. The business has been put off: the _comitia_ postponed and postponed, till we may expect an _interregnum_. The rumour of a dictator is not pleasing to the aristocrats; for myself, I like still less what they say. But the proposal, as a whole, is looked upon with alarm, and grows unpopular. Pompey says outright that he doesn't wish it: to me previously he used not personally to deny the wish. Hirrus seems likely to be the proposer. Ye gods! what folly! How in love with himself and without--a rival! He has commissioned me to choke off Cælius Vinicianus, a man much attached to me. Whether Pompey wishes it or not, it is difficult to be sure.

However, if it is Hirrus who makes the proposal, he will not convince people that he does not wish it. There is nothing else being talked about in politics just now; at any rate, nothing else is being done. The funeral of the son of Serranus Domesticus took place in very melancholy circumstances on the 23rd of November. His father delivered the funeral oration which I composed for him. Now about Milo. Pompey gives him no support, and is all for Gutta, saying also that he will secure Cæsar on his side. Milo is alarmed at this, and no wonder, and almost gives up hope if Pompey is created dictator. If he assists anyone who vetoes the dictatorship by his troop and bodyguard,[681] he fears he may excite Pompey's enmity: if he doesn't do so, he fears the proposal may be carried by force. He is preparing games on a most magnificent scale, at a cost, I assure you, that no one has ever exceeded. It is foolish, on two or even three accounts, to give games that were not demanded--he has already given a magnificent show of gladiators: he cannot afford it: he is only an executor, and might have reflected that he is now an executor, not an ædile. That is about all I had to write. Take care of yourself, dearest brother.

[Footnote 678: Cicero means, "the substantial gain to be got from your serving under Cæsar in Gaul is the securing of his protection in the future: all other gains, such as money etc., are merely to be regarded as securing you from immediate loss in thus going to Gaul: they don't add anything fresh to our position and prospects."]

[Footnote 679: Quintus had his winter quarters among the Nervii, in a town near the modern Charleroi. In this winter he was in great danger from a sudden rising of the Nervii and other tribes (Cæs. _B. G._ v. 24-49).]

[Footnote 680: Twenty days of _supplicatio_ had been decreed in honour of Cæsar's campaigns of B.C. 55 (Cæs. _B. G._ iv. 38).]

[Footnote 681: His gladiators, which he kept in training for the games he was going to give in honour of a deceased friend.]

CLIX (Q FR III, 9)

TO HIS BROTHER QUINTUS (IN GAUL)

ROME (NOVEMBER OR DECEMBER)

[Sidenote: B.C. 54, ÆT. 52]

In regard to Gabinius, I had not to carry out any of the measures which you suggested with such affectionate solicitude. "May the earth swallow me rather, etc.!"[682] I acted with very great dignity and also with the greatest consideration. I neither bore hardly on him nor helped him. I gave strong evidence, in other respects I did not stir. The disgraceful and mischievous result of the trial I bore with the utmost serenity. And this is the advantage which, after all that has happened, has accrued to me--that I am not even affected in the least by those evils in the state and the licentious conduct of the shameless, which used formerly to make me burst with indignation: for anything more abandoned than the men and the times in which we

are living there cannot be. Accordingly, as no pleasure can possibly be got from politics, I don't know why I should lose my temper. Literature and my favourite studies, along with the retirement of my country houses, and above all our two boys, furnish my enjoyments. The one man who vexes me is Milo. But I hope an end will be put to my anxieties by his getting the consulship: and to obtain this for him I shall struggle as hard as I did for my own, and you, I am sure, will continue to give assistance from over there. In his case other things are all secure, unless it is snatched from his grasp by downright violence: it is about his means that I am frightened:

"For he is now beyond all bearing mad,"[683]

to spend 1,000,000 sesterces (about £8,000) on his games. His want of prudence in this one particular I shall put up with as well as I can, and you should be strong-minded enough to do the same. In mentioning the changes to be expected next year, I didn't mean you to understand me to refer to domestic alarms: the reference was wholly to the state of the Republic, in which, though not charged with any actual duty, I can scarcely discharge myself from all anxiety. Yet how cautious I would have you be in writing you may guess from the fact that I do not mention in my letters to you even open acts of disorder in the state, lest my letter should be intercepted and give offence to the feelings of anyone. Wherefore, as far as domestic affairs are concerned, I would have you be quite easy: in politics I know how anxious you always are. I can see that our friend Messalla will be consul, if by means of an _interrex_, without any prosecution, if by that of a dictator, without danger of conviction. He is not disliked by anyone. Hortensius's warm support will stand him in good stead. Gabinius's acquittal is looked upon as a general act of indemnity. _En passant_: nothing has, after all, been done as yet about a dictatorship. Pompey is out of town; Appius is intriguing darkly; Hirrus is paving the way: there are many tribunes calculated on to veto it: the people are indifferent: the leading men disinclined to it: I don't stir a finger. I am exceedingly obliged for your promises as to slaves, and I am indeed, as you say, short-handed both at Rome and on my estates. But pray do nothing for my convenience unless it entirely suits your own, and your means. About the letter of Vatinius I laughed heartily. But though I know I am being watched by him, I can swallow his hatred and digest it too. You urge me to "finish": well, I have finished what, in my own opinion at least, is a very pretty "epic" on Cæsar, but I am in search of a trustworthy letter-carrier, lest it should share the fate of your _Erigona_[684]--the only personage who has missed a safe journey from Gaul during Cæsar's governorship.

What? because I had no good stone was I to pull down the whole building?--a building which I like better every day of my life: the lower court especially and the chambers attached to it are admirable. As to Arcanum, it is a building worthy of Cæsar, or, by heaven, of some one even more tasteful still. For your statues, _palæstra_, fish-pond, and conduit are worthy of many Philotimuses, and quite above your Diphiluses. But I will visit them personally, as well as sending men to look after them and giving orders about them. As to the will of Felix, you will complain more when you know all. For the document which he believed himself to have sealed, in

which your name was most certainly entered as heir to a twelfth, this, by a mistake of his own and of his slave Sicura, he did not seal: while the one which he did not intend to seal he did seal. But let it go hang, so long as we keep well! I am as devoted to your son Cicero as you can wish, and as he deserves, and as I am bound to be. However, I am letting him leave me, both to avoid keeping him from his teachers, and because his mother is leaving, without whom I am very much alarmed as to the boy's large appetite. Yet, after all, we see a great deal of each other. I have now answered all your letters. Dearest and best of brothers, good-bye.

[Footnote 682: _I.e._, rather than defend him. τότε μοι χάνοι (εὐρεῖα χθών), Hom. _Il._ iv. 182.]

[Footnote 683: ὁ δὲ μαίνεται οὐκ ἔτ' ἀνεκτῶς (Hom. _Il._ viii. 355). The numerals seem doubtful. According to some MSS. the amount would be 10,000,000, _i.e._, £80,000.]

[Footnote 684: The tragedy written by Quintus and lost in transit.]

CLX (F VII, 10)

TO C. TREBATIUS TESTA (IN GAUL)

ROME (NOVEMBER)

[Sidenote: B.C. 54, ÆT. 52]

I have read your letter which informs me that our Cæsar considers you a great lawyer. You must be glad to have found a country where you have the credit of knowing something. But if you had gone to Britain also, I feel sure that there would not have been in all that great island anyone more learned in the law than you. However--you won't mind my laughing, for you invited me to do so--I am becoming positively a little jealous of you! That you should have been actually sent for by a man whom other people--not because of his pride, but of his many engagements--cannot venture to approach!

But in that letter you told me nothing about your success, which, by heaven, is of no less concern to me than my own. I am very much afraid you may be frozen in your winter quarters: and therefore I think you ought to use a good stove. Mucius and Manilius "concur" in this opinion, especially on the ground of your being short of military cloaks. However, I am told that you are having a sufficiently warm time of it where you are--news which made me much alarmed for you.[685] However, in military matters you are much more cautious than at the bar, seeing that you wouldn't take a swim in the ocean, fond of swimming as you are, and wouldn't take a look at the British charioteers, though in old time I could never cheat you even out of a blind-folded gladiator.[686] But enough of joking. You know how earnestly I have written to Cæsar about you; I know how often. Yet, in truth, I have lately ceased doing so, lest I should appear to distrust the kindness of a man who has been most liberal and affectionate to me. However, in the very last letter I wrote I thought he

ought to be reminded. I did so. Please tell me what effect it had, and at the same time tell me about your position in general and all your plans. For I am anxious to know what you are doing, what you are expecting, how long your separation from us you think is to last. I would wish you to believe that the one consolation, enabling me to bear your absence, is the knowledge that it is for your advantage. But if that is not so, nothing can be more foolish than both the one and the other of us: me for not inducing you to come back to Rome--you for not flying thither. By heavens, our conversation, whether serious or jesting, will be worth more not only than the enemy, but even than our "brothers" the Hædui.[687] Wherefore let me know about everything as soon as possible:

"I'll be some use by comfort, rede, or pelf."[688]

[Footnote 685: He seems to refer to the rising of the Nervii against the Roman winter quarters (Cæs. _B. G._ v. 39 _seq_).]

[Footnote 686: _Andabatam_, a gladiator with a closed helmet covering the face, who thus fought without seeing his adversary.]

[Footnote 687: A title granted to the Hædui by the senate (Cæs. _B. G._ i. 33; Tac. _Ann._ xi. 25).]

[Footnote 688: Terence, _Heautont_. 86.]

CLXI (F I, 10)

TO L. VALERIUS (IN CILICIA)

ROME

[Sidenote: B.C. 54, ÆT. 52]

M. Cicero wishes heath to L. Valerius, learned in the law. For why I should not pay you this compliment I don't know, especially considering that in these times one may employ impudence to supply the place of learning. I have written to our friend Lentulus, thanking him earnestly in your name. But I could wish that you would now cease using my letter of introduction and at last come back to us, and prefer a city where you are of some account, to a place where you appear to be the only man of legal learning. However, those who come from where you are either say you are proud because you give no "opinions," or insulting because you give bad ones.[689] But I am now longing to crack a joke with you face to face. So come as soon as ever you can, and don't go and visit your native Apulia, that we may have the joy of welcoming your safe return. For if you go there, like another Ulysses, you will not recognize any of your friends.[690]

[Footnote 689: Cicero perhaps means that Valerius's "opinions" are too right to suit such a set as are to be found in the province. Valerius will not mind people there thinking him a bad lawyer. "At Rome you are considered a good lawyer, in Cilicia they don't think so!"]

[Footnote 690: _Cognosces tuorum neminem._. Others read _cognoscere tuorum nemini_, "you will not be recognized by any of your friends," which agrees better with Homer's account of the return of Ulysses. But perhaps the exact comparison is not to be pressed.]

CLXII (F XIII, 49)

TO M. CURIUS (A PROCONSUL)

ROME

[Sidenote: B.C. 54, ÆT. 52]

Q. Pompeius, son of Sextus, has become my intimate friend from many causes of long standing. As he has often in the past been accustomed to defend his material interests, as well as his reputation and influence, by my recommendations, so on the present occasion assuredly, with you as governor of the province, he ought to be able to feel that he has never had a warmer recommendation to anyone. Wherefore I beg you with more than ordinary earnestness that, as you ought in view of our close friendship to regard all my friends as your own, you would give the bearer so high a place in your regard, that he may feel that nothing could have been more to his interest and honour than my recommendation. Farewell.

CLXIII (F XIII, 60)

TO C. MUNATIUS (IN A PROVINCE)

ROME

[Sidenote: B.C. 54, ÆT. 52]

L. Livineius Trypho is to begin with a freedman of my most intimate friend L. Regulus (whose disaster makes me more than ever anxious to do him some service--for as far as feeling goes I could not be warmer): but I also am attached to his freedman on his own account, for he shewed me very great kindness at that time in my career, when I was best able to see men's real goodwill and fidelity. I recommend him to you with all the warmth that one who is grateful and not oblivious should use in recommending those who have done him good service. You will have greatly gratified me if he is made to feel that in confronting many dangers for my security, and often undertaking voyages in the depths of winter, he has also put you under an obligation in view of your kind feeling towards me.

CLXIV (F XIII, 73)

TO Q. PHILIPPUS (PROCONSUL OF ASIA)

ROME

[Sidenote: B.C. 54, ÆT. 52]

I congratulate you on your safe return to your family from your province, without loss to your reputation or to the state. But if I had seen you at Rome I should also have thanked you for having looked after L. Egnatius, my most intimate friend, who is still absent, and L. Oppius, who is here. With Antipater of Derbe I have become not merely on visiting terms, but really very intimate. I have been told that you are exceedingly angry with him, and I was very sorry to hear it. I have no means of judging the merits of the case, only I am persuaded that a man of your character has done nothing without good reason. However, I do beg of you again and again that, in consideration of our old friendship, you will, for my sake if for anyone's, grant his sons, who are in your power, their liberty, unless you consider that in doing so your reputation may be injured. If I had thought that, I would never have made the request, for your fame is of more importance in my eyes than any friendship with him. But I persuade myself--though I may possibly be mistaken--that this measure will bring you honour rather than abuse. What can be done in the matter, and what you _can_ do for my sake (for as to your willingness I feel no doubt), I should be obliged by your informing me, if it is not too much trouble to you.

CLXV (F II, 1)

[Sidenote: B.C. 53, Coss., M. Domitius Calvinus, M. Valerius Messalla.]

This was the year in which Crassus was defeated and killed in Parthia, making thus the first break in the triumvirate, when already the ties between Pompey and Cæsar were weakened by the death of Iulia in the previous year. Cæsar, however, had been in great difficulties in Gaul. At the end of the previous year a fresh rising of the Nervii destroyed a Roman legion and put Q. Cicero in great danger. In the present year Quintus met with his disaster at the hands of the Sigambri. The chief event to Cicero personally was his election into the college of augurs, in place of the younger Crassus. Atticus appears to be in Rome, for there are no letters to him. There was a series of _interregna_ this year owing to partisan conflicts, lasting till July, and when the consuls were at length appointed, they failed to hold the elections for B.C. 52.

TO C. SCRIBONIUS CURIO[691] (IN ASIA)

ROME (JANUARY OR FEBRUARY)

[Sidenote: B.C. 53, ÆT. 53]

Though I am sorry that you have suspected me of neglect, yet it was not so annoying to me to have my lack of attention found fault with, as delightful to have it missed by you; especially as in the particular point on which you accuse me I happen

to be innocent, while in shewing that you miss a letter from me, you avow an affection for me, of which, indeed, I was fully aware, but which, nevertheless, is very soothing and gratifying to my feelings. The fact is that I have never let anyone go, so long, that is, as I thought him likely to reach you, without giving him a letter. Why, was there ever such an untiring correspondent as I? From you, however, I have received two, or at the most three letters--and those extremely brief. Wherefore, if you are a harsh judge of me, I shall find you guilty on precisely the same charge. But if you don't want me to do that, you will have to be considerate to me. However, enough about writing; for I am not afraid of failing to satiate you with my correspondence, especially if you shew a just appreciation of my zeal in that department. I have been grieved on the one hand at your long absence from us, because I have lost the advantage of a most delightful intimacy; and yet on the other hand I rejoice at it, because while on this foreign service you have gained all your objects with infinite credit to yourself, and because in all you have undertaken fortune has answered to my wishes. There is one injunction, a very short one, which my unspeakable affection for you compels me to give you. Such lofty expectations are entertained of your spirit, shall I say? or of your ability, that I cannot refrain from imploring and beseeching you to return to us with a character so finished, as to be able to support and maintain the expectations which you have excited. And since no loss of memory will ever obliterate my recollection of your services to me, I beg you not to forget that, whatever increase of fortune or position may befall you, you would not have been able to attain it, had you not as a boy obeyed my most faithful and affectionate counsels.[692] Wherefore it will be your duty to shew me such affection, that my age--now on the decline--may find repose in your devotion and youth.

[Footnote 691: The younger Curio was now quæstor to C. Clodius, brother of Publius and Appius, in Asia. He was tribune in B.C. 50, when he suddenly changed sides and joined Cæsar, who purchased his adhesion by paying his immense debts.]

[Footnote 692: Curio had supported Cicero against Clodius, and had worked for his recall. He seems to have attended at Cicero's house for the study of rhetoric or legal practice, as was the fashion for young men to do. He presently married Fulvia, the widow of Clodius, who after his death in Africa (B.C. 48) married Antony.]

CLXVI (F VII, 11)

TO C. TREBATIUS TESTA (IN GAUL)

ROME (JANUARY OR FEBRUARY)

[Sidenote: B.C. 53, ÆT. 53]

If you had not left Rome before, you certainly would have left it now. For who wants a lawyer when there are so many _interregna_? I shall advise all defendants in civil suits to ask each _interrex_ for two adjournments for obtaining legal assistance.[693] Do you think that I have taken a pretty good hint from you as to civil procedure? But come! How are you? What is happening? For I notice in your letter a

tendency to be even jocose. These are better signs than the _signa_ in my Tusculan villa.[694] But I want to know what it means. You say, indeed, that you are consulted by Cæsar, but I should have preferred his consulting _for_ you. If that is taking place, or you think it likely to take place, by all means persevere in your military service and stay on: I shall console myself for my loss of you by the hope that it will be your gain: but if, on the other hand, things are not paying with you, come back to us. For either something will turn up sooner or later here, or, if not, one conversation between you and me, by heaven, will be worth more than all the Samobrivæ[695] in the world. Finally, if you return speedily, there will be no talk about it; but if you stay away much longer without getting anything, I am in terror not only of Laberius, but of our comrade Valerius also. For it would make a capital character for a farce--a British lawyer![696] I am not laughing though you may laugh, but, as usual, when writing to you, I jest on the most serious subject. Joking apart, I advise you in the most friendly spirit, that if you hold a position for yourself worthy of my introduction, you should put up with the loss of my society and farther your own career and wealth: but if things are stagnant with you there, come back to us. In spite of everything you will get all you want, by your own good qualities certainly, but also by my extreme affection for you.

[Footnote 693: The _interregna_ lasting this year till July. No legal business could be done, as the law courts were closed during an _interregnum_. But Cicero jestingly says that he advises clients to apply to each _interrex_ (who only held office for five days) for two adjournments, whereby he would get his case postponed indefinitely: for if each adjournment was to the third day, the two would cover each _interregnum_. Of course he is only jesting, for in any case the cause would not come on.]

[Footnote 694: There is a play on the double meaning of _signa_, "signs" and "statues." Cicero did not like the statues in his Tusculanum. See Letter CXXV.]

[Footnote 695: Samobriva (Amiens), where Trebatius was, or had been, in Cæsar's camp. Cæsar spells it Samarobriva.]

[Footnote 696: Laberius is a rival jurisconsult, Valerius a writer of mimes. Though Cicero jests at the supposed comic character, "a lawyer in Britain" (as we might say, "a lawyer among the Zulus"), it does not appear that Trebatius went to Britain with Cæsar.]

CLXVII (F II, 2)

TO C. SCRIBONIUS CURIO (IN ASIA)

ROME (? FEBRUARY)

[Sidenote: B.C. 53, ÆT. 53]

I have been deprived of a strong witness to my extreme affection for you in the person of your most illustrious father: who would have been fortunate above the

common lot, both in his own memorable achievements and in the possession of such a son as yourself, had it been granted him to see you before his departure from life. But I hope our friendship stands in no need of witnesses. Heaven bless your inheritance to you! You will at least have in me one to whom you are as dear and as precious as you have been to your father.

CLXVIII (F II, 3)

TO C. SCRIBONIUS CURIO (IN ASIA)

ROME (? FEBRUARY)

[Sidenote: B.C. 53, ÆT. 53]

Rupa[697] was not backward in his wish to promise an exhibition of gladiators in your name, but neither I nor any of your friends approved of anything being done in your absence which would tie your hands when you returned. For my part, I will either write you my opinion at greater length later on, or, to give you no opportunity of preparing an answer to it, I will take you unprepared and state my view by word of mouth against yours. I shall thus either bring you over to my opinion, or at least leave in your mind a record of my view, so that, if at any time (which heaven forbid!) you may see cause to repent of your decision, you may be able to recall mine. Briefly, be assured that your return will find the state of things to be such, that you may gain the highest possible honours in the state more easily by the advantages with which you are endowed by nature, study, and fortune, than by gladiatorial exhibitions. The power of giving such things stirs no feeling of admiration in anyone; for it is wholly a question of means, and not of character; and there is nobody who is not by this time sick and tired of them. But I am not acting as I said I would do, for I am embarking on a statement of the reasons for my opinion. So I will put off this entire discussion to your arrival. Believe me, you are expected with the greatest interest, and hopes are entertained of you such as can only be entertained of the highest virtue and ability. If you are as prepared for this as you ought to be--and I feel certain you are--you will be bestowing on us, your friends, on the whole body of your fellow citizens, and on the entire state, the most numerous and most excellent of exhibitions. You will certainly become aware that no one can be dearer or more precious than you are to me.

[Footnote 697: A freedman and agent of Curio's. The question is of funeral games and an exhibition of gladiators in honour of Curio's father. Curio gave them, and involved himself in huge debt in consequence.]

CLXIX (F VII, 12)

TO C. TREBATIUS TESTA (IN GAUL)

ROME (? FEBRUARY)

[Sidenote: B.C. 53, ÆT. 53]

I was wondering what had made you cease writing to me. My friend Pansa[698] has informed me that you have become an Epicurean! What a wonderful camp yours must be! What would you have done if I had sent you to Tarentum[699] instead of Samobriva? I was already a little doubtful about you, when I found you supporting the same doctrine as my friend Selius![700] But on what ground will you support the principles of civil law, if you act always in your own interest and not in that of your fellow citizens? What, too, is to become of the legal formula in cases of trust, "as should be done among honest men"? For who can be called honest who does nothing except on his own behalf? What principle will you lay down "in dividing a common property," when nothing can be "common" among men who measure all things by their own pleasure?[701] How, again, can you ever think it right to swear by _Iupiter lapis_, when you know that Iupiter cannot be angry with anyone?[702] What is to become of the people of Ulubræ,[703] if you have decided that it is not right to take part in civic business? Wherefore, if you are really and truly a pervert from our faith, I am much annoyed; but if you merely find it convenient to humour Pansa, I forgive you. Only _do_ write and tell us how you are, and what you want me to do or to look after for you.

[Footnote 698: C. Vibius Pansa had been in Gaul, and was now home to stand for the tribuneship, which he obtained for B.C. 52-51.]

[Footnote 699: Where he would have been in luxury.]

[Footnote 700: A follower of the new academy, with which Cicero was more in sympathy than with the Epicurean ethics, but apparently only partly so. The leading doctrine was the denial of the possibility of knowledge, and, applied to ethics, this might destroy all virtue.]

[Footnote 701: All these jesting objections to a lawyer being an Epicurean are founded on the Epicurean doctrine that individual feeling is the standard of morals, and the _summum bonum_ is the good of the individual. The logical deduction that a man should therefore hold aloof from politics and social life, as involving social obligations and standards, was, of course, evaded in practice.]

[Footnote 702: For the Epicureans believed the gods to exist, but not to trouble themselves with the affairs of men. In taking an oath by _Iupiter lapis_ the swearer took a stone in his hand and said, "If I abide by this oath may he bless me: but if I do otherwise in thought or deed, may all others be kept safe, each in his own country, under his own laws, in enjoyment of his own goods, household gods, and tombs--may I alone be cast out, even as this stone is now." Then he throws down the stone. This passage from Polybius (iii. 25) refers to treaties, but the same form seems to have been used in suits about land.]

[Footnote 703: Ulubræ--like other _municipia_--had a _patronus_ at Rome to look after its interests. If Trebatius (who was its _patronus_) would take no part in politics, he would be of no use to the Ulubrani. πολιτεύεσθαι, "to act as a citizen," "to act as a member of a political body."]

CLXX (F VII, 13)

TO C. TREBATIUS TESTA (IN GAUL)

ROME, 4 MARCH

[Sidenote: B.C. 53, ÆT. 53]

Did you suppose me to be so unjust as to be angry with you from the idea that you were not sufficiently persevering and were too eager to return, and do you think that that is the reason of my long silence? I was certainly annoyed by the uneasiness of your spirits, which your first letters conveyed to me; but there was absolutely no other reason for the interruption of my own, except my complete ignorance of your address. Are you still, at this time of day, finding fault with me, and do you refuse to accept my apology? Just listen to me, my dear Testa! Is it money that is making you prouder, or the fact that your commander-in-chief consults you? May I die if I don't believe that such is your vanity that you would rather be consulted by Cæsar than gilded[704] by him! But if both reasons are true, who will be able to put up with you except myself, who can put up with anything? But to return to our subject--I am exceedingly glad that you are content to be where you are, and as your former state of mind was vexatious, so your present is gratifying, to me. I am only afraid that your special profession may be of little advantage to you: for, as I am told, in your present abode

"They lay no claim by joining lawful hands, But challenge right with steel."[705]

But you are not wont[706] to be called in to assist at a "forcible entry." Nor have you any reason to be afraid of the usual proviso in the injunction, "into which you have not previously made entry by force and armed men," for I am well assured that you are not a man of violence. But to give you some hint as to what you lawyers call "securities," I opine that you should avoid the Treviri; I hear they are real _tresviri capitales_--deadly customers: I should have preferred their being _tresviri_ of the mint![707] But a truce to jesting for the present. Pray write to me in the fullest detail of all that concerns you.

4 March.

[Footnote 704:

"I will make fast the doors and _gild_ myself With some more ducats."--SHAKESPEARE..]

[Footnote 705: Ennius, _Ann._ 275. The phrase _manum consertum_ in legal language meant to make a joint claim by the symbolical act of each claimant laying a hand on the property (or some representation of it) in court. But it also meant "to join hands in war." Hence its equivocal use in this passage. _Consertum_ is a supine, and some such word as _eunt_ must be understood before it.]

[Footnote 706: Reading _at tu non soles_. I cannot explain Prof. Tyrrell's reading _et tu soles_ in connexion with what follows.]

[Footnote 707: This elaborate joke is founded on a pun upon the name of the Gallic _Treviri_ and the commissioners in Rome: (1) the _III viri capitales_, who had charge of prisons, executions, etc.; (2) the _III viri auro argento æri flando feriundo_, "the commissioners for coining gold, silver, and bronze." Also there is a reference to the meaning of _capitalis_, "deadly," "affecting the life or citizenship."]

CLXXI (F VII, 14)

TO C. TREBATIUS TESTA (IN GAUL)

ROME (? MARCH)

[Sidenote: B.C. 53, ÆT. 53]

Chrysippus Vettius, a freedman of the architect Cyrus, made me think that you had not quite forgotten me; for he has brought me a greeting in your words. You have grown a mighty fine gentleman, that you can't take the trouble of writing a letter to me--a man, I might almost say, of your own family! But if you have forgotten how to write, all the fewer clients will lose their causes by having you as their advocate! If you have forgotten me, I will take the trouble of paying you a visit where you are, before I have quite faded out of your mind. If it is a terror of the summer camp that is disheartening you, think of some excuse to get off, as you did in the case of Britain. I was glad to hear one thing from that same Chrysippus, that you were on friendly terms with Cæsar. But, by Hercules, I should have preferred, as I might fairly have expected, to be informed of your fortunes as frequently as possible from your own letters. And this would certainly have been the case, if you had been more forward to learn the laws of friendship than of suits in court. But this is all jest in your own vein, and to some degree in mine also. I love you very dearly, and I both wish to be loved by you and feel certain that I am.

CLXXII (F VII, 18)

TO C. TREBATIUS TESTA (IN GAUL)

A VILLA IN THE AGER POMPTINUS, 8 APRIL

[Sidenote: B.C. 53, ÆT. 53]

I have received several letters from you at the same time, written at various times, in which everything else gave me great pleasure; for they shewed that you were now sustaining your military service with a brave spirit, and were a gallant and resolute man. These are qualities which for a short time I felt to be lacking in you, though I attributed your uneasiness not so much to any weakness of your own spirit, as to your

feeling your absence from us. Therefore go on as you have begun: endure your service with a stout heart: believe me, the advantages you will gain are many; for I will reiterate my recommendation of you, though I shall wait for the right moment of doing so. Be assured that you are not more anxious that your separation from me should be as profitable as possible to yourself than I am. Accordingly, as your "securities" are somewhat weak, I have sent you one in my poor Greek, written by my own hand.[708] For your part, I should wish you to keep me informed of the course of the war in Gaul: for the less warlike my informant, the more inclined I am to believe him.

But to return to your letters. Everything else (as I said) is prettily written, but I do wonder at this: who in the world sends several identical letters, when he writes them with his own hand? For your writing on paper that has been used before, I commend your economy: but I can't help wondering what it was that you preferred to rub out of this bit of paper rather than not write such poor stuff as this--unless it were, perhaps, some of your legal formulas. For I don't suppose you rub out my letters to replace them with your own. Can it mean that there is no business going on, that you are out of work, that you haven't even a supply of paper? Well, that is entirely your own fault, for taking your modesty abroad with you instead of leaving it behind here with us. I will commend you to Balbus, when he starts to join you, in the good old Roman style. Don't be astonished if there is a somewhat longer interval than usual between my letters: for I intend being out of town in April. I write this letter in the Pomptine district, having put up at the villa of M. Æmilius Philemo, from which I could hear the noise of my clients, I mean those you confided to me! For at Ulubræ it is certain that an enormous mass of frogs have bestirred themselves to do me honour. Take care of your health.[709]

8 April, from the Ager Pomptinus.

P.S.--Your letter which I received from L. Arruntius I have torn up, though it didn't deserve it; for it had nothing in it which might not have been safely read in a public meeting. But not only did Arruntius say that such were your orders, but you had appended a similar injunction to your letter. Well, be it so! I am surprised at your not having written anything to me since, especially as you are in the midst of such stirring events.[710]

[Footnote 708: _Græculam tibi misi cautionem chirographi mei._ Various interpretations have been given to this: (1) "a truly Greek security," _i.e._, "not to be depended on"; (2) referring to a poem in Greek, perhaps the one in praise of Cæsar's achievements, mentioned before (p. 338), in which some compliment to Trebatius was introduced; (3) Prof. Tyrrell would make it refer to this letter itself, which he supposes to have been written in Greek, and afterwards translated by Tiro. But this letter does not read like a translation, and, after all, is not of a nature to shew as a "commendation." It is conceived in too jocular a vein. I have taken it to refer to some inclosure written in Greek which he might use in this way, and the mention of his "own handwriting" to refer to the fact that he would naturally have employed a Greek secretary to write Greek. The diminutive _Græculam_ I take to be apologetic for the Greek. But it is not at all certain.]

[Footnote 709: On his journey along the _via Appia_ to one of his seaside villas Cicero has put up at a friend's house (a freedman of Lepidus), near the Pomptine marshes, as was his wont (_Att._ vii. 5). It was near Ulubræ, of which he was deputy _patronus_ in the absence of Trebatius, and he jestingly pretends that the frogs which he hears croaking in the marshes are frogs of Ulubræ turning out to do him honour, as though they were the citizens of the town. Ulubræ was a very dull and decaying town.]

[Footnote 710: The great rising in Gaul in B.C. S4-53, and the second expedition across the Rhine.]

CLXXIII (F VII, 15)

TO C. TREBATIUS TESTA (IN GAUL)

ROME

[Sidenote: B.C. 53, ÆT. 53]

How wayward people are who love may be gathered from this: I was formerly annoyed that you were discontented at being where you are: now, on the contrary, it stings me to the heart that you write that you are quite happy there. For I did not like your not being pleased at my recommendation, and now I am vexed that you can find anything pleasant without me. But, after all, I prefer enduring your absence to your not getting what I hope for you. However, I cannot say how pleased I am that you have become intimate with that most delightful man and excellent scholar, C. Matius.[711] Do your best to make him as fond of you as possible. Believe me, you can bring nothing home from your province that will give you greater pleasure. Take care of your health.

CLXXIV (F II, 4)

TO C. SCRIBONIUS CURIO (IN ASIA)

ROME (? MAY)

[Sidenote: B.C. 53, ÆT. 53]

You are aware that letters are of many kinds; but there is one kind which is undeniable, for the sake of which, indeed, the thing was invented, namely, to inform the absent of anything that is to the interest of the writer or recipient that they should know. You, however, certainly don't expect a letter of that kind from me. For of your domestic concerns you have members of your family both to write and to act as messengers. Besides, in my personal affairs there is really nothing new. There are two other kinds of letters which give me great pleasure: the familiar and sportive, and the grave and serious. Which of these two I ought least to employ I do not

understand. Am I to jest with you by letter? Upon my word, I don't think the man a good citizen who could laugh in times like these. Shall I write in a more serious style? What could be written of seriously by Cicero to Curio except public affairs? And yet, under this head, my position is such that I neither dare write what I think, nor choose to write what I don't think. Wherefore, since I have no subject left to write about, I will employ my customary phrase, and exhort you to the pursuit of the noblest glory. For you have a dangerous rival already in the field, and fully prepared, in the extraordinary expectation formed of you; and this rival you will vanquish with the greatest ease, only on one condition--that you make up your mind to put out your full strength in the cultivation of those qualities, by which the noble actions are accomplished, upon the glory of which you have set your heart. In support of this sentiment I would have written at greater length had not I felt certain that you were sufficiently alive to it of your own accord; and I have touched upon it even thus far, not in order to fire your ambition, but to testify my affection.

[Footnote 711: The friendship between Trebatius and Matius remained as long as we know anything about them. Cicero afterwards acknowledges (_F._ ii. 27) the great services Matius had done him with Cæsar, to whom Matius remained attached to the end.]

CLXXV (F II, 5)

TO C. SCRIBONIUS CURIO (ON HIS WAY FROM ASIA)

ROME (? JUNE)

[Sidenote: B.C. 53, ÆT. 53]

The state of business here I dare not tell even in a letter. And though, wherever you are, as I have told you before, you are in the same boat, yet I congratulate you on your absence, as well because you don't see what we see, as because your reputation is placed on a lofty and conspicuous pinnacle in the sight of multitudes both of citizens and allies; and it is conveyed to us by neither obscure nor uncertain talk, but by the loud and unanimous voice of all. There is one thing of which I cannot feel certain--whether to congratulate you, or to be alarmed for you on account of the surprising expectation entertained of your return; not because I am at all afraid of your not satisfying the world's opinion, but, by heaven, lest, when you do come, there may be nothing for you to preserve: so universal is the decline and almost extinction of all our institutions. But even thus much I am afraid I have been rash to trust to a letter: wherefore you shall learn the rest from others.[712] However, whether you have still some hope of the Republic, or have given it up in despair, see that you have ready, rehearsed and thought out in your mind, all that the citizen and the man should have at his command who is destined to restore to its ancient dignity and freedom a state crushed and overwhelmed by evil times and profligate morals.

[Footnote 712: In these vague though ominous sentences Cicero is referring to the constant and violent hindrances to the election of magistrates, that is, to the orderly

working of the constitution, which were occurring. No consuls were elected till September.]

CLXXVI (F II, 6)

TO C. SCRIBONIUS CURIO (ARRIVED IN ITALY)

ROME (? JULY)

[Sidenote: B.C. 53, ÆT. 53]

News had not yet reached me of your arrival in Italy when I sent Sext. Villius, an intimate of my friend Milo, with this letter to you. But nevertheless, since your arrival was thought to be approaching, and it was ascertained that you had already started from Asia Rome-wards, the importance of my subject made me dismiss any fear of being premature in sending you this letter, for I was exceedingly anxious that it should reach you as soon as possible. If the obligations, Curio, had only been on your side, and as great as they are usually proclaimed by you rather than as valued by me, I should have been more shy of coming to you for any request of importance which I might have to make. For it is very disagreeable to a modest man to ask a great favour from one whom he thinks under an obligation to himself, lest he should seem rather to demand than to ask what he is seeking, and to regard it more in the light of a debt than of a favour. But since your kindnesses to me were known to the whole world, or rather I should say were made especially prominent and valuable by the very novelty of my circumstances; and since it is the mark of a generous heart to be willing, when much is owed, to reckon the debt at its highest; I did not hesitate to prefer to you by letter a petition for what was of the highest importance and most vital consequence to me of anything in the world. For I was not afraid of being unable to support your kindnesses to me, even though they were beyond calculation: especially as I felt confident that there was no amount of favour for which my heart was incapable of finding room when receiving it, or for which in repayment it could not make a full and brilliant return. I have concentrated and embarked all my zeal, all my efforts, all the care and industry of which I am capable, my every thought, in fact, my whole heart and soul, on securing Milo's consulship; and I have made up my mind that in this matter I ought to look not merely for the profit arising from an act of kindness, but also for the credit of disinterested affection. Nor do I think that anyone was ever so anxious about his own personal safety and his own fortunes as I am for his election, on which I have made up my mind that all my interests depend. To him I see clearly that, if you choose, you can render such substantial help that we need ask for nothing else. We have on our side all these advantages: the favour of the loyalists won since his tribunate on account of his supporting me (as I hope you understand); that of the common multitude on account of the splendour of his gladiatorial exhibitions and the liberality of his disposition; the favour of the young men and of those influential in securing votes, won by his own eminent powers of captivation, shall I call it? or his diligence in that department; lastly, my own electoral support, which, if it is not very

powerful, is at any rate regarded as only right, due and proper, and on that account is perhaps influential also. What we want is a leader, and what I may call a controller, or, so to speak, a pilot of those winds which I have described: and if we had to select one such out of the whole world, we should have no one to compare with you. Wherefore, if (as I am sure you can) you can regard me as a grateful, as an honest man, from the mere fact that I am thus eagerly exerting myself for Milo, if, in fine, you think me worthy of your kindness, I do ask you this favour--that you come to the rescue of this anxiety of mine and this crisis in my reputation, or, to put it with greater truth, that you will devote your zeal to what is all but a question of life and death to me. As to Titus Annius[713] himself, I promise you this much--that if you resolve to embrace his cause, you will never have anyone of greater spirit, solidity, firmness, or affection to yourself. While to me you will have given so much additional honour and prestige, that I shall have no difficulty in acknowledging you to have been as effective in supporting my reputation as you were in securing my safety.

Did I not know that you must be fully aware, while writing this letter to you, under what a weight of obligation I am labouring, how strongly I am bound to work in this election for Milo, not only with every kind of exertion, but even with downright fighting, I should have written at greater length. As it is, I hand over and commit the business, the cause, and myself wholly and entirely into your hands. Of one thing be sure: if I obtain this help from you, I shall owe you almost more than I owe Milo himself; for my personal safety, in which I have been conspicuously aided by him, has not been as dear to me as the sacred duty of returning the favour will be delightful. That object I feel confident that your aid, and yours alone, will enable me to secure.

[Footnote 713: Milo. His full name is T. Annius Milo Papianus; originally of the _gens Papia_, he had been adopted by his maternal grandfather, T. Annius.]

CLXXVII (F XIII, 75)

TO TITUS TITIUS, A LEGATUS[714]

ROME

[Sidenote: B.C. 53, ÆT. 53]

Though I have no doubt that my first introduction retains its full value in your eyes, I yet yield to the request of a man with whom I am very intimate, C. Avianius Flaccus, for whose sake I not only desire, but am in duty bound to secure every possible favour. In regard to him I both spoke earnestly to you in a personal interview--on which occasion you answered me with the greatest kindness--and have written with full particulars to you on a previous occasion; but he thinks it to his interest that I should write to you as often as possible. Wherefore I would have you pardon me if, in compliance with his wishes, I shall appear to be at all forgetful of the stability of your character. What I beg of you is this--that you would accommodate Avianius as to the place and time for landing his corn: for which he obtained by my influence a three years' licence whilst Pompey was at the head of that business. The chief thing is--and

you can therein lay me under the greatest obligation--that you should have convinced Avianius that I enjoy your affection, since he thinks himself secure of mine. You will greatly oblige me by doing this.

[Footnote 714: Pompey was _præfectus annonæ_ B.C. 57-52. As such he had a number of _legati_, of whom this Titus Titius was one; but there is nothing to shew in which of the corn-supplying countries he was employed. Avianius is a corn merchant, and wants concessions as to the importation of his cargoes.]

CLXXVIII (F V, 17)

[Sidenote: B.C. 52. Coss., from V. Kal, Mart., Cn. Pompeius Magnus (alone); from 1st August, with Q. Metellus Scipio.]

This year again, owing to the riots in the previous year excited by Clodius to prevent the election of Milo, began with a series of _interregna_ lasting nearly three months, January, February, and the intercalary month. On the 17th of January Clodius was killed near Bovillæ by Milo's servants, and by his order. Riots followed in Rome, the body was burnt in the Curia, which caught fire and was destroyed. Cicero undertook Milo's defence under a new law _de vi_ brought in by Pompey, but broke down, and Milo was condemned (April). Later in the year he successfully prosecuted T. Munatius Plancus Bursa, who as tribune had promoted the riots after the death of Clodius, and who had also supported the plan of making Pompey dictator.

TO P. SITTIUS[715] (IN EXILE)

ROME

[Sidenote: B.C. 52, ÆT. 54]

It was not because I had forgotten our friendship, or had any intention of breaking off my correspondence, that I have not written to you of late years. The reason is that the earlier part of them was a period of depression owing to the disaster which had befallen the Republic and myself, while the later period, with your own most distressing and undeserved misfortune, has made me reluctant to write. Since, however, a sufficiently long period has now elapsed, and I have recalled with greater distinctness your high character and lofty courage, I thought it not inconsistent with my purposes to write this to you. For my part, my dear P. Sittius, I defended you originally, when an attempt was made in your absence to bring you into odium and under a criminal charge; and when a charge against you was involved in the accusation and trial of your most intimate friend,[716] I took the very greatest care to safeguard your position and justify you. And, again also, on this last occasion, soon after my return to Rome, though I found that your case had been put on a footing far different from what I should have advised, if I had been there, still I omitted nothing that could contribute to your security. And though on that occasion the ill-feeling arising from the price of corn, the hostility of certain persons, not only to yourself, but to all your friends as well, the unfairness of the whole trial, and many other

abuses in the state, had greater influence than the merits of your case or than truth itself, I yet did not fail to serve your son Publius with active assistance, advice, personal influence, and direct testimony. Wherefore, as I have carefully and religiously fulfilled all the other offices of friendship, I thought I ought not to omit that of urging upon you and beseeching you to remember that you are a human being and a gallant man--that is, that you should bear philosophically accidents which are common to all and incalculable, which none of us mortals can shun or forestall by any means whatever: should confront with courage such grief as fortune brings: and should reflect that not in our state alone, but in all others that have acquired an empire, such disasters have in many instances befallen the bravest and best from unjust verdicts. Oh that I were writing untruly when I say, that you are exiled from a state in which no man of foresight can find anything to give him pleasure! As for your son, again, I fear that, if I write nothing to you, I may seem not to have borne testimony to his high qualities as they deserve; while on the other hand, if I write fully all I feel, I fear that my letter may irritate the smart of your regret. But, after all, your wisest course will be to regard his loyalty, virtue, and steady conduct as being in your possession, and as accompanying you wherever you may be: for, in truth, what we embrace in imagination is no less ours than what we see before our eyes. Wherefore not only ought his brilliant qualities and extreme affection for you afford you great consolation, but so also ought I and others of your friends who value you, and always will do so, not for your position, but your worth; and so, above all else, ought your own conscience, when you reflect that you have not deserved anything that has befallen you, and when you consider besides that the wise are distressed by guilt, not by mischance--by their own ill-doing, not by the misconduct of others. For my part, I shall omit no opportunity either of consoling or alleviating your present position; for the recollection of our old friendship, and the high character and respectful attentions of your son, will keep me in mind of that duty. If you, on your part, will mention by letter anything you want, I will take care that you shall not think that you have written in vain.

[Footnote 715: The letter in some MSS. is inscribed to Sextius or Sestius. Of P. Sittius of Nuceria we hear in the speech _pro Sulla_, §§ 56, 58. Sulla (who was accused of assisting Catiline) had sent P. Sittius on a mission to Spain, as it was alleged, to raise a rebellion there in support of Catiline. It does not, however, appear that his condemnation took place then. It seems to have been just previous to Cicero's return from exile (August, B.C. 57), and it is suggested that it was after his ædileship of the previous year, when a scarcity of corn had contributed to his unpopularity. The date of the letter is uncertain.]

[Footnote 716: P. Sulla. Sittius was not, it seems, brought to trial with Sulla, but his journey to Spain formed part of the allegations against Sulla.]

CLXXIX (F V, 18)

TO T. FADIUS[717] (IN EXILE)

ROME

[Sidenote: B.C. 52, ÆT. 54]

Although I too, who am desirous of consoling you, stand in need of consolation myself--for nothing for a long time past has so deeply afflicted me as your disaster--nevertheless I do strongly not only exhort, but even beg and implore you, with all the earnestness that my affection dictates, to summon all your energies, to shew a manly courage, and to reflect under what conditions all mortals, and in what times we particularly, have been born. Your virtue has given you more than fortune has taken away: for you have obtained what not many "new men" have obtained; you have lost what many men of the highest rank have lost. Finally, a state of legislation, law courts, and politics generally appears to be imminent, such that the man would seem to be the most fortunate who has quitted such a republic as ours with the lightest possible penalty. As for you, however--since you retain your fortune and children, with myself and others still very closely united to you, whether by relationship or affection--and since you are likely to have much opportunity of living with me and all your friends--and since, again, your condemnation is the only one out of so many that is impugned, because, having been passed by one vote (and that a doubtful one), it is regarded as a concession to a particular person's overwhelming[718] power--for all these reasons, I say, you ought to be as little distressed as possible at the inconvenience that has befallen you. My feeling towards yourself and your children will always be such as you wish, and such as it is in duty bound to be.

[Footnote 717: Titus Fadius Gallus had been a quæstor in Cicero's consulship (B.C. 63), and a tribune in B.C. 58, when Cicero reckoned him among those on whom he depended to resist Clodius. He also, among others, had a motion prepared for Cicero's recall, of which Cicero speaks with approbation (p. 178). We do not know on what charge he had been condemned, but a number of prosecutions followed the death of Clodius and Pompey's legislation as to violence and corruption of juries.]

[Footnote 718: Pompey. He uses the word _potentia_, as he generally does, in an invidious sense of "tyrannical, or, unconstitutional power," as opposed to _auctoritas_, "legitimate influence."]

CLXXX (F III, 1)

TO APPIUS CLAUDIUS PULCHER[719] (IN CILICIA)

ROME

[Sidenote: B.C. 52, ÆT. 54]

Cicero to Appius, _imperator_. Could the Republic itself speak and tell you of its state, you would not learn it more easily from its own lips than from your freedman Phania: he is a man of such clear insight, as well as (in a good sense) of such keen

curiosity! Wherefore he shall explain everything to you: for that will suit me best by enabling me to curtail my letter, and will be more prudent for me in view of other circumstances. But in regard to my good feeling towards you, though you can learn it from this same Phania, yet I think that I also have personally something I ought to say on the subject. For assure yourself of this--that you are exceedingly dear to me, from the many attractions of your character, your kindness, and the goodness of your heart, but also because from your letter, as well as from the remarks of many, I understand that all my conduct towards you has been most warmly appreciated by you. And since that is so, I will take means to make up for the great loss of time, which we have sustained from this interruption of our intercourse, by the liberality, the frequency, and the importance of my services; and that I think I shall do, since you would have it be so, by no means against the grain, or as the phrase is, "against the will of Minerva"--a goddess by the way whom, if I shall chance to get possession of a statue of her from your stock, I shall not simply designate "Pallas," but "Appias."[720] Your freedman Cilix was not well known to me before, but when he delivered me your kind and affectionate letter, he confirmed the courteous expressions of that letter by his own words. I was much gratified by his speech, when he described to me your feelings and the remarks which you were daily making about me. In short, within two days he became my intimate friend, without, however, my ceasing to regret Phania deeply. When you send the latter back to Rome, which I imagine you intend speedily to do, pray give him instructions as to all matters which you wish to be transacted or looked after by me.

I commend L. Valerius the lawyer to you very strongly; not, however, in his capacity of lawyer: for I wish to take better precautions for him than he does for others. I am really fond of the man: he is one of my closest and most intimate friends. In a general way he expresses nothing but gratitude to you; but he also says that a letter from me will have very great influence with you. I beg you again and again that he may not find himself mistaken.

[Footnote 719: Brother of Cicero's enemy, P. Clodius. He had been consul in B.C. 54, and was now proconsul in Cilicia, in which government Cicero was to succeed him. His relations with Cicero had been varied, and though Cicero speaks warmly to him, he does not do so often of him, and his compliments are evidently not really sincere.]

[Footnote 720: "I shall, in compliment to your accomplishments, call the goddess of learning and wisdom 'Appias,'" _i.e._, the "Appian Goddess." But the meaning of the elaborate and dull joke or compliment is far from clear, especially the phrase _si forte de tuis sumpsero_. Was Cicero expecting a present of a bust of Minerva, or intending to purchase one from Appius's collection? Or does he allude, as has been suggested, to the Minerva he had himself dedicated before his exile, and which had probably fallen into the hands of the Appian family?]

CLXXXI (F VII, 2)

TO M. MARIUS (IN CAMPANIA)

ROME (DECEMBER)

[Sidenote: B.C. 52, ÆT. 54]

I will look after your commission carefully. But, sharp man that you are, you have given your commission to the very person above all others whose interest it is that the article should fetch the highest possible price! However, you have been far-sighted in fixing beforehand how far I am to go. But if you had left it to me, I am so much attached to you that I would have made a bargain with the heirs: as it is, since I know your price, I will put up some one to bid rather than let it go for less. But a truce to jesting! I will do your business with all care, as in duty bound. I feel sure you are glad about Bursa[721], but your congratulations are too half-hearted. For you suppose, as you say in your letter, that, owing to the fellow's meanness, I don't look upon it as a matter of much rejoicing. I would have you believe that I am more pleased with this verdict than with the death of my enemy. For, in the first place, I would rather win by legal process than by the sword; in the second place, by what brings credit to a friend than by what involves his condemnation.[722] And, above all, I was delighted that the support of the loyalists was given to me so decisively against the influence exerted to an incredible degree by a most illustrious and powerful personage. Finally--though, perhaps, you won't think it likely--I hated this man much more than the notorious Clodius himself. For the latter I had attacked, the former I had defended. The latter, too, though the very existence of the Republic was to be risked in my person, had yet a certain great object in view; nor was it wholly on his own initiative, but with the support of those who could not be safe as long as I was so. But this ape of a fellow, in sheer wantonness, had selected me as an object for his invectives, and had persuaded certain persons[723] who were jealous of me that he would always be a ready instrument for an attack upon me. Wherefore I bid you rejoice with all your heart: a great stroke has been struck. Never were any citizens more courageous than those who ventured to vote for his condemnation, in the teeth of the immense power of the man by whom the jurors had themselves been selected. And this they never would have done had not my grievance been theirs also. Here, in Rome, I am so distracted by the number of trials, the crowded courts, and the new legislation,[724] that I daily offer prayers that there may be no intercalation,[725] so that I may see you as soon as possible.

[Footnote 721: The condemnation of T. Munatius Plancus Bursa, who, being tribune in B.C. 52, had promoted the riots following the death of Clodius, especially in regard to burning his body in the Curia, and had, after his office terminated (10th December), been prosecuted _de vi_ by Cicero successfully. Bursa, with others, had supported Pompey's wish for the dictatorship, as well as his legislation, and accordingly, in attacking him, Cicero had against him the weight of Pompey's influence. He therefore looks upon it as a great triumph.]

[Footnote 722: The condemnation of Bursa was a point in favour of Milo, whereas Milo's murder of Clodius only brought his ultimate condemnation and exile. Milo's trial had taken place in April.]

[Footnote 723: Pompey and his friends.]

[Footnote 724: The new laws introduced by Pompey _de vi_, _de magistratibus_, _de pecunia ob iudicium_.]

[Footnote 725: The intercalary month was inserted between the 23rd and 24th of February. Whether it was to be inserted or not depended on the pontifices, who kept their secret jealously. If it is inserted, Cicero will be kept all the longer in town with senatorial and legal business, and so be prevented from seeing Marius, who lived near his Pompeian villa.]

APPENDIX A

DE PETITIONE CONSULATUS

[This is rather an essay than a letter, and is not generally included in any of the books of the correspondence. To my mind there are indications of its being a later composition, the exercise of some one who wished to shew the nature of canvassing at the time. Still, there are many arguments in favour of regarding it as the composition of Quintus, and at any rate it is a contribution to the picture of the times.]

Q. CICERO TO HIS BROTHER MARCUS (AT ROME)

I. Although you have all the accomplishments within the reach of human genius, experience, or acuteness, yet I thought it only consistent with my affection to set down in writing what occurred to my mind while thinking, as I do, day and night on your canvass, not with the expectation that you would learn anything new from it, but that the considerations on a subject, which appeared to be disconnected and without system, might be brought under one view by a logical arrangement.

Consider what the state is: what it is you seek: who you are that seek it. Almost every day as you go down to the forum you should say to yourself, "I am a _novus homo_," "I am a candidate for the consulship," "This is Rome." For the "newness" of your name you will best compensate by the brilliancy of your oratory. That has ever carried with it very great political distinction. A man who is held worthy of defending consulars cannot be thought unworthy of the consulship. Wherefore, since your reputation in this is your starting-point, since whatever you are, you are from this, approach each individual case with the persuasion that on it depends as a whole your entire reputation. See that those aids to natural ability, which I know are your special gifts, are ready for use and always available; and remember what Demetrius wrote about the hard work and practice of Demosthenes; and, finally, take care that both the number and rank of your friends are unmistakable. For you have such as few _novi homines_ have had--all the _publicani_, nearly the whole equestrian order, many municipal towns specially devoted to you, many persons who have been defended by you, men of every order, many _collegia_, and, besides these, a large number of the rising generation who have become attached to you in their enthusiasm for rhetoric, and, finally, your friends who visit you daily in large numbers

and with such constant regularity. See that you retain these advantages by reminding these persons, by appealing to them, and by using every means to make them understand that this, and this only, is the time for those who are in your debt to show their gratitude, and for those who wish for your services in the future to place you under an obligation. It also seems possible that a "new man" may be much assisted by the fact that he has the good wishes of men of high rank, and especially of consulars. It is a point in your favour that you should be thought worthy of this position and rank by the very men to whose position and rank you are wishing to attain. All these men must be canvassed with care, agents must be sent to them, and they must be convinced that we have always been at one with the Optimates in our political sentiments, that we have never been demagogues in the very least: that if we seem ever to have said anything in the spirit of that party, we did so with the view of attracting Cn. Pompeius, that we might have the man of the greatest influence either actively on our side in our canvass, or at least not opposed to us.[726] Farthermore, take pains to get on your side the young men of high rank, or retain the affection of those you already have. They will contribute much to your political position. You have very many; make them feel how much you think depends on them: if you induce those to be positively eager who are merely not disinclined, they will be of very great advantage to you.

II. It is also a great set-off to your "newness," that the nobles who are your competitors are of a such a kind that no one can venture to say that their nobility ought to stand them in greater stead than your high character. For instance, who could think of P. Galba and L. Cassius, though by birth of the highest rank, as candidates for the consulship? You see, therefore, that there are men of the noblest families, who from defect of ability are not your equals. But, you will say, Catiline and Antonius are formidable. Rather I should say that a man of energy, industry, unimpeachable character, great eloquence, and high popularity with those who are the ultimate judges, should wish for such rivals--both from their boyhood stained with blood and lust, both of ruined fortunes. Of one of them we have seen the property put up for sale, and actually heard him declare on oath that at Rome he could not contend with a Greek or obtain an impartial tribunal.[727] We know that he was ejected from the senate by the judgment of genuine censors: in our prætorship we had him as a competitor, with such men as Sabidius and Panthera to back him, because he had no one else to appear for him at the scrutiny. Yet in this office he bought a mistress from the slave market whom he kept openly at his house. Moreover, in his canvass for the consulship, he has preferred to be robbing all the innkeepers, under the disgraceful pretext of a _libera legatio_, rather than to be in town and supplicate the Roman people. But the other! Good heavens! what is his distinction? Is he of equally noble birth? No. Is he richer? No. In manliness, then? How do you make that out? Why, because while the former fears his own shadow, this man does not even fear the laws!--A man born in the house of a bankrupt father, nurtured in the society of an abandoned sister, grown to manhood amidst the massacre of fellow citizens, whose first entrance to public life was made by the slaughter of Roman knights! For Sulla had specially selected Catiline to command that band of Gauls which we remember, who shore off the heads of the Titinii and Nannii and Tanusii: and while with them he

killed with his own hands the best man of the day, his own sister's husband, Quintus Cæcilius, who was a Roman eques, a man belonging to no party, always quiet by inclination, and then so from age also.

III. Why should I speak of him as a candidate for the consulship, who caused M. Marius, a man most beloved by the Roman people, to be beaten with vine-rods in the sight of that Roman people from one end of the city to the other--forced him up to the tomb--rent his frame with every kind of torture, and while he was still alive and breathing, cut off his head with his sword in his right hand, while he held the hairs on the crown of his head with his left, and carried off his head in his own hand with streams of blood flowing through his fingers?[728] A man who afterwards lived with actors and gladiators on such terms that the former ministered to his lust, the latter to his crimes--who never approached a place so sacred or holy as not to leave there, even if no actual crime were committed, some suspicion of dishonour founded on his abandoned character--a man whose closest friends in the senate were the Curii and the Annii, in the auction rooms the Sapalæ and Carrilii, in the equestrian order the Pompilii and Vettii--a man of such consummate impudence, such abandoned profligacy, in fine, such cunning and success in lasciviousness, that he corrupted young boys when almost in the bosoms of their parents? Why should I after this mention Africa to you, or the depositions of the witnesses? They are well known--read them again and again yourself. Nevertheless, I think that I should not omit to mention that he left that court in the first place as needy as some of the jurors were before the trial, and in the second place the object of such hatred, that another prosecution against him is called for every day. His position is such that he is more likely to be nervous even if you do nothing, than contemptuous if you start any proceedings.

What much better fortune in your canvass is yours than that which not long ago fell to the lot of another "new man," Gaius Cælius![729] He had two men of the highest rank as competitors, but they were of such a character that their rank was the least of their recommendations--genius of the highest order, supreme modesty, very numerous public services, most excellent methods of conducting a canvass, and diligence in carrying them out. And yet Cælius, though much inferior in birth, and superior in hardly anything, beat one of them. Wherefore, if you do what your natural ability and studies, which you have always pursued, enable you to do, what the exigencies of your present position require, what you are capable of doing and are bound to do, you will not have a difficult struggle with competitors who are by no means so conspicuous for their birth as notorious for their vices. For what citizen can there be found so ill-affected as to wish by one vote to draw two daggers against the Republic?

IV. Having thus set forth what advantages you have and might have to set against your "newness," I think I ought now to say a word on the importance of what you are trying for. You are seeking the consulship, an office of which no one thinks you unworthy, but of which there are many who will be jealous. For, while by birth of equestrian rank,[730] you are seeking the highest rank in the state, and yet one which, though the highest, reflects much greater splendour on a man of courage, eloquence, and pure life than on others. Don't suppose that those who have already

held that office are blind to the political position you will occupy, when once you have obtained the same. I suspect, however, that those who, though born of consular families, have not attained the position of their ancestors, will, unless they happen to be strongly attached to you, feel some jealousy. Even "new men" who have been prætors I think, unless under great obligations to you, will not like to be surpassed by you in official rank. Lastly, in the populace itself, I am sure it will occur to you how many are envious, how many, from the precedents of recent years, are averse to "new men." It must also needs be that some are angry with you in consequence of the causes which you have pleaded. Nay, carefully consider this also, whether, seeing that you have devoted yourself with such fervour to the promotion of Pompey's glory, you can suppose certain men to be your friends on that account.[731] Wherefore, seeing that you are seeking the highest place in the state, and at the same time that there do exist sentiments opposed to you, you must positively employ every method, and all your vigilance, labour, and attention to business.

V. Again, the canvass for office resolves itself into an activity of two kinds, of which one is concerned with the loyalty of friends, the other with the feelings of the people. The loyalty of friends must be secured by acts of kindness and attention, by length of time, and by an easy and agreeable temper. But this word "friends" has a wider application during a canvass than in other times of our life. For whosoever gives any sign of an inclination to you, or habitually visits at your house, must be put down in the category of friends. But yet the most advantageous thing is to be beloved and pleasant in the eyes of those who are friends on the more regular grounds of relationship by blood or marriage, of membership of the same club, or of some close tie or other. Farther, you must take great pains that, in proportion as a man is most intimate and most closely connected with your household, he should love you and desire your highest honour--as, for instance, your tribesmen, neighbours, clients, and finally your freedmen and even your slaves; for nearly all the talk which forms one's public reputation emanates from domestic sources. In a word, you must secure friends of every class: for show--men conspicuous for their office or name, who, even if they do not give any actual assistance in canvassing, yet add some dignity to the candidate; to maintain your just rights--magistrates, consuls first and then tribunes; to secure the votes of the centuries--men of eminent popularity. Those who either have gained or hope to gain the vote of a tribe or century, or any other advantage, through your influence, take all pains to collect and secure. For during recent years men of ambition have exerted themselves with all their might and main to become sure of getting from their tribesmen what they sought. Do you also do your very best, by every means in your power, to make such men attached to you from the bottom of their hearts and with the most complete devotion. If, indeed, men were as grateful as they ought to be, all this should be ready to your hand, as I trust in fact that it is. For within the last two years you have put under an obligation to you four clubs of men who have the very greatest influence in promoting an election, those of C. Fundanius, Q. Gallius, C. Cornelius, C. Orchivius.[732] When they committed the defence of these men to you, I am acquainted with what their clubsmen undertook and promised you to do, for I was present at the interview. Wherefore you must insist at the present juncture on exacting from them your due by reminding them, appealing to them,

solemnly assuring them, and taking care that they thoroughly understand that they will never have any other opportunity of shewing their gratitude. I cannot doubt that these men, from hope of your services in the future as well as from the benefits recently received, will be roused to active exertions. And speaking generally, since your candidature is most strongly supported by that class of friendships which you have gained as a counsel for the defence, take care that to all those, whom you have placed under this obligation to you, their duty should in every case be clearly defined and set forth. And as you have never been in any matter importunate with them, so be careful that they understand that you have reserved for this occasion all that you consider them to owe you.

VI. But since men are principally induced to shew goodwill and zeal at the hustings by three considerations--kindness received, hope of more, personal affection and good feeling--we must take notice how best to take advantage of each of these. By very small favours men are induced to think that they have sufficient reason for giving support at the poll, and surely those you have saved (and their number is very large) cannot fail to understand that, if at this supreme crisis they fail to do what you wish, they will never have anyone's confidence. And though this is so, nevertheless they must be appealed to, and must even be led to think it possible that they, who have hitherto been under an obligation to us, may now put us under an obligation to them. Those, again, who are influenced by hope (a class of people much more apt to be scrupulously attentive) you must take care to convince that your assistance is at their service at any moment, and to make them understand that you are carefully watching the manner in which they perform the duties they owe you, and to allow no mistake to exist as to your clearly perceiving and taking note of the amount of support coming from each one of them. The third class which I mentioned is that of spontaneous and sincere friends, and this class you will have to make more secure by expressions of your gratitude; by making your words tally with the motives which it shall appear to you influenced them in taking up your cause; by shewing that the affection is mutual; and by suggesting that your friendship with them may ripen into intimacy and familiar intercourse. In all these classes alike consider and weigh carefully the amount of influence each possesses, in order to know both the kind of attention to pay to each, and what you are to expect and demand from each. For certain men are popular in their own neighbourhoods and towns; there are others possessed of energy and wealth, who, even if they have not heretofore sought such popularity, can yet easily obtain it at the moment for the sake of one to whom they owe or wish to do a favour. Your attention to such classes of men must be such as to shew them that you clearly understand what is to be expected from each, that you appreciate what you are receiving, and remember what you have received. There are, again, others who either have no influence or are positively disliked by their tribesmen, and have neither the spirit nor the ability to exert themselves on the spur of the moment: be sure you distinguish between such men, that you may not be disappointed in your expectation of support by placing over-much hope on some particular person.

VII. But although you ought to rely on, and be fortified by, friendships already gained and firmly secured, yet in the course of the canvass itself very numerous and

useful friendships are acquired. For among its annoyances a candidature has this advantage: you can without loss of dignity, as you cannot in other affairs of life, admit whomsoever you choose to your friendship, to whom if you were at any other time to offer your society, you would be thought guilty of an eccentricity; whereas during a canvass, if you don't do so with many, and take pains about it besides, you would be thought to be no use as a candidate at all. Moreover, I can assure you of this, that there is no one, unless he happens to be bound by some special tie to some one of your rivals, whom you could not induce, if you took pains, to earn your affection by his good services, and to seize the opportunity of putting you under an obligation--let him but fully understand that you value him highly, that you really mean what you say, that he is making a good investment, and that there will accrue from it not only a brief and electioneering friendship, but a firm and lasting one. There will be no one, believe me, if he has anything in him at all, who will let slip this opportunity offered of establishing a friendship with you, especially when by good luck you have competitors whose friendship is one to be neglected or avoided, and who not only are unable to secure what I am urging you to secure, but cannot even make the first step towards it. For how should Antonius make the first step towards attaching people to himself, when he cannot even call them, unaided, by their proper names? I, for one, think that there can be no greater folly than to imagine a man solicitous to serve you whom you don't know by sight. Extraordinary indeed must be the fame, the political position and extent of the public services of that man whom entire strangers, without supporters to back him, would elect to office. That a man without principle or energy, without doing any good service, and without ability, lying under a cloud of discredit, and without friends, should beat a man fortified with the devotion of a numerous circle and by the good opinion of all, cannot possibly occur except from gross negligence.

VIII. Wherefore see that you have the votes of all the centuries secured to you by the number and variety of your friends. The first and most obvious thing is that you should embrace the Roman senators and knights, and the active and popular men of all the other orders. There are many city men of good business habits, there are many freedmen engaged in the forum who are popular and energetic: these men try with all your might both personally and by common friends, as far as you can, to make eager in your behalf; seek them out, send agents to them, shew them that they are putting you under the greatest obligation. After that review the entire city, all colleges, districts, neighbourhoods. If you attach to yourself the leading men of these, you will by their means easily keep a hold upon the multitude. When you have done that, take care to have in your mind a chart of all Italy laid out according to the tribe of each town, and learn it by heart, so that you may not allow any _municipium_, colony, prefecture, or, in a word, any spot in Italy to exist, in which you have not a sufficient foothold. Inquire also for and trace out individuals in every region, inform yourself about them, seek them out, strengthen their resolution, secure that in their own neighbourhoods they shall canvass for you, and be as it were candidates in your interest. They will wish for you as a friend, if they once see that their friendship is an object with you. Make sure that they _do_ understand this by directing your speech specially to this point. Men of country towns, or from the country, think themselves in

the position of friends if we of the city know them by name: if, however, they think that they are besides securing some protection for themselves, they do not let slip the opportunity of being obliging. Of such people others in town, and above all your rivals, don't so much as know the existence: you know about them and will easily recognize them, without which friendship is impossible. Nor is such recognition enough (though it is a great thing) unless some hope of material advantage and active friendship follows, for your object is not to be looked upon as a mere "nomenclator," but as a sincere friend also. So when you have both got the favour of these same men in the centuries, who from the means they have taken to secure their personal objects enjoy most popularity among their fellow tribesmen; and have made those all desirous of your success who have influence in any section of their tribe, owing to considerations attaching to their municipality or neighbourhood or college, then you may allow yourself to entertain the highest hopes.

Again, the centuries of the knights appear to me capable of being won over, if you are careful, with considerably more ease. Let your first care be to acquaint yourself with the knights; for they are comparatively few: then make advances to them, for it is much easier to gain the friendship of young men at their time of life. Then again, you have on your side the best of the rising generation, and the most devoted to learning. Moreover, as the equestrian order is yours, they will follow the example of that order, if only you take the trouble to confirm the support of those centuries, not only by the general good affection of the order, but also by the friendships of individuals. Finally, the hearty zeal of the young in canvassing for votes, appearing at various places, bringing intelligence, and being in attendance on you in public are surprisingly important as well as creditable.

IX. And since I have mentioned "attendance," I may add that you should be careful to see large companies every day of every class and order; for from the mere number of these a guess may well be made as to the amount of support you are likely to have in the _campus_ itself. Such visitors are of three kinds: one consists of morning callers who come to your house, a second of those who escort you to the forum, a third of those who attend you on your canvass. In the case of the morning callers, who are less select and, according to the prevailing fashion, come in greater numbers, you must contrive to make them think that you value even this slight attention very highly. Let those who shall come to your house see that you notice it; shew your gratification to such of their friends as will repeat it to them; frequently mention it to the persons themselves. It often happens that people, when they visit a number of candidates, and observe that there is one who above the rest notices these attentions, devote themselves to him; leave off visiting the others; little by little become devoted to one instead of being neutral, and from sham turn out real supporters. Farthermore, carefully remember this, if you have been told or have discovered that a man who has given you his promise is "dressing for the occasion," as the phrase goes, make as though you had neither heard it nor knew it; if any offers to clear himself to you, because he thinks himself suspected, assert roundly that you have never doubted his sincerity and have no right to doubt it. For the man who thinks that he is not giving satisfaction can never be a friend. You ought, however, to know each man's real feeling, in order to settle how much confidence to place in him.

Secondly, of those who escort you to the forum: since this is a greater attention than a morning call, indicate and make clear that it is still more gratifying to you, and as far as it shall lie in your power go down to the forum at fixed times. The daily escort by its numbers produces a great impression and confers great personal distinction. The third class is that of numbers perpetually attending you on your canvass. See that those who do so spontaneously understand that you regard yourself as for ever obliged by their extreme kindness: from those, on the other hand, who owe you this attention, frankly demand that, as far as their age and business allow, they should constantly be in personal attendance, and that those who are unable to accompany you in person should find relations to take their place in performing this duty. I am very anxious, and think it extremely important, that you should always be surrounded by large numbers. Besides, it confers a great reputation and great distinction to be accompanied by those who by your exertions have been defended, preserved, and acquitted in the law courts. Put this demand fairly before them, that, since by your means and without any payment some have retained their property, others their honour, others their civil existence and entire fortunes, and since there will never be any other time at which they can show their gratitude, they should remunerate you by this service.

X. And since the point now in discussion is entirely a question of the loyalty of friends, I must not, I think, pass over one caution. Deception, intrigue, and treachery are everywhere. This is not the time for a formal disquisition on the indications by which a true friend may be distinguished from a false: all that is in place now is to give you a hint. Your exalted character has compelled many to pretend to be your friends while really jealous of you. Wherefore remember the saying of Epicharmus, "the muscle and bone of wisdom is to believe nothing rashly." Again, when you have got the feelings of your friends in a sound state, you must then acquaint yourself with the attitude and varieties of your detractors and opponents. There are three: first, those whom you have attacked; second, those who dislike you without definite reason; third, those who are warm friends of your competitors. As to those attacked by you while pleading a friend's cause against them, frankly excuse yourself; remind them of the ties constraining you; give them reason to hope that you will act with equal zeal and loyalty in their cases, if they become your friends. As for those who dislike you without reason, do your best to remove that prejudice either by some actual service, or by holding out hopes of it, or by indicating your kindly feeling towards them. As for those whose wishes are against you owing to friendship for your competitors, gratify them also by the same means as the former, and, if you can get them to believe it, shew that you are kindly disposed to the very men who are standing against you.

XI. Having said enough about securing friendships, I must now speak on another department of a candidate's task, which is concerned with the conciliation of the people. This demands a knack of remembering names, insinuating manners, constant attendance, liberality, the power of setting a report afloat and creating a hopeful feeling in the state. First of all, make the faculty you possess of recognizing people conspicuous, and go on increasing and improving it every day. I don't think there is anything so popular or so conciliatory. Next, if nature has denied you some quality,

resolve to assume it, so as to appear to be acting naturally. Although nature has great force, yet in a business lasting only a few months it seems probable that the artificial may be the more effective. For though you are not lacking in the courtesy which good and polite men should have, yet there is great need of a flattering manner which, however faulty and discreditable in other transactions of life, is yet necessary during a candidateship. For when it makes a man worse by truckling, it is wrong; but when only more friendly, it does not deserve so harsh a term; while it is absolutely necessary to a candidate, whose face and expression and style of conversation have to be varied and accommodated to the feelings and tastes of everyone he meets. As for "constant attendance," there is no need of laying down any rule, the phrase speaks for itself. It is, of course, of very great consequence not to go away anywhere; but the real advantage of such constant attendance is not only the being at Rome and in the forum, but the pushing one's canvass assiduously, the addressing oneself again and again to the same persons, the making it impossible (as far as your power goes) for anyone to say that he has not been asked by you, and earnestly and carefully asked. Liberality is, again, of wide application; it is shewn in regard to the management of your private property, which, even if it does not actually reach the multitude, yet, if spoken of with praise by friends, earns the favour of the multitude. It may also be displayed in banquets, which you must take care to attend yourself and to cause your friends to attend, whether open ones or those confined to particular tribes. It may, again, be displayed in giving practical assistance, which I would have you render available far and wide: and be careful therein to be accessible to all by day and night, and not only by the doors of your house, but by your face and countenance, which is the door of the mind; for, if that shews your feelings to be those of reserve and concealment, it is of little good to have your house doors open. For men desire not only to have promises made them, especially in their applications to a candidate, but to have them made in a liberal and complimentary manner. Accordingly, it is an easy rule to make, that you should indicate that whatever you are going to do you will do with heartiness and pleasure; it is somewhat more difficult, and rather a concession to the necessities of the moment than to your inclination, that when you cannot do a thing you should [either promise] or put your refusal pleasantly: the latter is the conduct of a good man, the former of a good candidate. For when a request is made which we cannot grant with honour or without loss to ourselves, for instance, if a man were to ask us to appear in a suit against a friend, a refusal must be given in a gentlemanly way: you must point out to him that your hands are tied, must shew that you are exceedingly sorry, must convince him that you will make up for it in other ways.

XII. I have heard a man say about certain orators, to whom he had offered his case, "that he had been better pleased with the words of the one who declined, than of the one who accepted." So true it is that men are more taken by look and words than by actual services. [This latter course, however, you will readily approve: the former it is somewhat difficult to recommend to a Platonist like you, but yet I will have regard for your present circumstances.] For even those to whom you are forced by any other tie to refuse your advocacy may yet quit you mollified and with friendly feelings. But those to whom you only excuse a refusal by saying that you are hindered by the

affairs of closer friends, or by cases more important or previously undertaken, quit you with hostile feelings, and are one and all disposed to prefer an insincere promise to a direct negative from you. C. Cotta, a master in the art of electioneering, used to say that, "so long as the request was not directly contrary to moral duty, he used to promise his assistance to all, to bestow it on those with whom he thought it would be most advantageously invested: he did not refuse anyone, because something often turned up to prevent the person whom he promised from availing himself of it, and it often also occurred that he himself was less engaged than he had thought at the time; nor could anyone's house be full of suitors who only undertook what he saw his way to perform: by some accident or other the unexpected often happens, while business, which you have believed to be actually in hand, from some cause or other does not come off: moreover, the worst that can happen is that the man to whom you have made a false promise is angry." This last risk, supposing you to make the promise, is uncertain, is prospective, and only affects a few; but, if you refuse, the offence given is certain, immediate, and more widely diffused. For many more ask to be allowed to avail themselves of the help of another than actually do so. Wherefore it is better that some of them should at times be angry with you in the forum, than all of them perpetually at your own house: especially as they are more inclined to be angry with those who refuse, than with a man whom they perceive to be prevented by so grave a cause as to be compatible with the desire to fulfil his promise if he possibly could. But that I may not appear to have abandoned my own classification, since the department of a candidate's work on which I am now dilating is that which refers to the populace, I insist on this, that all these observations have reference not so much to the feelings of friends as to popular rumour. Though there is something in what I say which comes under the former head--such as answering with kindness, and giving zealous assistance in the business and the dangers of friends--yet in this part of my argument I am speaking of the things which enable you to win over the populace: for instance, the having your house full of visitors before daybreak, the securing the affection of many by giving them hope of your support, the contriving that men should leave you with more friendly feelings than they came, the filling the ears of as many as possible with the most telling words.

XIII. For my next theme must be popular report, to which very great attention must be paid. But what I have said throughout the foregoing discourse applies also to the diffusion of a favourable report: the reputation for eloquence; the favour of the _publicani_ and equestrian order; the goodwill of men of rank; the crowd of young men; the constant attendance of those whom you have defended; the number of those from municipal towns who have notoriously come to Rome on your account; the observations which men make in your favour--that you recognize them, address them politely, are assiduous and earnest in canvassing; that they speak and think of you as kind and liberal; the having your house full of callers long before daybreak; the presence of large numbers of every class; that your look and speech give satisfaction to all, your acts and deeds to many; that everything is done which can be done by hard work, skill, and attention, not to cause the fame arising from all these displays of feeling to reach the people, but to bring the people itself to share them. You have already won the city populace and the affections of those who control the public

meetings by your panegyric of Pompey, by undertaking the cause of Manilius, by your defence of Cornelius.[733] We must not let those advantages be forgotten, which hitherto no one has had without possessing at the same time the favour of the great. We must also take care that everyone knows that Cn. Pompeius is strongly in your favour, and that it emphatically suits his purpose that you should win your election. Lastly, take care that your whole candidature is full of _éclat_, brilliant, splendid, suited to the popular taste, presenting a spectacle of the utmost dignity and magnificence. See also, if possible, that some new scandal is started against your competitors for crime or looseness of life or corruption, such as is in harmony with their characters.

Above all in this election you must see that the Republic entertains a good hope and an honourable opinion of you. And yet you must not enter upon political measures in senate-house and public meeting while a candidate: you must hold such things in abeyance, in order that from your lifelong conduct the senate may judge you likely to be the supporter of their authority; the Roman knights, along with the loyalists and wealthy, judge you from your past to be eager for peace and quiet times; and the people think of you as not likely to be hostile to their interests from the fact that in your style of speaking in public meetings, and in your declared convictions, you have been on the popular side.

XIV. This is what occurred to me to say on the subject of these two morning reflexions, which I said you ought to turn over in your mind every day as you went down to the forum: "I am a _novus homo_," "I am a candidate for the consulship." There remains the third, "This is Rome," a city made up of a combination of nations, in which many snares, much deception, many vices enter into every department of life: in which you have to put up with the arrogant pretensions, the wrong-headedness, the ill-will, the hauteur, the disagreeable temper and offensive manners of many. I well understand that it requires great prudence and skill for a man, living among social vices of every sort, so many and so serious, to avoid giving offence, causing scandal, or falling into traps, and in his single person to adapt himself to such a vast variety of character, speech, and feeling. Wherefore, I say again and again, go on persistently in the path you have begun: put yourself above rivalry in eloquence; it is by this that people at Rome are charmed and attracted, as well as deterred from obstructing a man's career or inflicting an injury upon him. And since the chief plague spot of our state is that it allows the prospect of a bribe to blind it to virtue and worth, be sure that you are fully aware of your own strength, that is, understand that you are the man capable of producing in the minds of your rivals the strongest fear of legal proceeding and legal peril. Let them know that they are watched and scrutinized by you: they will be in terror of your energy, as well as of your influence and power of speech, and above all of the affection of the equestrian order towards you. But though I wish you to hold out this before them, I do not wish you to make it appear that you are already meditating an action, but to use this terror so as to facilitate the gaining of your object: and, in a word, in this contest strain every nerve and use every faculty in such a way as to secure what we seek. I notice that there are no elections so deeply tainted with corruption, but that some centuries return men closely connected with them without receiving money. Therefore, if we

are as vigilant as the greatness of our object demands, and rouse our well-wishers to put forth all their energies; and if we allot to men of influence and zeal in our service their several tasks; if we put before our rivals the threat of legal proceedings; if we inspire their agents with fear, and by some means check the distributors, it is possible to secure either that there shall be no bribery or that it shall be ineffectual.

These are the points that I thought, not that I knew better than you, but that I could more easily than you--in the pressing state of your present engagements--collect together and send you written out. And although they are written in such terms as not to apply to all candidates for office, but to your special case and to your particular election, yet I should be glad if you would tell me of anything that should be corrected or entirely struck out, or that has been omitted. For I wish this little essay "on the duties of a candidate" to be regarded as complete in every respect.

[Footnote 726: It is to be observed that at this time Pompey is reckoned as inclined to the _populares_. His legislation in B.C. 70 had been somewhat in their favour; but he had not, as a fact, ever declared himself either way.]

[Footnote 727: C. Antonius, impeached by Cæsar for plundering Macedonia, _appellavit tribunos iuravitque se forum eiurare, quod æquo iure uti non posset_ (Ascon. § 84). His offences in Macedonia, where he had been left by Sulla, were in B.C. 83-80; his impeachment, B.C. 76; his expulsion from the senate, B.C. 70.]

[Footnote 728: M. Marius Gratidianus (Ascon. § 84). These denunciations of Antonius and Catiline seem to be taken from the oration _in toga candida_.]

[Footnote 729: Cælius, consul B.C. 94 with Cn. Domitius Ahenobarbus.]

[Footnote 730: Cicero, of course, was now a senator, but he was the first of his family who had been so. The others who came forward for the consulship were two patricians, P. Sulpicius Galba, L. Sergius Catilina; four plebeians, C. Antonius, L. Cassius Longinus, whom Asconius calls _nobiles_, _i.e._, members of families who had held curule office; and Q. Cornificius and C. Licinius Sacerdos, whose families had only recently risen to this position, _tantum non primi ex familiis suis magistratum adepti erant_ (Asc.)]

[Footnote 731: He hints, I think, at Cæsar, who supported Antonius and Catiline, and also the Luculli, who were opponents of Pompey.]

[Footnote 732: C. Fundanius, defended by Cicero B.C. 66, fr. p. 216. Q. Gallius, defended by Cicero on _ambitus_ B.C. 64, fr. p. 217 (_Brut._ § 277). C. Cornelius, quæstor of Pompey, tr. pl. B.C. 67, defended by Cicero B.C. 65 (Ascon. § 56 _seq._) C. Orchivius, Cicero's colleague in prætorship B.C. 66 (_Or._ § 160). We don't know on what charge Cicero defended him. The passage in _pro Cluent._ § 147, does not mean that he was accused of _peculatus_, but that he presided over trials of _peculatus_ as prætor.]

[Footnote 733: Manilius, tr. pl. B.C. 66, proposed the law for appointing Pompey to supersede Lucullus in the East. After his year of office he was accused of _maiestas_, and later on of _repetundæ_, but apparently neither case came on. C. Cornelius, tr.

pl. B.C. 57, was accused of _maiestas_ in B.C. 55, and defended by Cicero. He had become alienated from the senate by its opposition to his legislation against usury in the provinces, and the case made a great sensation.]

APPENDIX B

L. VETTIUS (LETTER L, A II, 24)

L. Vettius, a kind of Titus Oates, was like the witness in "Great Expectations," prepared to swear "mostly anything." The interest attaching to such a sordid person is confined to the question whether he was really acting with the connivance of, or under an agreement with, any of the leading politicians of the day. If the principle of _cui bono_ is applied, it is evident that the gainers were the party of the trumvirs, whose popularity would be increased by a belief being created that their opponents the Optimates were prepared to adopt extreme measures to get rid of them. It would give them just the advantage which the Rye House plot gave Charles II. This is Cicero's view, it seems, of the matter, as insinuated in this letter and in his speech against Vatinius (§§ 24-26; cp. _pro Sest._ § 132). In the letter, however, his insinuations seem directed against Cæsar: in the speech Vatinius is the scape-goat. But Vettius was not only a liar, but a bad liar. He made blunders; and when he brought in the name of Bibulus, he was not aware that Bibulus had got scent of something going on, and had secured himself by giving Pompey warning. He also did not tell consistent stories, mentioning names (such as that of Brutus) at one time, and withdrawing them at another. He was accordingly wholly discredited, and could therefore expect no protection from Cæsar, who had been careful not to commit himself; and he had nothing for it but suicide, like Pigott at the time of the Parnell Commission.

Cicero, then, would have us believe that Vettius had been instigated by Vatinius (acting for Cæsar) to name Bibulus, L. Lucullus, Curio (father and son), L. Domitius Ahenobarbus, L. Lentulus, L. Paullus, Cicero himself, his son-in-law Piso, and M. Laterensis, as having been all more or less privy to the plot to murder Pompey and Cæsar. That there was absolutely no such plot, and that Vettius broke down hopelessly when questioned. That the object was, (1) to irritate Pompey with the Optimates and so confirm him in his alliance with Cæsar, (2) to discredit the Optimates generally.

It may be well to state briefly the views put forward by our other authorities for this period.

(1.) Suetonius (_Cæs. 20_) appears to attribute the instigation of Vettius to Cæsar, as also the murder of Vettius in prison, after he broke down so flagrantly. The text of this passage, however, is somewhat doubtful.

(2.) Appian (_B. C._ ii. 12) describes the scene as happening at the time that Cæsar's agrarian law was being passed, and Bibulus was hustled in the forum. Vettius, with a drawn dagger, rushed into the crowd crying out that he had been sent by Bibulus, Cicero, and Cato to assassinate Cæsar and Pompey, and that an attendant

of Bibulus had given him the dagger. Vettius was arrested, put into prison to be questioned the next day, and was murdered during the night. Cæsar meanwhile addressed the people and excited their anger; but after the death of Vettius the matter was hushed up.

(3.) Plutarch (_Lucull._ 42) says that the "Pompeians," annoyed at finding the union with Cæsar opposed by the leading Optimates, induced Vettius to accuse Lucullus and others of a plot to assassinate Pompey; and that the corpse of Vettius shewed evident signs of violence.

(4.) Dio Cassius (38-39) says bluntly that Vettius was employed by Lucullus and Cicero to assassinate Pompey, and was got rid of in prison. He adds that Vettius was discredited by bringing in the name of Bibulus, who (as Cicero also says) had secured himself by giving Pompey warning.

The conclusions seem to be (though in such a tangled skein of lies it is impossible to be sure), (1) that there was no plot, properly so called, though many of the Optimates, and Cicero among them, had used incautious language; (2) that Vettius was suborned by some person or party of persons to make the people believe that there was one; (3) that Cæsar--though there is not sufficient evidence to shew that he had been the instigator--was willing to take advantage of the prejudice created by the suspicions thus aroused; (4) that though Vettius had served Cicero in his capacity of spy in the days of the Catilinarian conspiracy, and was able to report words of his sufficiently characteristic, yet this letter to Atticus exonerates Cicero from suspicion, even if there were a plot, and even if we could believe that he could have brought himself to plot the death of Pompey.

APPENDIX C

The following letters to Tiro, with one from Quintus in regard to his manumission, are given here because of the difficulty of dating them. The indications of time are as follows. I. Those addressed to Tiro are earlier than that of Quintus, because they refer to a promised emancipation, while that of Quintus speaks of it as accomplished. II. The letter of Quintus is after the emancipation of his own freedman Statius, which apparently took place B.C. 59. III. Quintus is at a distance from Italy, and is looking forward to rejoin his brother and family. IV. Cicero is engaged on some more than ordinary literary work. V. Pompey is visiting Cicero in his Cuman villa. Now after his return from Asia (B.C. 58), Quintus was only twice thus distant, in B.C. 57-56 in Sardinia, and in B.C. 54-53 in Britain and Gaul. In both of these periods Cicero was engaged on literary work; in the former on the _de Oratore_, in the latter on the _de Republica_. There is really no means of deciding between these two. It is even possible that they might be placed some time during the proprietorship of Quintus in Asia (B.C. 62-59), during which Cicero was engaged, among other things, on a poem on his own times and a history of his consulship. Tiro--or M. Tullius Tiro, as he was called after his emancipation--was not a young man, and may well have been emancipated even in B.C. 59. According to Hieronymus, he died in B.C. 5 in his hundredth year. He was therefore little more than a year younger than Cicero

himself. The illness of Tiro must have been an earlier one than that of which we shall hear much in B.C. 50-49.

I (F XVI, 13)

TO TIRO

(CUMÆ) 10 APRIL

I shall consider that I have everything possible from you, if I see you in good health. I am awaiting the arrival of Andricus, whom I sent to you, with the utmost anxiety. Do take pains to recover, if you love me: and as soon as you have thoroughly re-established your health, come to me. Good-bye.

10 April.

II (F XVI, 14)

TO TIRO

(CUMÆ) 11 APRIL

Andricus arrived a day later than I expected him, and accordingly I had a night of terror and unhappiness. Your letter does not make me at all more certain of your state, and yet it did revive me. I can take pleasure in nothing; can employ myself in no literary work, which I cannot touch till I have seen you. Give orders to promise the doctor any fee he chooses to ask. I wrote to that effect to Ummidius. I am told that your mind is ill at ease, and that the doctor says this is what makes you ill. If you care for me, rouse from their sleep your studies and your culture, which make you the dearest object of my affection. It is your mind that requires strengthening now, in order that your body may also recover. Pray do it both for your own and my sake. Keep Acastus with you to help to nurse you. Preserve yourself for me. The day for the fulfilment of my promise is at hand, and I will be true to it, if you only come. Good-bye, good-bye!

11 April, noon.

III (F XVI, 15)

TO TIRO

(CUMÆ) 12 APRIL

Ægypta arrived on the 12th of April. Though he brought the news that you were entirely without fever and were pretty well, yet he caused me anxiety by saying that you had not been able to write to me: and all the more so because Hermia, who ought to have arrived on the same day, has not done so. I am incredibly anxious about your health. If you will relieve me from that, I will _liberate_ you from every burden. I would have written at greater length, if I had thought that you were now capable of taking any pleasure in reading a letter. Concentrate your whole intelligence, which I value above everything, upon preserving yourself for your own and my benefit. Use your utmost diligence, I repeat, in nursing your health. Good-bye.

P.S.--When I had finished the above Hermia arrived. I have your letter written in a shaky hand, and no wonder after so serious an illness. I am sending Ægypta back to stay with you, because he is by no means without feeling, and seems to me to be attached to you, and with him a cook for your especial use. Good-bye!

IV (F XVI, 10)

TO TIRO

CUMÆ, 19 MAY

I of course wish you to come to me, but I dread the journey for you. You have been most seriously ill: you have been much reduced by a low diet and purgatives, and the ravages of the disease itself. After dangerous illnesses, if some mistake is made, drawbacks are usually dangerous. Moreover, to the two days on the road which it will have taken you to reach Cumæ, there will have to be added at once five more for your return journey to Rome. I mean to be at Formiæ on the 30th: be sure, my dear Tiro, that I find you there strong and well. My poor studies, or rather _ours_, have been in a very bad way owing to your absence. However, they have looked up a little owing to this letter from you brought by Acastus. Pompey is staying with me at the moment of writing this, and seems to be cheerful and enjoying himself. He asks me to read him something of ours, but I told him that without you the oracle was dumb. Pray prepare to renew your services to our Muses. My promise shall be _performed_ on the day named: for I have taught you the etymology of _fides_.[734] Take care to make a complete recovery. I shall be with you directly. Good-bye.

19 May.

[Footnote 734: From _fio_, according to Cicero, _credamusque quia "fiat" quod dictum est, appellatam fidem_ (_de Off._ i. § 23). He is referring to his promise to emancipate Tiro on a particular day.]

V (F XVI, 16)

Q. CICERO TO HIS BROTHER

(GAUL?)

As I hope to see you again, my dear Marcus, and my own son Cicero, and your Tulliola and your son, I am delighted about Tiro. He was much too good for his position, and I am truly glad that you preferred that he should be our freedman and friend rather than our slave. Believe me, when I read your letter and his I jumped for joy, and I both thank and congratulate you: for if the fidelity and good character of my own Statius is a delight to me, how much more valuable must those same qualities be in your man, since there is added to them knowledge of literature, conversational powers, and culture, which have advantages even over those useful virtues! I have all sorts of most conclusive reasons for loving you: and here is another one, either for what you have done, or, if you choose, for your perfect manner of announcing it to me. Your letter shewed me your whole heart. I have promised Sabinus's servants all they asked, and I will perform my promise.

END OF VOL. I.